



THE SWISS REPUBLIC

WINCHESTER



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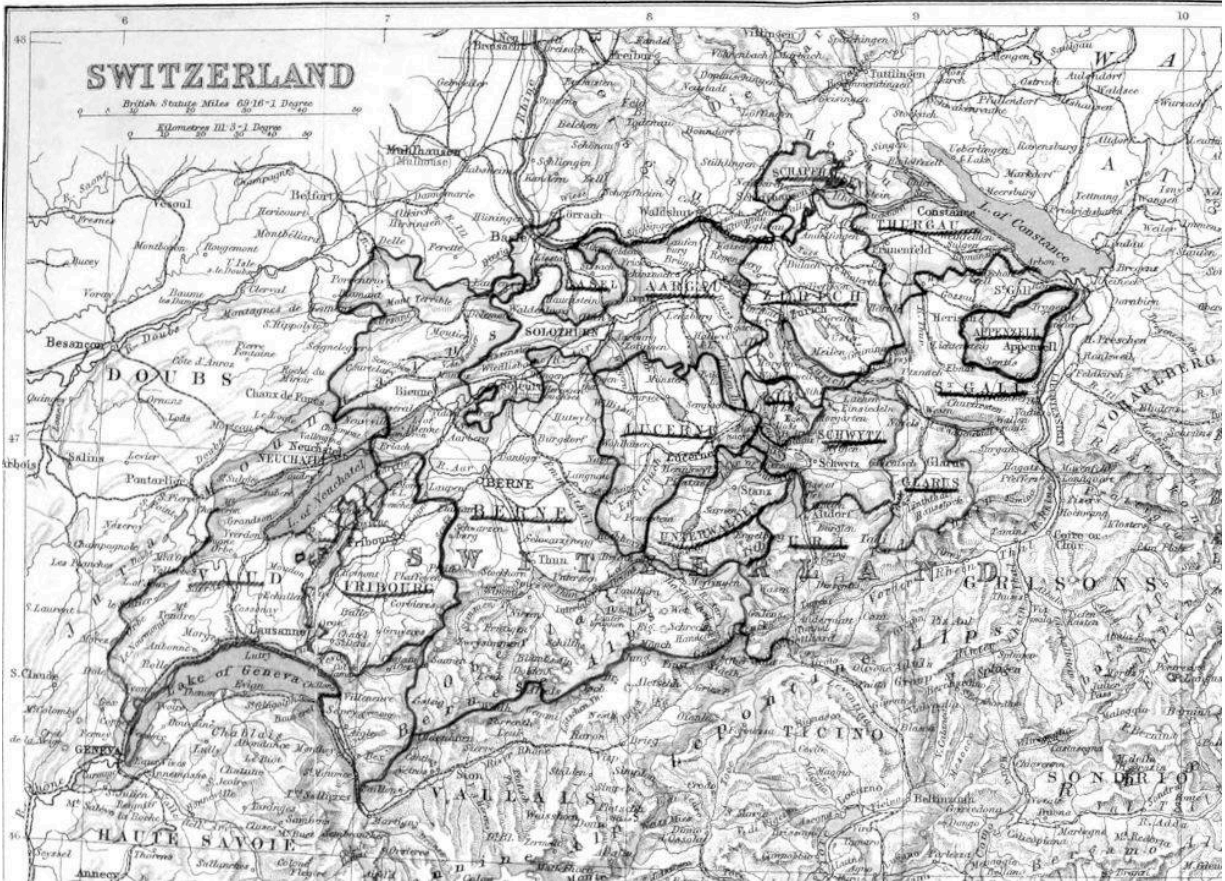
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THE SWISS REPUBLIC.

BY
BOYD WINCHESTER,
LATE UNITED STATES MINISTER AT BERN.



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TO

HENRY WATTERSON

THIS VOLUME IS INSCRIBED, AS A GRATEFUL BUT IMPERFECT
TOKEN OF AN INTIMACY OF MANY YEARS, HOPING HE WILL
ACCEPT THE

Dedication,

WITH THE ASSURANCE THAT IT IS NOT MEANT SO MUCH TO
COMPLIMENT HIM, AS MYSELF.

LOUISVILLE, KY., 1890.

PREFACE.

This book is based upon notes of studies and observations during four years of diplomatic service in Switzerland, made, at the time, with eventual publication in view. There is no attempt to treat the subjects embraced, or rather touched upon, in any historical sequence, but, by brief hints and random suggestions, to seize the principal and interesting features of the country and its institutions, the people and their characteristics.

The comparative method correlated with cause or effect is used in the chapters on the government and administration, national and cantonal. Many familiar facts in Swiss history, and experiences had by the United States, are introduced to show their relation to and effect upon certain political ideas. In fact, all through the Swiss federal polity and that of the United States run not only parallels of illustration, but lines converging to and pointing out essential truths in popular government.

Dating from the “Eternal Covenant” of Uri, Schwyz, and Unterwalden, concluded in 1291, under all vicissitudes of government and constitution,—with radical varieties of character, occupation, religion, language, and descent,—love of liberty and a passionate devotion to the republic have characterized the people, with “life, liberty, and the pursuit of happiness,” the great objects of government, federal, cantonal, and communal. During this period of six hundred years the smallest free commonwealth and the oldest federal republic in the world presents a valuable stock of political experience.

It is very difficult for a stranger to discover all that is remarkable in any country, and perhaps as hard to treat of so many different subjects with such care as to omit nothing that is material. The utmost endeavor, at least, has been used to be exact, and an effort to give a more complete view of the modern state of the country than has yet appeared. There is no design in the “Introduction” to write even an historical outline; it is not necessary to the purpose of this work; but only to relate such general facts, as to its former state, as may serve to discover the causes which gave rise and birth to the present Confederation.

Where references to national and local laws or ordinances and leading historical events are necessary, partial repetition has been deemed preferable to directing the reader to previous citations.

As the Swiss, in different Cantons, speak different languages with several distinct idioms, there is necessarily a great diversity of nomenclature; the aim has been to follow that locally prevalent, and especially in the designation of the Cantons by their German, French, and Italian names.

The writer has had frequent recourse to the following authorities: "The Swiss Confederation," by Sir Francis Adams and C. D. Cunningham, London; "The Federal Government of Switzerland," by Bernard Moses, San Francisco (these two books are of recent date, supplementing each other well, and constitute the only systematic and valuable publication in English on the constitutional history and public law of Switzerland); Woolsey's "Political Science," Woodrow Wilson's "The State," Freeman's "History of Federal Government," May's "Democracy in Europe," "Encyclopædia Britannica," Reclus's "The Earth and its Inhabitants," furnish briefer but valuable accounts. Elaborate works in German and French consulted are Bluntschli's "Staats und Rechts Geschichte der Schweiz," Dubs's "Das öffentliche Recht der schweizerischen Eidgenossenschaft," Droz's "Instruction Civique," and Magnenat's "Abrégé de l'Histoire de la Suisse."

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THE SWISS REPUBLIC.

CHAPTER I.

INTRODUCTION.

The first inhabitants of Switzerland, according to tradition, were fugitives from Italy, who had been driven by the Gauls from the country where now flourish the cities of Genoa and Florence, and who, 600 B.C., found an asylum in the recesses and wilderness of the valleys above which the Rhine has its source. They were known as the Rhetians, from the name of their hero Rhetus; hence the country about the source of the Rhine, embracing the Grisons, is even now called by some, Rhetia. The Canton of Schwyz claims to have been peopled by the Cimbrians, who, leaving their original habitations in Sweden, Norway, and Friesland, conquered their way over the Rhine to the cities of the Gauls, in the country which is now France. The people of Gaul implored help from Rome; a strong army was sent against them, defeating and driving them into the Helvetian mountains. Another tradition says that they were a race of Gaulic Celts, whom some unknown accident had guided from the borders of the Rhine and Main to those of the Lake of Geneva, their collective name being Helvetians, after whom the country was named in Roman times. The first authentic mention we find of these people, as a nation, is by Julius Cæsar, who, in the first book of his "Commentaries," related the war he waged with the Helvetians, who had made an irruption into Burgundy during his government in Gaul. He defeated them, and reduced the country to the obedience of the Romans, annexing it to that part of his government which was called Gallia Celtica. They lived in subjection to the Roman government till that empire fell. Among the new kingdoms and principalities that were raised out of the ruins was the kingdom of Burgundy, composed of a Vandal race from the Oder and the Vistula. Helvetia was overrun and made a part of this kingdom in the beginning of the fifth century (409 A.D.). Then followed irruptions of Alemanni, Ostrogoths, and Franks. The division of Switzerland into German- and French-speaking races is doubtless to be ascribed to these early settlements of different tribes from Germany and Gaul. In the sixth century (550 A.D.), the Franks having subjected the other two, all Helvetia was united to the crown of France. It was lost to the kings of France during

the ninth century, under the weak reign of Charles the Fat. About the year 870 there sprang up again two new kingdoms of Burgundy, one called Cis-Jurana and the other Trans-Jurana; the first, at the end of fifty years, was merged in the latter. In this kingdom was comprehended the country of Helvetia, and continued part of it till about 1032, when Rudolph, the third and last king of Burgundy, dying without children, left all his kingdom to the Emperor Conrad II., whose successors enjoyed it for two centuries, when it was broken into several petty sovereignties.

Feudalism had been rapidly growing up, and, like other parts of Europe, Helvetia fell under the rule of military chiefs and of powerful bishops and abbots. A numerous and ancient nobility divided the possession with ecclesiastical lords; of the former, conspicuous were the Dukes of Zähringen and Counts of Kyburg, Rapperswyl, and Hapsburg; and of the latter, the Bishop of Coire, the Abbot of St. Gallen, and the Abbess of Seckingen. There is no country whose history better illustrates the ambiguous relation, half property and half dominion, in which territorial aristocracy under the feudal system stood with respect to their dependants. The power under these princes, to which the country was subjected, was so limited that it might properly be said to be under their protection rather than their dominion. In the thirteenth century the race of the Dukes of Zähringen became extinct, which made way for the Counts of Hapsburg to enlarge their authority, being raised afterwards to the Austrian Duchy, and invested with the imperial dignity in Germany. The Helvetic people placed themselves under the protection of Rudolph of Hapsburg, with permission to send governors or bailiffs among them. They were governed with mildness while he lived. He died, and his son Albert did not tread in his father's footsteps. This was the beginning of the fourteenth century, the memorable period of Rütli and William Tell. A resolution was taken to form a general insurrection in each Canton, in order to surprise and demolish all the castles and drive the governors and adherents out of the country. "They judged that a sovereign unjust towards a vassal, ceased to be himself protected by justice, and that it was lawful to employ force against him."¹

The confederates pursued so well the measures agreed on that their object was easily accomplished, and with rare examples of moderation. A few years later, a further attempt was made to bring them under the yoke of the empire, when the brave peasants routed the imperial army, under

Leopold, Duke of Austria, at Morgarten, on the 15th of November, 1315. This victory confirmed the independence of the three original Cantons. Soon afterwards followed the perpetual league of Brunnen, on December the 9th of the same year; there is at Brunnen this inscription: “*Hier geschah der erste Bund, Anno 1315, die Grundfeste der Schweiz*” (“Here was the first perpetual league, the foundation of Switzerland”).

According to the Swiss historian, Planta,² the Helvetic union, as founded by the three forest Cantons, called *Waldstätten*, composed of Schwyz, Uri, and Unterwalden, bears date from the most remote periods of their existence, and was framed long before they knew how to commit it to writing. In 1291 this league was reduced to writing; the first covenant is in Latin, and begins, “*In nomine Domini, Amen,*”³ and this form was followed in the several later covenants at Rütli, 1307, and Brunnen, 1315. Each Canton obligated itself to assist and succor the others, with its utmost force, and at its own expense, against all persons or states that should assault or molest any of them; that neither of the Cantons should submit to receive any new sovereign without the knowledge and consent of the others; that none should enter into any alliance or engagement with any other prince or state without the said consent; and that if any difference should arise between any two of these confederated Cantons, the third should be the arbitrator, and obliged to assist that Canton which submitted to its arbitration against the other that should refuse it. The express purpose of this league was for self-defence against all who should attack or trouble them.

The constitution of each Canton was purely democratic; the supreme power was vested in the people at large; all males of fourteen years old in Uri, of fifteen in Schwyz and Unterwalden, having a voice. Though deputies were chosen to represent the people in the Council of Regency, and a Landammann, or chief magistrate,⁴ was also appointed, yet the supreme power was exercised by a general assembly held in the open air. In 1332 Luzern joined the three Cantons, and thus arose the federation of the Four Forest Cantons, *Vierwaldstätten*. Zurich came in in 1351, Zug and Glarus in 1352, and Bern in 1353. These eight Cantons continued until 1481, or a hundred and twenty-eight years, without increasing their number, and are distinguished by the name of the *Eight Old Cantons*. For a long time these Cantons possessed many distinctive privileges. This league upheld its

independence in 1386 against Duke Leopold III., of Austria, in the battle of Sempach, when the most heroic courage was shown. This resulted in the decree of Sempach, whereby the eight Cantons agreed to preserve peace among themselves; to uphold each other; and in war to unite their banners against the common enemy. The last remnant of ancient Helvetic territories in Aargau was wrested in 1417 from Frederic, Count of Tyrol. Though still comprehended within the nominal sovereignty of the empire, encroachments upon their territory or their political liberties were no longer dreaded. They were henceforth free from external control and from contributions imposed by the Germanic Diet. In 1444 followed the defeat of the Dauphin Louis of France at St. Jacob, and the defeat of the Burgundians at Morat and Nancy in 1477. In 1481 Solothurn and Freiburg were admitted. The Cantons then bound themselves under a treaty effected at Stantz, Canton of Unterwalden, in December of that year, to two additional articles:

1. That all the Cantons oblige themselves to succor one another in the support of the form of government then established in each of them.⁵
2. That a body of military laws therein referred to should be received throughout the whole nation, and the observation of them enjoined.

The Emperor Maximilian I. determined to force the Swiss to join the Suabian League; hence resulted the Suabian war, which was concluded after the Swiss had gained six victories, by the peace of Basel in 1499. In 1501 Basel and Schaffhausen acceded to the league. In 1512, by the Milanese war, the Swiss obtained from Milan the territory which at present forms the Canton of Ticino. In 1515, after losing the battle of Marignano,⁶ an advantageous peace was concluded with France, which was followed by the first formal alliance with that kingdom in 1521; and the two countries enjoyed an almost uninterrupted amity for nearly three hundred years.

Such was the political state of Switzerland in the beginning of the sixteenth century; it was an independent federal republic, renowned in war and distinguished for its ancient political institutions. In the Thirty Years' War the Confederates maintained a prudent neutrality, and the Peace Congress of Münster in 1648, through the mediation of France, solemnly acknowledged the complete renunciation of Switzerland's nominal allegiance to the German empire. From this time until the outbreak of the

French Revolution, in 1789, the history of Switzerland presents few events of general importance. Appenzell had been united to the league in 1573, making the number of Cantons thirteen. The thirteen Cantons took the name of *Eidgenossen*, a word signifying confederates, because they bound themselves together as comrades by oath. This endured without a further change of actual members until 1803. From the peace of Aarau, in 1712 (generally credited to 1718, since the Abbot of St. Gallen did not accede to it until six years after its agreement), down to 1798, the Cantons enjoyed the blessings of seventy-nine years of comparative quiet. The tranquillity enjoyed was favorable to the progress of commerce, agriculture, the arts, and sciences. The French Revolution, which disturbed the peace and unsettled the political institutions of every country in Europe, convulsed Switzerland with civil war and anarchy. In January, 1798, a French army entered Switzerland to assist the Pays de Vaud, which had declared its independence against the Bernese; Bern was taken and the Swiss Confederation converted into the "Helvetic Republic, one and indivisible."

The Cantons of Schwyz, Uri, Unterwalden, Zug, Glarus, and Appenzell declared that they would not accept the laws which had been forced upon them, and leagued together to resist. These refractory Cantons were overpowered and coerced, but so gallantly did they maintain their ground that the French general declared, "that every Swiss soldier fought like a Cæsar." It was then ordained by the French that an oath of allegiance to the new government should be taken in every Canton. Schwyz, Uri, Unterwalden, and Zug refused obedience to this ordinance. It was forced upon them and upheld by a costly army, which practised intolerable exactions and haughty and insolent domination. Geneva at this time was annexed to France. Lavater styled this epoch "the first year of Swiss slavery." The atrocities of the French invasion of Switzerland excited great indignation in Europe. All that tyranny the most oppressive, rapine the most insatiate, cruelty the most sanguinary, and lust the most unbridled, could inflict did that devoted country experience. The effect on the friends of freedom may be judged of from the following indignant lines of Coleridge, once an ardent supporter of the Revolution, in his "Ode to Freedom," written in 1798:

"Forgive me, Freedom! oh, forgive those dreams;

I hear thy voice, I hear thy loud lament,
From bleak Helvetia's icy cavern sent;
I hear thy groans upon her blood-stain'd streams;
Heroes, that for your peaceful country perish'd,
And ye that, fleeing, spot your mountain snows
With bleeding wounds, forgive me that I cherish'd
One thought that ever bless'd your cruel foes;
To scatter rage and traitorous guilt,
Where peace her jealous home had built;
A patriot race to disinherit
Of all that made their stormy wilds so dear."

When Switzerland became the battle-field of French and Austrian armies, by the treaty of Lunéville, between the Emperor of Austria and the French Republic, the independence of the Helvetic Republic, and the right of the people to adopt whatever form of government they pleased, were guaranteed; but the irreconcilable dissensions of the French and National Swiss parties prevented the adoption of any constitution generally acceptable to the people.

The withdrawal of the French troops in 1802 led at once to a revolution in almost every Canton. Again Napoleon, First Consul of the French Republic, in contravention of the treaty, interfered, and subdued the movement. Forty thousand French troops took military occupation of Switzerland. Deputies were ordered to assemble at Paris, and after long discussion with them, Napoleon, on the 2d of February, 1803, transmitted to Switzerland what is known as the Act of Mediation, under which he assumed the title of "Mediator of Switzerland." In some cases, what had been subject lands were incorporated into the league, and to the thirteen old Cantons six new ones were added,—St. Gallen, the Grisons, Aargau, Thurgau, Ticino, and Vaud.

The downfall of the arbitrary "Mediator" was for the Swiss, as for the greater part of Europe, the signal of a happy deliverance. The apparent interest taken by Bonaparte in the welfare of Switzerland, and his anxious desire to suit its civil institutions to the local prejudices and habits of each small community, were wholly military and political. He looked upon Switzerland as a watch-tower between the three great divisions of Europe,

of which the Act of Mediation secured possession to him, without the trouble of a garrison. Soon after his defeat at Leipsic in 1813, the Allies invaded Switzerland, and in December of that year the Swiss Diet met at Zurich and formally annulled the Act of Mediation. A general council was assembled, and new articles of confederation agreed upon, known as the Federal Pact, in September, 1814. This Confederacy was acknowledged by the Congress of Vienna, November 20, 1815; by which the eight powers, Austria, Russia, France, England, Prussia, Spain, Portugal, and Sweden, proclaimed the neutrality of Switzerland and the inviolability of its soil. It must in justice be said that at that epoch of sweeping annexations and unblushing bartering of countries, Switzerland was better treated than she had reason to expect,—Russia and England were her steadfast friends.

The nineteen Cantons were increased to twenty-two by the addition of Geneva, which had been annexed to France under the Directory in 1798, and Neuchâtel⁷ (a Prussian possession), and the Valais. The greater Cantons demanded a return to the old status and their ante-revolutionary supremacy. The relapse would have been worse, had it not been for the Allied Powers, who would guarantee neutrality only on the condition that the new Cantons be maintained free.

In 1817 Switzerland, upon the invitation of the Emperor Alexander of Russia, joined the Holy Alliance. The restoration of peace to Europe, and the securities obtained for the neutrality and independence of Switzerland at the Congress of Vienna, gave great encouragement to the intellectual and material progress of the country, wealth increased, and industry prospered. Public works of great utility were undertaken, including noble roads over the passes of the St. Gothard, the St. Bernard, and the Splügen. In July, 1830, the peace of the country was suddenly disturbed by the French Revolution. Violent political agitation broke out in riots and insurrection. Political wrongs were rudely redressed; but life and property were respected. The general aim of this movement was to wrest from the aristocratic class and the capital towns the exclusive privileges which they had gradually recovered since the beginning of the century, and to increase the power of the people. The Cantons were forced to reorganize their constitutions on a more liberal and democratic basis. This movement naturally drifted into a plan for revising the federal constitution; but the effort to do this in 1832 was defeated by a popular vote.

The old religious jealousy of the Catholic and Protestant Cantons now revived with increased violence. These troubles were attributed by many to the influence of the Jesuits, and an active agitation was commenced for obtaining their expulsion. Under the claim that religion was in danger, delegates from seven Catholic Cantons assembled at Rothen, in the Canton of Luzern, and formed a separate League, called the *Sonderbund*, or separate confederation. In violation of the Federal Pact of 1815, these Cantons engaged to defend each other by an armed force, and appointed a council of war to take all necessary steps. The Federal Diet, in session at Bern in July, 1847, realized that prompt action must be taken to suppress a movement which was threatening the country with a civil war. Friendly negotiation having failed, the Diet declared the League to be dissolved, and at once hostilities broke out. A sharp, decisive contest of only eighteen days' duration brought the strife to an end; the seceding Cantons were overwhelmed and forced back to their allegiance.

The strength of the Confederation being so decisively proved, it was regarded an opportune time to revive the effort for a thorough reformation of the federal system. This was accomplished the following year by the constitution of 1848.

Swiss history is largely the history of the drawing together of parts of three adjoining nations for common defence against a common foe, little by little winning their independence.

“A liberty that sprang to life in Greece; gilded next the early and the middle age of Italy; then reposed in the hallowed breast of the Alps, and descended at length on the coast of North America, and set the stars of glory there. At every stage of its course, at every reappearance, it was guarded by some new security; it was embodied in some new element of order; it was fertile in some larger good; it glowed with a more exceeding beauty.”⁸

The name “Swiss” and “Switzerland,” German “*Schweiz*,” French “*La Suisse*,” supposed to be derived from the Canton of Schwyz, though long in familiar use, did not form the official style of the Confederation until 1803. Schwyz, according to Gatschet, signifies “clearing the ground by fire;” and, again, it is derived from “Sweiter” and “Swen,” two brothers who are said to have founded it; and these family names, common in Sweden, are now heard in the valleys of Schwyz.

Switzerland is triangular in shape, and occupies an almost imperceptible space upon an ordinary map of the world. Voltaire used to say he “shook his wig and powdered the republic.” It is bounded on the north and east by Germany, on the south by Italy, and on the west by France; and is situated between latitude $45^{\circ} 50'$ and $47^{\circ} 50'$ north, and longitude 6° and $10^{\circ} 25'$ east. Its greatest length from east to west measures two hundred and sixteen miles; its greatest breadth north and south is one hundred and fifty-six miles. Nearly its entire boundary is formed by rivers, lakes, and mountains. The Rhine constitutes almost two sides of its boundary, from the point where the various streams from the glaciers of the Grisons have met to form a river into the Lake of Constance, and from its exit thence to where the Jura Mountains turn its course to the Northern Ocean. The Jura separates it from France; and with merely an outlet for the Rhone, the Alps take up the line, dividing its rugged regions from the plains of Northern Italy. On the eastern side is an entangled mass of mountains; on the western side is a succession of parallel ridges, separated from each other by longitudinal valleys. The elevation varies from six hundred and forty-six feet, at Lake Maggiore, to fifteen thousand two hundred and seventeen feet on Monte Rosa. Only two per cent. has an altitude less than one thousand feet, and six per cent. of the whole surface is covered with snow-fields and glaciers. Two-thirds of its surface consist of lofty mountain chains and valleys; the remainder a plain thirteen hundred feet above the level of the sea. That portion which lies to the east of the Rhine rises from a platform no less than three thousand two hundred feet in height, even in the valleys. All of Switzerland, with Savoy, and indeed the Tyrol and other adjoining countries, lie on a huge mountain. They all have their valleys, it is true, but their valleys are more elevated than even the hills of the lower regions. Two of the mightiest European rivers, the Rhine and Rhone, have their sources in Switzerland. Their head-waters are separated only by the tangled mass between the Pizzo Rotondo and the Oberalp Pass,—the Rhine running towards the east and the Rhone towards the west. The St. Gothard may be regarded as the central point of the country, and from its sides these two rivers take their rise in a great transversal valley of the Central Alps. On the east, the Rhine, springing from the glaciers, flows through the Grisons to the north and loses itself in the Lake of Constance, issues from it at Stein, and flows to the westward as far as Basel, where it commences its perpendicular course towards the German Ocean. On the west, the Rhone,

rising in the blue and glittering glacier of the same name, descends through the long channel of the Valais, expands into the Lake of Geneva, and takes its rapid course to the Mediterranean. Both of these rivers purify their waters in a large lake; and in their passage through the same Jurassic range of mountains they both form cataracts and waterfalls, though separated by that time by an interval of one hundred and eighty miles. Nine-tenths of the central table-lands of Switzerland belong to the Rhine system, and only one-tenth to the Rhone. In addition to these, two great rivers on the north of the St. Gothard, the Reuss and the Aar, descend in parallel ravines through rugged mountains, feeding the Lakes of Luzern, Thun, and Brienz; while on the south its snows nourish the impetuous torrents of the Ticino, which swells out into Lake Maggiore, and loses itself in the waves of the Po.

Within two degrees of latitude, Switzerland contains the climate of thirty-four degrees. The variety in the vertical configuration of the country naturally affects its climate, and nearly every valley and every mountain-side has a climate of its own. Besides “mathematical climate,” which is expressed by latitude, and depends on the elevation of the surface of the earth to the sun, modern science gives “physical climate.” It describes isothermal lines, which do not exactly coincide with the circles of latitude, but diverge to north or south, according as the temperature is modified by other factors, such as the height of the land above the sea, the modifying action of mountain chains, currents of wind and water, and the neighborhood of lakes and sea. The climate of Switzerland is specially modified by the influences which spring from the capricious consequences of the nearness of mountains, which are a bulwark against the periodical agitations of the atmosphere; they form a great barrier to the northward against the icy blasts sweeping down from the snow-fields of Russia and Siberia; and to the south, to the hot Libyan winds blowing across the Mediterranean. For regular isotherms, it would be idle to seek in such a broken region. The lakes, which are fed by the glacier waters, have a cooling effect on the temperature of the summer heat; the temperature of the water of Lake Brienz does not exceed from 48° to 53° Fahrenheit in the warmest days. It is a great benefit to the circulation of air which comes in contact with surfaces so relatively cold, nor do these bodies of air carry away with them any large amount of moisture, because the low temperature of the water does not favor any great evaporation. Within a short distance one may see at the same time all the seasons of the year, stand between

spring and summer,—collecting snow with one hand and plucking flowers from the soil with the other. In Valais the fig and grape ripen at the foot of ice-clad mountains; while near their summits the lichen grows at the limit of the snow-line. There is a corresponding variety as regards the duration of the seasons. In Italian Switzerland, winter lasts only three months; at Glarus, four; in the Engadine, six; on the St. Gothard, eight; on the Great St. Bernard, nine; and on the Théodule Pass, always. Upon first beholding the peaks of the Alps, shrouded in their everlasting mantles of snow, one would little dream that in the valleys beneath ran musical streams of summer water, with emerald meadows spreading their velvet cloaks, dappled with clustering rose-bush, and the sun-loving flowers of the gardens of the tropics.

In ancient times writers exhausted their eloquence in painting the horrors of the climate of the Alps. Livy wrote, “and the snows almost mingling with the sky, the shapeless huts situated on the cliffs, the cattle and beasts of burden withered by the cold, the men unshorn and wildly dressed, all things, animate and inanimate, stiffened with frost, and other objects more terrible to be seen than described, renew their alarm.”⁹

To-day, within its habitable regions, the climate is distinguished for being generally temperate, healthful, and invigorating. It enjoys, from its geographical smallness, immunity from the penalty a vast continent pays in colossal visitations and vicissitudes of meteorological conditions.

The Föhn is a remarkable local wind in Switzerland; it is a strong southwest or south wind, very hot and dry, formerly supposed to originate in the Sahara, and flowing in towards the area of low atmospheric pressure; or to be a tropical counter-current of the trade winds. Meteorologists now hold that it is engendered by local causes. Commencing its descent in the northern valleys with a high temperature, it necessarily increases its temperature and dryness as it passes into the higher pressure of lower levels; it sweeps through certain valleys, especially in Glarus and Uri, where old laws enact that when it blows, every fire in the place, for whatever purpose used, is to be extinguished, for its violence is often extreme. It is much dreaded, yet acts beneficially by a rapid polar-like awakening of nature; it is it which melts most of the snow in the spring, and “without the Föhn,” says the peasant of the Grisons, “neither God nor the golden sun would prevail over the snow.” The Bise is the opposite of the

Föhn, a cold, biting north wind, whose tooth has been sharpened by its passage over the ice-fields, bringing all the chills of Siberia, and searching one through and through, eating into the very marrow. This wind is confined within a narrow area of the country, pouring from the northeast over the Boden-See, and along the Jura to the Lake of Geneva below Lausanne; its effect is blighting on the pastures, which it sometimes visits at untimely seasons, killing even cattle exposed to it in May.

The German, Burgundian, and Italian nations which joined together to form the modern Swiss nation, cast away their original nationality, and made for themselves a new one, forming a nation as real and true as if it had strictly answered to some linguistic or ethnological division. These northern and southern nations of Europe have been singularly intermingled in Switzerland, and in this respect furnish an interesting study, as a striking exception to the general idea suggested by the word "nation" as a considerable continuous part of the earth's surface, where speakers of a single tongue are united under a single government. The long persistent division of the Swiss people into German, French, and Italian stands in marked contrast with the thorough unity of the nation. They have never been blended into one people, so far as speaking a common language is concerned. German, French, Italian, Romansch, and Ladin are spoken within the limits of the Confederacy. And even the dialects of the German differ so much as to make communication almost impossible, at times, between the different villages and towns.

The census of December 1, 1888, showed the total population of Switzerland to be 2,933,612. The German-speaking element increased from 2,030,792, in 1880, to 2,092,479, which, taking into account the normal growth of the population, was no relative increase; the proportion in both cases being about seventy-one per cent. of the whole. The French, on the other hand, increased from 608,007 to 637,710, which was a relative increase of from 21.4 to 21.07 per cent., while the Italian declined actually as well as relatively, the numbers being 161,923 in 1889, and 156,482 in 1888, or 5.7 and 5.3 per cent. respectively. The decline of the Italians in Uri and Schwyz may be explained by the return home of a large number of Italian workmen engaged on the St. Gothard Railway. It is difficult to explain the large decrease of Germans in the Cantons of Bern and Neuchâtel, while the French have increased. In general, the French increase

in Switzerland seems to be at the expense of the Germans, while the German element recovers its place at the expense of the Italian.

The region extending from the Lake of Geneva to the Lake of Constance, and from the foot of the Alps to the foot of the Jura, forms only one-fourth of Switzerland, so far as area is concerned; but nearly its whole population, wealth, and industry are concentrated there. The population is settled in the plains, the hill regions, and the valleys; there are chalets nearly eight thousand feet high on the Fleck and Indre Alps, but only one town, viz., Chaux-de-Fonds, in the Jura of Neuchâtel, has been built at an elevation of more than three thousand two hundred feet; but there are villages in Alpine valleys with an elevation of four thousand to five thousand feet, and the hamlet of Juf, in the dreary valley of the Avers, has an elevation of six thousand seven hundred feet, and is the highest village in Europe permanently inhabited.

In point of religion the Swiss are as sharply divided as they are in tongue and customs. It is to the increasing efforts of the clergy, during the many centuries that elapsed between the fall of the Roman empire and the revival of knowledge, that the judicious historian of Switzerland ascribes the early civilization and humane disposition of the Helvetic tribes; and invariably the first traces of order and industry appeared in the immediate neighborhood of the religious establishments. The traveller will behold with interest the crosses which frequently mark the brow of a precipice, and the little chapels hollowed out of the rock where the road is narrowed, and will consider them so many pledges of security; and he will rest assured that so long as the pious mountaineer continues to adore the "Good Shepherd" he will never cease to befriend the traveller or to discharge the duties of hospitality. That a church, or rather that churches, existed in Switzerland in the fourth century is proved by the signatures, coming down from that date, of certain bishops and elders of Geneva, Coire, and the Valais; and one century later it is known that other places besides these had been in a measure Christianized. The Fraternity of St. Bernard was founded in the latter part of the tenth century by Bernard de Menthon, an Augustinian canon of Aosta, in Piedmont, for the double purpose of extending bodily succor and administering spiritual consolation to travellers crossing the Pass of St. Bernard, where winter reigns during nine months of the year. The idea of establishing a religious community in the midst of savage rocks, and at

the highest point trodden by the foot of man, was worthy of Christian self-denial and a benevolent philanthropy. The experiment succeeded in a degree commensurate with its noble intention: centuries have gone by, civilization has undergone a thousand changes, empires have been formed and overturned, and one-half of the world has been rescued from barbarism, while this piously-founded edifice still remains in its simple and respectable usefulness where it was first erected, the refuge of the traveller and a shelter for the poor. The building, the entertainment, the brotherhood, are marked by a severe, monastic self-denial which appears to have received a character of stern simplicity from the unvarying nakedness of all that greets the eye in that region of frost and sterility. In storms, monks, helpers, and dogs all go out to search for helpless travellers; and during the severe winter of 1830 both packs of dogs had to be taken out, and nearly all perished; the names of Barry and Bruno are kept with those of departed archbishops and monks. These St. Bernard dogs are adapted, by their instincts, intelligence, and benevolence, to the charitable work in which they are engaged. The moment they scent a traveller buried in the snow they announce the fact by setting up a loud bark, but they do not wait for the arrival of their human companions, but begin at once to dig into the snow with all their strength. The pure breed is said to be extinct, but the cross variety still retains many of the good points of the genuine breed.^{[10](#)}

Einsiedeln is a very ancient and celebrated monastery in the Canton of Schwyz; it is more generally known as the Monastery of “Our Lady of the Hermits,” and is one of the most famous pilgrim resorts in the world. It was here that Meinrad, an anchorite of the house of Hohenzollern, is supposed to have retired in the ninth century, and built a cell for the worship of the Black Virgin, presented to him by the Abbess Hildegard of Zurich. He was murdered, and respect for his memory induced a religious community to establish themselves there. On the occasion of the consecration of the chapel erected by them, the Bishop, it is related, was anticipated by angels, who performed the rite to heavenly music at midnight. Leo VIII. declared this consecration to be a full and perfect one, and forbade the repetition of the rite; and Pope Benedict VIII. placed Count Meinrad in the catalogue of saints one hundred and fifty years after his death. The inscription over the church-door at Einsiedeln is “*Hic est plena remissio peccatorum a culpa et a pœna*” (“Here is plenary remission of sins from their guilt and from their punishment”). There is a copious fountain before the church, and another

tradition has it that the Saviour visited the shrine and drank from it. This fountain has fourteen jets, carved to imitate the heads of strange beasts and birds, and the pilgrims must drink of every one to make sure that they should not miss the right one, which is said to have refreshed our Lord.

It has been disputed to whom the priority in the race of reform in Switzerland belongs, Zwingli or Luther. Zwingli himself declares that in 1516, before he had heard of Luther, he began to preach the gospel at Zurich, and to warn the people against relying upon human authority. The name of Zwingli is always associated by the Swiss with the rise of Protestantism as that of Calvin is with its triumphant progress.¹¹ This Reformation, introduced by Zwingli and extended by Calvin, occasioned the fiercest dissensions. Early in the sixteenth century both Geneva and Zurich became cities of refuge for French, Italian, and English who were forced to flee from their native lands on account of their faith. The first edition of the English Bible was printed in Zurich in 1535. The Reformers separated themselves into Lutherans, Calvinists, and Anabaptists. It was held to be the duty of each Canton to force its own faith upon the whole body of the people; church-going was enforced by fines and corporal punishment; staying away from church on Sunday mornings, in some localities, was followed by a loss of citizenship. The latter part of the sixteenth and the whole of the seventeenth century are crowded with controversies and bloodshed; that violence and those animosities which are found so terribly to prevail where religious zeal has been abused for the purposes of intolerance. Nowhere were the doctrines of the Protestant Reformation more ardently embraced; nowhere was the strange moral phenomenon, which is to be traced in so many quarters of Europe, more conspicuous than among the Cantons of Switzerland, the early, exact, permanent, geographical division, which was realized between the Protestant and Popish communities; a division which frequently an insignificant stream or street has been sufficient to maintain for ages. Religious parties, like glaciers, became at once frozen up in set attitudes and forms, which no subsequent events have been able to alter. In three instances controversies on the subject of religion kindled violent and bloody contests. The most memorable was the war between Bern and Zurich, on the one part, and five little Catholic Cantons on the other, in 1712. At the close of the period of the Reformation, seven of the Cantons, Luzern, Schwyz, Uri, Unterwalden, Zug, Freiburg, and Solothurn adhered to their

ancient Catholic faith; the Cantons of Bern, Basel, Zurich, St. Gallen, and Schaffhausen adopted the reformed religion; Appenzell and Glarus recognized both forms of worship. In Geneva, over which the Duke of Savoy ruled, the effects of the Reformation were peculiarly important. Calvinism, as it existed at Geneva, was not merely a system of religious opinion, but an attempt to make the will of God, as revealed in the Bible, an authoritative guide for social and personal as well as for moral direction. Moral sins were treated after the example of the Mosaic law, as crimes to be punished by the magistrates; “elsewhere,” said Knox, speaking of Geneva, “the word of God is taught as purely, but never anywhere have I seen God obeyed as faithfully.”¹²

Reprobating and lamenting that the great reformer depended upon the use of the sword for the extirpation of heresy, let us remember that Calvin was not only the “founder of a sect, but foremost among the most efficient of modern republican legislators; and that his genius infused enduring elements into the institutions of Geneva, and made it for the modern world the impregnable fortress of popular liberty, the fertile seed-plot of democracy.” That “theological city,” called by some the Jerusalem of Switzerland, seems to be pervaded by an endemic influence inciting to religious discussion and agitation; the eager, irrepressible spirit of John Calvin walks abroad from his unknown sepulchre as the *genius loci*. The Reformation contributed in Switzerland to the enlightenment of the people and to the maintenance of a spirit of freedom; but in a political point of view it was the cause of the gravest evils, which continued long after the original convulsions. To differences of race and language it added divisions of religious faith and the conflict of hostile churches. For some time there was an alliance of clerical aggressiveness and ambition, with the employment of religion as a political influence. The radical government of Zurich was violently overthrown on the 6th of September, 1839, in consequence of the nomination of Dr. Strauss to a chair of theology; thousands of peasants, led by their pastors and singing hymns, armed with scythes and clubs, entered Zurich, and the government was forced to dissolve itself. As late as the war of the Sonderbund, in 1847, religious intolerance appeared to threaten the integrity of the Confederation; and by an article in the Constitution of 1848, and re-enacted in that of 1874, the Jesuits and all affiliated societies were interdicted throughout the Confederation. Hostility to the Jesuits was not regarded as hostility to the

Catholic religion. The order of Jesuits, as then existing in Switzerland, could not be considered purely religious, but partly political, partly sectarian and controversial, its direct aim being to aggrandize the Church at the expense of the state, and the Catholic religion at the expense of the Protestant. From the first of these two tendencies, it was repugnant to a large portion even of the Catholic world. The whole history of the Jesuits in Switzerland betokened an organized and systematic teaching of religion, not exclusively for religious ends, but largely as a means for procuring political and social ascendancy; even to the extent of reducing it to rule, craft, and professional duty. It was against this tendency, not against any matters essential to the Catholic religion, that even the Catholic world protested. The growth of the Old Catholics, after the Vatican Council of 1870, caused many disturbances in Western Switzerland, specially in the Bernese Jura. Inaugurated in the Catholic universities of Germany, it was transplanted for a complete and more vigorous growth into the soil of Geneva, and there taking on a logical, consistent, and organized form, it seemed fitted for the wide propagation and success that marked the great Reformation of the sixteenth century, to which, in its early stages, it showed curious points of undesigned coincidence.

The Swiss serve God and serve Liberty; two facts which go far to solve all the phenomena of their remarkable history. They hold with Plutarch that “a city might more easily be founded without territory than a state without belief in God.” It may be, as Professor Tyndall contends, that there is “morality in the oxygen of the mountains.” Man feels himself reduced to nonentity under the stupendous architecture of these elevated regions which carries his thoughts up to the Creator. A cultivated and pious mind may find itself stayed and soothed and carried upward, at some evening hour, by those great symbols of a duration without an end to a throne above the sky; and this impression may be deepened until the outward glory reproduces itself in the inward, and causes it to cry out:

“Great Hierarch! Tell thou the silent sky,
And tell the stars, and tell yon rising sun,
Earth, with her thousand voices, praises God.”

The lives of the Swiss are in continual struggle with the elements, the visible power of the Deity; their sober habits, simple, natural, imaginative, all predispose them to believe; and the Gospel easily obtained dominion over their faith and feelings.

The sublime works of nature are equally calculated to arouse sentiments of patriotism; they are capable of a companionship with man, full of expression of inexplicable affinities and delicacies of intercourse. No race of men can dwell in Switzerland, amidst its mountains, its precipices, its rocks, glaciers, avalanches, and torrents, without being strong, brave, and resolute. Just as we recognize an elevated region by its growth of peculiar timber, whether stunted or lofty, alike in their power of resisting the tempest, and by its hardy plants characterized by their intense tenacity of life, just so a mountainous country is indicated by a courageous, athletic, close-knit population of liberty-loving, patriotic men.

“Montani semper liberi,” everywhere mountainous regions have been favorable to a free and manly spirit in the people; in every zone the mountain races are a free, a pastoral, an unchanging people, rather confirming Emerson’s hasty generalization as to snow and civil freedom. In the East the warlike hill-tribes have been less subject to despotic rule than the milder races dwelling on the plains. The varied grandeur of the mountains no less than the awful power of the ocean counts for something in the perpetuation of distinctive characteristics. But the spirit of freedom is thought to take a different color from the sea and from the mountain; in the mountain it is stubborn and resolute; by the sea it is excitable and fickle. The hill-tribes of Judea kept their covenant, the tribes of Jordan fell away; those Medes who never changed their laws descended from the Caspian Alps, those Greeks who sought new things from day to day were dwellers by the Ægean Sea. Among the vines and olives in Italian gardens men are soft, poetic, phosphorescent, no less full of fire than they are fond of change; among the pines and larches of the Swiss glaciers men are hardy, patient, dumb, as slow to fume and flash as they are hard to bend and break. The poet Wordsworth represents that it was the peculiar fortune of Switzerland to enjoy the influence of mountain and sea at once,—

“Two voices are there: one is of the sea,
One of the mountains; each a mighty voice:

In both, from age to age, thou didst rejoice,
They were thy chosen music, Liberty.”

There are few principles of action which are more immediately beneficial to society, and which have received more assiduous cultivation, than *love of country*. The Swiss regards his country with the tenderness of filial affection, and, like the undiscerning lover, fondly gazes without discrimination upon its beauties and its deformities.¹³ Enamored of their rocks, ice, and snow, they look on milder climates and more fruitful plains without one envious emotion. Deeper down even than the deep-seated differences of race, language, and creed lies the feeling that comes from the common possession of a political freedom that is greater than that possessed by surrounding peoples: this is the enduring bond of the Confederation. Switzerland has demonstrated that democracies are not necessarily short-lived. The short-lived glory of Athens and its subjection under the rough foot of the astute Macedonian was not the result of too much freedom, but because the Greek states had too little unity. In Switzerland republican institutions can claim to have been fairly tried and thoroughly succeeded. Dating from the perpetual Alliance of 1291, the Confederation now counts six centuries; living through many forms of government, feudal, clerical, imperial, radical, the League of Cantons never ceased to be a union of republics, and is the only federal government which has come down from mediæval times to our own day. We see that the Swiss have lasted well, “for utility is their bond and not respects.” While in some European countries very anomalous forms of government have assumed the republican name, it is gratifying to observe that there is at least one European state in which republicanism is a fact and a living force properly understood and properly practised, uniting with as large a measure of individual liberty all the advantages of careful and judicious legislation, economy in the administration, and justice in the execution of the laws to as high a degree as can be found in any country. Every man is free; every child educated; the sovereign power resides in hands that defend it in danger and adorn it in peace; a common faith that love of country, “all for each and each for all,” is better than a love of self pervades the entire population. Amid powerful monarchies there is a state without king or nobles, with a well-developed system of democratic institutions, admirably suited to the genius of the people and administered with the economy, the wisdom, and the

consistency of a well-regulated family. There the problem of a free commonwealth was first solved, and popular government first made possible. There are presented some of the most striking examples of democracy in its simplest form, and of carefully-contrived and durable republican institutions, to be found in the annals of political history. There is a government based on the simple but sound philosophy expounded in the homely observations of the honest old boatman of Geneva, Jean Desclaux, "If one man rule, he will rule for his own benefit and that of his parasites; if a minority rule, we have many masters instead of one, all of whom must be fed and served; and if the majority rule, and rule wrongfully, why the minimum of harm is done."

CHAPTER II.

THE CONSTITUTION.

“On the main-land only two little spots at the two extremities of the old Teutonic world came out of the mediæval crucible with their self-government substantially intact. At the mouth of the Rhine, the little Dutch communities were prepared to lead the attack in the terrible battle for freedom with which the drama of modern history was ushered in. In the impregnable mountain fastnesses of upper Germany, the Swiss Cantons had bid defiance alike to Austrian tyrant and to Burgundian invader, and had preserved in its purest form the rustic democracy of their Aryan forefathers. By a curious coincidence, both these free peoples in their efforts towards national unity were led to frame federal unions, and one of these political achievements is from the stand-point of universal history of very great significance.”¹⁴ Writers, as a rule, properly consider a federal government, owing to its nice balances in regard to a division of power between the union and the members, and in regard to the conflicting interests of the parts, as a peculiarly delicate and almost unadjustable framework.

“The federative system,” says Guizot, “is one which evidently requires the greatest maturity of reason, of morality, of civilization in the society to which it is applied.” The two poles of a federal government are independent action of the members in certain things, and a central power or government which in certain things is equally independent. The aim is to gain the advantages of the concentrated power of great states, while retaining the advantages of local interest found in small states. On the one hand, each of the members of the union must be wholly independent in those matters which concern each member only. On the other hand, all must be subject to a common power in those matters which concern the whole body of members collectively. Switzerland represents the happy outcome of the first attempt at such a federal union made by men of Teutonic descent. Complete independence in local affairs combined with adequate representation in the Federal Council has effected such an intense cohesion of interests throughout the nation as no centralized government, however cunningly

devised, would ever have secured. The constitutional history of the confederation is a study in federalism. First a mere defensive alliance or league;¹⁵ then a *Staatenbund*, or permanent alliance of several small states, to which the term confederacy nearly corresponds; then a *Bundesstaat*, or an organized state with central legislative, executive, and judicial departments, which answers substantially to the term federation as usually employed, and as realized in the Constitution of 1848, and perfected in that of 1874. The distinction which German publicists have introduced into political science between a *Staatenbund* and a *Bundesstaat*, constituting the two chief forms of union between states, is a very valuable one,—the former word denoting a league or confederation of states; the latter, a state formed by means of a league or confederation. In order to know to which of the two classes a given state belongs, we need to inquire only whether the political body in question has the essential qualities of a state or not. Confederation and federation; both are composite political bodies, and in so far different from mere alliances which form no new state. *Staatenbund*, or confederation, is rather a conglomeration of states than a real state; it retains the character of a contractual combination of states. *Bundesstaat*, or federation, implies the advance from the incomplete and transitional form to the formation of a collective state or union; it is a more highly developed *Staatenbund*, the difference is only one of degree in purpose, form, and powers to carry out the national will. A confederation, by joining several states in a political association, presents at least externally the appearance of one state of an international personality; but yet is not organized into one central state distinct from the particular states. The management of the collective state is left either to some particular state as President (*Vorort*), or to an assembly of delegates and representatives of all the several states. The former was the case with the Greek leagues under the hegemony of Sparta and Athens; the latter with the American Union under the ancient articles of 1778, and the German confederation of 1815. In a federation there are not merely completely organized particular states, each remaining sovereign and independent within the range of such powers as it does not hand over to the federal authority; but there is an independently organized common or central state, that within the range of the powers handed over to it forms a single commonwealth under a government with its own executive, legislative, and judicial branches. The Achæan league was already in some measure such a federal state. This form of state first appears in modern

times in the Constitution of the United States adopted in 1787, and subsequently imitated by Switzerland. The Swiss Confederation previous to 1848 joined the members of the league only on such terms and for such purposes as were agreed on, and their common affairs were administered by a federal Diet. Still each Canton remained perfectly independent in all its internal concerns; even keeping the right of separate dealings with foreign governments. There was nothing which could be strictly called a federal government, whose one will makes the constitution, and demands obedience from the minority, even of particular Cantons. The foundation of the Swiss Constitution is the old Swiss league, which lasted from 1291 to 1798. But there had been simply alliances between different Cantons, and no real federal constitution existed. The establishment of the Helvetic Republic, one and indivisible, was the first attempt at a constitution. The representative democracy of the United States found a soil ready prepared for it in Switzerland, to which it was transplanted by French intervention. The constitution *unitaire* was imposed on Switzerland most tyrannically, but it was not in itself a bad one. Under what may be called the French readjustment of Switzerland, constitutions rose and fell and succeeded each other in rapid rotation from 1798 to 1803. First appears a project of the Constitution of March, 1798; by this a single centralized state was substituted for the thirteen old Cantons. It served with modifications as the groundwork of another sketched in April of the same year. This latter was prevented by the outbreak of war between France and Austria in 1799 from taking root. Another Constitution of May, 1801, approved by Bonaparte, then First Consul, was acceptable to few in its political and territorial arrangements. The Cantons became mere divisions, like counties or departments. One of its earliest provisions abolishes the ancient democracies of the Forest Cantons. The traditions of independence in these older Cantons, and the elements of internal opposition, were too strong to admit of submission. The inhabitants of these sequestered regions, communicating little with the rest of the world, ardently attached to their liberties, inheriting all the dauntless intrepidity of their forefathers, clearly perceived that, in the wreck of all their ancient institutions, the independence of their country could not long be maintained. They saw that the insidious promises of the French envoys had terminated only in ruinous exaction and tyrannical rule. Animated by these feelings, "We have lived," said they, "for several centuries under a republic based on liberty and

equality; possessing no other goods in the world but our religion and our independence; no other riches but our herds; our first duty is to defend them.” This attempt to form the whole of Switzerland into a united representative system could not be permanent, and was soon dissolved. Other constitutions followed in October, 1801, February, 1802, and July, 1802. Then February 2, 1803, came, under the so-called Act of Mediation, a moderately centralized federal government granted by Napoleon. Old family and civic privileges were annulled; all Swiss were made equal in the eye of the law, and vassalage was altogether abolished, and free right of settlement in any part of Switzerland assured to all. All alliances of one Canton with another, or with a foreign state, were interdicted. This was stipulated in consequence of an improper alliance in 1442 by Zurich with the House of Austria. It was ordained that each Canton should send one deputy to the general Diet; that they should have definite instructions and powers of attorney, and should not vote against their instructions. The functions of the Diet were declared to be: 1. To proclaim war or peace, and conclude foreign alliances, which required the consent of three-fourths of the Diet. 2. To fix regulations for foreign commerce, capitulations in foreign service, and the recruiting of soldiers. 3. To levy the contingent, appoint commanders of the armed forces, and the foreign ambassadors. 4. To adopt measures of external utility and settle disputes between one Canton and another. The act concluded in these terms: “The present act, the result of long conference with enlightened persons, appears to us the best that could be devised for the constitution and happiness of the Swiss. As soon as it is carried into execution the French troops shall withdraw. We recognize Helvetia as organized by this act as an independent power, and guarantee the Federal constitution, and that of each Canton in particular, against the enemies of the tranquillity of the state.” This act for the remainder of Napoleon’s reign settled the condition of the Helvetic Confederacy; and although it was peaceful and prosperous, the Act of Mediation was felt to be the work of a foreigner and master, and it fell with the extinction of his power. Here French readjustments came to an end, and after the Congress of Vienna, March, 1815, guaranteed the neutrality of Switzerland, there followed in November of the same year the Federal Pact. This was a looser confederation, and in many respects a return to the state of things previous to the French Revolution, and restored to the Cantons a large portion of their former sovereignty. There continued to be a *Tagsatzung*, or Diet for

general affairs, consisting of “ambassadors from the sovereign estates,” meaning the Cantons, each Canton still having only one voice, and three-fourths of the votes being necessary for war or peace and treaties with foreign powers; but in other matters of business an absolute majority decides. It fixes the rate of troops and taxes for federal purposes; gives every Canton the right to demand defence against internal and external force; provides for the settlement of disputes between the Cantons; puts an end to all dependent territory and exclusive possession of rights by a class of citizens; and continues the old plan of having a *Vorort*. Military capitulations and conventions concerning affairs of police or public economy may be made by single Cantons, provided they oppose no federal principles, nor existing league, nor cantonal rights. Ambassadors from the league may be sent to foreign powers when their appointment is thought necessary. In extraordinary cases the *Vorort* may be invested with especial powers, and a committee can be appointed, composed of the officer of the *Vorort*, who is intrusted with the management of the federal affairs in conjunction with other representatives of the Confederation. This representative committee is chosen by six circles of Cantons each in turn. The Diet gives the requisite instructions to these federal representatives, and fixes the duration of their duties, which cease, of course, when there is a new Diet. When this assembly is not in session, the *Vorort* has the charge of federal affairs within the limits existing before 1798. Cloisters and chapters are allowed to continue, but are subject to taxation like private property; and the Helvetic national debt is acknowledged. The Federal Pact became unpopular not merely from its own intrinsic defects and ambiguities, but also from the time and circumstances of its origin. It was a reactionary instrument, bringing back the yoke of the patrician families and the extreme Ultramontane party. The central authority of the Confederation was weak. It had no powers, either legislative, executive, or administrative, binding upon the several Cantons; no provision for the repression of wars between rival Cantons, nor for the proper restraint of separate alliances with foreign powers which endangered the peace, if not the independence, of the federal state; no federal army, no public treasury, no national mint, no common judiciary, nor any other common marks of sovereignty. The Diet assembled for little more than deliberation, all matters of importance being referred to the determination of the Cantons. National affairs were discussed in general Diets, as in fact they had been from the beginning, but they were Diets

which lacked the very essentials of republican government, majority rule, and power of execution. They depended more upon moral authority than legal powers, persuading where they could not command obedience. The difficulties of a union so obviously imperfect and narrow were greatly increased by the Reformation, which alienated the Catholic and Protestant Cantons, causing political and religious struggles that culminated in civil war. There is then a constitutional rest until the next great revolutionary storm, which swept over so many countries of Europe in 1848, when a new constitution, modelled in many respects after that of the United States, was adopted, and superseded the Federal Pact. It changed the federal union of states into a federal republic; a transition from a *Staatenbund* to a *Bundesstaat*. The stage of confederation was passed over and the higher state of federation reached; an organized nation, and at the same time the peoples of the particular Cantons also possessing organic unity; a Swiss nation, and yet a Bernese and Genevese people. The Constitution of 1848 was the first which was entirely the work of the Swiss without any foreign influence. For the revolution of 1848, which paralyzed Austria, Rome, and Germany, enabled the Swiss to reassume in full the reins of self-government. Two legislative chambers were for the first time created, and invested with the power of enacting laws and issuing orders which are binding directly on individual citizens. This most important and far-reaching principle, that the Federal head should operate directly on individuals and not on states, involved momentous consequences, forcing the construction of a "Composite State." The joint action of the two chambers, constituting the *Bundesversammlung*, or Federal Assembly, became a substantive part of the government of every Canton; and, within the limits of its attributions, made laws which are obeyed by every citizen, and executing them through its own officers, and enforcing them by its own tribunal; powers essential for an effective federal government. The old Diets never ventured on any undertaking of public utility, amelioration, or reform, during more than three hundred years. The Confederation was loose and incomplete even for its essential objects, mutual defence and foreign relations. The principal objects of this new constitution were:

1. The strengthening of the national government, reconciling the supremacy of the Confederation with the autonomy of the Cantons.
2. The overthrow of oligarchies.

3. The protection of the state from the dominion of Rome.

The first two were attained by the direct provisions of the Constitution; the third was afterwards promoted by the expulsion of the Jesuits and their affiliated societies from Swiss territory. A great benefit was conferred upon the Confederation by the unification of such matters as coinage, weight, measures, and posts; and the surrender by the Cantons to the Confederation of the exclusive right to levy duties at the frontiers of the country. For twenty-four years Switzerland enjoyed under this Constitution uninterrupted peace and prosperity; the European wars between 1855 and 1871 did not disturb her neutrality, though military operations offered great temptation to march across her territory. In 1872 a project of amendment was submitted conferring upon the general government many additional powers. By a small popular and a large cantonal majority it was defeated. The agitation for amendment continued, and in 1874 a more moderate revision of the Constitution of 1848 was again presented. This remodelling in 1874 did little more than work out in a complete and logical form the principles laid down in 1848; the most marked difference being a further enlargement of the Federal authority; forming a well compacted union, a Federal state, each portion of which has its sphere of sovereignty. This revised Constitution received the sanction of the Federal Assembly, January 31, 1874, was submitted to the popular vote on Sunday, April 19, following, resulting in a vote of 340,199 in favor of, and 198,013 against, acceptance. The vote by Cantons was fourteen and a half Cantons for, and seven and a half Cantons against, acceptance (the votes of the half-Cantons being counted each as a half vote). The Cantons voting against the adoption of the Constitution were Uri, Schwyz, Unterwalden (the original three), Luzern, Zug, Freiburg, Valais, and Appenzell (Inner). A decree of the Federal Assembly, May 28, 1874, after setting forth that the revised Federal Constitution had received both a majority of all the votes cast and the approval of a majority of all the Cantons, says, "That it is, therefore, hereby solemnly declared in effect, bearing date of May 29, 1874." The Federal Council, on May 30, 1874, ordered the above decree, together with the Constitution, to be enrolled in the official collection of statutes of the Confederation, and the decree to be transmitted to the governments of the Cantons, to be published by them through posting up in public places. The Federal system thus established has many features which are strikingly like, as well as many which are almost as strikingly unlike, those in the system

of the United States. The preamble, and Articles I. and II. of the Constitution, point out the aim and lay down the fundamental idea of the Confederation.

IN THE NAME OF ALMIGHTY GOD.

The Swiss Confederation, desiring to confirm the alliance of the confederates, to maintain and to promote the unity, strength, and honor of the Swiss nation, has adopted the Federal Constitution, following:

ARTICLE I.—The peoples of the twenty-two sovereign Cantons of Switzerland, united by this present alliance [then follow the names of the Cantons], form in their entirety the Swiss Confederation.

ARTICLE II.—The purpose of the Confederation is to secure the independence of the country against foreign nations, to maintain peace and order within, to protect the liberty and rights of the confederates, and to foster their common welfare.

The Constitution is divided into three chapters, embracing, respectively, seventy, forty-seven, and four articles, numbered consecutively throughout the whole. The chapters have subdivisions, with descriptive titles to the general heads.

The first chapter is titled *General Provisions*, and covers a wide field.

A literal transcript of the most important provisions of this chapter will be given.

CHAPTER I.

The Cantons are sovereign so far as their sovereignty is not limited by the Federal Constitution, and as such they exercise all the rights which are not delegated to the Federal government. All Swiss are equal before the law, with neither political dependence, nor privilege of place, birth, persons, or families. The Confederation guarantees to the Cantons their territory, their sovereignty (within the limits fixed), their Constitutions, the liberty and rights of the people, the constitutional rights of citizens, and the rights and powers which the people have

conferred on those in authority. The Cantons are bound to ask of the Confederation the guarantee of their Constitutions: this is accorded, provided,—

(a) That the Constitutions contain nothing contrary to the provisions of the Federal Constitution.

(b) That they assure the exercise of political rights according to republican forms, representative or democratic.

(c) That they have been ratified by the people, and may be amended whenever the majority of all the citizens demand it.

All separate alliances and all treaties of a political character between the Cantons are forbidden. The Confederation has the sole right of declaring war, of making peace, and of concluding alliances and treaties with foreign powers, particularly treaties relating to tariffs and commerce. No military capitulations shall be made.¹⁶ Members of the Federal Government, civil and military officials of the Confederation, and Federal Representatives or Commissioners shall not accept from foreign Governments any pension, salary, title, present, or decoration. The Confederation has no right to maintain a standing army: every Swiss is subject to military service. The Confederation may construct at its own expense, or may aid by subsidies, public works which concern Switzerland or a considerable part of the country: the Confederation has the right of general supervision over the water and forest police measures in the upper mountain regions. It is authorized to adopt regulations as to the right of fishing and hunting, especially for the preservation of the large game in the mountains, and for the protection of birds which are useful to agriculture or forestry. Legislation pertaining to the construction and operation of railways is an affair of the Confederation. It has the right to establish, in addition to the existing Polytechnic school, a Federal University and other higher institutions of learning, or assist in their support. The customs are in the province of the Confederation; it may levy export and import duties; but the

collection of the Federal customs shall be regulated according to the following principles:

1. Import duties.

(a) Materials necessary to the manufactures and agriculture of the country shall be taxed as low as possible.

(b) Likewise all articles which may be classed as necessities of life.

(c) Luxuries shall be subjected to the highest duties.

2. Export duties shall also be as low as possible.

3. The customs legislation shall include suitable provisions for the continuance of commercial and market intercourse across the frontier.

The freedom of trade and of industry is guaranteed throughout the whole of the Confederation: excepted from this rule are the salt and gunpowder monopolies, the Federal customs, measures of sanitary police against epidemics and cattle diseases, import duties on wines and other spirituous liquors, and other taxes on consumption expressly permitted by the Confederation, under certain restrictions: but all the import duties levied by the Cantons as well as the similar duties levied by the Communes to cease, without indemnity, at the end of the year 1890. The Confederation has power to enact uniform provisions as to the labor of children in factories, and as to the duration of labor fixed for adults therein, and as to the protection of workmen against the operation of unhealthy and dangerous manufactures. The business of emigration agents and of private insurance companies shall be subject to the supervision and legislation of the Confederation. The opening of gambling-houses is forbidden (those in existence allowed until December 31, 1877, to close); necessary measures may also be taken concerning lotteries. The post and telegraphs (now includes the telephone) in all Switzerland are controlled by the Confederation, and the proceeds belong to the Federal Treasury; the tariff charges shall be regulated according to uniform

principles in as equitable a manner as possible, and inviolable secrecy of letters and telegrams is guaranteed. To the Confederation belongs the exercise of all rights included in the coinage monopoly: it alone shall coin money, establish the monetary system, and enact provisions, if necessary, for the rate of exchange of foreign coins, and to make by law general provisions as to the issue and redemption of banknotes: it shall not, however, establish any monopoly for the issue of banknotes, nor make them a legal tender. The Confederation fixes the standard of weights and measures. The manufacture and the sale of gunpowder throughout Switzerland pertains exclusively to the Confederation (the manufacture and sale of spirituous liquors was made a Federal monopoly December 22, 1885). Every citizen of a Canton is also a Swiss citizen, and as such he may participate in the place where he is domiciled in all Federal elections and popular votes, after having duly proven his qualification as a voter.¹⁷ A Federal law shall establish the distinction between settlement and temporary residence, and shall at the same time make the regulations to which Swiss temporary residents shall be subjected as to their political rights and their civil rights. A Federal law shall make provision as to the cost of the care and burial of indigent persons of one Canton who may become sick or die in another Canton. Freedom of conscience and belief shall be inviolable; no one shall be compelled to take part in any religious society or in any religious instruction, or to undertake any religious act, nor shall he be punished in any way whatever for his religious views. The person who exercises the parents' or guardians' authority has the right, conformably to the principles above stated, to regulate the religious education of children up to the close of their sixteenth year. The exercise of civil or political rights shall not be abridged by any provisions or conditions whatever of an ecclesiastical or religious kind. Religious views shall not absolve from the performance of civil duties. No person is bound to pay taxes of which the proceeds are specifically appropriated to the expenses of any religious society to which he does not belong. The free exercise of religious worship is

guaranteed within the limits of morality and public order; the Cantons and the Confederation may take suitable measures for the preservation of public order and of peace between the members of different religious bodies, as well as against any interference in the rights of citizens or of the state by church authorities. Contests in public and private law which arise out of the formation or the division of religious bodies may be brought by appeal before the competent Federal authorities. No bishopric shall be created upon Swiss territory without the consent of the Confederation; neither the order of the Jesuits nor the societies affiliated with them shall be suffered in any part of Switzerland, and all participation of their members either in church or school is prohibited; this prohibition may be extended also by Federal ordinance to other religious orders whose action is dangerous to the state, or disturbs the peace between sects. The establishment of new convents or religious orders or the restoration of those which have been suppressed is forbidden. The civil status and the keeping of records thereof is subject to the civil authority (taking it away from the clergy, who were formerly the custodians). The disposition of burial-places shall belong to the civil authorities; they shall take care that every deceased person may be decently interred (to prevent denial of burial by the church). The right of marriage is placed within the protection of the Confederation; this right shall not be limited for confessional or economic considerations, nor on account of previous conduct or other police reasons; no tax upon admission or similar tax shall be levied upon either party to a marriage. Freedom of the press is guaranteed; the Confederation may enact penalties against the abuse of the freedom of the press when directed against it or its authorities. The right of petition is guaranteed. No person shall be deprived of his constitutional judge, and there shall consequently be no extraordinary tribunal established.¹⁸ Ecclesiastical jurisdiction is abolished. Suits for personal claims against a solvent debtor having a domicile in Switzerland must be brought before the judge of his domicile; in consequence his property outside the Canton in which he is domiciled may not be attached in suits for personal claims; with

reference to foreigners, however, the provisions of the respective international treaties shall apply. Imprisonment for debt is abolished. The exit duty on property is abolished as respects foreign countries, provided reciprocity be observed. The Confederation shall have power to legislate:

1. On civil capacity.
2. On all legal questions relating to commerce and to transactions affecting chattels (law of commercial obligations, including commercial law and law of exchange).
3. On literary and artistic copyright.^{[19](#)}
4. On the legal collection of debts and on bankruptcy.

Capital punishment abolished;^{[20](#)} corporal punishment is forbidden. The Confederation by law provides for the extradition of accused persons from one Canton to another; nevertheless, extradition shall not be made obligatory for political offences and offences of the press. Measures shall be taken by Federal law for the incorporation of persons without a country.^{[21](#)} The Confederation has power to expel from its territory foreigners who endanger the internal or external safety of Switzerland.

The second chapter embraces the *Federal Authorities*:

CHAPTER II.

1. The Federal Assembly or Legislative Department.
2. The Federal Council or Executive Department.
3. The Federal Tribunal or Judicial Department.^{[22](#)}
4. The Federal Chancellery.

It is provided that the duties of Secretary to the Federal Assembly and Federal Council shall be performed by a Federal Chancellery under the direction of a Chancellor of the Confederation. The Chancellor shall be chosen for the term of three years by the Federal Assembly at the same time as the

Federal Council. The Chancellery shall be under the special supervision of the Federal Council.

5. Miscellaneous provisions.

These are three in number:

1. All that relates to the location of the Federal authorities is a subject to be determined by the Confederation.

2. The three principal languages spoken in Switzerland—German, French, and Italian—shall be considered national languages of the Confederation.²³

3. The officials of the Confederation shall be responsible for their conduct in office. Federal law shall define this responsibility and the means of enforcing it.

The third chapter directs the method by which the Constitution can be amended.

CHAPTER III.

1. The Federal Constitution may at any time be amended.

2. Each revision shall take place by the ordinary method of Federal legislation.

3. If one branch of the Federal Assembly passes a resolution for amendment of the Federal Constitution and the other does not approve; or upon the demand of fifty thousand qualified voters, in either case, the question whether the Constitution ought to be amended must be submitted to a vote of the Swiss people, voting yes or no. If a majority of the citizens voting pronounce in the affirmative, there shall be a new election of both branches of the Federal Assembly for the purpose of preparing amendments.

4. The amended Constitution shall go into effect whenever it shall receive a majority of all the votes cast, and the approval of a majority of the Cantons. In determining the majority of the Cantons, the vote of a half-Canton shall be counted as half a

vote. The result of the popular vote in each Canton shall be taken as determining the vote of the Canton.²⁴

The Constitution closes with five articles, styled *Temporary Provisions*:

1. The proceeds of the posts and customs shall be divided upon the existing basis until such time as the Confederation shall take upon itself the military expenses up to this time borne by the Cantons. The loss which may be occasioned to the finances of any Canton by the sum of the charges which result from certain articles of the Constitution shall fall upon such Canton only gradually.

2. The provisions of the Federal laws and of the Cantonal concordats, constitutions or Cantonal laws which are contrary to this Constitution cease to have effect by the adoption of the Constitution, or when the Federal laws passed in pursuance thereof, shall be published.

3. The new provisions in regard to the powers of the Federal Tribunal shall not take effect until the passage of the Federal laws relating to it.

4. The Cantons shall be allowed a period of five years within which to introduce the system of free instruction in primary public education.

5. Those persons who practise a liberal profession, and who before the publication of the Federal law provided for by the Constitution have obtained a certificate of competence from a Canton or a joint authority representing several Cantons, may pursue that profession throughout the Confederation.

There have been three amendments to the Constitution from the date of its adoption in 1874 to 1889 inclusive:

1. In 1879, Article lxxv. of the Constitution abolishing capital punishment was repealed, and in lieu thereof the following substituted: "No death penalty shall be pronounced for a political crime."²⁵

2. In 1885, Article xxxii. of the Constitution was modified so that drinking-places and the retail trade in spirituous liquors should be excepted from the guarantee of freedom of trade and of industry; but the Cantons might by legislation subject the keeping of drinking-places and the retail trade in spirituous liquors to such restrictions as are required for the public welfare. And Article xxxii. *bis* was added authorizing the Confederation by legislation to regulate the manufacture and sale of alcohol. In this legislation those products which are intended for exportation, or which have been subjected to a process excluding them from use as a beverage, shall be subjected to no tax. Distillation of wine, fruit, and the products of gentian roots, juniper berries, and similar products are not subject to Federal legislation as to manufacture or tax. After the cessation of the import duties on spirituous liquors, as provided for, the trade in liquors not distilled shall not be subjected by the Cantons to any special taxes, or to other limitations than those necessary for protection against adulterated or noxious beverages. Nevertheless the powers of the Cantons defined in the Constitution are retained over the keeping of drinking-places, and the sale at retail of quantities less than two *litres*. The net proceeds resulting from taxation on the sale of alcohol shall belong to the Cantons in which the tax is levied. The net proceeds to the Confederation from the internal manufacture of alcohol, and the corresponding addition to the duty on imported alcohol, shall be divided among all the Cantons in proportion to population. Out of the receipts therefrom the Cantons must expend not less than one-tenth in combating drunkenness in its causes and effects. The Confederation shall provide by law that for such Cantons or Communes as may suffer financial loss through the effect of this amendment, such loss shall not come upon them immediately in its full extent, but gradually up to the year of 1895.^{[26](#)}

3. In 1887, Article lxiv. of the Constitution was so amended as to give the Confederation the power to make laws, “On the protection of new patterns and forms, and of inventions which

are represented in models and are capable of industrial application.”

All amendments to the Swiss Constitution are incorporated in their logical place in the text immediately upon their adoption.

Much legislation called for by the mandatory provisions of the Constitution, and suggested by the discretionary powers vested in the Confederation, has passed into Federal statutory enactments. A few may be mentioned. An elaborate law as to military service, tax for exemption therefrom, and pensions; statutes regulating labor in factories, containing a wide range of provisions for the health and safety of employés; the practice of the professions of medicine and dentistry; the construction and management of railroads; the protection of literary and artistic property and patents; hunting and fishing; the control of forests, dikes, and water-courses in the mountainous regions; the election of members of the Federal Assembly and organization of the Federal Tribunal; the method of taking the *Referendum*; rights of citizenship and expatriation; banking and bankruptcy; emigration and immigration. There are very comprehensive laws also as to “civil capacity and obligations” and “marriage and divorce.” The Federal law on “civil capacity and obligation” comprises more than nine hundred articles, and deals with every imaginable kind of contract except that relating to the acquisition and transfer of the ownership of land; this forming part of the independent legislation of the several Cantons. The law of “marriage and divorce” includes registration of births and deaths, and presents a law which is a carefully-prepared, scientific whole. The legal age of marriage; degrees of consanguineous or other relationship; consent of parents; rules for notice of intention; provision for verifying the facts alleged; certification both of the fact and means of the dissolution of a previous marriage, whether by death or divorce; strict requirements for publication of the banns; restrictions as to locality within which the marriage must occur; civil marriage made obligatory; and details of the conditions under which marriages may be declared void and divorces granted; these constitute some of the main features of the law.

The Constitution, with the evolution through Federal laws made necessary by it, contains much detail, showing the mind of the German race therein. It is not confined to an enunciation of general principles, but determines specifically and at length, with some confusion of repetition and

at times distressing prolixity, many things which, under a general provision, might have been clearly interpreted to belong, as the case might be, to either the Federal or Cantonal authority. It contains a large number of articles which have no reference to the distribution or exercise of sovereign power, but which embody general maxims of policy or special provisions as to matters of detail, to which the Swiss attach great importance, and which therefore they do not wish to be easily alterable. It goes far beyond that of the United States in inscribing among constitutional articles either principles or petty rules which are supposed to have a claim of legal sanctity. It gives to the Federal authorities power and supervision over a variety of special interests; a system that may work well in a small country, but not in one so large as the United States, with such diversified and local aspects. For these reasons the text of the Swiss Constitution is not so brief,²⁷ nor its language so terse, as that of the United States, which a famous English statesman has called, "The most wonderful work ever struck off at a given time by the brain and purpose of man." The Swiss Constitution leaves little room for contention in the construction of its phraseology, meaning the same thing to-day, to-morrow, and forever. Its written provisions, stipulations, and guarantees leave little room for the exercise of "doubtful powers." With such a mass of detail, the Confederation is not competent to act directly; the execution of much is left to the Cantons acting under the supervision of the Federal authorities, which only interfere where the former neglect or refuse to fulfil their obligation.

The repeated and remarkable stipulations of the Constitution, reaching almost every conceivable exercise of religious action and freedom, present one of its most marked characteristics and radical departures from that of the United States. The latter contains only two allusions to the subject. The first in Article VI.: "No religious test shall ever be required as a qualification to any office or public trust under the United States." The second in the first amendment: "Congress shall make no law respecting an establishment of religion or prohibiting the free exercise thereof." Previous to the Swiss Constitution of 1874 there was no mention of individual religious liberty. That of 1848 guaranteed the free exercise of divine worship to the recognized confessions, the Roman Catholic and the Reformed (*i.e.*, the Church Reformed by Zwingli and Calvin), but forbade the order of Jesuits. It is manifest that the framers of the Constitution of

1874 were resolved to effectually suppress the further exercise of the ecclesiastical narrowness and sectarian antagonism which, as late as the Sonderbund War of 1847, disturbed the peace and threatened the stability of the Confederation. The extreme rigor with which these provisions of the Constitution are enforced, and the latitude of action given under them to Cantonal authority, do appear at times to be strained to an extent deaf to both humanity and common sense. In 1888, "Captain Stirling," of the Salvation Army, a subject of Great Britain, was sentenced in the Canton of Vaud to one hundred days' imprisonment in Chillon Castle for attempting to proselyte some children. The appeal made in her behalf to the Federal Council was refused, and she was compelled to complete the term of her sentence. Surely no danger was threatened that might not have been averted by her removal to the frontier, or the offence atoned for by a slight fine. The case presented an appeal to that unknown quantity, the Swiss sense of the ridiculous. The sanctity of the law is all very well; but when the law is one against persons who sing hymns to children in the street, and its terrors are those of Bonnivard's prison, the plot of the drama seems hardly equal to the majesty of the scene. To put a young lady, for so trivial an offence, under triple bolts and bars for months is a piling up of the agony which indicates a singular weakness of dramatic resource. Perhaps the military style of the movements in these days of alarming concentrations on Continental frontiers may have invested the "colonels" and "captains" in the Salvationist train, even of the gentler sex, with undue importance and alarm. It is difficult to reconcile Federal and Cantonal action in Switzerland in this and other instances with the spirit of the inviolability of freedom of faith and conscience guaranteed by the Constitution. Religious liberty encounters no little restriction and abridgment in several of the Cantons. Each Canton has still its own established Church, supported and ruled by the civil magistrate. In recent times free churches have been founded in Geneva, Neuchâtel, and Vaud, and are showing a high degree of spiritual vitality and liberality. It would be better if it could work out an entire dissolution of the connection between Church and State throughout the Confederation, and religion be allowed to take its natural course.

The Constitution of Switzerland is a conscious and sagacious reproduction of the Constitution of the United States, with noteworthy variations called for by the different conditions of the two commonwealths. The Government of the United States is one of limited and enumerated

powers; “the powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.” The restrictions under the Swiss Constitution apply mostly to the Cantons. In Switzerland, as in the United States, there is no single determinate sovereign body or assembly, or any real sovereign other than the people themselves. In the Swiss Confederation the popular will does everything; the legislative power being directly exercised by the body of the people by way of *Referendums*. In the Republic of France the tendency is to centralize the direction of public affairs almost entirely in the Chamber of Deputies. In the United States it is claimed, with some color of truth, that the initiative and legislation are being gradually taken away from Congress by a very occult, but authoritative, government of committees.

The separation of persons and functions is most complete in the United States; the Constitution enforcing a distribution of powers, and directly or indirectly the powers of every authority existing under it are defined, limited, and carefully regulated. In the Swiss Constitution these respective powers are not at all clearly distinguished; in fact, they seem to have been purposely left indeterminate. There are none of the elaborate checks and interlocking vetoes found in the United States. It is true the Swiss have the three organs,—a Federal Legislature, a Federal Executive, and a Federal Court; but they fail in the strict separation of each of these departments from and its independence of the other. Said John Adams, “Here is a complication and refinement of balances, which for anything I recollect, is an invention of our own and peculiar to us.”

There is also an entire absence from the Swiss Constitution of any provisions touching those personal rights and ancient muniments of liberty designated as the “Bill of Rights;” such as are contained in the first ten amendments of the Constitution of the United States; those fundamental principles that guarantee to the individual a sphere of liberty upon which the government may not encroach; a branch of constitutional law which it has been the peculiar province of American political science to develop. This omission from the Swiss Constitution may have been for the same reason that it occurred in the original Constitution of the United States; that these rights were sufficiently implied and understood in any system of free government. These cardinal rights are claimed by the Swiss to be expressly provided for in the Cantonal constitutions. Again, it is held that all these

inherent and inalienable rights are amply secured by the article of the Federal Constitution requiring the organic law of the Cantons to “insure the exercise of political rights after republican forms.”

Hamilton met the objection to the Constitution of the United States containing no “Bill of Rights,” in the “Federalist” (No. 84), by saying, “Bills of rights are, in their origin, stipulations between kings and their subjects, abridgments of prerogative in favor of privilege, reservation of rights not surrendered to the prince. It is evident, therefore, that, according to their primitive signification, they have no application to constitutions professedly founded upon the power of the people, and executed by their immediate representatives and servants. Here in strictness the people surrender nothing; and as they retain everything they have no need of particular reservations.” But Jefferson expressed the prevalent opinion when he wrote, “The executive in our governments is not the sole, it is scarcely the principal, object of my jealousy. The tyranny of the legislatures is the most formidable dread at present, and will be for many years.” These restraints upon legislative power have proven most fortunate ones in the United States; for the provision, “No person shall be deprived of life, liberty, or property without due process of law,” together with those provisions which forbid the taking of private property for public use without just compensation, and the enactment of laws impairing the obligation of contracts, lies at the foundation of all constitutional protection of private rights in the citizen. Thus a body of constitutional law has been formed which is not yet completely crystallized, but is being daily shaped by the decisions of the courts. In annexing the “Bill of Rights,” the founders of the government may not have had a correct idea as to what would be the full effect of its provisions, but the object they had in view was perfectly clear. They believed that wherever power was placed, it was liable to be abused. They intended to restrain the impulse of popular majorities, and more especially to prevent the legislature from becoming despotic and tyrannous. But the number of rights which can be effectually protected by the Constitution is very limited; and the legislature must always retain sufficient power to disturb seriously all social relations, if it is determined to make use for this purpose of the means at its command. The utmost that a constitution can be expected to do is to protect directly a small number of vested rights, and to discourage and check indirectly the growth of a demand for radical measures.

The power of the general government in Switzerland, as that of the United States, extends not merely to those affairs which are turned over to it by the exact words of the Constitution itself, but also to the relations whose control by the central government appears as a necessity for its performance of the duties devolving upon it. In a comparison of the Swiss Federal polity with that of the United States, it must be borne in mind that the infinite variety in the local and otherwise peculiar circumstances of different nations, produces wide discrepancies between governments bearing a common appellation. There exists, indeed, but little community of opinion or uniformity of practice beyond the circumscribed limits of those maxims in politics which are deducible by direct inference from moral truths. The great mass of those rules and principles which have a more immediate influence on practice, and give to government its tone and peculiar organization, are of a description purely local; deriving their force from local interests, and therefore, however just, are only applicable in their full extent to the particular case. Hence it is that constitutions, nominally and externally the same, have little or no interior resemblance, and in many instances only so far correspond as to justify us in referring them to one common standard. The United States and Switzerland have republican states joined in a republican union, with a division of powers between states and union approximately the same; and they present the most completely developed types of that federalism “which desires union and does not desire unity;” the same problem upon which all civilized peoples have been working ever since civilization began,—how to insure peaceful concerted action throughout the whole, without infringing upon local and individual freedom in the parts; to reconcile the welfare and security of the whole with the local claims and diversified institutions of the component parts. The Swiss Constitution blends these ends harmoniously in a government not too centralized to act in the interest of the localities; but a little too closely wedded to routine to adapt itself to changing conditions. The federative principle implies the existence of opposing tendencies, active within a superior agency, which is capable of regulating their mutual aggression, and of securing their harmony. Over the two historical forces, *Nationalism* and *Localism*, the federative principle asserts its supremacy, and gives them simultaneous, correlated, and adequate expression. Under confederation, both *Nationalism* and *Localism* by different processes increase each its original determinative strength; and the danger arises that either alone

might force a union of but partial means and incapable of the highest end. The federative principle by its own creative energy chooses the time and method of its complete self-assertion, and brings its factors to the work of “forming the more perfect union.” Thus *Nationalism* and *Localism*, though their methods are in constant warfare, their aim is one,—the good of the individual, who in his dual relation is an epitome of the controlling principle. A complete harmony of the two elements of the federative principle can never be realized; but the tendency is ever towards harmony, thus placing before our hopes an ideal state. In constructing his ideal republic, Plato rejects discordant powers and forces which would bring false harmony, and leaves but two essential elements: “These two harmonies I ask you to leave,—the strain of necessity and the strain of freedom, the strain of courage and the strain of temperance.” In a republic, national will and local self-rule—the one federative principle—constitute true harmony.^{[28](#)}

The question of government is a question of the application of means to an end; that end being, in general terms, the happiness and prosperity of the people. Government considered as comprehending those laws and principles which regulate the conduct of the individual in his relative capacity to the state, being continually present to his mind, must invariably influence his habits of thinking and acting. The genius of the organic law, the Constitution, is transfused into the national mind, and in the character of the citizens we recognize the congenial spirit of the laws.

The history of the Swiss Constitution is the history of a confederation of free Cantons, uniting city and rural communities in a common league; providing at once for separate autonomies, and for confederate union and government; insuring mutual protection and a national policy. It represents a wise and politic union; a union constituting an honorable European state in the full enjoyment of its ancient franchises; a union of strength and national life and enduring liberty. Times and circumstances taught their own lesson; civil and religious establishments were imperfectly produced, roughly moulded, and slowly improved, but they were adequate to dispense the blessings of a free government to a brave and artless people, in a state of great comparative independence and honor, security and happiness.

A constitution is valuable in proportion as it is suited to the circumstances, desires, and aspirations of the people, and as it contains

within itself the elements of stability and security against disorder and revolution. Measured by this standard, the Swiss Constitution is an excellent adaptation to the conditions of a most varied and composite nationality. With a strong paternal tendency, the Constitution takes cognizance of the citizen at his birth by registration, and guarding him through life with legislative scrutiny, vigilant and minute, it insures him a “decent burial.” Yet this searching, far-reaching, central authority is administered in a beneficent and patriotic spirit, with a jealous regard for all the highest natural rights of man.

Federalism tends to conservatism; it is almost certain to impress on the minds of citizens the idea that any provision included in the organic law is immutable and, so to speak, sacred. History shows that those states have been most stable and prosperous which, in casting off an old allegiance or in ordering their political constitutions afresh, made no more changes than were absolutely needful, and did not violently snap the tie between the old and the new state of things; that the best form of government will commonly be that which the events of its history have given it,—a government which has arisen out of the events and necessities of the country. Switzerland and the United States are examples of commonwealths whose success has been largely owing to the comparatively small amount of change which accompanied their acquisition of independence. Each has that form of government which the events of its history have made natural for it. In each the existing political system is founded on the practical needs of the time and place. Referring to the preamble of the *Declaration of Rights*, wherein the prayer is made, “That it may be declared and enacted that all and singular the rights and liberties asserted and declared, are the true ancient and indubitable rights and liberties of the people of this kingdom,” Burke says, “By adhering in this manner to our forefathers, we are guided, not by the superstition of antiquarians, but the spirit of philosophic analogy. In this choice of inheritance we have given to our frame of policy the image of a relation in blood, binding up the constitution of our country with our dearest domestic ties, adopting our fundamental laws into the bosom of our family affections; keeping inseparable, and cherishing with the warmth of all their combined and mutually reflected charities, our state, our hearths, our sepulchres, and our altars.” Switzerland and the United States in their organic law and its application, while presenting many and essential differences, constitute the only two genuine and thorough republics in

existence; and each system better suits the position of the nation which has adopted it. Switzerland, though beyond all others a regenerate nation, was still an old nation; above all things a system was needed which should preserve everything and jeopardize nothing. She seized on a rare and happy moment, when all the despots of Europe had enough to do at home, to reform her constitution without foreign intermeddling; and she formed a system which exactly suits the position of a small, free, conservative power, ready as ever to defend its own, but neither capable nor desirous of aggrandizement at the expense of others. The Swiss have a way of keeping their current history to themselves; or the outside world has a way of not asking for it, which is much the same thing. They are unique among civilized people for the extreme modesty of their claim upon the attention of mankind. This might imply the highest qualities or the lowest; but no one who knows anything of the little republic will doubt to which of them it is to be assigned. She lives, moves, and works without fuss or friction; and is constantly solving in her own way some of the hardest problems of politics. She has found out how to maintain perfect peace between diverse races and conflicting creeds; to adjust and harmonize discordant views and principles; and preserve to the several elements of the confederacy a due proportion of constitutional authority. This difficult task has been accomplished, not indeed without frictions, not without armed collisions, and not until after many trials and experiments; but it has been done, and on the whole successfully.

Nothing is so easy as to find fault in every form of government, and nothing so hard as to show a perfect one reduced to practice. Most of the plans of government seem to have been formed like houses built at several times; for as the old parts of them always deface the new and render them irregular, so upon the establishment of any new frame something of the old is still preserved and enters into the frame of the new, which is not of a piece with it, and consequently spoils its symmetry. No one can look closely into the Constitution of Switzerland and fail to discover that, in its provisions, the principles of a democratic confederation find the elements of sound and vigorous health.

Enlightened freedom, governed and secured by law, upholds the fabric of the Constitution; salubrious streams issuing from education and patriotism, consecrated by religion, mingle with each other, and unite in

diffusing fertility through every channel of the state. The everlasting league still lives on, to shame the novel and momentary devices of the kingdoms and commonwealths which rise and fall around it.^{[29](#)}

CHAPTER III.

THE FEDERAL ASSEMBLY.

Bundesversammlung; Assemblée fédérale.

“A legislative, and an executive, and a judicial power comprehend the whole of what is meant by government.”³⁰ We find in Switzerland this general division of powers, with many interesting and instructive peculiarities, which give the Swiss federalism an individual character.

The need for two chambers in a federal state has become an axiom of political science. Where there is a twofold sovereignty, that of the whole nation, and that of the states or Cantons, which are joined together to form it, each sovereignty must be represented in the legislature. With the two chambers, one representing the people as a whole, the other the integral parts as constituent members of the whole, each element is a check upon the other by the coexistence of equal authority. By the Constitution of 1874, “With reservation of the rights of the people and of the Cantons the supreme authority of the Swiss Confederation is exercised by the Federal Assembly, which consists of two sections or councils, to wit:

- “1. The National Council (*Nationalrath; Conseil National*).
2. The Council of States (*Ständerath; Conseil des États*).”

Relating to the National Council, the Constitution has eight articles, viz.:

1. The National Council is composed of representatives of the Swiss people, chosen in the ratio of one member for each twenty thousand persons of the total population. Fractions of upward of ten thousand persons are reckoned as twenty thousand. Every Canton, and in the divided Cantons every half-Canton, chooses at least one representative.

2. The elections for the National Council are direct. They are held in federal electoral districts, which in no case shall be formed out of parts of different Cantons.

3. Every male Swiss who has completed twenty years of age, and who in addition is not excluded from the rights of active citizenship by the legislation of the Canton in which he is domiciled, has the right to take part in elections and popular votes. Nevertheless, the Confederation by law may establish uniform regulations for the exercise of such right.

4. Every lay Swiss citizen who has the right to vote is eligible as member of the National Council.

5. The National Council is elected for three years, and entirely renewed at each general election.

6. Members of the Council of States, or of the Federal Council, or officials appointed by the latter, shall not at the same time be members of the National Council.

7. The National Council chooses from among its members, for each regular or extraordinary session, a President and a Vice-President. A member who has held the office of President during the regular session is not eligible either for President or Vice-President of the next regular session. The same member may not be Vice-President for two consecutive regular sessions. The President shall have the casting vote in case of a tie; in elections, he votes in the same manner as any other member.

8. The members of the National Council receive a compensation from the federal treasury.

The qualification of the elector, as above described, is that of being in the enjoyment of the “active right of citizenship,”—*i.e.*, not excluded from the rights of a voter by the legislation of his Canton. This also applies to those who have been deprived of their civic rights by virtue of the penal law, and in consequence of a judicial sentence; and in some Cantons embraces insolvents and paupers. The limitation of eligibility to “lay” Swiss citizens does not necessarily exclude ecclesiastics, as illustrated in a recent case of a Bernese clergyman, who, being chosen a member of the National Council, simply laid aside temporarily, by resignation, his clerical robes; should he fail any time of re-election he may return to the pulpit. Naturalized citizens are not eligible until five years after they have become citizens. The provision forbidding a member to hold the office of President for two consecutive ordinary sessions makes it possible, during the life of a

National Council, for one-fourth of the Cantons (even counting the half-Cantons) to be honored with this officer; and certainly gives but little opportunity for the building up of a one-man power, just this side of absolute. The power of the presiding officer of the National Council is too insignificant to justify any parallel with that of the Speaker of the United States House of Representatives. A federal law regulates in a uniform manner, and by ballot, the election for members of the National Council; the execution of the law is entirely under the direction of the Canton, and in immaterial details there is a great diversity. There are registers in each Commune, in which every citizen having a vote must be inscribed. These registers are open two weeks before the day of the election, and close three days previous to it. In some Cantons, a card from the Commune where the voter is registered is left at his house; in others, he must present himself at the proper office and obtain his card. The election takes place on the last Sunday in October triennially. The polls generally are in the churches, and no one is permitted to enter except upon the presentation of the requisite proof as to his right to vote. Candidates must be elected by an absolute majority of the votes cast. Should there be a failure of election, a second ballot under the same conditions is had the following Sunday. If a third ballot becomes necessary, the election is again repeated the next Sunday, when the *scrutin de liste* is restricted to a number not exceeding three times the number of members to be chosen; and these must be taken in order from those receiving the largest vote in the previous *tours de scrutin*. In this final trial the candidate or candidates, as the case may be, having a plurality are elected. The members are elected on a general ticket,—that is, “at large” for the district, not for the Canton. These districts are called *arrondissements*, and the method of voting is known as *scrutin d’arrondissement*.

The National Council at present consists of one hundred and forty-five members, apportioned among forty-nine electoral districts. The number returned from these districts varies from one to five members each. The Cantons of Uri and Zug, and the half-Cantons of Obwald, Nidwald, and Inner-Rhoden compose only one district each. Bern has six districts and twenty-seven members; Zurich, four districts and sixteen members. Every elector is entitled to vote for as many members as his district is entitled to, but not cumulatively. A federal census for the apportionment of representation is taken every ten years. Members receive a compensation of twenty francs per day (about \$3⁸⁶/₁₀₀) when the National Council is in

session,³¹ and a travelling allowance of twenty centimes per kilometre (a fraction under .03 per mile). A member loses his *per diem* if he does not answer the roll-call at the opening of the day's session, unless he should appear later and give to the secretary a sufficient excuse for his dilatoriness. If subsequently, during that day's session, there is a vote by roll-call (*appel nominal*), or if there is a count of the House to ascertain the presence of a quorum, the compensation of the members whose absence is disclosed is forfeited for that day. This law is not a "dead letter," but is strictly enforced, and with a frugal-minded people tends to keep the members in their seats.

The Council of States (*Ständerath; Conseil des États*).

The space devoted to the Council of States in the Constitution is one-half of that given to the National Council, and is comprised within four articles:

1. The Council of States consists of forty-four representatives of the Cantons. Each Canton elects two representatives, and in the divided Cantons, each half-Canton elects one.

2. No member of the National Council or of the Federal Council may be at the same time a member of the Council of States.

3. The Council of States elects from among its members a President and Vice-President for each regular and extraordinary session. From among the representatives of that Canton from which a President has been elected for a regular session, neither the President nor Vice-President can be taken for the next following regular session. Representatives of the same Canton cannot occupy the position of Vice-President during two consecutive regular sessions. When the votes are equally divided, the President has a casting vote; in elections, he votes in the same manner as the other members.

4. Members of the Council of States receive compensation from their respective Cantons.

The constitution of the two Houses is manifestly borrowed from the model of the United States; but it is apparent that the Council of States does not so closely correspond with the Senate of the United States as the National Council does to the House of Representatives. It has no such clearly-defined character as the Senate in distinctively representing the federal feature of the union between the Cantons. For the mode in which its

members shall be elected, the qualifications which they shall possess, the length of time which they shall serve, the salary which they shall receive, and the relations they shall bear to those whom they represent, in fact, every element of their character as representatives is left to the Canton, and a great variety of provisions prevail.³² The small Cantons in which the people assemble annually (*Landsgemeinde*) have their members elected by this assembly, by the raising up of hands for such or such a candidate. In other Cantons, including Zurich, Thurgau, and Basel-rural, the whole Canton forms but one district for the nomination of the members; the votes are deposited in the ballot-box of the Commune, and are collected and counted by a cantonal board. In the Cantons having the representative system, such as Geneva, Freiburg, Ticino, and Bern, they are chosen by the cantonal legislative body. The terms of the members vary from one to three years; twelve Cantons elect for one year, twelve for three years, with Valais holding to the mean of two years. Their compensation, paid by the Canton, is the same as that received by the members of the National Council, with the exception of Geneva, where it is double the amount, or forty francs. When serving on committees during recess, the members of the Council of States are paid by the Confederation. The Vice-Chancellor serves as Secretary of the Council of States.

The Council of States has no special executive powers apart from the National Council like the United States Senate; which in some respect give that body a further strength and dignity of its own. The Swiss Senate rests solely on its general position as one necessary element of the federal system. The two branches of the Assembly are co-ordinate, standing in all respects on an equal footing. The work of each session, so far as known at its opening, is divided between the two Houses by a conference of their Presidents. The right of initiative belongs to each House, and to each member of the Assembly. There may be a shade of superior consequence and dignity attaching to the National Council. It is designated first in order by the Constitution, it has a fixed term of service, and when the two Houses are in joint session, the President of the National Council takes the chair. In the National Council are to be found the more ambitious and active men in political life, for the members of the Federal Council are sure to be chosen from this body. The members of both Houses equally enjoy the usual privileges and immunities of members of representative bodies. The two Houses act separately in all strictly legislative matters; coming together for

deliberation in common only for the exercise of certain electoral and judicial functions.

The powers of the Federal Assembly are thus set forth in the Constitution

1. The National Council and the Council of States have jurisdiction over all subjects which the present constitution places within the competence of the Confederation, and which are not assigned to other federal authorities.

2. The subjects which fall within the competence of the two Councils are particularly the following:

Laws pertaining to the organization and election of federal authorities.

Laws and ordinances on subjects intrusted by the Federal Constitution to the Confederation.

The salary and compensation of members of the federal governing bodies, and of the Federal Chancellery; the establishment of federal offices, and determination of their salaries.

The election of the Federal Council, of the Federal Tribunal, of the Federal Chancellor, and of the General of the Federal Army.^{[33](#)}

Alliances and treaties with foreign countries, and the approval of treaties made by the Cantons between themselves or with foreign powers; such cantonal treaties shall, however, not be submitted to the Federal Assembly, unless objection be raised to them by the Federal Council or by another Canton.

Measures for external safety; for the maintenance of the independence and neutrality of Switzerland; the declaration of war and the conclusion of peace.

The guarantee of the constitutions and the territory of the Cantons; intervention in consequence of such guarantee; measures for the internal safety of Switzerland, for the maintenance of peace and order; amnesty and pardon.^{[34](#)}

Measures for securing observance of the Federal constitution; for carrying out the guarantee of the Cantonal constitutions, and for the fulfilment of federal obligations.

The power of controlling the federal army.

The determination of the yearly budget, the audit of public accounts, and federal ordinances authorizing loans.

General supervision of the federal administration and of federal courts; appeals from the decisions of the Federal Council upon administrative conflicts of jurisdiction between federal authorities.

Revision of the Federal constitution.

3. Both Councils shall assemble once each year in regular session, on a day to be fixed by the standing orders.³⁵ They may be convened in extra session by the Federal Council, or on demand of one-fourth of the members of the National Council, or of five Cantons.

4. In either Council a quorum is a majority of the total number of its members.

5. In the National Council and in the Council of States, a majority of those voting shall decide the question.

6. For federal laws, decrees, and resolutions, the consent of both Councils is necessary. Federal laws shall be submitted for acceptance or rejection by the people upon the demand of thirty thousand qualified voters, or of eight Cantons. The same principle applies to federal resolutions, which have a general application, and which are not of an urgent nature.

7. The Confederation shall by law establish the forms and times of popular voting.

8. Members of either Council vote without instructions.

9. The Councils deliberate separately. But in the case of the elections (specified in Section 2), of pardons, or of deciding a conflict of jurisdiction, the two Councils meet in joint session, under the direction of the President of the National Council. Votes shall be decided by simple majority of the members of both Councils, present and voting.

10. Measures may originate in either Council, and may be introduced by any member of each Council.

11. The sittings of both Councils shall, as a rule, be public.

The law-making department in any sovereign state is the repository of most power; consequently the constitution of Switzerland, like that of the United States, after enumerating the powers which shall be exercised by authority of the general government, confers them in terms upon the most immediate representative of the sovereignty. In Switzerland this is the Federal Assembly; in the United States it is Congress. The scope of powers conferred upon the Swiss Federal Assembly enables it to exercise not only legislative, but supervisory, executive, and judicial functions. The separation of its powers from those of the Federal Council and the Federal Tribunal—the executive and judicial departments—is neither clearly set forth nor in practice is it strictly observed. Cases have occurred, the jurisdiction over which being involved in so much doubt, the interested parties, from abundance of caution, submitted their memorials simultaneously to two of these federal departments. The Swiss Federal Assembly exercises a power more comprehensive and greater than that given probably to any legislative body; at least in a republic, where there is a professed organic distribution of the three great heads. It elects the Federal Executive, Federal Judiciary, and the Commander of the Army. It is the final arbiter on all questions as to the respective jurisdiction of the Executive and the Federal Court. It would appear that there is no decision of the Executive which cannot be revised by it. It is the chief power in the land. No veto can intervene nor any judicial power question the constitutionality of its statutes. Its acts form the law which the court must execute. The Swiss people, as it were, speak in each legislative enactment; and the only check or revision to which it is amenable rests with the people themselves by means of the *Referendum*. The authority of the Swiss Assembly, it is true, exceeds that of the Congress of the United States, and yet it may be regarded as a weaker body. For while in each case there lies in the background a legislative sovereign, capable of controlling the action of the ordinary legislature, the sovereign power is far more easily brought into play in Switzerland than in the United States. Again, every ordinary law passed by the Swiss Assembly may be annulled by a popular vote. The freedom from instruction secured to the members of the Federal Assembly was first declared in the Swiss Constitution of 1848. The whole history of the representative principle proves the soundness of the doctrine, that the vesting an entire discretion in the representative is an essential part of the definition. It is not to the power of instructing the representative that

constituents are to look for an assurance that his efforts will be faithfully applied to the public service; but it is to the power of reducing him from the elevation to which their suffrages have raised him. The object to be obtained is not to compel the representative to decide agreeably to the opinions of his constituents, for that would be compelling him often to decide against his better judgment; but it is to force him to decide with a single view to the public good. It is by leaving him unshackled with positive instructions, while he is subject to the ultimate tribunal of the opinion of his constituents, that the end in view is to be accomplished of bringing into action, in the proceedings of the legislature, the greatest practicable quantity of intelligence under the guidance of the purest disposition to promote the welfare of the community. The view which Burke takes of the relation between a representative and his constituents is in the main so correct, and is so luminously expressed, that no one can read it without pleasure and instruction. The passage occurs in his celebrated speech at Bristol on the conclusion of the poll. "Certainly, gentlemen," he says, "it ought to be the happiness and glory of a representative to live in the strictest union, the closest correspondence, and the most unreserved communication with his constituents. Their wishes ought to have great weight with him; their opinion high respect; their business unremitted attention. It is his duty to sacrifice his repose, his pleasures, his satisfactions to theirs; and above all, ever and in all cases to prefer their interest to his own. But his unbiased opinion, his matured judgment, his enlightened conscience, he ought not to sacrifice to you, to any man, or to any set of men living. These he does not derive from your pleasure; no, nor from the law and the constitution. They are a trust from Providence, for the abuse of which he is deeply answerable. Your representative owes you, not his industry only, but his judgment; and he betrays instead of serving you if he sacrifices it to your opinion."

Neither the Constitution of the United States, nor that of Switzerland, vests anywhere any power of dissolution of the legislative body. The Swiss Assembly is chosen for a definite time; when that time is up it dissolves by the operation of the law; before that time is up no power can lawfully dissolve it.

Either the National Council or Council of States can recommend to the Federal Council that it shall prepare and present for its consideration certain

bills; or a member can suggest one to his own House, and, if agreeable, the matter will be referred to the Federal Council with instruction to draft the necessary bill; or the Federal Council itself presents bills upon its own initiative. The Assembly recommends to the Federal Council by motions, called *postulats*, such alterations or reform in bills submitted by it as seem to them to be proper. If the Federal Council does not assent to a particular *postulat* coming from one of the Houses, it makes a report to that effect to the House, and if the latter insists upon its view, then a formal proposition is drawn up, and if carried in both Houses, the Federal Council is bound to execute its provisions. It must be understood that every bill must pass through the hands of the Federal Council, and by it laid before the Assembly. When a bill is presented by the Federal Council, the House, which has first to take it up, appoints a committee to examine and report upon it. These committees or commissions are appointed as the occasion arises,—there being no standing committees,—by the President of the House and the *scrutateurs*; constituting together what is called a *bureau*. These *scrutateurs*, four in the National Council and two in the Council of States, are elected every session from the members of their respective Houses; and it is also their duty to determine and to announce the result, whenever a vote is had, either by ballot, division, or *viva voce*; they occupy an elevated position to the right of the President. On the submission of a committee's report, the bill is discussed, and ultimately either passed with or without amendments, or rejected. If passed, it goes to the other House, where a similar process is undergone. When passed by both Houses it becomes law, and is published as such by the Federal Council in the *Feuille fédérale Suisse*; subject, however, to the *Referendum*, if duly demanded. The Federal Council, in publishing a law, decree, or resolution not subject to the *Referendum*, fixes the date when it shall go into force, if this is not done in the text of the bill. Generally, this date is the day of publication. For all measures liable to the *Referendum*, what is termed *délai d'opposition* is named, being a period of three months, during which the appeal to the popular vote can be demanded. In case of no appeal being taken, the law goes into force after the expiration of the three months.

The daily sittings of the Assembly open at eight o'clock in the morning during the June session, and nine o'clock during the December session; the adjournments are usually from one to two o'clock P.M. The sessions never extend beyond three weeks. It requires from the federal treasury a small

sum to defray the entire annual cost of the Assembly. In the legislative appropriation bill for 1889 the following sums were provided for the compensation of the two Houses of the Assembly: *Ständerath*, salaries and mileage of committees, 10,000 francs; salary and mileage of translator, 3000 francs; service, 2500 francs; total, 15,500 francs; *Nationalrath*, salaries and mileage of members and members of committees, 200,000 francs; translator, 3000 francs; service, 3000 francs; total, 206,000 francs. So the entire outlay of the country for its legislative department for the year was 221,500 francs, or about \$44,000; one thousand dollars less than is annually paid to nine members of Congress.

One in visiting the chambers of the Assembly is much impressed with the smooth and quiet despatch of business. The members are not seated with any reference to their political affiliations. There are no “filibustering,” no vexatious points of order, no drastic rules of “clôture,” to delay or ruffle the decorum of its proceedings. Interruptions are few, and angry personal bickerings never occur. There are no official stenographers, or *verbatim* reports made of the proceedings; press reporters represent only the local papers and furnish a very meagre synopsis of the daily business. The small gallery set apart for the public is rarely occupied. “Leave to print” or a written speech memorized and passionately declaimed are unknown; there are none of these extraneous and soliciting conditions to invite “buncombe” speeches or flights of oratory for the press and the gallery. The debates are more in the nature of an informal consultation of business-men about common interests; they talk and vote, and there is an end of it. This easy colloquial disposition of affairs by no means implies any slipshod indifference, or superficial method of legislation. There is no legislative body where important questions are treated in a more fundamental and critical manner. The members of the National Council stand up to speak, while those of the Council of States speak from their seats. The tri-lingual characteristic of the country is carried into the Assembly; and within a brief visit to either House, different members may be heard to speak successively in German, French, and Italian. If the presiding officer of either House is a German and cannot speak French, his remarks are immediately repeated by a French official interpreter who stands at his side; and with a President who is French and cannot speak German the process is reversed. The members from the Italian Cantons, as a rule, understand French or German sufficiently not to require special translation into their tongue. All bills,

reports, resolutions, and laws are published in the three languages. The Swiss have been as successful in reconciling the difficulties of diverse dialects in the federal legislature as in the harmonious union of Cantons. It was a serious obstacle in the way of the union, when the legislature of the kingdom of the Netherlands, founded in 1814, had three different languages spoken in its Halls,—Dutch, Flemish, and French. This was considered to foreshadow the disruption in 1830, as it intensified every prejudice and difficulty. The *personnel* of the Assembly is grave and sedate, dignified and serious. A large majority of the members are past middle age,—men of education, culture, and experience in public life. Many of them have held office first in their Communes and then in their Cantons. It is curious that, in a country where it is hard to find the court-house or a lawyer's sign, one-fourth of the members of the Assembly report themselves as *advokats*; next in number come merchants, then farmers, physicians, bankers, and professors. One-third are given as incumbents of various other cantonal and communal offices. It is very common for a person to fill at the same time a federal, cantonal, and communal office, where the duties do not conflict and belong to the same general class. This is regarded as both simplifying and cheapening the public service. The very dress of the members, in its severe sombreness and uniformity, bespeaks the stable and serious bent of their minds. Scarcely the change of a cravat would be required for the entire body to appear at a funeral *de rigueur*. The oath administered to the members of the Assembly is calculated to emphasize the high and sacred trust assumed. It runs thus: "I swear, by God the Almighty! to maintain the constitution and the laws of the Confederation, faithfully and truly to guard the unity, power, and honor of the Swiss nation, to defend the independence of the Fatherland, the freedom and rights of the people, and its citizens in the whole, to fulfil conscientiously all duties conferred upon me, as truly, as God blesses me." In taking this oath the member stands with his right hand uplifted, the thumb and first two fingers extended, indicating the Trinity.

The members of the Assembly practically enjoy a life-tenure; once chosen a member, one is likely to be re-elected so long as he is willing to serve. Re-election, alike in the whole Confederation and in the single Canton, is the rule; rejection of a sitting member, a rare exception. Death and voluntary retirement accounted for nineteen out of twenty-one new members at the last general election. There are members who have served continuously since the organization of the Assembly in 1848. Referring to

this sure tenure of officials generally, the President of the Confederation, in a public address, said, "Facts and not persons are what interest us. If you were to take ten Swiss, every one of them would know whether the country was well governed or not; but I venture to say that nine of them would not be able to tell the name of the President, and the tenth, who might think he knew it, would be mistaken." To some extent this remarkable retention of members of the Assembly may be ascribed to the fact that the people feel that they are masters of the situation through the power of rejecting all measures which are put to the popular vote. The position of a member is haloed with dignity, and is not a place sought from material motives, a perquisite more than an honor. The absence of this fiscal view of the office of the legislator brings in its train an equal absence of the "rotation" notion. The Assembly is not made up on the theory of mutation or by agencies more malign. Some are fond of declaring against the caprice and ingratitude of the people, says Mr. Freeman in his "Growth of the English Constitution," and of telling us that under a democratic government neither men nor measures can remain for an hour unchanged. The spirit which made democratic Athens, year by year, bestow her highest offices on the patrician Pericles and the reactionary Phocion, still lives in the democracies of Switzerland, in the *Landsgemeinde* of Uri, and the Federal Assembly at Bern. The ministers of kings, whether despotic or constitutional, may vainly envy the sure tenure of office which falls to the lot of those who are chosen to rule by the voice of the people. Grote, who wrote his "History of Greece" in Switzerland, stated that his interest in the Swiss Cantons arose from the analogy they presented to the ancient Greek states; and specially as confirming the tendency of popular governments to adhere to their leaders with the utmost tenacity of attachment.

Corruption at the polls, civic jobbery, the declension of legislative character, the greed for official pelf,—these evils are not restricted to any people or country. An imperfect answer as to the cause and remedy is difficult; a complete answer is impossible. Some of these evils are connected with political problems that are vexing our epoch in every state and country where constitutional government and a liberal suffrage prevail. Switzerland, with a government so adequate for a simple people and small country, appears to have firmly resisted the impact of these political ills. Service in the federal legislature is accepted from a sense of patriotic duty; neither emolument nor self-aggrandizement being an element of its

membership worthy of consideration. The election of deputies to the Swiss Assembly is an event which creates no violent commotion or even general interest in the great body of the people. A large majority of the candidates are unopposed; there is no opportunity for bribery to sap the public *morale*, or any field for the unscrupulous plying of the disgraceful artifices and incidents which too often mark a hotly-contested election in the United States. An election, general or local, is not an occasion of bustle or clamor, turbulence or revelry; there are no processions, no party badges, no music, no “pole-raising,” probably not a speech, and no candidate present when the exercise of this important privilege is going on. It is an affair of deliberation and decision, of sobriety and wisdom. The electors themselves feel that they are called upon to exercise a serious and elevating duty; the solemn and deliberate act of choosing men to govern the destinies of a civilized and enlightened people. It may be that the Swiss elections, being held on Sunday, and the polls often in the churches, in part contribute to inspire the elector with respect for himself, for the character which he has to sustain, and for the institution in which he thus bears an honorable part. It is feared that the suggestion of such a remedial agency in the United States would be regarded by our churchmen as *ægrescit medendo*. The excitement attending the popular elections in the United States as now conducted is in the main of a vicious and degrading character. Instead of infusing into the hearts of the people a spirit of patriotism, leading them to value the blessings of the government under which they live, it infuses little but rancor and malignity; giving an opportunity for the indulgence of vicious passions which are born but do not die with the emergency; evolving the gross, vulgar morality which, provided you do no injury to a man’s person or possessions, sees nothing in your conduct towards him to condemn; which is near-sighted to the turpitude of slander and misrepresentation directed against him, and blind to the iniquity of needlessly invading a man’s private life; a morality which is incapable of comprehending that one source of happiness ought to be as sacred from wanton encroachment and disturbance as another; and that visible property is not the only thing which can be purloined or invaded. These evils are being submitted to, without any strenuous effort to remove them, as if they were not a mere excrescence, but formed an integral or essential part of the system, which they deform and debase.

There can scarcely be said to be any party alignments in the Swiss Assembly. It is comparatively free from the “offensive partisanship,”

“pernicious activity,” and system of party organization and activity which flourish in the United States with exuberant and, in some respects, ominous vigor. While nominally three political divisions exist in the Swiss Assembly, the Right, Centre, and Left, the accepted general classification reduces them to two, Radicals and Conservatives. The main line of separation is the same perplexing issue running through all political history, the rivalry between the state and nation, one seeking to minimize, the other to magnify the sphere of the central government. The Radicals are those who seek to give the broadest interpretation to the constitution, so as to enlarge the field of federal authority. The Conservatives are jealous of every encroachment upon the traditional prerogative of the Cantons, and desire to restrict and confine the limits of federal action. The Radicals are the most numerous, commanding an absolute majority in both the National Council and the Council of States. Within these two broad divisions there are many different shades that separate on questions of a social, religious, and economic character. Then these grand and subdivisions have an entirely different significance, as applied to federal or cantonal questions; a Radical as to the one, may be a Conservative as to the other. The Radical and Conservative of the Canton of Vaud is by no means the same as the Radical and Conservative of the Cantons of Zurich and Aargau; the Radical of Geneva is very different from the Radical of St. Gallen. The two parties are not distinguished from each other by any systematic respect or disrespect for cantonal independence. So the purely political question between privilege on one side and the sovereignty of the people on the other is one of subordinate moment; the former does not find expression in any party formula. It is an error to estimate the character and tendencies of the Swiss parties by the names which they bear, Radical and Conservative, in the light of the footing these names have obtained in every language in Europe, and the strong feelings of esteem or hatred associated with them. As such they are nowise fully correct designations of the political divisions, prominently opposed in Switzerland, and of the points at issue between them. It is not true that the Swiss Radical desires over-centralization to the extent of unitary government; but, with the Conservative, holds to the great theory of local self-government as founded upon these propositions; that government is most wise, which is in the hands of those best informed about the particular questions on which they legislate; most economical and honest when in the hands of those most interested in preserving frugality and

virtue; most strong when it only exercises authority which is beneficial in its action to the governed. There is a feeling common to the population of every Canton and Commune, which puts all idea of any party advocating one concentrated system out of the question. Madison says, "An extinction of parties necessarily implies, either a universal alarm for the public safety, or an absolute extinction of liberty." Political parties perform functions of the greatest possible importance; through their organizations is fulfilled that obligation which is incumbent upon every citizen of a republic, to give an earnest, careful, and habitual attention to the conduct of government. Parties are the exponents and representatives of the great issues that constantly arise in every free community. By the discussions that arise between them public opinion is formed, the people educated in their political rights, a due sense of citizenship generated and fostered; they are a great centripetal force in every system of home-rule government.

The strong attachment to party, with its resultant full crop of political dissension, in the United States has at the same time awakened a zeal for turning the powers of government to profitable public account, and a sensibility to the exposure of wrong or abuse, which manifest themselves in a thousand beneficial ways. "It is one of the advantages of free government," declares Sir James Mackintosh, "that they excite sometimes to an inconvenient degree, but upon the whole, with the utmost benefit, all the generous feelings, all the efforts for a public cause, of which human nature is capable." Switzerland, in the legislative branch of her federal system, gathers together a body of men remarkable for that generous and patriotic impulse which moves noble minds to sacrifice private interests to the public good, and that public spirit that is the sense of duty applied to public affairs; none of the cowardly and unpatriotic sentiment expressed in the speech of Cato, "when vice prevails and impious men bear sway, the post of honor is a private station." With a Swiss, the post of honor is always the post of duty, and the call of duty is loudest from the public service, and secures the ready response of the best citizens. Nowhere does popular government rest upon a firmer foundation of public spirit and the willing and active interest of the people.

CHAPTER IV.

THE FEDERAL COUNCIL.

Bundesrath; Conseil fédéral.

The three main forms of executive embrace the hereditary and irresponsible king, with or without a responsible ministry; the single responsible president; and the executive council. The most typical examples of these are: the constitutional monarchy of England; the Presidency of the United States; and the Federal Council of Switzerland. Or, there may be said to exist four chief ways in which parliamentary government is worked.

First, that of England, where the executive is the primary and the legislature the ultimate source of power; the English ministers have the right of initiative, but they cannot remain in office without a majority in the House of Commons.

Second, the German plan, where the ministers are solely dependent upon the Crown, but cannot spend money without parliamentary sanction.

Third, there is the constitution of the United States, under which the functions of both branches are clearly defined; the Cabinet being excluded from Congress, and Congress having no control over it, further than the confirmation of its members by the Senate.

Fourth, the Swiss system, wherein the executive is as great a departure from the precedent of the United States, and has produced something at least as widely different from the President of the United States, as he differs from an European king. The Swiss constitution provides no executive head, in the sense of that of the President of the United States; there is practically no such functionary. The Swiss executive has, in fact, none of the functions that are given to the President of the United States, as an independent power in the State, making him as truly the representative of the sovereign people as Congress itself. Andrew Jackson, indeed, habitually prided himself on the privilege of representing the masses; and the use of the veto by the President is in most cases highly popular, for through it the President is expected to counterbalance the power of the legislature.

Not until 1833, was there any project of reform in Switzerland looking to a special federal executive, apart from all the cantonal governments. Previously, the federal executive authority was not vested in any special magistrate or council, but exercised by the council of one or the other of the three directing Cantons, as explained in the "Introduction." This had of course the inconvenience, among many others, of causing the employment of federal authority to be more or less guided by the politics actually prevalent in each of the three directing Cantons. Up to 1848, the legislative and executive power were vested in the same body. Switzerland, in its federal character, having never known a personal head of any kind, when the old weak Diet was changed into a real federal government, it naturally limited the executive power far more than it is limited in the United States; and the powers left to the executive were no less naturally intrusted, not to a President, but to a council. Unwilling to trust the executive power to any single man, it was placed in the hands of a council of seven. It may be called an impersonal executive. There is nothing about it to invite the homage of those whose chief object it is to find something to abase themselves before; its walks cannot be recorded in a court circular; it holds no drawing-rooms or levées; it pays no one the honor of a visit, and no one has the honor of being invited to visit it in return. A legislature chosen for a fixed term, which cannot be dissolved before the end of that term, chooses an Executive Council, for the term of its own existence. To such a body no scrap or rag of royal purple can hang; and it completely refutes the notion that the executive power of a republic is simply a shadow of kingship, a mere transfer from a life and hereditary tenure to an elected and limited term. The organization, powers, and duties of the Federal Council are defined by the constitution in the following provisions:

1. The supreme direction and executive authority of the Confederation shall be a Federal Council, consisting of seven members.

2. The members of the Federal Council are chosen by the Federal Assembly for the term of three years, from among all Swiss citizens eligible to the National Council. But not more than one member shall be chosen from the same Canton. After every general election for the National Council, the Federal Council shall also be integrally renewed. Vacancies which occur in the course of the three years are filled, for the rest of the term, at the ensuing session of the Federal Assembly.

3. The members of the Federal Council shall not during their term of office hold any other office, either in the service of the Confederation or of a Canton, or follow any other pursuit, or exercise a profession.

4. The Federal Council is presided over by the President of the Confederation. There is also a Vice-President. The President of the Confederation and the Vice-President shall be chosen, for the term of one year, by the Federal Assembly from among the members of the Council. The retiring President is not eligible either as President or Vice-President for the year ensuing. The same member may not hold the office of Vice-President for two consecutive years.

5. The President of the Confederation, and the other members of the Federal Council, shall receive an annual salary from the federal treasury.

6. A quorum of the Federal Council consists of four members.

7. The members of the Federal Council have the right to take part in the discussions, but not to vote in either House of the Federal Assembly; and also the right to make motions on any matter under consideration.

8. The powers and the duties of the Federal Council, within the limits of this constitution, are particularly the following: It directs federal affairs conformably to the laws and resolutions of the Confederation: it shall care that the constitution, federal laws and ordinances, and also the provisions of the federal concordats be observed: it shall take the necessary measures for their execution either on its own initiative or upon complaint, so far as the decision of such affairs has not been vested in the Federal Tribunal. It takes care that the guarantee of the cantonal constitutions is enforced. It proposes bills and resolutions to the Federal Assembly, and gives its opinions upon the propositions sent to it by the Federal Assembly or the Cantons. It executes the federal laws and decrees, the judgments of the Federal Tribunal, as well as the compromises or decisions in arbitration on questions of dispute among the Cantons. It makes such appointments as are not intrusted to the Federal Assembly, Federal Tribunal, or other authority. It examines the treaties made by the Cantons with one another, or with foreign countries, and approves them, if proper. It watches over the external interests of the Confederation, especially in all international relations, and shall, in general, have charge of foreign affairs. It protects the external safety, and the independence and neutrality of Switzerland. It protects the

internal safety of the Confederation, and the maintenance of its peace and order. In cases of urgency, and when the Federal Assembly is not in session, the Federal Council shall have authority to raise the necessary troops and employ them, with the reservation that it shall immediately call the Federal Assembly together, if the number of men called out shall exceed two thousand, or if they remain in arms more than three weeks. It has charge of the federal army affairs and all other branches of administration which belong to the Confederation. It examines those laws and ordinances of the Cantons which must be submitted for its approval; it exercises supervision over those branches of cantonal administration that are placed under its control. It administers the finances of the Confederation, introduces the budget, and submits a statement of the accounts of federal income and expenditure. It supervises the conduct of all the officials and employés of the federal administration. It submits to the Federal Assembly at each regular session a report of its administration, and a statement of the condition of the Confederation, internal as well as external; and recommends to its attention such measures as in its judgment are desirable for the promotion of the common welfare. It also makes special reports when the Federal Assembly or either branch thereof requires it.

9. The business of the Federal Council is distributed by departments among its members. This distribution has the purpose only of facilitating the examination and despatch of business; every decision must emanate from the Federal Council as a body (a single authority).

10. The Federal Council and its departments are authorized to call in experts on special subjects.

In the exercise of several of its most important functions the action of the Federal Council is essentially judicial. This is conspicuously so in its right to examine the agreements made by Cantons among themselves or with foreign governments; and to judge of their conformity with the federal constitution. Under the name of “administrative law,” it passes in a judicial capacity upon the validity of numerous cantonal laws and ordinances, such as school affairs, freedom of trade and commerce, patent rights, rights of settlement, freedom from military service, rights of religious bodies, validity of cantonal elections, votes, etc. But there is no efficient instrumentality for the enforcement of the decrees of the Federal Council against the Cantons in these cases. If a Canton adopts a measure which the

Council on appeal holds to be unconstitutional, and it declines to conform to the Council's order, the latter has no direct way of enforcing it. The two methods of coercing a refractory Canton, so far tried, have been,—to send a special agent to negotiate with the cantonal authorities, and should his efforts fail, to quarter troops and the expense of their maintenance upon the offending Canton, until it yields; the other method is to keep back from the Canton subsidies which are to be provided for local purposes from the federal treasury. Both of these methods have been found efficacious. The Federal Council retains, however, under all circumstances, a very affectionate, if not reverential, tone in its communications to the Cantons, addressing them as “Faithful and dear confederates,” and closing, “We embrace this occasion, faithful and cherished confederates, to commend you with ourselves to divine protection.”

The Federal Council exercises wider discretionary authority, in the matter of arrest, of temporary imprisonment, of expulsion from the territory, and the like, than seems inferable from the terms of the constitution. A recent decree of the Federal Council forbade public exhibitions of magnetism and hypnotism. Wherever there is discretion there is room for arbitrariness, and in a republic, no less than under a monarchy, discretionary authority on the part of the government means insecurity for legal freedom on the part of the citizen. The Swiss constitution apparently is more democratic than that of the United States, from the fact that it does not vest the veto in any official; yet in the amount of authority which is allowed to the executive power over the citizen it is less democratic. Every legislative measure passes under the inspection of the Federal Council before action by the Federal Assembly; and the measures adopted by the Assembly are promulgated by the Council, signed both by the President of the Confederation and by the Chancellor, the ministerial officer of the Council; no doubt, in all cases, two signatures are safer than one.

The Federal Council, rather than to take the initiative, sometimes, by means of a suggestion from itself, is requested to present to the Assembly a measure; in this event a rejection of the measure would not be regarded by the Council in the light of a defeat. During the recesses of the Assembly the federal Councillors, at the head of committees designated by the Assembly or with expert commissions, meet in different parts of the country, to consider subjects that are to be brought before the Assembly. The bills are

then prepared, which, with full and careful explanatory reports, are published in the official journal and carried by the newspapers to every corner of the Confederation. They are discussed by the people, and when the Assembly meets it is ready to take action with but little, if any, debate by the prompt enactment of these recommendations into law, the chief to whose department the subject-matter appertains being present, when it is taken up in the Assembly, to give any further information that may be desired.

All Swiss citizens eligible to the National Council are declared to be eligible to the Federal Council. But practically the qualification of a federal Councillor is *prior* membership of the National Council. Primarily the selection of federal Councillors is always made from among the members of the National Council; and by a strange custom invariably observed with only one exception since 1848, they are again triennially returned to the National Council from their respective districts while still serving as federal Councillors, and with the full knowledge that within a few days after the convening of the Federal Assembly they will be again chosen by that body for a new term in the Federal Council. This necessitates supplementary elections to fill the vacancies created in the Assembly. Again, at every recurring election of the National Council, one of the sitting members from each district wherein a federal Councillor resides, must make room for this temporary appearance of the federal Councillor in the National Council, as a condition precedent to his re-election. The sitting members cheerfully yield to this exigency, conscious that they are standing aside for a mere *locum tenens*, and in no wise imperilling the ultimate return to their seats, after a traditional custom has been accommodated. One district has of late years disregarded this custom, declining to go through the empty form of electing to the National Council the federal Councillor residing there, and whose re-election as federal Councillor is conceded. This one obdurate district may, by persisting in its course, be the means of the final overthrow of a practice, which at present involves a double election for six seats every three years at considerable expense and trouble: and apparently incapable of any intelligent explanation. Like many customs, it has simply taken root without any inquiry, and propagates itself without any opposition. A partial explanation may be discovered in the desire to preserve the identity of the federal Councillor with his Canton, and as a renewed declaration that he continues to enjoy the confidence of, and is in accord upon questions of

public policy with, that local constituency which in all probability he served for many years in the National Council, before his promotion to the Federal Council. A federal officer holding his office directly from the Federal Assembly, and at the same time invested with the popular confidence of a local constituency equally with the other members of that assembly, presents a most remarkable assertion of local political autonomy in a purely national affair.

Originally these federal Councillors, when during their term elected to the National Council for the purpose of re-election to the Federal Council, took their seats in the former when it convened, and exercised all the functions of a member, yet concurrently holding their portfolios in the Federal Council for an unexpired term. This twofold service continued until their re-election for a new term took place, when they resigned their seats in the National Council, and resumed the single service of federal Councillors. It is related that one member of the Federal Council, some years since, only secured re-election by means of his own vote during his transition service as above described in the National Council. Of late years the exercise of these dual rights and privileges incident to this most singular condition of things, while not in violation of any law, has been regarded with disfavor, and the federal Councillors, during the few days of their membership triennially in the National Council, confine themselves to the privileges and rights that attach to a Councillor.

The geographical assignment of the members of the Federal Council is well established by an unwritten law, which is faithfully observed; a well-established usage in the election of the Federal Council assigns one member to each of the Cantons of Bern, Vaud, Zurich, and Aargau, and St. Gallen or Thurgau, then one each to the Catholic and Italian Swiss. The constitutional inhibition of the choice of more than one member from the same Canton may be regarded as a restriction that limits the choice without any adequate counter-benefit; it may exclude from the government statesmen of high merit, and thus diminish the resources of the state.

The members of the Federal Council can be and are continually re-elected, notwithstanding sharp antagonisms among themselves, and it may be between them and a majority in the Assembly. They also continue to discharge their administrative duties, whether the measures submitted by them are or are not sanctioned by the voters. The rejection of measures

approved and proposed by them does not necessarily injure their position with the country. The Swiss distinguish between men and measures. They retain valued servants in their employment, even though they reject their advice. They retain in the service Councillors whose measures the voters nevertheless often refuse to sanction. Valuing the executive ability of these men, still they may constantly withhold assent from their suggestions.

The Council substantially in its present form came into existence with the Constitution of 1848; the first election of its members taking place in November of that year. The election, therefore, which occurred on the 13th of December, 1887, was the fourteenth triennial renewal of the Council, and covered a period of thirty-nine years. During this period the complete roster of the members embraces only twenty-seven names; even this small ratio of change resulted in seven cases from death, and eleven from voluntary retirement; leaving only two who failed to be re-elected on the avowed ground of political divergence. This most remarkable conservatism on the part of the Assembly, in retaining the members of the Council by repeated re-elections, has survived important issues of public policy, including several revisions of the constitution, upon which there was a wide diversity of opinion in the Council; some of whom actively participated in the discussions, antagonizing the views of a majority of the Assembly; the Assembly to which they owed their election and upon which they relied for their retention in office. Their periodical re-election, though seemingly *pro forma*, carries with it a salutary sense of accountability. This sure tenure of service in the Federal Council makes those chosen look upon it as the business of their lives. Without this permanence attached to the position, such men as now fill it could not be induced to do so. They are men trained to vigorous personal and intellectual exertion, who often surrender pursuits yielding a much more profitable return. Precariousness of tenure in responsible positions discourages one from engaging in those measures of long-sighted policy or those plans of necessarily slow accomplishment, in which he might be so shortly interrupted, and his labors rendered abortive and unavailing. Political science, the science of wise government, is perhaps that department of intellectual exertion which requires the greatest powers of mind and the intensest application. Its facts are multifarious and complicated, often anomalous and contradictory, and demanding the guidance of clear perceptions. Its principles are many of them abstruse, and to be developed by long and close processes of reasoning; and the

application of these principles requires the sagacity of quick observation and long experience. It is a business which requires as long and arduous preparation as any profession which can be named; and as entire devotion to it, with freedom from all other serious or momentous occupation, when its duties are once undertaken, as the calling of a lawyer, a physician, a merchant, or an engineer. One chief reason why there are so many needless, blundering, crude, mischievous, and unintelligible actions in public life, is that men have not dedicated themselves to its requirements as a separate study or profession; but have considered it to be a business which might be played with in their hours of leisure from more serious pursuits.

A member of the Federal Council cannot, during his term, “occupy any other office in the service of the Confederation or a Canton, or follow any other pursuit, or practise any profession.” He devotes his entire time and attention to his department, and not a mere casual, intermitting, and brief attention; or merely giving the refuse of his time and abilities in passing judgment on what others have devised and executed. He is obliged to attend to the routine, the detail, and all the technical niceties of its daily administration.

The salaries paid to these distinguished officials are not relatively higher than the wages of the people at large; and are very insignificant when compared with the compensation accorded for like services in other countries. Each of the seven members receives an annual salary of 12,000 francs or \$2316; the President of the Council is given 1500 francs additional, making his salary \$2605. This increase of salary to the President is made under the head of “expenses of representation,” understood to mean entertainments and kindred purposes devolving upon this official. The entire annual appropriation made for the maintenance of the executive department will not exceed \$17,000.^{[36](#)}

The business of the Federal Council is distributed among seven departments, as follows:

1. Foreign Affairs.
2. Interior.
3. Justice and Police.
4. Military.

5. Finance and Customs.

6. Industry and Agriculture.

7. Posts and Railways.

Each one of these departments is presided over by one of the Councillors. When the Council is integrally renewed by the Assembly there is no designation or assignment of any department; the members are simply chosen as federal Councillors, and make the apportionment among themselves; and an agreeable understanding has always been reached. According to the constitution this departmental division is only “to facilitate the examination and despatch of business; all decisions must emanate from the Council as a whole.” Regular Council meetings are generally held twice a week. A decision is not valid unless at least four members are present, and no decision can be reversed except by four out of the seven, in a session attended by more than four. The Councillor presides over his department, conducting it much as an ordinary Secretary would under a cabinet system. In theory, each is responsible for all, and all are responsible for each. There is no question of rank, each department is of equal dignity.

The *Bundespräsident*, or President of the Confederation, is merely the chairman for a year of the Federal Council. He is only the chief of the executive; he is not himself the whole of it, and therefore can hardly be called the executive chief of the nation. His commission as President simply enhances his dignity, and does not confer upon him any additional power or responsibility. The other members are his colleagues, not his mere agents or advisers; he is only *primus inter pares*. He has no appointive power or patronage, no veto, no right of even nomination to any position. Not a single Swiss official at home or abroad is disturbed by the annual change in the executive head. Few republics have invested a single magistrate with such large powers as the President of the United States; few commonwealths have given a nominal chief magistrate so small a degree of power as belongs to the Swiss President. He is not a chief magistrate. He is chief of a board, which board, in its collective capacity, acts as chief magistrate. The central authority in Switzerland, since the birth of the republic, has always been vested in a committee; and a committee it is to-day. The small addition to the salary, giving audience for letters of credence and recall from diplomatic representatives, precedence on state and

ceremonial occasions, and the right to be addressed as “*Son Excellence*,” about exhaust the special privileges, power, and dignity of the President of the Confederation. He is just as accessible to the public as any of his colleagues. He has no guards, no lords in waiting, no liveried ushers, no gewgaws and trappings. You may go to his official quarters with as little ceremony as you may call on a private citizen. The stranger may knock at the door and the chief magistrate of the Confederation bids him to come in. The new President enters upon the discharge of his duties on the 1st of January, following his election.³⁷ There is no formal or public installation, no demonstration, civic or military. The newly-elected President repairs to his modest chambers in the federal palace at noon, where alone he receives all who desire to call and pay their respects. This opportunity is availed of very little beyond the members of the diplomatic corps, who are expected to tender their congratulations personally and on behalf of the governments they represent. The writer was told by a colleague, who had been recently transferred to Bern from a post with an elaborate court, that on the announcement of the death of the Swiss President he donned his full diplomatic uniform to go and tender his official and personal condolence to the bereaved family. With considerable difficulty he found the executive mansion in apartments on the third floor of a building of a modest street. There being no *portier*, he rang the bell at the street entrance and ascended the stairs. Reaching the floor of the apartments he was met at the door by a woman who was wiping her mouth with the corner of her apron, evidently having been disturbed in a meal. She invited the diplomat in, and receiving the card, to his surprise, instead of leaving the room to deliver it, she invited him to be seated and opened the conversation. He soon discovered that she was the widow of the deceased President, and a woman of good education, force, and character. All the organs of the Swiss government have an unassuming and civic appearance, retaining in a degree the wisdom, moderation, and simplicity of their ancient manners; those who are invested with high trusts are ever ready and willing to retire to complete equality with their fellow-citizens, from the eminence of civil or military station to which their talents and the call of their country have raised them. There is nothing of pomp and majesty; the soil is too natural for the artificial forms of court diplomacy. The manly consciousness of freedom which creates and finds expression in the constitution elevates the middle classes who form its

chief support; while the direct or indirect contact with public affairs develops the intelligence and strengthens the character of the citizen.

In its organization and practical workings, the Swiss executive is claimed by some to be modelled after a better pattern than that of the United States, in so far as escaping the great quadrennial contests, and the passions, ambitions, and disappointments born of them constituting, as more than once illustrated in the past, the greatest national peril.

Previous to 1888, the President of the Confederation *ex officio* became chief of what was called "The Political Department," including the conduct of foreign affairs. A reorganization was found to be advisable, and, being formulated by the Federal Council and approved by the Federal Assembly, came into force on the 1st of January, 1888. Under this rearrangement of portfolios "Foreign Affairs" is placed on a new and separate footing and no longer falls to the President of the current year. This new department retains what belonged to the "Political Department," with the exception of the former presidential functions. It is charged also with the management of commerce in general, with work preparatory to the negotiation of commercial treaties, and co-operation in drawing up the customs tariff; also with matters relating to industrial property, copyright, and emigration; and covering all the more important relations of Switzerland with foreign countries. It is the uniform practice for the Vice-President to succeed the President. In this way every member of the Federal Council in turn becomes President and Vice-President once during each septennial period.

Belonging to different political parties, the Councillors frequently antagonize one another on the floor of the Assembly, but this is not found to interfere with their harmonious working as an administrative body. The right of the members of the Federal Council to participate in the debates and make motions in the Federal Assembly, gives that body, what the Congress of the United States has not, the advantage of a direct ministerial explanation. Yet that ministerial explanation cannot be, as it may be in England, mixed up with fears of votes of censure on one side or of a penal dissolution on the other. Irremovable by the existing Assembly,³⁸ with the question of their re-election dependent on an Assembly which is not yet in existence, they have less need than either American or English statesmen to adapt their policy to meet any momentary cry. Is it not a most excellent political system? Is not this relation between the legislature and the

executive, both in theory and practice, happily devised? It brings a quick and close communication between these two great branches, and tends to promote a good understanding between them. Elected by the Assembly, coming into office along with it, there is every chance of the Council acting in harmony with it; and their power of taking a share in the debates at once enables the Assembly to be better informed on public affairs. There is much in the Swiss experiment to refute the belief that there can be no executive power proper, unless it derives its authority from an independent source, and is made directly by the people, so it may claim to be equally representative of the people, and to have received still greater proof of the public confidence. The choice of the executive by the legislative body may be susceptible to the objection that it fails to furnish the limit and restraint that each of these powers should exercise on the other; and that it is entitled to be regarded as only a *Cabinet d’Affaires*,—a purely administrative committee. The history of the Swiss system has developed no unusual dissensions between these powers, and none are likely to occur. With the legislature governed as a rule by motives of public utility, there is little room for want of harmony with the executive, the simple function of which is to carry into effect the measures which the legislature has decreed.

The present Federal Council of Switzerland is composed of men of high order of ability, instructed by education and disciplined by experience. They are men of crystalline integrity, trained familiarity with the duties of their post, and profoundly patriotic in motive. Among all the changes and complications of late years, no government in Europe in its executive action has displayed a higher degree of practical wisdom than the Federal Council of Switzerland. It acts with sterling good sense and moderation, the result in a great measure of that slow and cautious temperament which has ever marked the Swiss character; traits which perhaps may be traced back to the privations and distress through which, during a long course of years, they struggled to the attainment of a dear-bought independence. It presides over the national interests in an equitable and impartial spirit, dealing wisely and temperately with the people without encroachment or oppression, and, if we may judge from the insignificance of their emoluments, without desire of advantage. The Councillors move in the surest way, both to the attainment and preservation of power, through the medium of those qualities which secure the esteem and gain the confidence of the people. The people, on the other hand, behold with content and satisfaction the absence of all selfish or

ignoble purpose in the labors of the Councillors; and sacrifice all factious opposition and interference to the public benefit which they know to be identified with the vigor, stability, and welfare of the government. It is not too much to say that in the Federal Council of Switzerland an honest attempt is made to follow the wise admonition of Cicero in his "Offices:" "Those who design to be partakers in the government should be sure to remember the two precepts of Plato; first, to make the safety and interest of their citizens the great aim and design of all their thoughts and endeavor without ever considering their own general advantage; and, secondly, to take care of the whole collective body of the republic so as not to serve the interests of any one party to the prejudice or neglect of all the rest; for the government of a state is much like the office of a guardian or trustee, which should always be managed for the good of the pupil, and not of the persons to whom he is intrusted."

There has been some movement to change the mode of appointment to the executive power of the Confederation. Like other human things, it is not absolutely ideal in its working. The relations between the executive and judicial departments are not what they should be, though much better than they were at the beginning of the constitution. Yet, on the whole, the working of the Swiss executive during the forty-two years of its trial has been such that it need not shrink from a comparison with the working of either of the two better known systems. The fact of the Council being not directly chosen by the people is claimed by some to be inconsistent with the "democratic theory." Surely it is not wise to exchange at the bidding of a certain abstract doctrine a system which has worked well for so long, for one which is not certain to work better, and which might work a great deal worse. By many constitutional students the actual form of the Swiss executive is looked on as the happiest of the political experiments of the present half century. It seems to have escaped both some of the evils which are incident to kings and some of the evils which are incident to presidents. It seems more wisely planned, in all events for the country in which it has arisen, than those forms to which we are better accustomed.

CHAPTER V.

THE FEDERAL TRIBUNAL.

Bundesgericht; Tribunal fédéral.

The Swiss Federal Tribunal, in its present form, dating from 1874, was originally set up in 1848. It is, however, the product of an historical development extending over nearly six hundred years, and the history of this period only will explain the exact meaning of the carefully-balanced and guarded phrases which describe its jurisdiction. Previous to 1848 there existed two methods for peaceably settling disputes among members of the Confederation,—*friendly remonstrance* and *arbitration*.

1. *Friendly Remonstrance*.—This was the plan adopted in the two earliest treaties of alliance, those of 1291 and 1315. In both cases there were only three parties to the treaty,—Uri, Schwyz, and Unterwalden,—and the object was to settle disputes between neighbors, and in a friendly and informal way. The “Witan,” or wise men, met together to heal the quarrel according to the rules of equity and right. If either party refused to accept their decision, the other confederates were to enforce obedience.

2. *Arbitration*.—This first appeared in 1351, when Zurich joined the League. It became more common as the number of the confederates increased, and was the method employed when friendly remonstrance failed, and when war was not declared. The arrangement as to the place of meeting, the number and the method of choosing the arbitrators, and other details, varied according to the stipulations contained in the various treaties by which each Canton had been admitted into the Confederation. The number of arbitrators was usually fixed at two for each party, and, in case of disagreement, they selected an impartial foreman or umpire; “the question of the choice of the foreman,” says a contemporary historian, “was unquestionably the main point in the whole system of the Courts of Arbitration, for, generally, he was the only real and impartial judge.” This method was substantially the only one employed from 1351 to 1798. During the existence of the Helvetic Republic, there was established a Central Judiciary along with a Central Executive and Legislature. It

consisted of a member and an assistant, nominated by each Canton, one-fourth being renewed annually. It had original jurisdiction over the members of the executive and of the legislature, and in criminal cases involving the penalty of death or of imprisonment and banishment. It acted as a Court of Appeals in civil matters, when the decisions of the inferior courts were invalid by reason of want of jurisdiction, whether through informality or violation of the constitution. This court practically subsisted under Napoleon's Act of Mediation, set up in 1803. With the partial restoration of things in 1815 to the *status quo ante* 1798, came naturally the restoration of the arbitration system, with reference to which the most elaborate regulations were laid down in the Federal Pact. This codification legally subsisted till 1848. A revision was attempted in 1832, when, after the Paris Revolution of 1830, more liberal ideas began to assert themselves in Switzerland, but it failed through the opposition of the Conservatives. The Reformers, however, were successful in 1848, and by the constitution adopted that year, a Federal Court was created, with jurisdiction in civil and criminal cases, and also a limited jurisdiction in cases where rights guaranteed by the constitution were alleged to have been infringed; *provided* that the Federal Legislature referred such cases to it. The court consisted of eleven judges and eleven substitutes, elected by the Federal Assembly for a term of three years. The president and vice-president of the court were appointed by the same body annually. Another attempt at revision was made in 1872, by which the functions of the court as an interpreter and upholder of rights guaranteed by the federal and cantonal constitutions would be very much extended, but it was rejected. There was an appeal on questions of public law to the Federal Council, from which there was a further appeal to the Federal Assembly. If the two chambers agreed, the decision was final; if they disagreed, the decision of the Federal Council prevailed. This system was found unsatisfactory, as a large part of the time of the chambers was occupied in the discussion of mixed questions of law and politics. When the Constitution of 1874 was adopted, this and many other defects were in a measure remedied.

The fourth or last division of Chapter II. of the Swiss constitution, "Federal Authorities," is devoted to the Federal Tribunal, and declares:

1. There shall be a Federal Tribunal for the administration of justice so far as it belongs to the Confederation. There shall be, moreover, a jury for

criminal cases.

2. The members of the Federal Tribunal and their alternates shall be chosen by the Federal Assembly, which shall take care that all three national languages are represented therein. The organization of the Federal Tribunal and of its sections, the number of its members and alternates, and their terms of office and salary shall be determined by law.

3. Any Swiss citizen who is eligible to the National Council may be chosen to the Federal Tribunal. The members of the Federal Assembly or Federal Council, or officials appointed by those authorities, shall not at the same time belong to the Federal Tribunal. The members of the Federal Tribunal shall not during their term of office hold any other office, either in the service of the Confederation or any Canton, nor engage in any other pursuit, nor practise a profession.

4. The Federal Tribunal shall organize its own chancery, and appoint the officials.

5. The judicial authority of the Federal Tribunal shall extend to civil cases:

(a) Between the Confederation and the Cantons.

(b) Between the Confederation on the one part and corporations or private persons on the other part; when such corporations or private persons are the plaintiffs, and when the amount involved is of a degree of importance to be fixed by federal legislation.

(c) Between Cantons.

(d) Between Cantons on the one part and corporations or private persons on the other part upon the demand of either party, and where the amount involved is of a degree of importance to be fixed by federal legislation. It further has jurisdiction in suits concerning the status of persons not subjects of any government (Heimathlosen), and conflicts between Communes of different Cantons respecting the right of local citizenship (*droit de cité*).

(e) The Federal Tribunal shall, moreover, decide other cases upon the demand of both parties to the suit, and when the amount involved is of a degree of importance to be fixed by federal legislation.

(f) The Federal Tribunal, with the aid of juries to pass upon questions of fact, shall also have jurisdiction in criminal cases:

(1) Involving high treason against the Confederation or rebellion or violence against the federal authorities.

(2) Involving crimes and misdemeanors against international law.

(3) Involving political crimes and misdemeanors which are the cause of the result of such disturbances as call for armed federal intervention.

(4) Involving charges against officials appointed by a federal authority upon the application of the latter.

(g) The Federal Tribunal further has jurisdiction:

(1) Over conflicts of jurisdiction between federal authorities on the one part and cantonal authorities on the other part.

(2) Disputes between the Cantons involving questions of public law.

(3) Complaints concerning violations of the constitutional rights of citizens, and complaints of private citizens on account of the violation of concordats or treaties. Conflicts of administration are reserved and are to be settled in a manner prescribed by federal legislation. In all the forementioned cases the Federal Tribunal shall apply the laws passed by the Federal Assembly, and those resolutions which have a general import. It shall in like manner conform to all treaties which have been ratified by the Federal Assembly.

(h) Besides the cases mentioned, the Confederation may by law place other matters within the jurisdiction of the Federal Tribunal; in particular, it may give to that court powers for securing uniformity in the application of all federal laws passed in accordance with provisions of the constitution.

In 1874, within one month after the new constitution came into force, the Federal Assembly passed a very elaborate law relating to the Federal Tribunal. The jurisdiction of the court was extended to:

1. Cases of expropriation for the construction of railways and other works of public utility.

2. Questions between the Confederation and railway companies, and the winding up of the latter.

3. Cases which by the constitution or the legislation of a Canton are intrusted to its competency, when such cantonal provisions have been approved by the Federal Assembly.

As a Court of Appeals under the same federal law it sits:

4. In cases where federal laws have to be applied by Cantonal Tribunals, and the amount of the matter in dispute is 3000 francs at least, or cannot be estimated; where either party appeals from the judgment of the highest Cantonal Court (by agreement the parties can make the appeal directly from the lower Cantonal Court, without going to the Cantonal Court of Appeal). It also decides in cases of extradition, when the demand is made under an existing treaty, in so far as the application of the treaty is questioned; it settles boundary questions between two Cantons, and questions of competence between the authorities of different Cantons. In questions of jurisdiction between the Federal Court and cantonal authority, or as to whether it should be settled by a court of arbitration, the Tribunal itself decides as to its own competence. In cases where questions between Cantons or between a Canton and the Confederation come before the court, they come on reference from the Federal Council. If the Council decides negatively as to whether a matter ought to come before the court, the Assembly has the final determination on the point.

This general organizing act of 1874 fixes the number of members of the court and the alternates; their terms of office, salaries, and other details. The number of judges is reduced from eleven to nine, and the court shall never contain, at any given time, two or more persons from the same family; the term is extended from three to six years. The president and the vice-president are to be elected by the Federal Assembly from among the judges, for the term of two years. The salaries are fixed at 10,000 francs a year for the judges; 11,000 francs for the president (or chief justice), and from 6000 to 8000 francs for each of the secretaries. There must be two secretaries at least, one from German-, the other from French-speaking Switzerland; both must speak German and French, and one also Italian. They are chosen by the court by ballot, and for a term of six years. The assistant judges or alternates receive twenty-five francs a day when serving, and a fixed travelling allowance. These assistant judges only sit in the place of the judges who are prevented for some reason from sitting in person. The judges and the secretaries when away from the seat of the court on official

business are paid fifteen francs a day additional, and a travelling allowance. The vacations of the court must not exceed four weeks in the year; but either the president or vice-president must always remain at the permanent seat of the court. Temporary leave of absence may be granted to the members of the court and to the secretaries. The judges (but not the assistant judges) are required to reside where the court is fixed. In cases of elections and in civil and constitutional causes, seven judges form a quorum, and the number present must always be uneven (apparently because the president has no casting vote). A judge, ordinary or assistant, cannot sit when his relatives of blood, or by marriage in an ascending or descending line, or collaterals up to and including cousin-german or brother-in-law, are in any way interested in the case. A judge is similarly disqualified from sitting, when the affairs of his wards are under consideration, or in a case in which he has taken any part personally as federal or cantonal official, or judge, or arbitrator, or counsel; or in affairs relating to an incorporated company of which he is a member; or when his Commune or Canton of birth is a party; or when a suit is brought against the executive or legislature of his Canton of birth. A judge of either kind, ordinary or alternate, may be objected to by a party to a suit, if the said judge is an enemy of or dependent on one of the parties; or since the institution of the suit, as a member of the court, has expressed his opinion on it; but the Federal Court as a whole must be accepted by the parties. If by reason of such objections there are not enough members to form a quorum, the chairman selects by lot from among the presidents of the Supreme Cantonal Courts a sufficient number of "extraordinary assistant judges," *pro hac vice*. The act designates three thousand francs as the minimum amount for "degree of importance" to give jurisdiction in cases where a money value must be fixed by federal legislation.

All members and officials of the court must be bound by oath to fulfil the duties of their respective offices; the oath to be administered to the judges in the presence of the Federal Assembly. This oath may be taken by a "*Handgelübde*," or raising of the hand, in the case of persons objecting on conscientious grounds to take an oath. The court is to sit and give judgment in public; this does not apply to the juries or to preliminary inquiries. The president settles the order of business and maintains order in court; being empowered to imprison disobedient persons for twenty-four hours; and in extreme cases to fine up to a hundred francs and to imprison up to twenty

days. Every year the court must submit an account of the business transacted by it to the Federal Assembly, which has a right to criticise any act of the court, but can alter only by a federal law any of its decisions of which it may disapprove. The officials of the court have the right of transacting in any Canton, without asking leave of the cantonal authorities, all business which falls within their jurisdiction. Each judge is permitted to deliver opinions in his own dialect. Another federal law regulates with great detail the costs of the court, which are defrayed out of the federal treasury, and likewise the fees which are to be paid by parties to the suits. In the exercise of the criminal jurisdiction the court goes on a circuit. For this purpose the Confederation is divided into five assize districts. One of these districts embraces French Switzerland; a second, Bern and surrounding Cantons; a third, Zurich and the Cantons bordering upon it; a fourth, central and part of east Switzerland; and the fifth, Italian Switzerland. The court annually divides itself for criminal business into three sections; a Chamber of Accusation and a Criminal Chamber, each composed of three judges and three alternates, and a Court of Criminal Appeal (*Tribunal de Cassation*), with five judges and five alternates. Sentences are only valid when the court consists of five members. The Criminal Chamber decides at what places in the several districts assizes shall be held. The localities selected furnish at their own cost places of meeting. The cantonal police and court officials serve as officers of the court. The court elects every six years, to hold for the whole term of the court, two "Judges of Inquest" (*Untersuchungsrichter*), who are charged with the preparation of cases. The federal assizes are composed of the Criminal Chamber and a jury of twelve, elected in the Cantons by the people, and drawn by lot from the list of the district in which the assizes are to be held. There is one juror for every one thousand inhabitants in the first four districts as above given; and one for every five hundred in the fifth district. With certain exceptions, every citizen having the right to vote in federal matters is eligible as a juror. The exemptions are: those of the full age of sixty, those whose names were placed on the previous list of jurors, and those who are incapacitated by sickness or infirmity. The names of all the jurors of the district are placed in an urn, and fifty-four are drawn by lot. The *Procureur-général* or states-attorney, appointed by the Federal Council for the case, has the right to challenge twenty and the accused also twenty; the remaining fourteen are summoned, and two of this number are selected by lot to act as substitutes

in case of need. In order to acquit or condemn a prisoner there must be a majority of at least ten out of the twelve; otherwise, a new trial must take place with another jury. These federal assizes are of rare occurrence, the last one being at Neuchâtel in 1879, when an anarchist was condemned for a crime against international law (instigation to the assassination of sovereigns).

The power of the court in the matter of claims for violation of rights of citizens has been exercised with much latitude. The most usual and proper cases arising under it are: infringements of the federal guarantee to the citizen of equality before the law, of freedom of settlement, of security against double taxation, of liberty of the press, etc. But the court has gone much beyond these; its jurisdiction has been extended to the hearing of complaints against cantonal authorities, for ordinary alleged failures of justice, such as could hardly have been contemplated by the constitution. It has even taken jurisdiction of cases where the appellant asserts a denial of his claim by a cantonal judge, grounded upon merely obstructive motives or an arbitrary application of the law.

The Constitution of 1874 had as one of its chief objects the strengthening of the federal judiciary; and by statutes, enacted in pursuance of the constitutional authority given to the Federal Assembly to place other matters within the competence of the court, there have been transferred generally to it the appeals heretofore made from the Federal Council to the Federal Assembly. There is no purpose to entirely exclude the legislative branch from judicial action; for the constitution, in dealing with the Federal Tribunal, expressly provides that “administrative” cases are reserved to the Assembly; and the act of 1874 defined the jurisdiction of the Federal Council and Federal Assembly, under this reservation, to embrace disputes respecting public primary schools of the Cantons, liberty of commerce and trade, rights of established Swiss, religious disputes relating to matters of public law, questions as to the calling out of the cantonal militia, consumption taxes and import duties, exemption from military service, and the validity of cantonal elections and votes. In all these cases an appeal lies from the Federal Council to the Federal Assembly. Thus a wide field of judicial action is withheld from the sphere of the court, and upon questions which do not appear to possess any “administrative” character; producing a division of functions which is very anomalous. There has always existed in

Switzerland a very strong current of opinion, that the court should be occupied exclusively with questions of public law, and should possess no jurisdiction in matters of private law. The Federal Tribunal has no officers of its own to execute its judgments; but its judgments, as well as the decrees of courts of arbitration in intercantonal conflicts, are executed by the Federal Assembly; and the Federal Assembly in turn is obliged to resort to cantonal machinery for the purpose of doing this; so that, in fact, these judgments finally are executed by the cantonal authorities.

The Federal Tribunal had no permanent seat from 1848 to 1874, and met in different places. In 1874, by action of the Federal Assembly, Lausanne was chosen for its permanent location; the Canton of Vaud, in consideration of this honor, erected and presented to the Confederation a *palais de justice*, the most elegant and commodious public building in Switzerland.

No professional qualification is required for eligibility to the Federal Tribunal; any Swiss citizen eligible for the lower branch of the Federal Assembly may be elected to the Tribunal. There is no qualification for any federal office in Switzerland higher than that for a member of the *Nationalrath*, or lower House of the Federal Assembly. Any vote-possessing Swiss, twenty years of age (except a naturalized citizen, who must wait for five years after his naturalization), may be President of the Confederation or president of the Federal Tribunal,—*i.e.*, chief justice of the Confederation. It naturally occurs that there should be some better guarantee for the depth of knowledge and solidity of judgment necessary for the intelligent consideration and discreet determination of the responsible duties attached to these high positions, and which can be the result of nothing but the thought and experience of more mature years. Certainly in high judicial life there should be a tact, a ripeness, and a nicety of judgment, an intuitive apprehension of the relations of things, and a wisdom, which age indeed does not always bring, but which age alone can bestow.

The courts in Switzerland have no place in the political government of the country. The Federal Tribunal does not simply owe its existence to the Federal Assembly, but is constitutionally forbidden to pass upon the validity of the acts of its creator. It is not empowered to judge of violations of the constitution, or to keep the legislature within the limits of a delegated authority, by annulling whatever acts exceed it. According to the Swiss

theory, the legislative department wields supreme power; is the sole judge of its own powers; and if, therefore, its enactments conflict with the constitution, they are nevertheless valid, and must operate *pro tanto* as modifications or amendments of it. The legislature is deemed to have the right of taking its own view of the constitution. Its utterance is the guide for the court, which is always subordinate to it, and bound to enforce every law passed by it.³⁹ How different from the authoritative position of the courts in the United States, where there is no department of the government in which sound political views are more valuable than in the judiciary. No lawyer can be found with the requisite strength of mind and character to make a good judge on the Supreme Bench who is not a man of clear, well-defined, and vigorous political opinions. The interpretation of the more difficult legal problems calls for the application of those fundamental principles of government upon which the great parties are founded. In the history of the United States, parties have been broadly characterized by their attitude towards the constitution. Their greatest victories have been won in the decisions of the Supreme Court, as each in turn has been represented there, and has impressed its views upon the decisions of the judicature. Marshall, Taney, Chase, are the names which stand as the high-water marks of the juridic-political history. De Tocqueville, referring to the Supreme Court, says, "That the peaceful and legal introduction of the judge into the domain of politics is perhaps the most standing characteristic of a free people." The Supreme Court of the United States is universally regarded as the most perfect instance of a court exercising the office of guardian and interpreter of the constitution. It must not be forgotten that, as such, it came into existence only under the second constitution; previous to 1787, it was a mere committee of appeals, the judges appointed directly by Congress, and dependent on it, or on its indirect action. To-day it is the pivot on which the constitutional arrangements of the country turn. It determines the limits to the authority, both of the government and of the legislature; its decision is without appeal; completely filling the idea held by some writers, that federalism implies the predominance of the judiciary in the constitution. It is a tribunal which can set aside a law of Congress, and enjoin the executive from proceeding, when it is satisfied that either law or proceeding is contrary to the constitution. It spurns the warning of Lord Bacon to his ideal judge, in consulting with the king and the state, "to remember that Solomon's throne was supported with lions on both sides; let them (the

judges) be lions, but lions under the throne, circumspect, that they do not check or oppose any point of sovereignty.” Such power no other tribunal in any country of the world possesses. No other country has a court whose power is absolute to thwart, even the present will of the nation, by declaring it out of harmony with a fundamental law adopted a century ago. Caleb Cushing thus addressed the Supreme Court: “You are the incarnate mind of the political body of the nation. In the complex institutions of our country, you are the pivot upon which the rights and liberties of all government and people alike turn; or, rather, you are the central light of constitutional wisdom around which they perpetually revolve.” The question of the court being identical with or independent of the legislature of the supreme or federal government, and the separation of the legislative and the judicial functions of government, is strongly set forth in No. 78 of the “Federalist,” written by Alexander Hamilton:

“Some perplexity respecting the rights of the courts to pronounce legislative acts void, because contrary to the constitution, has arisen from an imagination that the doctrine would imply a superiority of the judiciary to the legislative power. It is urged that the authority which can declare the acts of another void, must necessarily be superior to the one whose acts may be declared void. There is no position which depends on clearer principles, than that every act of a delegated authority, contrary to the tenor of the commission under which it is exercised, is void. No legislative act, therefore, contrary to the constitution, can be valid. If it be said that the legislative body are themselves the constitutional judges of their own powers, and that the construction they put upon them is conclusive upon the other departments, it may be answered, that this cannot be the natural presumption, where it is not to be collected from any particular provisions in the constitution. The interpretation of the laws is the proper and peculiar province of the courts. A constitution is, in fact, and must be, regarded by the judges as a fundamental law. It must therefore belong to them to ascertain its meaning, as well as the meaning of any particular act proceeding from the legislative body. If there should happen to be an irreconcilable variance between the two, that which has the superior obligation and validity ought, of course, to be preferred; in other words, the constitution ought to be preferred to the statute. Nor does the conclusion by any means suppose a superiority of the judicial to the legislative power. It only supposes that the power of the people is superior to both; and that

where the will of the legislature declared in its statutes, stands in opposition to that of the people declared in the constitution, the judges ought to be governed by the latter, rather than the former. They ought to regulate their decisions by the fundamental laws, rather than by those which are not fundamental.”

Jefferson apprehended encroachments by the Supreme Court, and declared that it had the power “to lay all things at its feet.” This alarm proved to be unfounded, and Mr. Jefferson himself, when the court in his judgment passed beyond the undoubted limits of its authority, did not hesitate to disregard the opinion of Chief-Justice Marshall, that it was the duty of his secretary to deliver a judicial commission which had been signed by his predecessor.⁴⁰

To many the Supreme Court in its inception seemed the weakest of the three departments; and it is doubtful if either Madison or Hamilton, both of whom expected the court to exercise the power of declaring laws unconstitutional, appreciated the mighty force passing into the hands of the hitherto subordinate power. The judiciary act of 1789 provided for a review in the Supreme Court of cases where the validity of a State statute or of any exercise of State authority should be drawn in question on the ground of repugnancy to the constitution, treaties, or laws of the United States, and the decision should be in favor of the validity.⁴¹ Though in the line of natural development, and previous to the convention of 1787, asserted in New Jersey, Virginia, Massachusetts, New York, and North Carolina, the exercise of the full measure of this power in constitutional law presents an interesting study in the history of the national and State governments. A resolution was introduced in Congress in 1824 (Letcher, of Kentucky), so to amend the judiciary act as to require more than a majority of the judges to declare a State law void; and in 1830 an attempt was made to repeal that section of the act, but it failed by a vote of one hundred and thirty-seven to fifty-one. The doctrine of a co-ordinate judiciary met with violent opposition in some of the States, notably in Ohio in 1805, and in Kentucky in 1824 (“old court and new court” struggle), and in the State of Pennsylvania as late as 1843. This power to disregard the acts of the legislature and declare them null and void because contrary to the supreme law of the constitution has been a source of endless wonder to foreign students of the American system. In speaking of it, Sir Henry Maine says,

“There is no exact precedent for it, either in the ancient or in the modern world.”⁴² It is a new and original idea in political science, introduced and applied exclusively in the courts of the United States. The elevation of the judiciary to equal rank with the executive and the legislature was the outgrowth of a natural process of political evolution through a written constitution and a federal system of government. Kent, in referring to the case of *Marbury vs. Madison*, writes: “The power and duty of a judiciary to disregard an unconstitutional act of Congress or of any State legislature were declared in an argument approaching to the precision and certainty of a mathematical demonstration.”⁴³ The power was never seriously questioned in the federal courts after that clear and conclusive opinion, and it was gradually established in all the States.

The Swiss Federal Tribunal, as a copy, is neither so consistent with sound theory, nor so safe in practice, as its prototype in the United States. The two systems meet by very different devices the problems peculiar to federalism, and especially as concerns the interpretation of the fundamental pact, or articles, or constitution, on which the union rests. In the United States, this function is performed in the last resort by the Supreme Court, and there is perhaps no other part of our system which has extorted more admiration from foreign critics than this exalted prerogative of the judiciary. But the Federal Tribunal of Switzerland is a body of much more limited power and far less dignity. Even its jurisdiction is determined in part by the laws rather than by the constitution. In short, this tribunal appears as a mere instrumentality of the other organs of the government, and not, like the United States Supreme Court, a mediator between them, or even a superior above them. The statesmen of Switzerland felt that a method fit for the United States might be ill-fitted for their own country, where the latitude given to the executive is greater; and the Swiss habit of constantly recurring to popular votes makes it less necessary to restrain the legislature by a permanently enacted instrument. The Swiss constitution itself almost precludes the possibility of encroachment upon its articles by the legislative body. When the sovereign power can easily enforce its will, it may trust to its own action for maintaining its rights; when, as in the United States, the same power acts but rarely and with difficulty, the courts naturally become the guardian of the sovereign’s will expressed in the articles of the constitution. The right to declare laws void is not regarded throughout

Europe generally as judicial in its character, and hence has not been intrusted to the courts; this may furnish a partial explanation of the incompetence of the Swiss court in that respect. The Federal Tribunal has been much improved since it was originally set up, and will doubtless, with the decay of unreasonable jealousy of the central government on the part of the Cantons, approach more and more closely the Supreme Court of the United States, of which it is an avowed copy, so far as Swiss political traditions and prejudices would permit in 1848 and 1874. It rests with the Federal Assembly to determine by statutes the particular questions which shall be submitted to the court; these have already been greatly extended, and the court will ultimately be given a still more independent and influential position. The essence of judicial power consists not in judging, but in laying down the law, or, according to the Roman expression, not *in judicio*, but *in jure*. The purity of justice, the liberty of the citizens, have gained by the change, and government has not lost in security. Judicial power should be removed as far as possible from all warping influence. It should be the great defender of established order against the legislative and executive departments of government. Its relation to the law-making and the law-executing powers is peculiarly delicate and important. There is need that some other power, not political, removed from the struggles of the present, having no ends of its own to answer in the future, should have the function to decide what is the meaning and application of a law; and whether there is any positive conflict between a new one and a received one, or between a new one and a constitution. This should be a power able to watch over the constitution, and prevent invasions of it. The highest court can exercise this guardianship better than any other board of control that can be devised. The power of the judiciary, under certain conditions, to pronounce upon the constitutionality of the laws is “a security to the justice of the state against its power.”⁴⁴ The supreme power of the court becomes the servant of the federative principle, which as a mediator between opposing forces is pre-eminently a principle of justice. The decision is now national, now in favor of the state, and thus, through interpretation, the constitution is developed, and the two forces have as free play in the judicial as in the more strictly political action.

We speak of three co-ordinate branches and of their working, each in a separate and defined province; and yet, as must of necessity be the case in human affairs, the lines of demarcation are not always clear, and unless

confusion is to be endless, a power must exist somewhere to determine the limits of the separate provinces, and to decide controversies in regard to them. The power to do this has been confided under the system of the United States to the courts, in accordance with the principles of the common law, if not by the express provisions of the constitution. To the United States Supreme Court is confided the duty of deciding questions involving the limitations of the different branches of the government. It diminishes the danger of collision between the different political bodies among which power is distributed, because these bodies are not brought into direct contact, but act each in its own way directly on the people; the courts regulating conflicts of authority as they arise. The peace, the prosperity, and the very existence of the Union are invested in its hands; the executive appeals to it for assistance against the encroachments of the legislative power, and the legislature demands its protection from the designs of the executive; it defends the Union from disobedience of the States, and the States from the exaggerated claims of the Union, the public interests against the interests of private citizens, and the conservative spirit of order against the fleeting innovations of democracy. This form of government, with the immense power it gives to the courts, could not exist among a people whose reverence for law and submissiveness to its mandates were not very great, and would not be possible, moreover, if it did not rest on a popular basis.

CHAPTER VI.

THE CANTONS.

Prior to the year 1798, the condition of a Swiss Canton was that of a great feudal lord, with an aggregate of many separate seigniorial properties; acquired partly by conquest, partly by purchase. In the town Cantons, such as Bern, Basel, and Zurich, the town was the lord, and the country districts were attached to each as dependent properties. In the rural Cantons, such as Uri and Schwyz, it was an aggregate of democratic communities, which exercised lordship over other dependent communities in their neighborhood. The conquered districts, instead of being created into new Cantons, remained subject, in some cases to individual Cantons, in others to associations of Cantons for their members jointly. In the rustic communities the government was a pure democracy; in the cities it was tempered with a small mixture of aristocracy. Each Canton had a separate coinage, its batzen and rapps, kreutzers and schillings, sous and centimes, that would not pass beyond its frontier.⁴⁵ Each Canton had its own agents accredited to foreign powers. Each Canton kept a custom-house, and manned a tower at every bridge, at which each load of grass, butt of wine, sack of corn, and pound of cheese that passed the boundary was taxed. Every Canton was a distinct body, independent from any other, and exercising the sovereign power within itself; looking upon the rest as mere allies to whom it was bound only by such acts to which it had consented, and when any new thing not comprehended in this agreement happened to arise, each Canton retained the power of determining the matter for itself. The idea that the minority of Cantons was bound by the decision of the majority took root slowly, and internal affairs depended for settlement on remonstrance and mediation. They were kept together by the peculiarity of their topographical position, by their individual weakness, by their fear of powerful neighbors, by the few sources of contention among a people of such simple and homogeneous manners, and by their joint interest in their dependent possessions. The conditions of the country and of its society contributed to divide instead of to unite the different Cantons. Mountains and lakes separated them into almost distinct nationalities; they were peopled by different races, with

differences of language, religion, customs, industries, material interest, and social development,—more than a hundred parcels of territory, each having its separate history, and in many cases a far greater difference between the inhabitants than between the people of Maine and Texas, of Massachusetts and California, for they were a polyglot people without a community of language, to which, as a cohesive force, nothing can compare, especially in a democratic state governed by opinion expressed through universal suffrage. Many were the difficulties and dangers through which the Cantons had to struggle to break up this system and overcome these causes of dissension. This was gradually accomplished by the principles of confederation, judiciously and temperately applied to the circumstances of the country.

The Swiss Cantons of to-day have very much the political organism of the United States. They are sovereign in so far as their sovereignty is not limited by the federal constitution; and as such they exercise all the rights which are not delegated to the federal government. The Cantons are units of a federal state, possessed within certain limits of independent and supreme power. The Swiss constitution, after guaranteeing to the Cantons their sovereignty, their territory, their constitutions, etc. (as pointed out in the chapter on the constitution), again and again reverts to the rights, powers, and duties of the Canton with that remarkable detail which characterizes the text of that instrument in everything it touches. These cantonal provisions are, viz.:

1. The Cantons have the right to make conventions among themselves upon legislative, administrative, or judicial subjects; in all cases they shall bring such conventions to the attention of the federal officials, who are authorized to prevent their execution if they contain anything contrary to the Confederation or to the rights of the Cantons. Should such not be the case, the respective Cantons may demand the co-operation of the federal authorities in their execution.

2. By exception, the Cantons preserve the right to conclude treaties with foreign powers, respecting the administration of public property, and border and police intercourse; but such treaties shall contain nothing contrary to the Confederation or to the rights of the Canton.

3. Official intercourse between the Cantons and foreign governments or their representatives shall take place through the Federal Council. But the Cantons may deal directly with the subordinate officials and officers of a foreign state in regard to the subjects enumerated (in Section 2).

4. In the case of sudden danger of foreign attack, the authorities of the Canton threatened shall request the aid of other members of the Confederation, and shall immediately notify the federal government, without prejudice, however, to the action of the latter. The Cantons so summoned are bound to give aid. The expenses shall be borne by the Confederation.

5. In case of internal disturbance, or when danger threatens from another Canton, the authorities of the Canton threatened shall immediately notify the Federal Council, in order that it may take the necessary measures within the limits of its power, or may summon the Federal Assembly. In urgent cases the authorities of the Canton notifying the federal government of its action, may ask the aid of other Cantons, to which the latter are bound to respond. If the cantonal government is unable to call for aid, the federal authority, having the power, may, and if the safety of Switzerland is endangered shall, intervene without requisition. In case of federal intervention, the federal authorities shall take care that the provisions of the constitution guaranteeing the sovereignty of the Cantons be observed. The expenses shall be borne by the Canton asking the aid or occasioning federal intervention, except when the Federal Assembly otherwise decides on account of special circumstances.

6. In the cases mentioned (Sections 4 and 5), every Canton is bound to afford undisturbed passage for the troops. The troops shall immediately be placed under federal command.

7. The Cantons may require proofs of competency from those who desire to practise the liberal professions; federal legislation may provide for certificates of competency valid for the whole Confederation.

8. Cantons, under the supervision of the Confederation, shall enforce the federal laws relating to weights and measures.

9. Every citizen of a Canton is a Swiss citizen. As such (after furnishing evidence of his right to vote) he can take part at his place of residence in all

federal elections and votes. No one shall exercise political rights in more than one Canton. Every Swiss citizen shall enjoy where he is domiciled all the rights of the citizens of the Canton, as also all the rights of the citizens of the Commune. He shall, however, have no share in the common property of the citizens or of the corporation; nor shall he exercise the right to vote in matters pertaining purely to such affairs unless the Canton by legislation has otherwise provided. In cantonal and communal affairs he gains the right to vote after a residence of three months. The cantonal laws relating to the right of Swiss citizens to settle outside the Cantons in which they were born, and to vote on communal questions, are subject to the approval of the Federal Council.

10. No Canton shall expel from its territory one of its own citizens, nor deprive him of his rights, whether acquired by birth or settlement (*origine ou cité*).

11. Every Swiss citizen shall have the right to settle at any place within Swiss territory, if he possesses a certificate of origin or some similar paper. In exceptional cases the right of settlement may be refused to, or withdrawn from, those who, in consequence of a penal conviction, are not entitled to civil rights. The right of settlement may, moreover, be withdrawn from those who, in consequence of serious misdemeanors, have been repeatedly punished; and also from those who become a permanent charge upon public charity, and to whom their Commune or Canton of origin refuses adequate assistance after having been officially asked to grant it. In Cantons where the system of local relief obtains, the permission to settle, if it relates to natives of the Canton, may be made dependent on the condition that the parties are able to work, and have not hitherto been a permanent charge upon public charity in their previous place of residence. Every expulsion on account of poverty must be approved by the cantonal government, and previous notice given to the government of the Canton of origin. A Canton in which a Swiss establishes his domicile shall not require security nor impose any special obligations for such establishment. Nor shall the Commune in which he settles require from him other contributions than those which it requires from its own citizens. A federal law shall fix the maximum fee to be paid the registration office for a permit to settle.

12. Persons settled in Switzerland shall, as a rule, be subjected to the jurisdiction and legislation of their domicile in all that pertains to their

personal status and property rights. Federal law shall determine the application of this principle, and shall also make the necessary regulations to prevent double taxation of a citizen.

13. A marriage contracted in any Canton or in a foreign country, according to the laws there prevailing, shall be recognized as valid throughout the Confederation.

14. The Cantons by law shall provide against all abuse of the freedom of the press, but such legislation shall be subject to the approval of the Federal Council.

15. Citizens shall have the right to form associations, so far as they are not, either in their purpose or methods, illegal or dangerous to the state. The Canton by law shall take the measures necessary for the suppression of abuses.

16. All the Cantons are bound to treat the citizens of the other confederated states like their own citizens, both in their legislation and in judicial procedure.

17. Civil judgments, definitely pronounced in any Canton, may be executed anywhere in Switzerland.

18. The exit duty on property leaving one Canton for another (*Abzugsrechte; la traite foraine*) is hereby abolished, as well as rights of first purchase (*Zugrechte; droit de retrait*) by citizens of one Canton against those of another Canton.⁴⁶

19. The administration of justice remains with the Cantons, save as affected by the powers of the Federal Tribunal.

20. The Cantons may, by correspondence, exercise the right of initiative as to measures in either council of the Federal Assembly.

The duty of the federal government to intervene for the enforcement of its guarantee of the “constitutional rights of citizens” in the Cantons has been declared by the Federal Council in these words: “When complaints are made regarding the violation of the constitution in a Canton, and these are brought before the federal authorities, the latter become in duty bound to investigate them and to form a decision as to their foundation or want of foundation, and as to necessary further regulations. For the Confederation

guarantees the constitutional rights of the citizen as well as the rights of the authorities. The earlier articles of union also guaranteed the constitutions, but this guarantee was otherwise explained, and many complaints of unconstitutional proceedings and circumstances were raised and disregarded. It was desired that these should be no longer endured, and there was demanded an effective guarantee against violations of the constitution. Thus arose Article 5 of the federal constitution, which guaranteed with almost pedantic care the rights of the nation and the constitutional rights of the citizen. It would, in fact, be a remarkable relapse into the old view and order of things, a striking denial of the principles contained in Article 5, if we were to assume that, in case of a formally presented complaint, the federal authorities were free to interfere or not. We hold rather that in such cases the federal authorities are obliged to take up the complaints and render a decision regarding them.”

If a cantonal law violates the federal constitution or a federal law, the Federal Tribunal will declare it invalid; but in some cases recourse must be had to the Federal Council. The protection guaranteed by the constitution applies to disturbances of the peace within a Canton, to attacks of one Canton on another, or to a foreign attack. The appeal, as a rule, is to the Federal Council, exceptionally to other Cantons; with the existing facilities for communication with the Federal Council, aid is now demanded exclusively from that body. This feature in the relation of the general government to the Canton, and Canton to Canton, is very different from that of the United States to the State, and State to State. The State is more independent than the Canton of this external interference. It is not obliged to obey the summons of any other State for help; it has, in fact, no right to render any such aid. The government in the United States may not intervene even to preserve order in a State except on the request of the legislature or the executive of the State.

A special federal law enumerates the crimes for which one Canton may demand from another the extradition of criminals. It embraces both statutory and common-law crimes, and only stops at the limitation fixed by the constitution, which declares that extradition may not be rendered obligatory for political offences and those of the press. But extradition may be refused, in any case, of persons who have acquired citizenship, or who have settled in a Canton, when this Canton binds itself to try and punish the

accused according to its own law; or allows a sentence already pronounced in another Canton to be executed by its own officials.

The Cantons, not being limited by the terms of the federal constitution, are left sovereign in matters of civil law (except as regards the civil capacity of persons), the law of land, land rights, descent and distribution, criminal law, cantonal and local police, organization of the Communes, public works in general, organization of schools (within limits of the constitution), the conclusion of conventions with each other (called concordats), respecting matters of administration, police, etc. The changes introduced by the present constitution have had the effect to supplant many of the cantonal laws, often very dissimilar and conflicting, by federal laws applicable to the whole Confederation; establishing a uniformity upon many important relations between the citizens and the state. Revisions of the fundamental laws of the Cantons have been frequent; most of the cantonal constitutions are of a recent date. From 1830 to 1874 there have been twenty-seven total or partial revisions of the cantonal constitutions. In a large measure these were required to harmonize them with the federal constitution, first of 1848 and then of 1874. An amendment to a cantonal constitution becomes valid only when ratified by the federal authorities; no concrete case being necessary to test it,—the Swiss procedure to assure the supremacy of the federal constitution being political, not judicial. Cantonal constitutions present an infinite variety in their organisms and operations; but it will be sufficient to give the general features of one of the two distinctive types, the representative system; the other, the *Landsgemeinde* or open Assembly, composed of all the people possessing votes, is reserved for a separate chapter. In the Cantons of the representative system the legislative department consists of but a single house, called the Greater or Grand Council (*Grosser Rath*), and in a few of the Cantons known as the *Kantonsrath* or *Landrath*. The members are elected by direct popular vote, and, with few exceptions, by the secret ballot; from electoral districts and by *scrutin de liste*. The average representation is about one to every one thousand inhabitants. In a few Cantons, representation is not based upon the population, but is determined by the number of active citizens; and in the Canton of Luzern, the number of representatives is fixed by the constitution without any regard to the population, or provision for future reapportionment. Every vote-possessing citizen is ordinarily eligible for the Greater Council; the last vestiges of property-qualification having

disappeared. The Canton of Geneva limits eligibility to those who have attained their twenty-sixth year. In some Cantons functionaries salaried by the state are excluded. There is a curious diversity presented in the federal and cantonal age-qualification. A citizen of the Grisons attains political majority for cantonal electoral purpose at the age of seventeen, or three years before he can participate in federal elections. In the Canton of Geneva the citizen only attains his political majority for cantonal purpose at the age of twenty-one, or one year after he is a voter at federal elections; and a Genevese can be a member of the Federal Assembly or the federal supreme court or even President of the Confederation six years before he is eligible to his cantonal legislature.

The terms in the Greater Council vary from one year to five. In many of the Cantons the members receive no pay; the highest amount paid is in the Canton of Geneva, and it is only six francs for each day that there is a sitting. The Greater Council, besides drafting the laws and decrees, and interpreting, suspending, and repealing them, is ordinarily invested with legislative power over the organization of administrations; the supervision of the execution of the laws; the right of pardon; the ratification of cantonal agreements; the establishment of cantonal taxes and the mode of their collection; naturalization; ratification of loans contracted by the Canton; the acquisition and alienation of cantonal property; public buildings; the fixing of salaries and emoluments; the surveillance of the executive and judicial powers, and the settlement of conflicts of jurisdiction between these powers; the fixing of the annual budget; the appointment of the members of the Lesser or State Council, as well as the members of the Supreme Tribunal. In Geneva, Basel-rural, Zurich, and Thurgau, the members of the Lesser Council are elected directly by the people. This Lesser Council, which constitutes the executive power, is variously called, in the different Cantons, *Conseil d'État*, *Staatsrath*, *Standeskommission*, *Kleinerrath*. Originally it was quite a large body; but recent revisions of the cantonal constitutions have made a reduction in the number, and it now consists of from five to seven members, who distribute among themselves the different departments on the same system as that described of the Federal Council. The terms vary from two years to four. In some Cantons the members must be divided as far as practicable among the several electoral districts. In all the Cantons this executive power is collegiate,—that is, not vested in a single individual, but in a commission. Nowhere does the chief magistrate

hold the independent position of an American State governor, but, like the President of the Confederation, is mere chairman of the council. The salary paid the members of the executive council is from three to five thousand francs a year. This Council proposes laws and decrees to the Greater Council, and watches over the maintenance of public tranquillity and security, as well as over the execution of the laws, decrees, and regulations of the Greater Council. It administers the funds of the state; appoints those executive and administrative functionaries who are immediately subordinate to it, and watches over them; it has also the higher surveillance of the communal administrations, the poor, the schools, and the churches. The qualification for a member of the executive or Lesser Council is the same as that of the Greater Council; and in both instances it is uniformly limited to active citizens and laymen, and they are re-eligible without limit. The executive council in the larger Cantons is represented, in districts established for the purpose, by *Prefects*, or *Regierungsstatthalter*, or *Statthalter*, who, associated with two Councillors, compose a commission for many purposes. Although agents of the executive council, they are not always appointed by it, but sometimes by the Greater Council, and often directly by the people. The constitutions of most of the Cantons say that the legislative, executive, and judicial functions shall be kept distinct; yet in practice the line of demarcation is often ignored. The legislative bodies are given an important share both in the administration and interpretation of the laws. As in the federal, so in the cantonal constitutions, there is not to be found that delicate adjustment of the political forces, forming so conspicuous a feature in the national as well as in the State system of the United States; that great ingenuity and skill in the contrivances which prevent the different representative bodies from being mere fac-similes of each other, and at the same time preserve their equality in point of power.

A cantonal constitution usually opens with the declaration that the “sovereignty resides in the people as a whole” (“*auf der Gresammtheit des Volks beruhe*”); and then follows the further declaration that the people, by virtue of that sovereignty, “give it [the Canton] the following constitution;” also that this sovereignty is to be “directly exerted by the active citizens and only indirectly by the magistrates and officials;” that “the people exercise the legislative power in co-operation with the cantonal council” (referring to the right of *Initiative* and *Referendum*); and that in this “it is the duty of every citizen to participate.”

All the cantonal constitutions contain, in a more or less explicit and elaborate manner, provisions of this nature, viz.:

All citizens are equal in the eye of the law and enjoy the same civil rights; free expression of opinion by word or in writing; the right of association and of assembly is guaranteed, subject to no other restrictions than those of the common law; in libel suits, alleged defamatory publications must not only be proven to be true, but must appear to have been made from “honest motives and a righteous purpose;” house and home right inviolable; house-searching by an official vested with this power must be in advance carefully explained by the official, as to the reason for and the extent of the proposed search; innocent persons sentenced are entitled to restitution and just satisfaction from the state; father and son, father-in-law and son-in-law, two brothers, or two brothers-in-law cannot serve at the same time as members of the executive or judicial department; all citizens subject to taxation must contribute to the burdens of the state and the community in accordance with their respective means; small estates of persons disabled for work, as well as a sum absolutely necessary for support, shall be exempt from taxation; tax exemptions in favor of private persons or industrial companies forbidden; no new taxes on the consumption of any of the necessities of life to be levied; cantonal and district officers to receive fixed salaries, all fees going into the state treasury; organization and management of charity left to the community;⁴⁷ the state to make suitable contributions to lighten the burdens of poor communities, and especially to extend its influence and aid in the education of the children of the poor, improving the hospital service, and reforming the character and ameliorating the condition of the neglected and dissolute; to render assistance and facilities for the development of trades-unions based on the principle of self-help; to pass laws essential for the protection of the laboring classes; judicial sentences not to be set aside or modified by any legislative or administrative authority, except in so far as the pardoning power is vested in the cantonal council. There are also numerous provisions relating to church affairs and education, on parallel lines with those of the federal constitution, with the addition that the former includes the organization and management of the church communities which are exclusively under cantonal authority.

The Cantons are left quite free to organize their courts as they please; justice, in general terms, being administered by the Canton with recourse in specified cases to the Federal Tribunal. The cantonal judicial organization presents two well-defined courts: the district courts (*Bezirksgerichte* or *Amtsgerichte*), which are courts of first instance; and a supreme or appellate court (*Obergericht* or *Appellationsgericht*), which is the court of final instance. Some of the Cantons have justices of the peace; these are elected by the Communes for a term of six years, and have jurisdiction up to fifty francs. Either party to a suit, or the justice, may demand that two jurors elected by the casting of lots be summoned to assist in the trial. For the hearing of criminal cases, there is a trial in a few Cantons by a jury under the presidency of a section of the supreme-court justices, but in the others a special criminal court acts without a jury. In three of the large Cantons, Geneva, Zurich, and St. Gallen, there are special *Cassation* courts put above the *Obergericht*. Zurich and Geneva have also special commercial courts (*Handelsgerichte*). In many of the Cantons the supreme court exercises certain semi-executive functions, taking the place of a ministry of justice, in overseeing the action of the lower courts, and of all judicial officers, such as the states-attorneys. The courts make annual reports to the legislative council, containing a full review of the judicial business of each year, discussing the state of justice, with criticisms upon the system in vogue, and suggestions of reform. These reports are important sources of judicial statistics. The terms of cantonal judges vary from three to four and six years. The judges of the inferior courts are elected directly by the people; those of the supreme courts by the legislative council. In Bern the legislative council also elects the presidents of the district courts. No qualification for election to the bench is required except that of being an "active citizen." But invariably, to the higher courts at least, competent lawyers are chosen; and re-election is the rule. The district courts render final judgments on claims from fifty to two hundred francs. Either party to the suit has the right to demand that two district judges preside as associate judges. The district courts, consisting of a president and four judges, decide as of first resort, and the appellate chambers of the supreme court, as of second and final resort, all claims exceeding two hundred francs. The commercial court decides finally all claims exceeding five hundred francs, provided the defendant is entered in the commercial register. In proceedings before the district and commercial courts the claim is first submitted to a

justice acting as *propitiator*; he summons the parties for the purpose of effecting an amicable adjustment of their difficulties; if no agreement can be reached, a lawsuit permit is issued by the justice and handed to the plaintiff, which he in turn presents to the court. In a majority of cases the court proceedings are oral; only in exceptional cases, involving difficult and novel questions or intricate accounts, an order will be made for written preparatory proceedings. After the court hears an oral statement of the claim and the defence, it decides whether further evidence shall be produced, and issues an order setting forth what must be established by each party in the form of written testimony; and this must be presented to the court in an accurate and carefully-prepared form. The judgment of the court is first rendered orally, and written notice of the same given to the parties. When an appeal lies, it must be taken within ten days from the receipt of the above notice. In all cases the plaintiff must make a deposit to cover the costs, but the costs are to be finally paid by the party cast in the suit.

Under the constitutional provision, that final civil judgments rendered in one Canton are executory in any other Canton, sometimes a question arises as to the obligation of one Canton to carry out the decree of the court of another Canton. This question must be referred for final decision to the federal authorities. In only one Canton, that of Uri, is there a departure from the federal system, and there the cantonal courts have the power to declare invalid a cantonal legislative enactment.

Trial by jury, even for felony, does not universally exist in the Cantons. The substitution of a tribunal or judicial body instead of the unitary system, though claimed to be almost tantamount, is far from fulfilling the essential purpose of a jury. Knowledge, skill, and strict impartiality belong to the judge; common sense and common feelings to private individuals on a jury. The judge is deaf, blind, and inexorable, and knows only the law; the jury is under the influence of public opinion, or even of public prejudices, which must not be overlooked altogether, and for the sake of the law itself, of peace and good government. The jury is, in fact, a legislative as well as a judicial power, negatively at least, for deciding on law as well as on fact; they may and do silence the law when they please. Unforeseen cases occur sometimes where an undue advantage is taken of the law. The jury may suspend, in fact, its application until it is altered; in other cases, less uncommon, the strict application of the law would be directly in opposition

to public feelings and prejudices, to the extent of threatening popular violence and revolution. A judge cannot make the law bend to circumstances; government cannot yield without disclosing weakness and encouraging the factious; but the jury, being supposed to participate in these public feelings, may preserve the peace without disgrace, by a sort of innocent denial of justice. A jury of judges, as the silent part of the bench may be deemed, cannot be ignorant of the law, and would make themselves gratuitously contemptible if they pretended to participate in the feelings of the multitude. Besides the obvious use of juries as a check on judiciary proceedings for the safety of individuals, the institution is of high political importance. It is one of the hidden springs upon which the cumbrous machine of society is, as it were, suspended, and enabled thereby to sustain accidental shocks without coming to pieces.

There was abundant justification in the early cantonal criminal codes for the abolition, by the federal constitution, of capital punishment⁴⁸ and corporal pains. Many of the codes were not distinguished for justice, gentleness, or rationality. Nowhere were witches more relentlessly pursued than in some of the Cantons of Switzerland. The laws denouncing them were of Draconian severity. Stern were the ordinances and strange the customs of the older Cantons. In 1666 an entire family, mother, son, and daughter, were burned in Unterwalden for practising forbidden arts. No less than one hundred and fifty individuals were executed at Geneva, in a period of fifty years, during the seventeenth century, for the capital offence of witchcraft, denominated *lèse-majesté divine au plus haut chef*. The last execution for sorcery was in Glarus in 1782. So late as 1824 a man was racked in Zug, and in the archives of Obwald appears an entry, in 1840, of a payment of thirty francs to the executioner for beating a prisoner, who had proved refractory under examination, with rods, in the torture-chamber. The Swiss historian Müller relates that one Sak, at Bern, was sentenced to be whipped, and led out of the gate by the executioner, for returning from banishment, and if he returned again he should be drowned; also Hanns, the public executioner of Bern, was banished two miles from the jurisdiction of the town for having spoken immodestly to respectable men and women, and if he returned he should have his eyes put out. An inn-keeper of Bern, having procured the seal of a councillor who lodged at his house, made use of it to forge obligations for sums of money which, supported by false witnesses, he claimed after an interval of several years; the fraud being

discovered, he was broken upon the wheel, and the witnesses “boiled in a kettle.” In Zurich, any one clipping the coin, had his fingers clipped off, and was then hanged. In the council-room of the old Rathhaus of Appenzell can still be seen an instrument known as the “bocksfutter”; it consists of a long bench, on which delinquents, ordered to be punished with stripes, and prisoners, who were obstinate about admitting their guilt, were wont to be placed, with legs and arms outstretched as if they were going to swim; but every attempt to move these members was prevented by enclosing them in iron clamps firmly fastened to the bench; this preliminary completed, the executioner was called in, and ordered to give the victim as many strokes with “*ochsenziemer*” on the bare body, as the judges might think necessary, to loosen his tongue or purge him of his offence. Another so-called truth-finder (*wahrheitserforschungsmittel*) was a cage, in which one could neither stand upright nor stretch his legs, but only cower on the floor in a constrained position. At Freiburg the punishment for stealing five sous was death by decapitation; and a stranger striking a burgher was fastened to a post and scalped, while a burgher striking a stranger paid three sous. Capital punishment was inflicted by cutting off the head, which was done in this manner: the culprit was made fast in an arm-chair, and a cap placed on his head with a hole in the top, by which an assistant took hold of his hair, while the executioner, placed behind, struck off his head with a broadsword.

There is little or nothing in the Swiss cantonal institutions to tempt unworthy men into official life. The salaries are nominal, with very remote chances for any personal aggrandizement. In the local and municipal administrations, it is difficult, if not impossible, for any one class to employ the powers of government for purely selfish ends. Many of the officials serve the Canton, municipality, and community with motives as honorable as their services are intelligent and efficient. The Cantons and communities are comparatively free from debt, and not burdened by excessive taxes. There is a general aversion to incurring public debts, common to the Swiss, from the federal head down through the cantonal, municipal, and community administrations. The revenues of these little states are small, and require strict economy in every branch of expenditure. Nothing is wasted on useless consumers and their retainers; an exact account must be rendered of the employment of the public funds; and precision and publicity in the keeping of public accounts. The people yields its servants, indeed, some compensation, but it does not reward them with pensions or with

superabundant influence. It builds up no official class who forget their citizenship and separate themselves from the mass of the people, squeezing as many advantages as possible out of their offices, even to the prejudice of efficient service. The Cantons, upon enumeration, number not twenty-two but twenty-five, because three of them have been divided into half-Cantons, making nineteen whole and six half Cantons. Basel is divided into Basel-Stadt and Basel-Landschaft (urban and rural); Appenzell, into Ausser-Rhoden and Inner-Rhoden; and Unterwalden, into Obwald and Nidwald (above and below the forests which formed the boundary between them). The rending of these Cantons into half-Cantons was the work of party feuds; in one place springing from political causes, in a second from religious strife, and in the third from wrangles about wood and grass. Unterwalden was divided as early as 1366. The division of Appenzell occurred in 1597; the Catholic magistrates having turned out some Protestant ministers, so serious a quarrel ensued between the two communions, that other Cantons were called in as mediators; to restore peace they resorted to a sort of political divorcement; the Canton was divided between the two parties, and a river marked the boundary; the Catholics passed on one side and the Protestants on the other, selling or exchanging reciprocally their fields and houses. The separation in Basel took place in February, 1832; the city of Basel maintained that the country people should either accept the constitution which pronounced them dependent and inferior, or renounce all connection with her: in vain the Diet protested against this division, but the city persisted in the separation rather than put itself on a level with the peasants. Only in one case, that of Basel, was the division accompanied by any violence. There is not a great difference between the population of the halves in the Cantons of Basel and Unterwalden; the urban half, of the former, having an excess of 12,000, and Obwald, of the latter, 3000; but the population of Ausser-Rhoden is four and a half times that of Inner-Rhoden. There is a wide diversity in the area of these several half-Cantons, not easily accounted for, except in the case of Basel, where one-half is composed of the city of Basel. Each half-Canton keeps its own share of sovereign power; each is practically complete in its state autonomy, the original cantonal integral having little recognition beyond the representation in the Council of States. In that body the members from these half-Cantons display, more or less, the antagonism which originally led to the division of their Cantons; Catholic Appenzell is

almost certain to oppose Protestant Appenzell; so with all of the members from the fractional Cantons, they are arrayed on different sides of all local questions, seriously impairing their influence. In extent, population, and wealth, the Cantons are about equal to a county; still, each is one of the twenty-two confederate states. The official order of the Cantons corresponds with the historical date of their entry into the Confederation, except that Zurich, Bern, and Luzern, after joining the league of small Cantons, were placed at the head. Uri occupies the first place in chronological order, and anciently Luzern took the lead, but when Zurich entered the Confederation, as an imperial city, in 1351, it displaced Luzern by virtue of its great wealth; and two years later Bern joined the league, and was awarded the second place on account of its military power. The standards of the three original Cantons are very suggestive of their history. The one of Uri represents a bull's head, with the broken links of the yoke hanging around the neck; that of Schwyz a cross, the double symbol of suffering and deliverance; and the banner of Unterwalden bears two keys, symbolical of the keys of the apostle St. Peter, and destined to open the iron gates of their long slavery. Emile de Laveleye, in his "Primitive Property," gives the following touching legend as to the method in which the boundary between the *Marks* or Communes of Uri and Glarus was formerly fixed: "The two Cantons are separated by frozen peaks and a lofty chain of mountains everywhere except at the Klaussen passage, through which one can easily pass from the valley of the Linth to that of the Reuss. In times past, there were disputes and struggles between the people of Uri and Glarus as to the debatable boundary of their pastures. To decide the question, they agreed that, on St. George's day, a runner should start at the first cock-crow from the bottom of each valley, and that the frontier should be fixed at the point where they met. The start was to be superintended by inhabitants of Glarus at Altdorf, and by inhabitants of Uri at Glarus. The people of Glarus fed the cock, which was to give the signal to their runner, as much as possible, hoping that, being in full vigor, it would crow early in the morning. The people of Uri, on the contrary, starved their cock; hunger kept it awake, and it gave the signal for the start long before dawn. The runner started from Altdorf, entered the *Schaechenthal*, crossed the top, and began to descend on the other side towards Linth. The Glarus cock crowed so late that their runner met the one from Uri far down the slope on his side. Desperate at the thought of the disgrace which would be reflected on his

countrymen, he begged earnestly for a more equitable boundary. 'Hearken,' answered the other, 'I will grant you as much land as you can cross, ascending the mountain with me on your back.' The bargain was struck. The Glarus man ascended as far as he could, when he fell dead from fatigue on the banks of the stream called *Scheidbaechli* (the boundary line). This is why Urner Boden, situated on the slope facing Glarus, beyond the division of the water, belongs to Uri. It is a curious legend in which, as so often in Swiss history, the citizen gives his life for the good of his country."

Individual Cantons have a national character, either because all their inhabitants belong to one people, as in the German Cantons of northern and eastern Switzerland, or in the French Cantons of western Switzerland, or in Italian Ticino; or because one nationality decidedly prevails, as the Germans in Bern and Graubünden, and the French in Freiburg and Valais. The result of holding different peoples together without transforming them into one nationality has been attained only by allowing each people free course in its local and inner life. The drift of Switzerland's history and its political trend are unquestionably towards a more compact nationality. The constitution was a compromise between the advocates and opponents of nationalism. Every change from 1814 down to 1874 has taken something from the Canton and Commune and bestowed it on the Confederation. In every stage of its historical growth it has been a fight of the Confederation against the Canton, on behalf of general rights; those interests of the citizen which are claimed to lie beyond the proper sphere of local laws and customs. The national government has steadily extended its influence, every step increasing the authority of the nation at the expense of the cantonal independence; a steady growth in national feeling, a constant drift towards a stronger federal government. Many branches of legislation have been taken away from the Cantons, which under the constitution of the United States adhere to the States. The federal government has absorbed numerous matters of social and economic importance, such as those relating to railways, telegraph, factories, insurance, debts, marriage, the law of contract, and general measures of sanitary precaution. "Swiss democratic federalism tends towards unitarianism. This is no doubt in part due to the desire to strengthen the nation against foreign attack. It is also due, perhaps, to another circumstance. Federalism, as it defines and therefore limits the power of each department of the administration, is unfavorable for the interference or to the activity of government. Hence a federal government

can hardly render service to the nation by undertaking for the national benefit functions which may be performed by individuals.”⁴⁹ Wherever in the history of the world we find a federation having an internal organization sufficiently strong to maintain its own existence, we observe an inevitable drift of power from the several states to the central government, striving to ascertain over how broad a field it is expedient and right to extend the activities of government. Yet it is impossible to study attentively the march of Swiss affairs without seeing that what really lie next to the hearts of the people are their cantonal and local institutions; and while a well-assured nationality is kept up, in event of foreign danger or common peril, nevertheless, the citizens look for protection as well as for command to their own cantonal authority. A familiar colloquialism is often used, which illustrates the relation of the cantonal to the national feeling,—“My shirt is nearer to me than my coat.”

Switzerland, though not extensive in point of superficial surface, embraces such an extraordinary variety of climate, soil, race, and occupation as to render the rule of a single central democratic government, in an especial manner, vexatious. It must of necessity adhere to a system of Federal Union in preference to that of a central and universally diffused authority; because in small states, having each the power of internal legislation, the interests of the inhabitants are nearly the same, and their influence can be felt and their wants receive due consideration.

The Cantons have deep-rooted and peculiar local institutions, in many cases of great vitality; laws handed down traditionally from generation to generation, often without having ever been committed to paper, much less to print. Until 1848 there was not one written and accepted cantonal constitution. A country where self-government has longest subsisted, and political institutions been most the subject of popular discussion and decision, it is at the same time a country in which innovations are with the most difficulty introduced. You might alter the whole political frame of government in the French republic with more facility than you could introduce the most insignificant change into the customs and fashions of the Swiss democracy. They seem as immovable as the mountains in which they were cradled. The French directory, in the ardor of their innovations, proposed to the peasants of the Forest Cantons a change in their league, and made the offer of fraternization, which had seduced the allegiance of so

many other states, but these sturdy mountaineers replied, "Words cannot express, citizen directors, the profound grief which the proposal to accede to the new Helvetic League has occasioned in these valleys. Other people may have different inclinations, but we, the descendants of William Tell, who have preserved, without the slightest alteration, the constitutions which he has left us, have but one unanimous wish, that of living under the government which Providence and the courage of our ancestors have left us."

The Confederation, in striving to make the general organization more systematic and uniform, must tenderly regard cantonal susceptibilities. The Swiss federal organization is firmly founded on cantonal precedents, traits, and features; and their self-assertive vitality and their direct influence make them the central subject of Swiss politics. The federal constitution designates the members of the Confederation as "sovereign Cantons;" and each of the cantonal constitutions says in effect, "This, under federal supremacy, is a sovereign Canton," and each declares that the sovereignty within the Cantons rests on "the people as a whole." "Sovereign state" is conspicuous in the constitution, federal and cantonal. It expresses national instincts, national experiences, and political education. All the elevating memories of national history, all the inspiring traditions which had bred into national sentiment, generation after generation, were connected with a league of states of almost insulated independence. Each Canton has always jealously clung to its own individuality and ancient customs. Every now and then the republic would be split up into smaller confederations for the purpose of maintaining the rights of state sovereignty; by these sectional strifes, the idea of isolation and individuality was handed on, gaining strength as it went, and becoming more and more a political instinct of the Swiss people.

Switzerland is a microcosm. In these five and twenty little states we have a miniature resemblance of all the phases of social and political life; every Canton contributes with friendly emulation to improve the domestic policy and strengthen the political relations of the Confederation; if they present no example worthy to be followed as a whole, there is still much in their detail that will most abundantly repay our study.

CHAPTER VII.

THE LANDSGEMEINDE.

In the republics of the ancient world, where representative assemblies were unknown, legislative power vested with the citizens, the sovereign power being exercised by the whole people, acting directly in their own persons. They met in what we should now call primary assemblies. This early democracy found its most logical expression in the *Comitia* of Rome and the *Ecclesia* of Syracuse. The *Ecclesia* embraced all citizens over twenty-one years of age, unless they had become liable to any loss of civic rights; it met so frequently, often once a week, that it would be inconceivable, if we did not remember that ordinary and professional labor was carried on not by the free citizens, but by the numerous slaves. The same plan prevailed in the early Teutonic tribes. Tacitus describes such an assembly, almost in the words of Homer: "In matters of inferior moment the chiefs decide; important questions are reserved for the whole community. When a public meeting is announced, they never assemble at the stated time; regularity would look like obedience; to mark their independent spirit, they do not convene at once, but two or three days are lost in delay. Each man takes his seat, completely armed. The king or chief of the community opens the debate; the rest are heard in their turn, according to age, renown in war, or fame for eloquence. No man dictates to the assembly; he may persuade, but cannot command. When anything is advanced not agreeable to the people, they reject it with a general murmur; if the proposition pleases, they brandish their javelins; this is the highest and most honorable mark of applause; they assent in a military manner, and praise by the sound of their arms."

Montesquieu is of the opinion that, in this treatise on the manners of the Germans, by Tacitus, an attentive reader may trace the origin of the British constitution; a system which he claims was found in the forests of Germany. The Saxon *Witenagemot* was beyond all doubt an improved political institution, grafted on the rights exercised by the people in their own country. The author of the "European Settlements in America" writes: "The

Indians meet in a house, which they have in each of their towns for the purpose, on every solemn occasion, to receive ambassadors, to deliver them an answer, to sing their traditionary war songs, or to commemorate the dead. These councils are public. Here they propose all such matters as concern the state, which have already been digested in the secret councils, at which none but the head men assist.”

During the Middle Ages these assemblies died out, and the right of making laws passed either to the sovereign or to a representative body; the older method surviving only in some of the Swiss Cantons. In Uri, in the half-Cantons composing Unterwalden and Appenzell, and in Glarus, the law-making body is the *Landsgemeinde*, the free assembly of all the qualified voters, the *folk-moot*. The whole people come together to pass laws, to nominate magistrates, to administer affairs, just as was formerly the case with the Germans of Tacitus and the Achaeans of Homer; with less pretensions, however, than the assembly of a Greek city, for it is rather an agricultural democracy, such as Aristotle commended. It is the direct government dreamed of by Rousseau, who in his dislike of representative systems wrote the “*Contrat Social*,” demanding that the entire community should meet periodically to exercise its sovereignty. Rousseau suggests that he was led to the opinions advanced in this work, by the example of the ancient tribal democracies; yet at a later date he declared that he had the constitution of Geneva before his mind; and he cannot but have known that the exact method of government which he proposed still lived in the oldest Cantons of Switzerland; where by the raising of hands offices and dignities were distributed, and sanction given to the laws; where feudalism and royalty had never penetrated, and where the most perfect liberty reigned, without class struggles or social strife. The assemblies in the Cantons named are called *Landsgemeinden*,—that is, “National Communes.” It is a strictly precise term, implying that the whole country forms, so to say, a single Commune. This was the case originally. Later, as different villages were formed, they constituted separate autonomic Communes; but the great Commune of the Canton, with the General Assembly of all the inhabitants, the *Landsgemeinde*, was maintained. Under the Helvetic republic of 1798 the *Landsgemeinde* was abolished, in order to make way for the representative system. It was, however, re-established under Napoleon’s act of mediation, promulgated in 1803. The sagacity with which the First Consul discriminated the most important features in the condition of the

Swiss Cantons, may be appreciated by the following extract from the speech he delivered on the formation of the internal constitution of the Confederacy: "The re-establishment of the ancient order of things in the democratic Cantons," said he, "is the best course which can be adopted, both for you and me. They are the states whose peculiar form of government renders them so interesting in the eyes of all Europe; but for this pure democracy you would exhibit nothing which is not to be found elsewhere. Beware of extinguishing so remarkable a distinction. I know well that this democratic system of administration has many inconveniences; but it is established, it has subsisted for centuries, it springs from the circumstances, situation, and primitive habits of the people, from the genius of the place, and cannot with safety be abandoned. When usage and systematic opinion find themselves in opposition, the latter must give way. You must never take away from a democratic society the practical exercise of its privileges. To give such exercise a direction consistent with the tranquillity of the state, is the part of true political wisdom."

Through a strange and happy combination of circumstances this ancient custom may still be seen in the Cantons of Uri, Unterwalden, Glarus, and Appenzell. The homely peasants who tend their own cows and goats upon the mountain-side, and by patient industry raise their little crops from the narrow patches of soil, hemmed in by rock and glacier, meet to discuss the affairs of their Canton, to make its laws, and to swear to observe them; a parliament of Swiss peasants, differing little in manner or habits from their forefathers of the thirteenth century. It affords a rare study in politics; an example of pure democracy such as poets might imagine, and speculative philosophers design. It was my privilege to have seen one of these primitive assemblies, held on the hill-side market-place of Trogen, the seat of government of Appenzell-ausser-Rhoden. Trogen is in the rolling, grassy, breezy Appenzell Alps, the home of primitive virtue, the stronghold of Swiss simplicity, honesty, and courage, and the region of light hearts and merry tongues. It was the first Sunday in May, from which day the Appenzellers date all the events of the year. Leaving St. Gallen for Trogen, some seven or eight miles distant, in a carriage, about nine o'clock in the morning of a bright and beautiful day, the main road and the many branches that entered it, as far as the eye could reach, were full of peasants making their way on foot to Trogen; every man carrying in one hand the family umbrella, and in the other an old sword or ancient rapier, which, on this

occasion the law at once commands him to carry and forbids him to draw, and which is brought out for this day only from its dignified seclusion; each one wearing a short green coat, with a stiff high collar, and a silk hat, both bearing unmistakable evidence of being venerable heirlooms. The convening of the Landsgemeinde was announced at twelve o'clock M. by heralds, as a drum and fife corps, with a wonderful uniform of black and white, the cantonal colors. There were estimated to be present six to seven thousand voters. No provision was made for seating them, and all stood during the proceedings, which lasted nearly three hours. The assembly opened with a silent prayer, the Landammann setting the example, and instantaneously the thousands of heads were uncovered and bowed, with an indistinct but audible wave of sound from the speechless lips; then a national song in which all joined; the Landammann and his colleagues of the council mounted a rough platform erected in the centre of the field, draped with black and white, and with two ancient-looking swords crossed before it. Close attention was given to the Landammann while he addressed them as "Trusty, faithful, and well-beloved confederates." He submitted a report of the administration of affairs for the past year, and proposed a few new laws and some amendments to the old laws. These were five in number, only two of which were accepted, by the raising of hands, the vote being taken without discussion; though each man had full right to speak his own mind as long as he pleased. The President, on behalf of the council, took from a bag, not of silk, but of plain homespun material, the seal of state and surrendered it into the hands of those by whom it had been given; and in delivering up this official charge he concluded with the statement, that he had not voluntarily injured any one, and asked the pardon of any citizen who might think himself aggrieved. The President and the members of the council then retired and took their places as simple citizens in the ranks of their fellows, leaving the Canton for the time being, without any executive official, an absolute interregnum. In a few moments some one in the crowd placed in nomination for re-election the retiring President, and he was unanimously chosen; the same process was repeated as to all the other members of the council; they then returned to the platform and resumed possession of the seal of state. Some subordinate officials were chosen in a similar manner, all without opposition except in the case of the *grossweibel*, for which place, owing to some charges of intemperance against the incumbent, there had arisen quite a contest, resulting in a half-dozen names

being placed in nomination, each one of whom submitted his claims in a few remarks. The vote was taken for the several candidates, in turn, by uplifted hands, and the executive council found it impossible to decide who had received the most votes, until five trials were had, when the old official was declared re-elected. Neither the voting nor the result of this unusual contest was accompanied with the slightest manifestation of feeling. The entire proceeding was marked by an earnest, serious, reverent decorum, as could be found in any church service. When the newly-chosen Landammann enters upon his office, he first binds himself by an oath to obey the law, and then administers to the multitude before him the same oath. There was a heart-stirring solemnity in hearing the voice of these thousands of freemen, beneath the canopy of heaven, in firm, clear accent, pledging themselves to obey the laws which they themselves had made. The Landammann's oath was: "To promote the welfare and honor of his fatherland, and to preserve it from injury; to enforce the constitution and laws of his country, to protect, defend, and assist widows and orphans, as well as all other persons, to the best of his power, and as the law and his conscience teach him; and that neither through friendship, enmity, nor bribe, nor for any other reason will he be moved to deviate therefrom. Likewise that he will accept no gifts from any prince or lord, except for the public purse." The people swear: "To promote the welfare and honor of their fatherland, and to preserve it from injury, to protect its rights and liberties to the best of their power, to obey the laws of the magistrates as well as to defend the council and court, likewise to accept presents, bribes or gifts from no prince or lord, except for the public purse; and that every one to whatever position elected shall accept it, and do as well as he is able and has the power to do." The foregoing oath, after being read to the multitude, was sworn to in a loud, distinct voice in the following form: "We have well understood what has been read to us. We will keep it truly and steadfastly, faithfully, and without fear, so truly as we wish and pray that God may help us." The laws adopted by the Landsgemeinde of Appenzell in reference to these official oaths are very peculiar. They bear date 1634, and read: "Because an oath is a thing through which good law and order must be maintained, so for that reason it is highly necessary to consider it, in itself, seriously and well, humbly praying to God, the heavenly Father, that through his Holy Spirit he may enlighten our hearts, so that we may know what a true and false oath is, and may in time with the chosen ones live up

to it eternally: Amen! A genuine oath is a considerate and solemn invocation and declaration to the true God, as the proper guardian of my heart, to be witness and judge of my sworn declaration or promise, to bless my body and soul if I swear in truth and sincerity, and if, on the contrary, I swear falsely, to punish my body and soul. At the same time every Christian who swears an oath shall lift up three fingers, by which will be signified the supreme power of God the Father, God the Son, and God the Holy Ghost; but the two last fingers shall remain bent back against the hand, and thereby will be represented the entire submission of soul and body to the supreme power of God. Now the man who is so forsaken and so hostile to himself as to reject in his heart what he professes in such a way with his mouth, in the face of the all-seeing God, swears a false oath. He swears, as if he said, I will rather be shut out from the community and benefaction of Christendom; or as if he said, the name of God and of our Saviour Jesus Christ shall never prove a help and comfort to me at the time when soul and body shall be separated; or as if he said, the grace of God, the redemption of Jesus Christ, and the strength of the Holy Ghost shall be entirely lost and thrown away on me, poor sinner. Finally, whoever swears falsely speaks as if he said, as I swear false to-day, so do I make myself guilty of this judgment, that my soul, which is indicated by the fourth finger, and my body, which is indicated by the fifth finger, shall be separated from every claim of the All Holy, and be deprived eternally and forever of the refreshing sight of our Lord Jesus Christ. Hereby can every Christian perceive and understand what is the meaning and effect of a false oath, and take heed against it, for the salvation of the soul. God guard us all eternally and forever from sorrow and grief: Amen!”

The Landsgemeinde at Uri is attended with much more display and elaborate ceremonial than that of Appenzell, and a description of it is here taken from Mr. Freeman’s essay on the “Growth of the English Constitution:”

“It is one of the opening days of May; it is the morning of Sunday; for men there deem that the better the day the better the deed; they deem that the Creator cannot be more truly honored than in using, in his sphere and in his presence, the highest of the gifts which he has bestowed on man. From the market-place of Altdorf, the little capital of the Canton, the procession makes its way to the place of meeting at Bözlingen. First marches the little

army of the Canton, an army whose weapons never can be used save to drive back an invader from their lands. Over their heads floats the banner, the bull's head of Uri, the ensign which led men to victory on the fields of Sempach and Morgarten. And before them all, on the shoulders of men clad in a garb of ages past, are borne the famous horns⁵⁰ whose blast struck such dread into the fearless heart of Charles of Burgundy. Then, with their lictors before them, come the magistrates of the commonwealth on horseback, the chief magistrate, the Landammann, with his sword by his side. The people follow the chiefs whom they have chosen to the place of meeting, a circle in a green meadow, with a pine forest rising above their head, and a mighty spur of the mountain-range facing them on the other side of the valley. The multitude of freemen take their seats around the chief ruler of the commonwealth, whose term of office comes that day to an end. The assembly opens; a short space is first given to prayer, silent prayer, offered up by each man in the temple of God's own rearing. Then comes the business of the day. Thus year by year, on some bright morning of the springtide, the sovereign people, not intrusting its rights to a few of its own number, but discharging them itself in the majesty of its corporate person, meets in the open market-place or in the green meadow at the mountain's foot, to frame the laws to which it yields obedience as its own work, to choose rulers whom it can afford to greet with reverence as drawing their commission from itself. You may there gaze and feel what none can feel but those who have seen with their own eyes, what none can feel in its fulness more than once in a lifetime, the thrill of looking for the first time face to face on freedom in its purest and most ancient form."

The Landsgemeinde exercises two equally important functions. First, it elects the principal officers of the Canton, the Landammann and his substitute, the treasurer, and the chief of the cantonal militia; it also appoints the deputies for the Federal Assembly. These cantonal functionaries are paid but nominally; their duties are light, and the small claim which they make on the individual causes them to appear a universal duty of the citizen. It belongs to the Landsgemeinde to sanction all cantonal laws, and all treaties which are concluded with other Cantons or with foreign states. With the exception of Glarus, the legislative power is exercised in this sense, that it accepts or rejects as a whole the propositions which are made to it, without the power to introduce changes in them. In Glarus the constitution invests the Landsgemeinde with power to modify or

reject the propositions which are made to it, or refer them to the triple council finally, either to report on them or to decide. The constitution of Glarus also contains this provision: "The people are responsible only to God and their consciences for the exercise of their sovereignty in the May Assembly. What must guide the May Assembly is not, however, caprice without limit and without condition; it is justice and the good of the state which are alone compatible with it. The people are obliged to vote according to these principles in taking annually the oath of the May Assembly." In all of the Cantons, having these assemblies, the proposition to be submitted must be made public a certain time in advance. The administrative power is ordinarily confided to quite a numerous council, called Rath or Landrath. The functions of this body are extensive. It watches over the enforcement of the constitution, federal and cantonal; regulates in their general organization public instruction, financial, military, and sanitary administration, public works, charity, except the legal provisions regarding the province and obligations of inferior authorities; receives the reports of the administration of all the functionaries of the Canton; deliberates upon the proposed laws to be presented to the Landsgemeinde, through the intermediary of the triple council; and watches over the execution of what the laws or decrees of the Landsgemeinde prescribe to it. In Nidwald the council has, besides, judicial function. In Glarus, Uri, and Obwald there have been organized, side by side with the Landrath, special authorities to which have been transferred all the judicial functions formerly granted to the Landrath. About the Landrath are grouped various bodies, evidently formed from it by addition or reduction. The double and the triple or Great Council are nothing but the council of the Landrath itself, doubled or tripled by the addition of new members, whom the territorial divisions appoint in the same manner and in the same proportion as the first. In Glarus, for example, each local assembly (*tagwen*) adds two members to the one which it appoints to form a simple council. Thus the triple council is composed there of one hundred and seventeen members, as follows:

- (1) Of the nine members of the Commission of State.

- (2) Of thirty-five members appointed by the *tagwen* following fixed proportions.

(3) Of seventy members appointed by the same assemblies, following the same proportions.

(4) Finally, of three Catholic members, appointed by the same council, and of which one forms a part.⁵¹

The principal functions of the triple council are to watch over the council and the tribunal, to establish the project of the budget of receipts and expenditures, and to convoke the Landsgemeinde in extraordinary assembly. The process of addition is applied in many ways in Appenzell-interior; it is applied in particular to the little council, which is charged with the principal judicial powers. This body judges sometimes as a weekly council; it is then only a section of the little council; sometimes with a simple addition, again with the reinforced addition. Finally, with a last reinforcement, it forms what is called the council of blood (*Blutrath*). As there are councils formed by addition, so there are others formed by reduction, as, for example, the weekly council of Unterwald-lower. It is appointed by the Great Council (Landrath) and chosen from its body. It is the executive, administrative, and police authority, subordinated to the Great Council. It is composed of the Landammann, as President, and of twelve members appointed for two years. It assembles in ordinary session on Monday of each week, and in extraordinary session, when convoked by the President, and as often as there is need. The third and remaining authority in this pure democracy is the Commission of State. It is appointed by the Landsgemeinde, and replaces the council, for affairs of lesser importance. In Glarus this commission is divided into two sections, to expedite business. The first is composed of all the members of the commission; and the second, of three members, the President included, alternating among themselves after a manner of rotation, established by the commission. The first section (or the commission *in pleno*) is charged with the correspondence of foreign states, the federal authority, and the Confederate states; with giving preliminary advice upon questions referred to it, or even with deciding them by the council. The second section is charged with the ratification of deeds of sale and of wills, with decisions upon the prolongation of the terms for the liquidation of bankrupt estates, etc. The Commission of State of Appenzell-exterior has also the surveillance of the administration of the Communes. The Landammann presides over the Landsgemeinde, the double or triple council, the council

or Landrath, and the Commission of State. He receives all the despatches addressed to the authorities presided over by him, and he is bound to make them known at the next session. He keeps the seal of state, signs and seals concordats and conventions. He watches over the execution of the decrees of the Landsgemeinde, the Councils, and the Commission of State, in so far as the execution is not intrusted to a special authority. The re-election of the Landammann is universal; and the office, though always filled by an annual selection, becomes almost hereditary in a single family.

Customs still exercise a considerable empire in these Cantons, and the Landsgemeinde makes but few laws; there is none of the confusion and uncertainty that come from a multiplicity of laws; a source to which was imputed a great part of the miseries suffered by the Romans at the time when “the laws grew to be innumerable in the worst and most corrupt state of things.”⁵² The people of these Cantons fill the idea of Bacon, as to innovation, “to follow the example of time itself, which indeed innovateth greatly, but quietly and by degrees scarce to be perceived.” Changes in established institutions must be considered in reference to existing interests, habits, manners, and modes of thinking. In vain should we try to promote the common weal by introducing alterations, however well designed, which have no hold on the feelings of the people, or are at variance with them, or which shock their deeply-seated prejudices. There are two different considerations involved: the propriety of retaining institutions merely because they have been sanctioned by our ancestors, or transmitted to us through a series of ages; and the propriety of retaining them because they are strongly settled in the actual habits, tastes, and prejudices of the people. While it would argue extreme imbecility, to spare cumbrous or hurtful institutions on no better ground than the former, it is absolutely indispensable to pay a cautious regard to the latter. The existing habits, tastes, and prejudices of the community, equally with the universal properties of human nature, are material elements of the politician’s calculations. They are all sources of pleasure and pain, all springs of action which call, on his part, for tender handling and accurate appreciation. There is scarcely a question in the whole compass of politics on which there is a greater unanimity among philosophers and statesmen than there is on the policy of cautious and gradual, in opposition to rash and sudden, reforms on the one hand, and to a pertinacious retention of incongruities and abuses on the other. As to the improvements which are to be introduced into a political

system, their quantity and their period must be determined by the degree of knowledge existing in any country, and the state of preparation of the public mind for the changes that are to be desired. A passage in the correspondence of Mr. Jefferson contains a highly instructive exposition of his opinion on this subject, expressed in his happiest manner: "I am certainly," says he, "not an advocate for frequent and untried changes in laws and constitutions. I think moderate imperfections had better be borne, because, when once known, we accommodate ourselves to them, and find practical means of correcting their ill effects. But I know also that laws and institutions must go hand in hand with the progress of the human mind. As that becomes more developed, more enlightened; as new discoveries are made, new truths disclosed, and manners and opinions changed with the change of circumstances, institutions must advance also, and keep pace with the times." It is well to stand fast in the old paths; but the old paths should be the paths of progress; to shrink from mere change for the sake of change; but fearlessly to change, whenever change is really needed. All mountain races love the past, and suspect new things. Their fundamental laws are few and slowly formed; as slowly formed as they are stoutly held. The constitutions of the Swiss Cantons were originally of the simplest forms of ancient democracy. The old democracy, whether absolute or modified in form, was always direct; modern democracy is, as a rule, representative. It is obvious that the former presupposes great simplicity of life and occupation, as in the small communities of mountain valleys; nothing could render it consistent with the public peace, but the simple habits of a people of shepherds and husbandmen among whom political dissensions do not prevail. This substitution of the many for the one or the few, of the totality of the community for a determinate portion of it, is an experiment perhaps of insuperable difficulty, except for very small states, and especially for agricultural or pastoral peoples. The Landsgemeinde is only able, at most, to announce the general opinion, to express its approval or its disapproval of a proposition already known; but altogether incapable of deliberating seriously on a projected law, or of solving the more complicated problems of politics. On a wider field and with a more complex society, no such polity would be possible. To a great nation with extended territories and large population, the application of the federal principle is necessary. Therefore in all but four Cantons of Switzerland this primitive type of government has passed away. That it contains the germs out of which every

free constitution in the world has grown cannot be denied. A cognate influence, if well considered, will go far towards accounting for that prodigious resolution and success with which the ancient commonwealths maintained their national rights. The whole territories of the Athenian, Spartan, and Roman republics, were originally but a single province; and the whole strength of the province was concentrated in a single city, the embryo of their future greatness, the nucleus around which all their subsequent acquisitions were formed. Within the sacred walls of Rome and Athens, all classes of citizens assembled like one great united family; they lived, they consulted, they transacted business together, and together repaired for public debate or religious devotion, for manly amusement, or philosophical speculation, to the forum or the temple, the circus or the portico. Virtuous emulation was roused, the force of public opinion increased, and the importance of the individual in the general scale visibly exalted. The Landsgemeinde is self-government in its noblest reach and simplest form, where every man is legislator, judge, and executive. What rare simplicity! No wrangling after power, no intrigue after place, no lust for fame; one thought alone, to live just as their fathers did, in perfect liberty, and fearing none but God. These simple democracies in the Cantons of Switzerland, which have existed for a thousand years, little touched by the stream of European life, deserve our respect for their long history that is rich in many episodes, and for the peaceful and happy existence of their people. They furnish us with a bit of realistic political education, a successful working example of the purest democracy in the world. It throbs with a vital sense of government at first hands; every citizen a very live political entity, and the sense of government very individual. Obstinate conservative, with a profound disbelief in theory, they remind one of the ox, which walks straightforward with a slow, heavy, and firm tread. They take no stock in the fallacy, that a new system, political or social, can be ordered like a new suit of clothes, and would as soon think of ordering a new suit of flesh and skin. With sincere satisfaction and pride, they are given to exclaim, "Thanks to our sublime resistance to innovations; thanks to the cold sluggishness of our national character, we still bear the stamp of our forefathers:"

"So have old customs there, from sire to son,
Been handed down unchanging and unchanged;

Nor will they brook to swerve or turn aside
From the fixed, even tenor of their life.”

CHAPTER VIII.

THE REFERENDUM.

The student of politics may always look with advantage to Switzerland for the latest forms and results of democratic experiments. Federal laws, decrees, and resolutions require the concurrence of both branches of the Federal Assembly; but the process does not always end at that point. Such concurrence is not adequate in all cases for them to come into force. Article 89 of the constitution declares that “federal laws are submitted to the people for adoption or rejection on the demand of 30,000 active citizens, or eight Cantons; the same is the case with federal decrees of a general bearing, and not of an urgent character.”

This is known as the Referendum, and is supposed to be derived from the practice of the old Swiss Confederation, when the delegates of the thirteen independent states of which it was composed had to *refer* to their governments for confirmation the decisions of the Federal Diet. It is one of the most characteristic of Swiss institutions, and is by far the most original creation of Swiss democracy. “The Referendum looks at first sight like a French *plébiscite*, but no two institutions can be marked by more essential differences. The *plébiscite* is a revolutionary or at least abnormal proceeding. It is not preceded by debate. The form and nature of the question to be submitted to the nation are chosen and settled by the men in power, and Frenchmen are asked whether they will or will not accept a given policy. Rarely, indeed, when it has been taken, has the voting itself been either free or fair. Deliberation and discussion are the requisite conditions for rational decision. Where effective opposition is an impossibility, nominal assent is an unmeaning compliment. These essential characteristics, the lack of which deprives a French *plébiscite* of all moral significance, are the undoubted properties of the Swiss Referendum. It is a real appeal to the true judgment of the nation, and the appeal is free from the coercion, the unreality, and the fraud which taint or vitiate a *plébiscite*. The Referendum, in short, is a regular, normal, peaceful proceeding, unconnected with any revolution, any violence, or despotic coercion.”⁵³

The Referendum is a kind of substitute for the veto; it gives no power to modify, no power to substitute; it is a pure negative. It does not enable the electors to pass laws at their own will; it is a mere veto on such legislation as does not approve itself to the electorate. It is a veto lodged in the hands of a sovereign people. A question is simplified as much as possible, and every citizen has the fullest opportunity, from the public platform, or in the columns of the press, or in private conversation, to advocate or deprecate its adoption; and the entire enfranchised portion of the community is asked to say "Aye" or "No," as to whether the law shall become operative. It is a reference to the people's judgment of a distinct, definite, clearly stated law. Under the Constitution of 1848, only such measures passed by the Assembly as clearly involved constitutional changes were subject to the Referendum. The jealousy of the Cantons, lest their own civil and religious privileges should be invaded, and their fear of influences, in the central government, adverse to their own sovereign rights, demanded an unrestricted reference to the popular vote. This was conceded in the revision of 1874, when the Referendum was extended to all federal laws and federal decrees, "of a general nature and not of an urgent character." The matter now stands thus: no change can be introduced into the constitution which is not sanctioned by the vote of the Swiss people. The Federal Assembly, indeed, may of its own authority pass laws which take effect without any popular vote; but it is practically true that no enactment, important enough to excite effective opposition, can ever become a law until it has received the deliberately expressed sanction of the people. The words "decrees of a general nature and not of an urgent character" have never received even a quasi-judicial construction, either from the Federal Council or from the Federal Assembly, the two organs supervising its execution. There doubtless has been conflicting and arbitrary action taken under it. The weight of opinion, as inferred from the line of precedence, appears to be that resolutions are of a general nature, when they fix permanent and obligatory rules, either for the citizens or the Cantons, but not when they apply only to special cases. The whole detail of the exercise of the Referendum is placed by the constitution, under the regulation of the Assembly, and in June, 1874, soon after the adoption of the constitution, a federal law was passed for carrying it out. All laws and resolutions, on which the popular vote may be demanded, are to be published immediately after their passage, and copies sent to the governments of the several Cantons. Through the Cantons they

are brought to the attention of the Communes. The official publication expressly calls attention to the "date of opposition," or when the period for Referendum expires. This period is ninety days, running from the date of the publication of the law. The demand for a popular vote must be made by written petition, addressed to the Federal Council, all signatures must be autographic, and the chief officer of the Commune must attest the right of each signer to vote. If, at the expiration of the ninety days, the demand is found to have been made by 30,000 voters, the Federal Council fixes a date for taking the popular vote; this date must be at least four weeks from the date of the notice given by the Federal Council. The vote is "Yes" or "No," and a simple majority of those voting is decisive. Unless, however, the demand for such a reference is made within the ninety days, the people are presumed to have given a tacit assent, and the bill becomes a law, and its execution ordered by the Federal Council.

Under this peculiar institution, a condition exists, in which the sovereignty of the people is no longer a speculative doctrine, but a living reality; it makes a very direct and thorough democracy, and its application has proven neither ineffective nor unduly obstructive. Since the adoption of the Referendum, in 1874, there have been vetoed, among other laws passed by the Assembly, the following: "Modification of the right of voting," "Bank-notes law," "Indemnities payable to the Confederation by citizens dispensed from military service," "Political rights," "A law respecting certain epidemics," "Appointment of a federal secretary of education," "Creation of a special secretary in the federal department of justice and police," "Granting an annual salary of 10,000 francs for a secretary to the Swiss legation at Washington," "Exempting native commercial travellers from taxation which those of other countries had not to pay," "Power to Federal Council to remove criminal cases from a cantonal to the Federal Tribunal, when there is reason to suspect the fairness of the former." The only important laws sanctioned under the Referendum, during the same period, are the "Marriage law," "Factories law," "Subsidies to Alpine Railways," and a general "Banking law." Also three modifications of the federal constitution respecting "Patent law," "Capital punishment," and "Spiritous liquor monopoly."

At the time of the introduction of the general Referendum, one of Switzerland's ablest public men declared that it would be "the greatest trial

to which a republic was ever subjected.” It was apprehended by some that it would invite, on the part of the populace, interference with a prudent and independent direction of affairs. Others held it to be scarcely consistent with the true theory of representation; that it is of the very essence of representation that the representative body should stand in the place of the people, possessing their confidence, exercising their plenary powers, speaking with their voice and acting with their full consent; otherwise the legislative function is wanting, and it becomes a mere deliberative council. There is, however, nothing to show that the Swiss Assembly from this cause lacks weight or respectability; it compares favorably enough with the law-making body in any country. It is the primary doctrine of the Swiss Confederation, that the sovereignty of the people must be absolute, whether exercised personally, as in some of the rural Cantons, or through their representatives and the Referendum. This doctrine has been maintained in Swiss institutions from the earliest time until the present day. So elaborate a scheme for the passing of federal laws cannot be without inconvenience; but it is a fundamental principle of the nation, and at once satisfies the democratic traditions of the people and the natural jealousies of the several Cantons. It is a true check and safeguard in making the legislative power directly responsible to public opinion, and in giving the nation an easy and simple opportunity of marking that opinion; of testifying their disavowal and rejection. If it, as alleged, produces a diminution of the feeling of responsibility in the representative, that possible disadvantage is outweighed by the educative effect which it exercises on the great bulk of the citizens. It tends to give them a keener interest in political questions. Through it the citizen becomes conscious of his individual influence, and that his vote contributes appreciably both to the maintenance and direction of the laws under which he lives, and he is impressed with the necessity of a careful discharge of his political rights.

To the confusion and dismay of the strongest advocates of the Referendum, the measures which they most prized, when so put, have been negated. Contrary to all expectations, laws of the highest importance, some of them openly framed for popularity, have been vetoed by the people after they have been adopted by the federal and cantonal legislatures. This result is sufficiently intelligible. It is possible, by agitation and exhortation, to produce in the mind of the average citizen a vague impression that he desires a particular change, but when the agitation has settled down, when

the subject has been threshed out, when the law is before him with all its detail, he is sure to find in it something that is likely to disturb his habits, his ideas, his prejudice, or his interest, and so he votes, "No." Thus it serves as a guarantee against precipitate legislation in matters of vital concern to the community; and is considered thoroughly successful by those who wish that there should be as little legislation as possible. In short, the Swiss experience with this popular veto on legislation is evidence that, under certain circumstances, it produces good effects. It does not hurry on a law, nor facilitate any legislation; it merely forms an additional safeguard against the hastiness or violence of party; it is a check on popular impatience. It secures the laws against any change which the sovereign people do not deliberately approve. The object of such safeguard is not to thwart the wishes of the democracy, but to insure that a temporary or factitious majority shall not override the will of the people. It tends to produce permanence in the tenure of office; it is a distinct recognition of the elementary but important principle, that in matters of legislation patriotic citizens ought to distinguish between measures and men; and this distinction Swiss voters have shown themselves fully capable of drawing. It is an institution which admirably fits a system of popular government. It is the only check on the predominance of party which is at the same time democratic and conservative, as it has demonstrated. It is democratic, for it appeals to and protects the sovereignty of the people; it is conservative, for it balances the weight of the nation's common sense against the violence of partisanship and the fanaticism of over-zealous reformers.

The history of the Referendum in Switzerland confirms the fact that, as a rule, the people are not favorable to legislation; and that the necessity must be very great and the good ends aimed at very manifest, to withstand a direct consultation of the constituencies. The ancient republics hardly legislated at all. Their democratic energy was expended upon war, diplomacy, and justice; putting nearly insuperable obstacles in the way of a change of law. From fundamental and permanent causes springs this legislative infertility in republics. Changes are at once conservative and progressive; conservative because progressive, progressive because conservative. The Referendum reserves to the people, as the old Swiss expression ran, *höchste und grösste Gewalt*, the highest and greatest power. The foremost statesman in Switzerland, a member at present of the Federal Council,⁵⁴ calls it *l'essai le plus grandiose qu'une République ait jamais*

tenté, the grandest attempt ever made by a republic. The constitutional provision that when a certain number of voters demand a particular measure, or require a further sanction for a particular enactment, it shall be put to the vote of the whole country, certainly presents a considerable future before democratically governed societies. Peradventure the United States may realize the prophecy made by Mr. Labouchère in the House of Commons, in 1882, that the people, tired of the deluge of debate, would some day substitute for it the direct consultation of the constituencies.

The Referendum is practically in use in the United States for constitutional amendments, but so far American publicists seem to regard it quite out of place for ordinary laws, and allege that its introduction would obscure the distinction on which the whole American system rests. For this reason the growing tendency of the people, in the several States, to take a direct part in legislation, even by means of constitutional amendments, is regarded by the same school of thinkers as a danger, which, if it goes too far, will be a serious injury to the American theory of government.

The principle behind the Referendum is as old as the Swiss nation, the word coming from the usages of the old Federal Diets, in which the delegates did not decide matters themselves, but voted *ad referendum*, and submitted their actions to the home governments. The power to veto an ordinary law made by representatives was established for the first time in modern days, in 1831, in the Canton of St. Gallen. It was a compromise between the party which wanted to establish pure democracy, and the party of representative government. It is, however, only the same old Swiss voter of centuries ago, telling his member of the Diet to conclude nothing important without his consent. The demand of 50,000 electors to amend the constitution, or to repeal or to modify an existing law, is called a “popular initiative,” and, when made, the Federal Assembly must submit the question to a vote of the people and the Canton. In every cantonal constitution, except Freiburg, the right of the people to have all important legislation subjected in some form to popular confirmation or rejection is recognized. While general assemblies of the people in the Cantons to make the laws fell into desuetude, popular franchise and complete freedom of election were not enough to satisfy the democratic sensibilities of the Swiss. They were still jealous of the plenary powers of their delegates, and insisted that their deliberations when formulated into laws, should be referred to the sovereign

people. Previous to the French revolution, the governments of the different Cantons had largely fallen into the hands of a limited number of aristocratic families. The laboring classes were crushed under enormous burdens by the nobility in the rural districts, and by the rich *bourgeoisie* in the cities. Artificial barriers were placed about the freedom of commerce and labor in the interest of these more powerful classes. The period of reaction following the Napoleonic era was unfavorable to the development of popular institutions. Since the cantonal revolutions of 1830 there has been a general return to the principle known as the Referendum; and after the federal Constitution of 1848, by which the constitution of a Canton could only be revised on the demand of an absolute majority of the citizens, the policy of extending the principles of the Referendum to its fullest limits rapidly grew in favor. There are two forms of Referendum existing in the Cantons, *compulsory* and *optional*; the one requiring the reference of every law passed by the Great Council before it acquires validity; and in the other, a discretionary power of reference is reserved to the people. The first is regarded as the more practical and satisfactory; the chief objection to the latter being the agitation occasioned in procuring the necessary signatures, producing excitement, diverting the thoughts of voters from the real question at issue, and thus giving an undue bias to public opinion, and a character of partisanship to the resulting Referendum.

The number of signatures required in the optional Referendum varies, according to the size of the Canton, from five hundred to one thousand voters, and the time within which it must be made, usually thirty days from the passage of the law and its official publication. The compulsory Referendum exists in the seven Cantons of Zurich, Bern, Solothurn, Grisons, Aargau, Thurgau, and the Valais, and in the rural half-Canton of Basel. In Schwyz and Vaud both forms obtain. In Zurich a popular vote must be taken upon all changes in the constitution, new laws, concordats, and the appropriation of an amount exceeding 250,000 francs, or an annual expenditure exceeding 20,000 francs. The power of the cantonal council in Zurich is further limited by the *initiative*. Any voter, if supported by one-third of the members present at its next sitting, or any 5000 voters, may demand the passing, alteration or abolition of a law, or of a decision of the council. The optional Referendum exists in the seven Cantons of Luzern, Zug, Schaffhausen, St. Gallen, Ticino, Neuchâtel, Geneva, and the urban portion of Basel. Generally speaking, laws, concordats, and sometimes

resolutions of cantonal councils are submitted to optional Referendum. It exists for financial matters, in different gradations in other Cantons, from 500,000 francs in Bern to 50,000 francs in Schwyz. The *initiative* as to revision of the constitution prevails in all of the Cantons upon certain conditions, and the demand of voters varying in number from 1500 to 5000; with the exception of Bern and Valais, where there is no *initiative*. As before stated, Freiburg is now the only Canton in which the sovereignty of the people is not thus directly exercised; all the others, with the exception of those where there is still a *Landsgemeinde*, possess either a *compulsory* or an *optional Referendum*; and in two instances both. A few Cantons have introduced an *imperative initiative*, by petition from a fixed number of voters, demanding action upon a certain matter by the cantonal council; whereupon the council must take a vote upon it, and then submit it to a popular vote, even if the action of the council upon it has been unfavorable.

This combination of representative institutions with the direct exercise of popular sovereignty is well calculated to promote the welfare of the people, occupying the peculiar position in which the Swiss are placed. The discipline of self-government in the Commune, and the training afforded by an effective system of popular education, have qualified them for the practice of direct democracy. With the Swiss legislature standing above the executive and judiciary, we might call Switzerland a parliamentary republic, if it were not for another power, which stands not only in the final theory, but even in the daily practice, of the constitution, above the legislature. This power is the people themselves. The Referendum shows clearly where the seat of sovereignty in Switzerland is located.

CHAPTER IX.

THE COMMUNES.

The lowest unit in the political system is that which still exists under various names, as the Mark, the Gemeinde, the Commune, or the Parish, the analogue of the precinct or township in the United States. The communal system of Switzerland is peculiar in many respects, and presents one of the most instructive lessons which modern political life furnishes of the working of village communities.

The Swiss Commune, speaking comprehensively, is a political and civil division, standing midway between a political body and a joint stock company: a corporation, in one sense, endowed with perpetuity, and holding landed and other property; also a political entity, embracing all the burghers for economical purposes,—that is, for the administration and enjoyment of the usufruct of the communal property; and embracing all the inhabitants for legislative and administrative purposes, with a great variety of local exceptions and limitations. The right of the Cantons and the several Communes to modify these features results in endless divergencies. Being an area of local self-government, and possessed, to a high degree, of freedom in self-direction, the Commune is not far from being an independent, autonomous entity, forming an *imperium in imperio*, both politically and economically. Forming the simplest division in the Confederation, still it is of vital importance; its personality to the Canton being what the Canton is to the nation. It inspires with its common life, not simply a life of political activity, but of common social and economical interests. It is so intimately bound up with all existing rights that its wishes are largely paramount in federal and cantonal action. Having so genuine and vigorous a political, social, and economical life of its own, in which the faiths, hopes, passions, and duties of the citizen are involved, the Commune may be considered a small republic with indefinite rights.

The Swiss Commune is of very ancient origin, and claims to have been founded on the idea that civic rights and freedom were disconnected from mere birth or ownership of land, stress being laid instead on quasi-corporate

union; one of the many forms of the *gens* or clan, in which it is no longer a wandering or a merely predatory body; but when, on the other hand, it takes the form of an agricultural body, holding its common lands, and forming one component element of a commonwealth. The independence of the Swiss Commune has survived from the days of the primitive village community; that gathering of real or artificial kinsmen, made up of families, each living under the rule, the *mund*, of its own father; that *patria potestas* which formed so marked and lasting a feature of the Roman law, and is to-day respected by the Confederation, designedly preserved by legislation, and jealously guarded by the people.

The integer of Swiss political society is not the individual, not the household; the Commune is the Switzer's ideal of a social and political system. The Swiss Society of Public Usefulness, in a pamphlet published in 1871, called "Souvenir de la Suisse," with the purpose of presenting the Swiss republic as a model to the French soldiers, who at that time under Bourbaki had retreated into Switzerland, declares: "Our laws proceed from this great principle, that our institutions are truly free and popular, only in so far as our Communes are free; we move from low to high, the Commune is the centre of our life, and there can be no true development of liberty, except so far as it proceeds from the Communes, from the centre to the circling lines, from the simple to the composite." Mr. Numa Droz, chief of foreign affairs in the Swiss Cabinet, in his "Instruction Civique," a text-book in the Swiss public school, says: "The Commune is almost the state in a small compass; to employ an illustration from natural history, it is one of the cells of which the social body is composed. It is certain that a much-developed local right contributes to the strength and prosperity of the state. The Communes must have perfect liberty in rivalling one another in their efforts to satisfy and advance the interests they have in charge. So, care must be taken not to reduce them to a uniform level, which would stifle all spirit of initiative, every desire for improvement. The Communes were the first and principal nurseries of democracy, and are still so in many countries. In their bosom the citizens are best able of training themselves for public life, of familiarizing themselves with administrative questions, and learning how to deal with them. They are the natural nursery grounds, whence the state legislators and public servants come. A citizen, reared in the practical school of communal life, will always understand better the

popular wants than one whose political education has been obtained in the offices of federal administration.”

The commission appointed by the National Council to prepare a revised constitution for the Confederation, in their report, May, 1871, say: “The liberty of the Swiss Commune is justly considered as the school and cradle of our political liberties.”

The Swiss constitution expressly recognizes communal citizenship and rights. In declaring that every Swiss citizen shall enjoy at his place of residence all rights of the citizens of the Canton, as also, all rights of the citizens of the Commune, it makes this reservation: “He shall, however, have no share in the common property of citizens or of the corporation, nor shall he exercise the right to vote in matters pertaining purely to such affairs, unless the cantonal laws determine otherwise.” It further provides that “No Canton shall deprive any of its citizens of his rights, whether acquired by birth or settlement,” referring to the citizenship derived from his “Commune d’Origine.” Every child born of registered citizens becomes, by birth, a citizen of the Commune, and thereby also a citizen of the Canton, and of the Confederation. He shares all political rights, exercises them according to established rule, is supported by the communal funds when in distress, and assists in bearing all Communal burdens. He is therefore fully entitled to every Swiss privilege, when his name once stands in the communal register, and of these sacred rights he cannot be alienated. All whose names are not thus registered are of the “homeless” (“Heimathlosen”), a word of melancholy significance in Switzerland.

Membership of a Commune comes by descent or purchase; and marriage confers on the wife the communal citizenship of her husband. In the first, that of descent, the right of the Commune depends not on place of birth or domicile, but on descent from parents who are citizens of the Commune, even though they live outside of it. It is not unlike the old Roman municipal law, which was also based on *origo* from a particular *municipium*. In the second, that of purchase, it is of the essence of a Commune that the stranger should be admitted to membership only on such terms as the Commune itself may think good. In every case it is regarded as a privilege and an affair of sale. A man of any craft or creed may apply for admission, but the Commune is the judge of whether his prayer will be granted or not. More or less inquiry will be made as to his antecedents, his

ability to support himself, and his belongings; but, at all events, it is a business transaction, and the price varies according to the value of the communal property, the age, condition in life, and number in the family of the applicant. So much for a wife and each child; a boy is taxed more than a girl, for in the course of time the one may add by marriage to the burden of the Commune, and the other may lessen it by marrying into another Commune. In some, the craft and calling are regarded; in a few, where they are in part a congregation with a common faith in charge, religious considerations may weigh more than any thought of worldly goods. A foreigner is usually charged more than a native. In olden time this discrimination extended to citizens of other Cantons, and the last trace of this distinction was only abolished in 1871 by the Commune of Lausanne. Some Communes are closed, but many remain open for additional members. Under any circumstances, it is a privilege to be bought, and the tariff varies from 50 to 5000 francs, or from ten to one thousand dollars. This operates as a tax on Swiss citizenship, of which the Commune is the necessary basis.⁵⁵

Originally, entrance into the Guilds, or *Zünfte*, was the only road to citizenship in the Commune. These corporations or guilds had certain monopolies and political privileges. It was a prominent feature of the time that every mass of men, in any way whatever associated, was also incorporated. They were necessary for the protection of the humble burgher and infant industry against an unruly aristocracy, as well as, in some cases, for the transmission of knowledge and skill. Without them the cities would never have performed their high service in the promotion of civilization, and the acknowledgment of the burgher's rights. The various trades were separated by these guilds, but within them the employer and the employed had a common interest. Their effect was to strengthen the rights of their members and to raise the dignity of their masters. Under the reign of Henry I., surnamed the Fowler, when that awful catastrophe came over all the central part of Europe, the irruption of the terrible and ferocious Magyars, who swarmed westward from Hungary, spreading horror and desolation wherever they went, and Helvetia, being exactly in their course and unfortified against such an invasion, suffered fearfully, he compassionated its helpless condition and took pains to fortify the cities and towns. The peasantry, however, were so attached to their free mountain lives that often, in spite of all danger, they could not be persuaded to come into the towns.

So, in order to induce them to do so, Henry conferred very many privileges on the citizens of the towns, and in this way laid the foundation of the guild and burgher class. All the members of the guilds had to be burghers of the particular Commune. The systematic education and gradual development of the artisan class, their progress in technical skill and in wealth, their privilege of carrying arms under the banner of their corporation or guild, their permanent connection with the interests and prosperity of the town, all tended to awaken in the artisans a sense of their importance. As the administration of justice became general, government became national, and skill and knowledge were so diffused that no special protection, by way of monopolizing guilds, was any longer deemed necessary. In order to check the tendency of members of poor Communes to establish themselves in more prosperous ones, a practice prevalent when the property was held in common by all the inhabitants, there was a close corporation constituted, called the Burgher Commune, to the members of which the communal property was limited; the remaining inhabitants being excluded from participation in it, as well as in the local administration. It soon came to pass, with increased facility of communications, that in most Communes the majority of the inhabitants were not burghers. It was necessary to raise taxes to meet the public expenditure, and it was not admissible that the burghers alone should administer the Commune to the exclusion of all others who dwelt within its limits. Hence in many Cantons there came to be a double Commune; that of the burghers who kept their property and only looked after the interests of their own members, especially of those who were poor; then there was that of the inhabitants forming a municipality, embracing the whole of the population and providing for the public service. The former is known as the *Commune des bourgeois* or *Bürgergemeinde*; the latter, *Commune des habitants* or *Einwohnergemeinde*. This dual communal organism has given rise to much political contention, the Radicals desiring to abolish all Burgher Communes and to establish what is termed a “unique” Commune of all the inhabitants; but to this the Conservatives of all shades are strongly opposed.

There is no limit as to the area or population of the Commune. In the Canton of Bern there are 509 Communes, the largest embracing a population of 44,000, and the smallest 35; many have less than 200 inhabitants. Some are rich and extensive, others are poor and small. Rules

and regulations differ, but each Commune is free and independent in itself, subject only to the supervision of the Canton.

Every Commune owns some land, some wood, and some water-right, in common fee. These constitute the communal fund, in which each member has an equal share. The allotment of land is so made that every one may have a part in the different kinds, forest, pasture, and arable. Each Commune manages its common property very much its own fashion, but from the general similarity of their circumstances and conditions, certain uniform methods pervade their management. It is with these general features we will deal. All the Communes which have arable lands, allot them among their members upon an equitable basis; consequently one will see a large number of small squares of land growing different crops, and resembling a checker-board; each one constitutes the share of a member of the Commune; and one hundred and twenty-nine gleaners have been counted in a field, thus subdivided, of less than six acres. A large part of the land of each Commune is preserved as a common domain, called *Allmend*, signifying the property of all. It means land which is held and used, as the word itself indicates, in common; and by common usage the name *Allmend* is restricted in some Communes to that portion of the undivided domain situated near the village, and which is under cultivation. These common lands may be divided into three general classes, forest, meadow, and cultivated land (*Wald*, *Weide*, and *Feld*). Some Communes have in addition lands where rushes are cut for litter (*Riethern*), and others where turf is cut for fuel (*Torfplätze*). The economic corporation, which owns the *Allmends*, is distinct from the political body which constitutes the Commune. The right exercised by the Communes over their domain is not a right of “collective ownership,” it is a right of “common ownership.” The domain does not belong to a collection of individuals, it belongs to a perpetual corporation. The individual has no share in the landed property, but merely a right to a proportional part of the produce. Then in some are the old burghers and the new burghers. The former are the lineal descendants of those who were burghers for hundreds of years, and they only own these lands in common; the latter are those, or the descendants of those, who, having come in from other Cantons or Communes, settled in the place, and have no rights of any kind in the common land. The land may be common to all the old burghers of a Commune equally; it is then said to belong to the Commune; or it may belong to sections of the old burghers, as, for instance,

to those who reside in a particular class of families; and again these may hold it either simply for their own use or for the promotion of some defined object. The right of common, with rare exception, cannot be assigned, transferred, or let, except to Communes; it is a right inherent in the person. As a rule, the right belongs to every separate couple of hereditary usufructuaries, who have had “fire and light” within the Commune during the year or at some fixed date. The girls and young men therefore very commonly keep their own little *ménage*, even though they have to go to their daily work at other people’s houses; and if they have remained the whole week away from their home, they come back on Sunday evening to make “fire and light” in their habitations. A young man when he marries can claim the right; this rule is extended to a widow or orphans living together, and sometimes to every son who attains the age of twenty-five, provided he lives in a separate house. Natural children, whose parentage is known, may also claim their share. To the communitarian, his native soil is a veritable *alma parens*, a good foster-mother. He has a share in it by virtue of a personal inalienable right, which no one can dispute, and which the lapse of centuries has consecrated. It does not simply give its members abstract rights; it procures them also in some measure the means of existence. It provides a valuable resource for indigent families, and preserves them at least from the last extremity of distress. It supplies the expenses of the school, the church, the police, and the roads, besides securing to its members the enjoyment of property. In a few Communes the wine and bread, which is the fruit of their joint labor, forms the basis of an annual banquet, at which all the members of the Commune take part, and is known as the *Gemeinde-trinket*.

In 1799 the Swiss republic forbade all partition of communal land, declaring, “these lands are the inheritance of your fathers, the fruit of many years of toil and care, and belong not to you alone, but also to your descendants.” There are, however, indications of a tendency in Switzerland—which stands alone in the world as a land that has maintained both the free political institutions and the communal system of property, of the times before feudalism—towards a disintegration of the *Allmend*. Thus, in the Canton of Glarus, the commonable Alps are let by auction for a number of years, and, in complete opposition to the ancient principles, strangers may obtain them. A project was recently submitted to the Grand Council of Bern, to facilitate the dissolution of the Communes, and to allow of the

realization of their property by the members. It received little support, but was significant of the existence of a sentiment that may some day become formidable and aggressive. Common property still plays a very important part in the economic life of the Alpine Cantons, but private property is spreading considerably. Facilities for transportation, the substitution of machinery for manual labor, the accumulation of capital, and all the marvellous revolution and progress of industrial life, have brought about conditions which render the system of commonable lands no longer the best. Families can be supported without this common use, and, in most cases, better without it than with it. It might be shown that, when capital exists in abundance, this common use is a hinderance to the greatest possible production of food for the people. No system that has been assailed by such conditions has ever been able to maintain itself. It will be no defence of it, to say that it has hitherto been a good and workable system, and that the long ages of its existence have proved it to be so. This is what might have been said, and doubtless was said with truth, but without effect, of every system, not only of agronomy, but of everything else that was ever established in the world. This is the logic of sentiment, of habit, of custom, of tradition, and of those who think that they have interests distinct from and superior to the interests of the rest of the community, and of those who cannot understand what is understood by the rest of the world. It is, however, no match for the logic of facts, and of the general interest, the public good. That must ever be the strongest logic, as well as the highest law. If, then, this common use of land should be overturned by capital, notwithstanding its long history and all that may be said on its behalf, we may infer that it was the absence of capital which brought it into being and maintained it. The abolition of common lands, or *Allmends*, the disappearance of communal property into private ownership, would not involve the existence of the Commune or impair the value of its most salient features. The Commune forms a distinct part of the state organism, as constituted by the cantonal power; it is a society of citizens for the purpose of exercising the rights of election, legislation, and administration; it has functions, as to certain affairs, in which it is vested with a certain autonomy; its institutions, estates, and donations, within the limits of the cantonal constitution, being under its exclusive authority and direction. It is as administrative units, presenting an orderly and systematic arrangement, giving the population an opportunity to exercise an immediate influence on

affairs, and quickly awakening the public spirit, that the Communes possess their most essential importance. The reason that the republican system is so firmly established in Switzerland is, that it has its roots in these minute districts forming the principal forces of political and administrative life. Freedom is best served by breaking up commonwealths into small self-governing communities. They decentralize the government. A free state is free, not so much because its executive or even because its legislature takes a certain shape, as because its people are free to speak their minds and to act as they choose, within the limits of the law, in all matters, public and private. That is the best form of government that best secures these powers to its people. In Switzerland national freedom has grown out of personal and local freedom. The Confederation is a union of independent Cantons, the Cantons a union of autonomous Communes. Political life is localized, centripetal, intense, expressing itself in social and civic forms. The parts come before the whole, the smaller units are not divisions of the whole, but the whole is made up by the aggregation of the smaller units. Each stage—Commune, Canton, Confederation—is alike self-acting within its own range. Many of the Cantons changed from oligarchies to democracies, many rose from the rank of subjects to the rank of confederates; in all, their institutions rested on an ancient and immemorial groundwork of Communes; and whatever is new in them has grown naturally and consistently out of the old. During the time when the greater Cantons were aristocratically governed, some by a hereditary class of patricians, others by the exclusive corporation of burghers, communal liberty was retained as the basis of the cantonal organization, and through its influence, the republic, the political ideal of the people, had its deep root in the popular character and customs; therefore the transition from an aristocratic to a representative republic was easy and natural, when, in harmony with modern theories, civil liberties were extended to all classes.

Switzerland has 2706 Communes, divided as to nationality, 1352 German, 945 French, 291 Italian, and 118 in the Grisons, where the Romansch language is used. These Communes as an area of general state administration serve for electoral districts, and as voting districts for the Referendum. Their powers are numerous. They provide for all the public services within their limits, much after the manner of a Canton; they possess a sort of local police, which keeps order day and night in their territory, is present at fairs and markets, having an eye to the public houses,

and watches over rural property. Other communal officials maintain the public buildings, roads, fountains, look after the lighting, take measures against fires, superintend schools and religious matters, and supply aid to the poor both in sickness and health. In the small Communes there is only a municipal council, composed of not less than four, elected directly by the members of the Commune in a general assembly (*Gemeinde-Versammlung*), one of whom is made presiding officer and called the *Syndic* or *Maire*. In the large Communes there are two councils, one legislative and the other executive. A greater or less number of Communes in each Canton form a district, presided over by a *Prefect* (*Regierungsstatthalter*) who represents the cantonal government. The functions of the communal assemblies extend to: voting the budget, receipts and expenses; the determination and apportionment of taxes; the choice of president and functionaries of every kind, with the right of controlling and dismissing them; administration of property belonging to the Commune; acceptance or modification of all communal regulations; foundation of churches, charitable institutions, hospitals, school-houses and prisons. The assembly or legislative council elects the communal or executive council, and the president of this body is the chief official of the Commune. Every citizen is eligible to the communal council, who is domiciled in the Commune, and a qualified voter in the communal assembly. The qualifications which entitle every citizen in the Commune to vote in the communal assembly require that he must have attained his twentieth year, be *sui juris*, in full enjoyment of the general civil and political rights of the citizen, and be under no temporary civil or criminal disability. Paupers and those who have not paid their taxes cannot vote; those, too, who from intemperate habits have been prohibited from frequenting public houses are not allowed to vote during that probationary period. The principal matters assigned to the supervision of a communal council embrace: the local police, including residents and establishments in the Commune; guardianship, embracing orphans and those not capable of managing their own property (for any improvident citizen may be made a ward, and the control of his property taken away from him); the poor, relieving them as far as possible from the communal funds, and when this is insufficient, to seek voluntary contributions; public instruction, appointing the teachers in the primary schools and paying their salaries; levying taxes upon the landed property, capital and revenue, for the administration of the Commune, when revenues of communal property are insufficient. The habit

of borrowing money on the security of communal credit has obtained but little footing; far from being disposed to spare themselves by throwing burdens on their successors, they rather think it necessary to get together and keep together a capital which shall produce interest, a school fund, a poor fund, so the weight of annual taxation for these purposes may be lightened. In general, every citizen of a Commune must serve his two years in any office to which he is elected, unless excused, from the fact that he is already filling some public position, or that he is sixty years old or in bad health; every one takes his turn of office, as he takes, in earlier days, his spell of school, and in his later days, his spell of camp. Non-members of the Commune, if Swiss citizens, by virtue of a constitutional provision, have within it equal rights, excepting in respect of the communal property; nor can they be subjected to taxes or other contributions than those imposed on their own citizens. Every inhabitant of a Commune must be inscribed at the police office, and be prepared at all times to show that he is really a member of the Commune; if he removes to another Canton he must be fortified with this evidence of his communal citizenship, or he will not be allowed to remain. This regulation is strictly enforced in every case, specially where the party is in any danger of becoming a public burden. Every Commune, under this strict police surveillance, is absolutely protected against being compelled to support the vagrants or beggars of other Communes. The idea that it is the duty of the Commune to take care of its poor, the unfortunate, and incapable is firmly planted in the mind and breast of every member. They will try to prevent an hereditary or professional pauper from acquiring a domicile in the Commune, and to return to their own Communes shiftless persons that are apt to need aid, but are ready to relieve every case of destitution which fairly belongs in the Commune.

The control of the Canton over the Communes in early times was only nominal; it consisted in finding fault and proposing amendments that were not adopted; any semblance of cantonal interference, in the way of inspection and suggestions, being resented by the Communes. Of later years there has been a gradual and systematic improvement in the relation of the Canton and the Commune; and increased activity of cantonal superintendence has effected a better management of the Commune. The common funds as well as the common obligations have been subjected to more efficient rules, without at all extinguishing the principle of distinct communal management. Communal accounts are referable to the Canton

for investigation and correction. Where great irregularities are discovered (which occurred once), the Canton has the right to put a Commune under guardianship; a Commune might, indeed, under certain circumstances be forced into bankruptcy. The Constitution of 1874 largely extended this cantonal supervision over the Commune, and modified many extraordinary powers hitherto exercised by it. Some writers look upon the Commune as representing an "antiquated form of corporation," to which the modern era is opposed; a sort of mediæval fraternity for the existence of which no plausible ground can be found. Others still contend that the Communes form the true unities, through which, by equilibration of the interests of each, the wants of the whole are more wisely and effectively served. The republic of Switzerland can largely trace its foundation, historically, to a free communal constitution. It forms the solid foundation of the whole organization. In the Commune, the citizen himself feels that he is connected with his fellow-members by the bonds of a common ownership; and with his fellow-citizens, by the common exercise of the same right. With him the fair motto of the French, "Liberty, Equality, and Fraternity," is no empty formula inscribed on the tablets of public documents. His liberty is complete, and has been handed down from remote antiquity; equality is a fact sanctioned by all his laws; fraternity is not mere sentiment, it is embodied in institutions which make the members of the same Commune members of one family, partaking, by equal right, in the hereditary patrimony. It would be unnatural if he was not deeply attached to an administration in which he takes so constant and essential a part. It is to him, also, the nursery of independence, and the training-school for higher politics; not controversial, office-seeking, electioneering politics, but politics as including in one and the same comprehensive signification, as in the vocabulary of a free country it should be, all the relations and obligations of the citizen to the state. The rights and duties of a citizen are themes of daily interest and discussion in the Commune, and are taught in all its secondary and superior schools; every one is instructed and encouraged to take a personal and intelligent interest in what concerns the public weal, to be familiar with the public business, to the interchange of ideas, and to the give-and-take of civic life generally. He is taught that no man liveth to himself in a republic, but every man has public duties, every man is a public man, every man holds one high, sacred, all-embracing office, the office of a free citizen.

Switzerland, with its Communes, fully answers Aristotle's definition of a state, as "the association of clans and village communities in a complete and self-sufficing life." Small bodies are more closely united and more vigorous in the pursuit of their end than large communities; this results from their leading more easily to personal friendships, and from the circumstance that, in a limited circle, men are brought more frequently and immediately into contact with one another. By this means their sympathetic feelings become more deeply interested in the common welfare; they see more clearly that they are pursuing a common object, and perceive the importance of vigorous co-operation on the part of each member of the association. Amid so small a number, each person feels that his single vote and exertions are of consequence, and the thought of this excites in him a sense of responsibility, and inspires him with a more lively interest in that government of which he himself is an efficient member. Every man who fills a communal station, however humble, is conscious that he is playing his part in the presence of the whole miniature republic, and that his conduct is every moment exposed to a minute and jealous scrutiny. By all these circumstances public virtue is stimulated, corruption checked, mutual sympathy heightened, patriotic zeal inflamed, and the union of public with private interests clearly and substantially demonstrated. "It is not by the consolidation or concentration of powers, but by their distribution, that good government is effected. Were not this great country already divided into States, that division must be made, that each might do for itself what concerns itself directly, and what it can so much better do than a distant authority. Every State again is divided into counties, each to take care of what lies within its local bounds; each county again into townships or wards, to manage minuter details; and every ward into farms, to be governed each by its individual owner. It is by this partition of cares, descending in gradation from general to particular, that the mass of human affairs may be best managed for the good and prosperity of all."⁵⁶

CHAPTER X.

CITIZENSHIP.

In the old days of the Swiss Confederation, the days of the *Staatenbund*, when no part of the internal sovereignty had been given over to any central power, the citizen of any Canton was regarded and treated as a foreigner in any other Canton; he was as strictly a *metoikos* as a Corinthian who had settled at Athens, having no voice in the government either of the Canton or Commune into which he removed. All Swiss citizens who settled in *Gemeinden*, or Communes, of which they had not the hereditary burghership, answered exactly to the Greek *metoikos*; being in every important respect strangers in the places where they themselves dwelt, and where, perhaps, their forefathers had dwelt for generations. Down to 1815, it was left to each Canton to determine for itself the conditions under which persons from without could settle and gain citizenship; and for the first time, under the Constitution of 1848, a general law governing this matter was adopted; and it was still further extended and elaborated by that of 1874.⁵⁷ The good example of the United States, where it had already been constitutionally provided that “the citizens of each State shall be entitled to all privileges and immunities of citizens in the several States,” was followed in the present Swiss constitution; giving every Swiss citizen equal federal and cantonal rights, in whatever part of the Confederation he may settle. The two higher franchises, those of the Confederation and the Canton, are assured to him at his place of domicile as fully as to a native thereof; but to the lower franchise of the Commune he can be admitted only by a special grant, or by the effect of some special cantonal enactment. Communal questions, even including citizenship, are left to the legislation of the Canton and of the Commune itself, the federal constitution only providing that one domiciled in the Commune shall not be discriminated against as to taxation. The mere fact of indefinite residence and contribution to the local taxes no more gives one a right to communal than it would to American citizenship. Membership in the Commune is the determining factor of Swiss citizenship. Modern states generally recognize nationality as a personal relation not mainly dependent on place of birth or domicile, but

on descent from members of the nation and personal reception into its membership, place of birth and domicile coming in to complete the notion. Midway between these comes the Swiss principle of membership in the Communes, which forms the basis of membership of the Canton (*Cantonsbürgerrecht*), and that, in turn, of the Swiss Confederation (*Schweizerbürgerrecht*). Citizenship in Switzerland is primarily an affair of the Commune, from which the broader conception of citizenship in the Canton and the Confederation must be reached. The “right of origin” is the great imprescriptible right and muniment of Swiss citizenship, and the production of a certificate of *Commune d’Origine* secures the constitutional right “to establish residence at any point in Swiss territory.” The lines of distinction between these several conceptions are not clearly presented, even to the minds of the Swiss themselves.

Under Article XIV., amendment of the Constitution of the United States, “All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside.” The two methods indicated in which one may become a citizen of the United States are very simple and intelligible; first, by birth in the United States;⁵⁸ and, second, by naturalization therein. The only qualification as to either method, applies to the first, requiring that a citizen by birth must not only be born within the United States, but he must also be “subject to the jurisdiction thereof,”—meaning that whole and complete jurisdiction to which citizens generally are subject, and not any qualified and partial jurisdiction, such as may consist with allegiance to some other government. The process of naturalization, whereby one renounces any foreign allegiance and takes upon himself the obligations of citizenship, is equally simple, being effected by proceedings under general laws prescribed by Congress; which is empowered by the constitution “to establish an uniform rule of naturalization.” The Fourteenth Amendment, in the clause above quoted, certainly recognizes that there is a citizenship of the United States, and also a citizenship of the several States; and that the two coexist in the same persons. It is no longer possible to conceive of such a status as citizenship of a State unconnected with citizenship of the United States, or of citizenship of the United States, with a residence in a State, unconnected with citizenship of the State. The States cannot naturalize; the act of naturalization by the United States is the grant of citizenship within the State where the naturalized person resides. It is only in the Territories

and other places over which the State has ceded exclusive jurisdiction to the United States that there can be a citizenship of the United States unconnected with citizenship of a State. There are in the United States system:

1. The several bodies of electors which compose the several States, in their character of sovereign and independent political communities, united as such by the constitution, and which are alone invested with political rights and charged with political duties.

2. The several bodies of citizens, which compose the several States in their character of separate civil societies, each of which bodies is immediately subject to the government and entitled to the protection of the particular State to which it belongs, but does not necessarily have a voice or share in the government, state or federal.

3. The common body of citizens of the United States, that is to say, the citizens of each State and Territory, as “entitled to all privileges and immunities of citizens in the several States.”

These privileges and immunities have always been construed to mean such rights and privileges as are in their nature fundamental, such as belong of right to the citizens of all free governments, such as at all times have been enjoyed by the citizens of the several States from the time of their becoming free, sovereign, and independent. Recognizing the distinction between the inhabitants of a State and its citizens, Mr. Caleb Cushing defines the latter as the “sovereign, constituent ingredients of the government.” To the same effect speaks Mr. Chief-Justice Waite in the *United States vs. Cruikshank*: “Citizens are members of the political community to which they belong. They are the people who compose the community, and who in their associated capacity have established or submitted themselves to the dominion of a government for the promotion of their general welfare, and the protection of their individual as well as their collective rights.”

The political community in a State differs from the civil community; it is less numerically, but it comprehends special privileges. Membership therein implies the possession, not only of the civil rights, but of the privilege of participating in the sovereignty. Whereas membership in the civil community alone implies merely the possession of the civil rights,—

i.e., the rights of personal security, of personal liberty, and of private property.⁵⁹ Under the Articles of Confederation, the States constituting only a league, citizenship of the so-united States was a thing inconceivable; accordingly the only citizenship then possible, as a legal fact, was citizenship of the State. National citizenship was introduced for the first time by the Constitution of 1787. Still that constitution contained no definition of citizenship of the United States. Under the provision that “the citizens of each State shall be entitled to all the privileges and immunities of citizens in the several States,” a person going from one commonwealth into another, acquired no other status than that held by the race or class to which he belonged in the commonwealth into which he went. The only sense in which a citizenship of the United States existed was in the provisions where it appears as a qualification for office. The phrase “citizen of the United States” is employed three times, as to eligibility for the several positions of President, Senator, and Representative in Congress. From the adoption of the constitution to the time of the ratification of the Fourteenth Amendment thereto, the existence of such a thing as citizenship of the United States, in the sense of a citizenship independent of the citizenship of the several States, was hardly admitted. Then citizenship of the United States was not primary and paramount, but secondary and subordinate; it was only an incident of State citizenship. Story wrote in his Commentaries: “It has always been well understood among jurists in this country that the citizens of each State in the Union are *ipso facto* citizens of the United States.” Said Mr. Calhoun, in his speech on the “Force Bill,” delivered in 1833, “A citizen at large, one whose citizenship extends to the entire geographical limits of the country without having a local citizenship in some State or Territory, a sort of citizen of the world, such a citizen would be a perfect nondescript; not a single individual of this description can be found in the entire mass of our population.” Mr. Justice Curtis, in his dissenting opinion in the Dred Scott case, took the position that citizenship of the United States was dependent entirely upon citizenship of some one of the several States as such. Mr. Calhoun and Mr. Curtis agreed that the power of Congress, under the constitution, “to establish an uniform rule of naturalization,” was simply the power “to remove the disabilities of foreign birth.” On the other hand, Mr. Justice Marshall, in 1832, held, in the case of *Gassies vs. Ballon*, that a naturalized citizen of the United States, residing in any State of the Union, was a citizen of that State. Marshall and Curtis, in their respective

views, represented the difference which obtained between the advocates of State rights and their opponents, on the question of citizenship of the United States. By the adoption of the Fourteenth Amendment this was all changed, and is now placed beyond controversy. The principle is inverted.⁶⁰ Citizenship of the United States now depends in no way upon citizenship in any State or Territory, but merely upon birth in the United States, coupled with subjection to the jurisdiction thereof, or upon naturalization. The term “subject to jurisdiction,” must be construed in the sense in which the term is used in international law, as accepted in the United States as well as in Europe; and by this law the children born abroad of American citizens are regarded as citizens of the United States, with the right, on reaching full age, to elect one allegiance and repudiate the other, such election to be final. If the Fourteenth Amendment furnished an exhaustive and comprehensive definition of citizenship, such children would not be citizens. That it does not furnish such definition is intimated by Mr. Justice Miller in the Slaughter-House cases, and by Mr. Justice Field in his dissenting opinion. In the same cases it was decided that the privileges and immunities appurtenant to citizenship of the United States were different and distinct from those appurtenant to State citizenship; being merely those special and limited privileges and immunities arising from the special and limited scope under the constitution of the federal or United States authority. The theory laid down in the Slaughter-House cases suggests a query as to the converse. Cannot a person in a substantial sense be a citizen of a State and at the same time not be a citizen of the United States, the Fourteenth Amendment to the contrary notwithstanding? Is it not within the power of a State to grant to an alien, residing within its limits, all the rights and privileges enjoyed by its native-born or naturalized citizens, so far as such rights and privileges are under control of the State?—that is, to naturalize an alien to the extent of its own exclusive jurisdiction, even to the extent of voting for United States officials, thus practically making him a member of the political community in the United States. Said the Supreme Court, through Chief-Justice Taney, in the Dred Scott case: “We must not confound the rights of citizenship which a State may confer within its own limits and the rights of citizenship as a member of the Union;” and Mr. Pomeroy, in his “Constitutional Law,” writes: “While it is settled that the Congress of the United States has exclusive authority to make rules for naturalization, it must not be understood that the States are deprived of all jurisdiction to legislate

respecting the rights and duties of aliens. They may permit or forbid persons of alien birth to hold, acquire, or transmit property; to vote at State or national elections, etc. These capacities do not belong to the United States citizenship as such.” It is true that the constitution of the United States makes no one a member of the *political* body, a capacity which comes only with citizenship of the State; and therefore it confers the right to vote upon no one. That right comes even to the “citizens of the United States,” when they possess it at all, under State laws, and as a grant of State sovereignty. The amendment, Article XV., confers upon citizens of the United States a new exemption; namely, an exemption from discrimination in elections on account of race, color, or previous condition of servitude; and to the extent that, should it be needful to protect this exemption, Congress may provide by appropriate legislation. The Fifteenth Amendment endows the individual with the potentiality of enfranchisement, not its actuality, and did not absolutely make him an elector. It did not deprive the people of the States of the discretion, in their primary capacity, to decide who of their number should enjoy the political franchise. It simply forbade them to adopt a particular rule of discrimination.

The Swiss constitution goes far beyond that of the United States in dealing with citizenship, and the rights, civil and political, thereto commonly appertaining. It practically reverses the system as it exists in the United States. There are no citizens of Switzerland and *ipso facto* citizens of the Canton “wherein they reside.” To the contrary, “every citizen of a Canton,” the constitution declares, “is a Swiss citizen.” In the words of an eminent Swiss writer, “The national citizenship proceeds from below.” As to the electoral body, while in the United States it is determined by the State, within the limitations of the Fifteenth Amendment, in Switzerland, with the exceptions as to communal corporate matters, it is fixed by the Confederation in its organic law, with provisions clear and full. Swiss political active citizenship is derived from above, proceeding from the Confederation, and from this source descending to the Canton and the Commune. The individual once admitted to cantonal citizenship, the Confederation steps forward and invests him with its nationality, and asserts its exclusive dominion over him as an elector, declaring he may take part, in any place where he has acquired residence, in all federal elections and votes. Coming from any part of the Confederation and taking up his residence in a Canton, he may, after a residence of three months there, enjoy

in his place of settlement all the rights of a citizen of the Canton; and with these, also, the rights of a citizen of a Commune, except as to the common property and corporation. The Confederation, under the constitution, is charged with fixing, by law, “the limits within which a Swiss citizen may be deprived of his political rights.” Swiss citizenship, as defined in the constitution,—“Every citizen of a Canton is also a Swiss citizen,”—is far from being so accessible as the simple terms of its definition might imply. It is a difficult, tedious, and expensive process. As the cantonal citizenship precedes the federal, so the communal citizenship precedes the cantonal. Every Swiss citizen must belong to some Commune. He must possess a Commune of origin, which in French is called “*Bourgeoisie*,” and in German “*Bürgergemeinde*.” If not obtained by inheritance, then he must purchase it at what the Commune sees proper to charge; only a few poorer Communes having free admission, or at least with trifling fees.

The foreigner, seeking Swiss citizenship, must first show that he has resided in Switzerland during the two years preceding his application, and that there is nothing in his relations to his native country that will involve prejudice to the Confederation by his admission to Swiss citizenship. These conditions being satisfactorily complied with, he is granted by the Federal Council authority to be received as a citizen of a Canton and of a Commune; and for which permit he pays the Confederation thirty-five francs. The Federal Council, with considerate regard for the serious undertaking of the applicant, allows two years within which the permit may be used, and if, at the expiration of that period, it be desired, will renew it upon the payment of a small additional tax. On receiving the permit the holder sets out to find communal citizenship, as the first essential step. This, as described, is practically a matter of purchase. With this acquired, he must supplement it with cantonal citizenship, and of that Canton in which the Commune is located, otherwise it is of no avail. The agreement for communal membership is always predicated upon the favorable action of a Canton, and the consideration is not paid until its action is had. The cantonal citizenship is the *pons asinorum*,—it is the cap-stone, and the most difficult to secure. The permit from the Federal Council is freely given; the communal admission a question largely of francs, with some slight inquiry as to character and condition; but the Canton considers the petition from a different and higher stand-point. The Canton is not particularly concerned about the applicant being able-bodied and possessed of those qualities and

conditions which insure contribution from him rather than distribution to him from the common property of the Commune. The Canton has regard to whether the applicant will be a desirable citizen, and not to the material aspects which are paramount with the Commune. It occurs, not infrequently, that a successful purchaser of communal membership fails as a petitioner to pass the cantonal ordeal.⁶¹ The granting of a cantonal or communal naturalization without the previous approval of the Federal Council is void; and the federal authority to acquire citizenship is equally futile, until followed up by cantonal and communal naturalization according to the laws of the Canton. This involved process that hedges Swiss citizenship, and the cost of its selection in a desirable Commune, have deterred many foreigners who have taken up their permanent residence in Switzerland, from making any attempt for its acquisition. The number of this class at present is estimated to be nearly ten per cent. of the whole population; and the Federal Council is considering the policy of amending the law, so that naturalization may be more easily effected, in order to convert a great portion of these strangers into Swiss citizens. When Swiss citizenship is once obtained, by birth or naturalization, it is not easily lost or set aside. In this the federal constitution determines the conduct of the Canton, and does not permit it "to banish one of its citizens from its territory, or deprive him of the right of citizenship." The "right of township or origin," the highest and firmest right of citizenship, is a sacred and imprescriptible right, which the constitution places above any power to take away or impair. By virtue of the constitutional authority of the Confederation, "to fix the conditions upon which foreigners may be naturalized, as well as those upon which a Swiss may give up his citizenship in order to obtain naturalization in a foreign country," a federal law was enacted in 1876. It provides that "a Swiss citizen may renounce his citizenship if he has no domicile in Switzerland, and if he is enjoying fully all civil rights according to the laws of the country where he resides, and that he has already acquired citizenship in another country, or the assurance of its being granted for himself, his wife, and minor children. The declaration of renunciation is to be submitted in writing, accompanied by the required statement, to the cantonal government, which will notify the respective communal authorities, in order to inform such parties as are interested, and a term of four weeks is fixed for presenting objections." The Federal Tribunal decides in such cases, where objection is made to the

renunciation; and in event of no objection being made, or if made and judicially overruled, then the discharge from cantonal and communal citizenship is pronounced and entered on record. This discharge includes Swiss citizenship or denationalization, and dates from its issue and delivery to the applicant; it also extends to the wife and minor children, when they are domiciled or living together, and if no special exceptions be made in regard to them. The widow or the divorced wife of a Swiss citizen, who has renounced his nationality, and such children of a former Swiss citizen, as were minors at the time of such renunciation, may request of the Federal Council to be readmitted as citizens. This privilege will not be granted to the widow or divorced wife, unless the application be made within ten years after the dissolution of the marriage; nor to the children, unless made within ten years after attaining their majority. After the expiration of these periods, the parties in either case must acquire citizenship in the manner prescribed for aliens. The substance, indeed, the identical phraseology, of this law was anticipated by the Federal Council in its answer, made in 1868, to an appeal from the British government, relating to expatriation and naturalization. The Council closed its answer in these words: "The right of Swiss citizenship ceases only with the death or by the voluntary renunciation, by the person who possesses it, of his cantonal and communal right of citizenship, and by the release which a competent authority, cantonal and communal, gives him. But this emancipation from the ties which bind him to the state is not granted until the proof exists, in due form, of the acquisition of citizenship in a foreign country." It is manifest that the entrance to and exit from Swiss citizenship is by no means through a broad and open door. The firm tie which binds him with "hoops of steel" to his country is not loosed by the mere acquisition of citizenship in another country; but proof must be submitted that he was under no disability at the time of doing so, and that he is in the full enjoyment of all the civil rights of his adopted country. In the event of a member of a Commune moving to another Canton, who does not thereby divest himself of his original communal citizenship, and fails to secure membership in the Commune where he settles (for one may become a member of several Communes), he assumes a citizenship of a twofold nature, and therefore, as explained in the chapter on "Communes," there exist in many Communes two governments,—a citizens' government and a political government, distinguished as the community of citizens and the community of inhabitants or settlers. This principle also results in a dual

national citizenship, and consequently conflicting claims of correlative rights and duties. To provide against embarrassing contingencies that might arise from this situation on the part of Swiss who have acquired citizenship in a foreign state,—without the required formal and expressed voluntary declaration of renunciation, with its equally formal and expressed acceptance to render it valid,—the federal law of 1846 declares that “persons who, in addition to Swiss citizenship, are citizens of a foreign country, are not entitled to the privileges and the protection accorded to Swiss citizens, during their residence in such a foreign state.”

It is this imprescriptible feature of Swiss communal citizenship, so deeply embedded in the public sentiment of the country and engrafted in the organic law, that has stubbornly blocked the way to all efforts, on the part of the United States, to negotiate with that country a naturalization treaty. Such treaties of reciprocal naturalization exist between the United States and all the European nations, except the two absolute monarchies of Russia and Turkey, whereby it is stipulated that domicile of certain duration and naturalization shall be recognized by both parties as terminating the previous relation. To repeated invitations from the United States to Switzerland looking to the conclusion of a similar treaty, the same answer always came from the Federal Council,—“The conception of the imprescriptibility of the Swiss citizenship, closely interwoven as it is with the views of the Swiss people, and recognized by various cantonal constitutions as a fundamental right, would make it impossible for Switzerland to conclude a treaty, whereby a citizen, after a longer or shorter absence, would lose his Swiss nationality.” In fact, to accede to this request, it would be necessary to obtain an amendment to the Swiss constitution, asserting federal control over the question. At present there is no Swiss citizenship except as it is derived from the Canton and Commune; and the Confederation is powerless to deal internationally with it. The Swiss contention that a Swiss who becomes a citizen of any other country, without specific exemption under the law, is held to the obligations of Swiss citizenship, does not distinctly embrace the doctrine of return and domicile *animo manendi* in Switzerland. The Swiss Federal Tribunal has even asserted jurisdictional powers with respect to Swiss naturalized and resident in a foreign country.

The latitude given cantonal and communal officials in the construction of the federal law of 1876, and the survival of a great body of antiquated cantonal enactments and communal ordinances, which slowly and reluctantly yield to federal legislation, complicate and render almost impossible a compliance with its provisions. It has been held that a renunciation, though presented in proper form, could not be entertained, because the party was under “guardianship.” Not a guardianship under which the law places a minor, but a guardianship authorized by cantonal and communal laws; under which any improvident adult citizen may be placed,—and these local officials are disposed to classify under this head those who emigrate, and propose subsequently to make a renunciation of Swiss citizenship, specially should any inheritance fall to them in the Cantons or Communes. These persons are coerced to return to Switzerland to obtain the possession and enjoyment of such property; or by prolonged absence permit it to escheat, and swell the common fund. Again, a very common ground of objection to renunciation is the alleged fear that the party may at some time, in the future, return to his native country and become a public charge; and this is persisted on in spite of the assurance that he has become a citizen, say, of the United States, a *bona fide* resident therein, invested with all the privileges and subject to all the obligations pertaining thereto, and if from indigence, sickness, or other cause he should become unable to maintain himself, he has a claim in common with and to the same extent as other citizens of the United States in the provisions made by law for persons reduced to that unfortunate condition, in the State in which he might happen to reside at the time of such contingency. In a recent case (1889), that of “Carl Heinrich Webber (of Philadelphia) vs. The City Council of Zurich,” the plaintiff had left Switzerland during his minority, and in due course of time was naturalized in pursuance of the statute, and desired to secure possession of his property in Zurich for purpose of transfer to the United States. This was resisted by his guardian, on the ground that while his renunciation in its preparation and presentation met the requirements of the law, still he had left Switzerland without the consent of his guardian, and therefore could not legally acquire the domicile in the United States necessary for naturalization there. This plea of the guardian was sustained by the Council of Zurich, and Webber denied his property. On an appeal to the Federal Tribunal, this decision was overruled, only on the ground that the guardian had given an implied assent to the young man’s

change of domicile; the court adding that otherwise the plea, as made and sustained by the lower court, would have been affirmed.⁶² The judicial doctrine, which so long obtained, that no one could expatriate himself without express authority of law, has given way, in principle and practice, to the natural and fundamental right to transfer allegiance, and that every man should be allowed to exercise it with no other limitation than the public safety or interest requires. The sound and prevalent doctrine now is that a citizen or subject, having faithfully performed the past and present duties resulting from his relation to the sovereign power, may at any time release himself from the obligation of allegiance, freely quit the land of his birth or adoption, search through all the countries a home, and select anywhere that which offers him the finest prospect of happiness for himself and posterity. This right rests on as firm a basis and is similar in principle to the right which legitimates resistance to tyranny. Two elements, each equally important, enter into expatriation,—the one is emigration out of one's native country, and the other is naturalization in the country adopted. All lexicographers and all jurists define naturalization in one way. In its popular etymological and legal sense, it signifies the act of adopting a foreigner and clothing him with all the privileges of a native citizen or subject. This naturalization cannot do under the Swiss contention; for the national allegiance of the Swiss cannot be thrown off and another substituted in its place without the assent of the sovereign holding the former. Naturalization in a foreign country should operate, from the time of its completion, as an extinguishment of the original citizenship; it should work absolute expatriation in law as it does in fact. A citizen who has in good faith abjured his country and become a subject of a foreign nation should to his native government be considered as denationalized; leaving it to the law of the land of his birth, whether or how he shall become repatriated. As forcibly expressed by a former Secretary of State at Washington: "The moment a foreigner becomes naturalized, his allegiance to his native country is severed forever. He experiences a new political birth,—a broad and impassable line separates him from his native country."

The right of expatriation is fully and positively established in the United States, by an act of Congress, in these words: "Whereas, the right of expatriation is a natural and inherent right of the people, indispensable to the enjoyment of the rights of life, liberty, and the pursuit of happiness; and, whereas, in the recognition of this principle, this government has frequently

received emigrants from all nations, and invested them with the right of citizenship; and, whereas, it is claimed that such American citizens, with their descendants, are subjects of foreign states, owing allegiance to the governments thereof; and, whereas, it is necessary to the maintenance of public peace that this claim of foreign allegiance should be promptly and finally disavowed; therefore any declaration, instruction, opinion, order, or decision of any officer of the United States, which denies, restricts, impairs, or questions the right of expatriation is declared inconsistent with the fundamental principles of the republic.”

Naturalization in the United States is a valuable privilege, which is considerably granted to those who desire its advantages and are willing to undertake its duties. The process is a decree of a court of record, upon the satisfactory establishment by the applicant of his lawful eligibility to the privilege of their nationality. The United States cannot admit of qualified naturalization, subject to the consent of the country of origin; nor can the United States Courts, in which the judicial power of naturalization is vested, take cognizance of the consent of a foreign state as a precedent condition to naturalization. The admissibility of a change of allegiance in the United States, without any co-operation or consent of the country of origin, is plainly implied from the very statute itself; which requires conditions of residence, of personal character, of publicity, and of abjuration under oath of allegiance to every other government, and especially to that of the country of birth, with sworn allegiance to the United States. These are all indispensable for the completion of an act of expatriation, and no more; and he who is in this manner endowed with the nationality of the United States, thereby dissolves all ties of native allegiance, and is clothed with all the rights and privileges that pertain to a native citizen, and entitled to the same degree of protection whether at home or abroad.

Citizenship is an attribute of national sovereignty, and not merely of individual or local bearing. It is a sacred right, full of grave consequences, granted with solemn formalities, and its existence should always be well defined and indisputable. Between friendly States, naturalization and expatriation should be reciprocal; and with an equal measure of obligation. Conventional adjustment is alone adequate to the removal of the most prolific source of constantly-recurring friction and tension, inevitable, in the absence of treaty stipulation.

The persistency of Switzerland upon this question in a policy so much at variance with all the liberal views of civilized nations, exhibiting a stubborn conservatism and irrational disinclination to change her laws to meet generally accepted principles and the requirements of her external relations, might well subject the Swiss to the characterization, applied at one time by Cobden to the English people, as “the Chinese of Europe.”

All laws controlling States in their relations with one another are the slow result of growth, coming from an ever-increasing and ever-varying necessity; rendering any assumption of logical consistency not only impossible, but in many instances wrong, if not dangerous, to the inevitable concurrence of doctrines demanded by general usage and international amity.

CHAPTER XI.

LAND LAW AND TESTAMENTARY POWER.

There can be no better security for the stability of the institutions of a country than by enlisting a large number of the people in their support, by giving them a stake in the prosperity of the soil. It is the highest public interest that landed property should easily get into those hands by which it can be turned to the best account; that the title to property in land should be sure and incontestable; and that there should be no legal obstacle to the subdivision of land, when the natural economy tends to it, so that the number of small land-owners shall not be artificially reduced by imperfection in the law. The larger the number of land-owners in a country, the more who have an interest in the soil they till, the more free and independent citizens there are interested in maintenance of public order. There is no ballast for a man like that of having a little earth, his own, about his feet. Cultivating his own field, growing a part of his food-supply, lodged under his own roof,—these make life pleasanter and labor lighter. The thoughts, feelings, lives of those who live under these conditions are of a higher order than the thoughts, the feelings, the lives of those who do not. Property is the essential complement of liberty. Without property man is not truly free. Whatever rights the political constitution may confer upon him, so long as he is a mere tenant he remains a dependent being; a free man politically, he is socially but a bondsman. There is no country in Europe where land possesses the great independence, and where there is so wide a distribution of land-ownership, as in Switzerland. The 5,378,122 acres devoted to agriculture are divided among 258,639 proprietors, the average size of the farms throughout the whole country being not more than twenty-one acres.⁶³ The facilities for the acquisition of land have produced small holders, with security of tenure, representing two-thirds of the entire population. There are no primogeniture, copyhold, customary tenures, and manorial rights, or other artificial obstacles to discourage land transfer and dispersion. No entails aggregating lands and tying them up, so that no living person shall be full owner, but a mere tenant for some unborn child. No family settlements with “tenants in common in tail,” with “cross-remainders

in tail," till some tenant-in-tail reaches the age of twenty-one years, when he may be able with the consent of his father, who is tenant for life, to bar the entail with all the remainders. There is no belief, in Switzerland, that land was made to minister to the perpetual elevation of a privileged class; but a wide-spread and positive sentiment, as Turgot puts it, that "the earth belongs to the living, not to the dead;" nor, it may be added, to the unborn. The natural forces of accumulation and dispersion are not hampered by ninety-nine years building leases, perpetual and irredeemable rent, or heavy expense of conveyance; but are in every way encouraged, simplified, and facilitated by the laws federal and cantonal. The wars of the fifteenth and sixteenth centuries exercised, indirectly, considerable influence on Swiss land tenure, by breaking up the large properties—monastic, conventual, and private—which had for some time been steadily augmented; and produced a reaction in favor of gradual redistribution. This wider dissemination of land among the people was carried on without rudely shocking or violating proprietary rights, as far as the few recalcitrant owners permitted it to be done; certainly with not a tithe of the legislative injustice or coercion, with which a greater part of these accumulations had been made. It is from this period that the existing system of land tenure in Switzerland may be said really to date. The feudal rights asserted by certain Cantons over others, which took the form of landed charges, were all swept away at the time of the setting up of the Helvetian Republic, in 1798. Since the commencement of this century, and especially since the constitutions of 1830 were framed, the land throughout the whole of Switzerland has been completely emancipated,—the system of peasant proprietorship working side by side with that of small tenant farmers. The survival of the Commune, intact with its various property rights in fee-simple and usufruct, does not conflict with or impede the general tendency to discourage the centralization of landed property in the hands of the few. For it has come to be axiomatic with the Swiss that the effort to acquire land is the mainspring of the life of the peasant, the root of his industry, of his painstaking, frugal, and saving life. The solid, sterling elements of the Swiss peasant's character are traced by all the native writers to their source in the educative power of property,—property in land.

There exists no federal land code in Switzerland. Contracts relating to the sale and purchase of lands, easements, and mortgages are governed by the law of each Canton. In general, all questions as to the devolution of

property, by will or upon intestacy, are regulated by the Cantons, and not within the competence of the Confederation. There is an official survey containing a plan of each Commune, with the parcels of land, their areas, annual values, and peculiarities indicated, of which any one may have a copy under a fixed schedule of charges. The federal code of obligations, adopted in 1861, contains twenty-five articles relating to leases of land. It was claimed at the time of the passage of this law, by some of the ablest lawyers, to be an assumption by the government of a very doubtful power, an interference with the ownership of the soil, and the infringement of an exclusive right guaranteed to the Cantons. The friends of the measure contended that its provisions did not involve the title or ownership of realty, but only had to do with the rights of persons, which clearly fell within the competency of the Federal Assembly. This view obtained. While it is difficult to examine this elaborate act and its far-reaching provisions, without a conviction that it bears a very close and strong relation to the ownership of soil, in the popular apprehension of that term, still its satisfactory operation has silenced all opposition, and it is now believed to be accomplishing desirable ends that could not otherwise be so efficiently done. It may be of interest to note some of the leading provisions of this law. All contracts for leases are required to be written. If the farm be delivered to the tenant in a condition unsuitable for the purpose for which it was rented, the tenant may renounce the lease. If deteriorations or restrictions not mentioned in the covenant take place, without the tenant's fault, he may demand proportionate reduction of rent or renounce the lease, if proper restitution is not made within a reasonable time. Urgent repairs of any kind, required during the lease, are to be made by the tenant. The lessor has the right to retain all the movables belonging to the farm, as security for the payment of his rent, for the past current year. This, however, does not include effects, which, under the laws relating to debt and bankruptcy, are exempt from execution. The lessor has the right to appeal to the authorities to compel a tenant, who threatens to abandon the farm before paying the rent, to leave property behind him on the place in value sufficient to cover the amount due. A tenant cannot be relieved from rent when, through his own fault or even from any accident in which he was directly concerned, he is unable to enjoy the use or benefit of the lease. If implements, stock, etc., are included in the lease, each party must furnish the other with a specific inventory duly subscribed, with an estimate of their value. The lessor must

bear the expense of any repairs, on a large scale, which may become necessary during the lease, as soon as he receives notice of such from the tenant. The tenant must make a conscientious use of the land, according to the stipulations of the lease, and especially to keep it in a good state of cultivation. The tenant cannot alter the existing mode of cultivation or cropping to the damage of the land or the prejudice of a subsequent lease. He must conform with all local laws and customs as to paths, foot-bridges, ditches, dikes, hedges, roofs, aqueducts, etc., and must replace all implements and tools of small value which may have become worn out. The tenant cannot underlet without consent of landlord, regardless of duration of lease. In absence of special agreement as to payment of rent, it must be paid according to the local custom, and in event of extraordinary accident by which he loses a considerable portion of his year's product, if in no way due to any fault on his part, and if not covered by insurance, or taken into consideration in fixing the rent, he may demand a proportionate reduction. In the absence of agreement or well-defined custom, each party has the right to give the other notice, which as to the land must be at least six months before the 11th of November. With this notice in cases of long leases, where circumstances arise to render its continuance intolerable to either party, it may be terminated, with an equitable indemnity to the other party; this indemnity, even when referred to the courts for adjustment, must not be less than one year's rent. If, on the expiration of the lease, the tenant remains in possession with the landlord's knowledge and without his objection, the lease will continue in force from year to year, until the six months' notice is given by one of the parties. When a tenant fails to pay his rent at the time it falls due, the lessor may give him notice that if not paid within sixty days the lease will be cancelled; in that event the tenant loses his right to the growing crops, but he must be reimbursed for the expenses incurred in their cultivation, to be credited on arrears of rent. The lessor has the right to cancel a lease when the tenant neglects to keep the farm in good order; or if, after receiving notice, he fails to execute any necessary repairs within the period designated by the landlord. In event of a tenant's bankruptcy, the lease expires *ipso facto*, when such bankruptcy is declared. At the expiration of a lease the tenant must hand over the farm and everything specified in the inventory, just as they are at the time of delivery, with indemnity for any injury resulting from want of proper care on his part; and no compensation is due him for improvements merely the result of

ordinary care. The tenant must leave on the land the straw and manure of the preceding year; if, however, it exceeds what he received when taking possession, he can claim compensation for the difference. The outgoing tenant, at the expiration of the lease, has the right to compensation for any increase on the original valuation of the farm which is the fruit of his labor and outlay; this is sometimes ascertained to a nicety by means of a system of chemical testing of the soil.

It seems almost incredible that a federal law should be so circumstantial, rather than lay down the general principles upon a question of the lease of land and leaving it to the Cantons or Communes to supply the details, in conformity with the varying local elements that must enter into it, from the great diversity of soil, products, and customs. This law is but another illustration of that patient and minute exactness which distinguishes all Swiss federal legislation, aiming to cover every possible contingency that may arise of construction or enforcement.

It is to the cantonal civil codes we must turn for the body of the land laws. These codes appear to be derived from three distinct sources, corresponding with the ethnical division of the people,—the Roman, the Old Germanic, and the Napoleonic codes. The Cantons of Geneva, Neuchâtel, and the western portion of the Canton of Bern, known as the Jura-Bernois, have the code Napoleon almost in its entirety. The codes of Vaud, Freiburg, Valais, and Ticino are based on the old Roman law, harmonized in some features with the code Napoleon. The Cantons of St. Gallen, Appenzell, Uri, Schwyz, Obwald, Glarus, and Basel-Stadt are still governed by ancient statutes or customs, without any defined codes. The remaining Cantons, constituting what is known as German Switzerland, have their land laws framed on the old Germanic code, with an admixture of the code Napoleon. There were no cantonal land codes previous to 1819; the oldest one, that of Vaud, dates from that year. A summary of the law, in a few of the representative Cantons, will be sufficient.

Bern has two separate codes; the western or Jura district having adopted the code Napoleon, while the other portion of the Canton still adheres to the old Germanic code, with some alterations and improvements grafted on to it. The sale of land is absolutely free and unrestricted; the only formality consisting of a contract drawn up and signed by both parties and deposited at the cantonal registry office, for which there is a small registration fee,

divided between the Canton and Commune. The ordinary duration of an original lease is from five to ten years. The lessee is in no way bound to any particular rotation of crops, and any attempt to exhaust the soil unfairly is very unusual. The outgoing tenant must deliver to his successor the farm in no worse condition than that in which he found it; and if the requisite amount of manure, etc., is not forthcoming, he must replace the deficiency. Only one-third of the landed property is at the absolute disposal of the testator, the remaining two-thirds must be divided in equal portions among the children. The only way a testator may favor a child is to bequeath to him that portion (one-third) which the law allows him to dispose of *ad libitum*, as an addition to his distributable share. Should, however, the wife survive her husband, she enjoys the absolute use of all of his property for her life, with no power to alienate or deal with it in any way, save with the consent of the Committee of Wards, a body to be found in every Bernese Commune. Failing of wife or children, the property is divided equally among the heirs at law, should there be no will disposing of the available one-third. There is an exception, not embodied in the code, but founded in an immemorial custom, which prevails in the extensive valley of the Emmenthal, where the youngest son inherits by right all the landed property at the decease of both parents, subject to an annual indemnity paid to his brothers and sisters, who in this way hold a preferred lien on the land. The origin of this custom is thus explained: Motives of safety formerly induced the proprietors of land to live within the walls of Bern, where they had their house and establishment, which passed to the eldest son, instead of land. The custom has held together the exceptionally large farms in this valley, some running up to a hundred and fifty acres each.

In the Canton of Vaud the sale and acquisition of landed property are as unrestricted as in that of Bern. One-half of it is at the disposal of the testator, the other half must go to the children in equal proportions. Failing of issue, and if the deceased dies intestate, and be unmarried or a widower, his brothers and sisters succeed to half of the property and his parents to the other half. If none of these members of the family survive, the property is divided equally among the ascendants in the paternal and maternal line. In this Canton, where the breeding of cattle forms so important an industry, certain legislation closely allied to the occupation of the soil is worthy of a passing notice. This is known as *Cheptel*,—the contract by which one party undertakes to supply another with a certain number of cattle to tend and

feed under specified conditions. The *Cheptel* is of several kinds. In one, the hirer has the right to the milk, work, and manure of the cattle, the increase and loss being equally divided. It is illegal for the two parties to enter into any contract by which the hirer undertakes to bear all losses. Then there is *Cheptel à moitié*,—where two owners of cattle, who do not possess a sufficient number to lease them, each on his own account, join together and lease their stock to a third party, sharing the profit and loss with him on the same condition and terms as in the case first described. The third class of *Cheptel* is where the tenant farmer rents the landlord's cattle in conjunction with the farm, on the condition of his taking all risks, and that when the lease expires he shall leave behind a herd of cattle of the same value as that at which the original herd was estimated; all the profits from these cattle go to the farmer until the lease expires; the manure, however, belongs to the farm, and must be used for its exclusive benefit.

In the Canton of Basel the testator can only dispose of that part of his estate which falls to his heirs. If those heirs be children, he may by will deprive them of at most one child's interest or share, not in any case to exceed the fourth part of the entire estate. If the heirs be parents, he can dispose of one-half of the estate, or more by the assent of the latter, written and properly authenticated. If the wife survives, she is entitled, in the absence of a marriage settlement, to two-thirds of the estate. A marriage settlement may entirely annul the operation of the community of property which otherwise prevails. In this case the entire estate of the deceased husband or wife falls to the heirs. Sons and daughters share alike. Brothers and sisters are regarded alike whether both or only one of the parents are the same. In the absence of descendants, parents share equally as heirs; if one of the latter is deceased, the survivor takes the whole. Descendants of a deceased heir, who are within the fifth degree of consanguinity, share equally the part which would have fallen to their ancestors. Illegitimate children inherit from the mother, but not from the father, unless legitimated by marriage of the parents.

In the Canton of St. Gallen a testator, in case he leaves but one child, can dispose, by a will or otherwise, of one-half of the property; if two children, only one-third; and if three or more, not more than one-fourth. In event of having no legal heirs, he may dispose of three-fourths of his property, the remaining one-fourth passing to the Canton. If the heirs be

father, mother, or other near relations, he is not permitted to dispose by will of more than one-half. If there are relations beyond that degree, and within the tenth degree, he may dispose of two-thirds. If the wife survives, she is entitled to one-half the estate; however, if there be children also, then the wife takes only a child's part. Sons and daughters share alike, with this modification: the sons have the preference of the real estate; tools and implements, if they are mechanics; books or libraries, if they are professional men; for which, however, they must pay a fair price to the other heirs. Two per cent. of all property disposed of by will goes to the Canton. Any person eighteen years old and of disposing mind may make a will. Every will must be attested by three witnesses, two of whom must be able to write their names. A woman's property brought into the marriage remains her property; the interest only to be appropriated by the husband for the benefit of the family.

In the Canton of Zurich there is no limitation as to right of testator to dispose of his property by will, except as to interest of surviving wife. When the wife survives she is first entitled to withdraw the property she brought into the marriage, also the household furniture, in case it does not exceed one-fourth of the net estate; and if there be children, she takes the usufruct of one-half of the estate, or the fee-simple of one-eighth; if there be no children, but parents of the deceased living, she takes the usufruct of the whole estate, or fee-simple of one-fourth; if only grand-parents living, the fee-simple of one-half and the usufruct of the other half. If the wife marries, the usufruct is reduced one-half. As to sons and daughters,—in the father's estate the sons have a preferred right to take the real estate, with the appurtenances, against payment of a moderate valuation; sons also have a preferred right to take the property pertaining to the paternal industry, such as tools, professional implements, cattle, etc., without, however, any deduction from the actual value thereof; sons take without compensation the paternal wardrobe, arms, outfit, and seal. Family records go to the oldest son without charge. The common paternal inheritance is divided equally among sons and daughters. In the maternal estate the clothing, house linen, and washing utensils go to the daughters without charge; also the jewelry, valuables, and savings of the mother, if they do not exceed in value five-one-hundredths of the estate, any excess over that must be paid for by them. The common maternal inheritance is divided equally, but the sons have the preference of the real estate, against payment of its full value.

In the Canton of Geneva the code Napoleon, or *Code Civil Français*, substantially exists, that Canton having been a part of the French *Département du Léman* from 1798 to 1814.

The notion of family co-proprietorship prevails extensively in the German Cantons, and testamentary power is much limited. In 1865 the Canton of Appenzell relaxed so far as to decree that it was an anomaly in this day of advanced civilization that a free citizen who enacted laws for himself (referring to the Landsgemeinde of the Canton) should be fettered, as in the benighted times of the past, in his testamentary powers, and that, therefore, he should thenceforward have the right to dispose by will of *one-fiftieth* of his property, if he had children, and of *one-twentieth* if he had none. In the Canton of Zurich, previous to the Bluntschli's code, those who had children were obliged to leave them all their property, and, failing of issue, the relations, of whatever degree, had a right to their legitimate share. In Glarus the consent of the heirs is necessary before the smallest legacy can be made by the testator. In the Canton of Nidwald the question of the validity of a legacy is submitted to a jury, who are empowered to decide whether such legacy is just and in conformity with the position of the testator, the testator's children, and the legatee. The three Cantons of Schaffhausen, Thurgau, and the Grisons, which place restrictions on the free disposal of inherited property, are more liberal as to acquired property. In Southern Switzerland, except in the Cantons of Freiburg and Valais, the law goes so far as absolutely to forbid special contracts made with regard to successions,—except in the case of husband and wife,—so that the testamentary power may remain free and untrammelled as to all property at the disposal of the testator when he comes to die. There is a manifest tendency to facilitate the disposal by will of property in general, in view of the more extended movements of the population, and the consequent dispersion of family. The laws of enforced succession are being gradually modified or repealed. In point of fact, the Swiss laws make little or no distinction between real, personal, and mixed property in connection with testamentary power, and there is a vast dissimilarity in the legislation and practice of the several Cantons. Through all the varying degrees, in almost every Canton, there will be found some limitation to parental freedom of bequest intervening for the protection of the child. In some a distinction is made between inherited and acquired property, but it is the same principle asserting itself, the "*légitime*," the portion secured by law to the heir,⁶⁴ over

which the testator is forbidden to exercise the power of disposition, and under the term “children,” by some cantonal codes, are included descendants of whatever degree, who, however, take together as representatives of the stock from which they spring. No such thing as a law of entail exists in any Canton. In reference to these restraints on the power of bequeathing property by will, which at one time existed in all the continental states, and in France restricted within the narrowest limits, Adam Smith wrote: “By interfering to so extreme an extent in the disposal of a man’s property, it lessens the motives to accumulation; while, by rendering the children in a great measure independent, it weakens the parental authority, and has the same mischievous operation over an entire family that the law of entail has over a single child. This, however, is not its worst effect. This and every similar system inevitably tends to occasion too great an increase of agricultural population, and to reduce landed property into portions so minute that they neither afford sufficient employment to the families occupying them nor allow of their being cultivated and improved in the best and most efficient manner.” A few Cantons have become alarmed at this infinitesimal subdivision of their soil, as prejudicial to agricultural enterprise and causing emigration to take place from the pastoral districts. The Cantons of Aargau, Thurgau, and Solothurn have passed laws fixing the limit to the subdivision of land at a minimum ranging from five thousand to twenty thousand square feet. The excess to which subdivision may run is illustrated in the Canton of Bern, where a case is reported of a cherry-tree in the Oberland found to belong to seven different proprietors; and it is also related that the people of that section are distinguished for being so stiff-necked in sticking for their rights that an article of furniture has been known to be sawed into so many parts that each member of a family might have his share. Notwithstanding the opinion of political economists, the Swiss know that this subdivision has worked as an efficient auxiliary in making their soil a source of national comfort and well-being, and a barrier against land accumulation to prop up a ruling class, so common in many of her neighbors. No sort of social distinction or political privilege is associated with land-ownership in Switzerland. The cultivator, who, as a rule, is the proprietor,—for it is rare to find a farm which is not worked by the owner,—is shorn by neither rent nor taxes. The land fulfils its duty and guarantees the tiller a fair enjoyment of the produce, a fair share in the sheaves he reaps. Poets, historians, and philosophers, who

love to dwell on the simple virtues of the children of nature, find their Utopia in Switzerland, where the households, each with its little tract of land, represent a larger proportion of the population than can be found in any other country. This distribution of small properties among the peasantry forms a kind of rampart and safeguard for accumulated property in other forms. It may be called the lightning conductor that averts from society dangers which might otherwise lead to violent catastrophes. The concentration of land in large estates among a small number of families, is a sort of provocation of levelling legislative measures. There are no influences more conservative, or more conducive to the maintenance of order in society, than those which facilitate the acquirement of property in land by those who cultivate it,—“’Tis wonderful sweet to have something of one’s own.”

There is no influence fraught with more danger than that which concentrates the ownership of the soil in the hands of the few, by impediments, legal or fiscal, to prevent lands freely passing from the hands of the idle into those of the industrious. Neither extreme poverty nor extreme opulence is the thing to be desired. Pauperism and plutocracy alike are the parents of vice in private and revolution in public life. The genius of revolution truly exclaims, “With wings twain do I fly;” of these wings one is discontented labor, the other is over-reaching wealth. The system of the subdivision of the soil among a multitude of small proprietors, for the most part energetic, industrious cultivators of their own holdings, is eminently conservative in its influence, and contributes in no small degree towards maintaining the national spirit of independence and self-reliance, the happy and contented condition of the Swiss peasant proprietors; at once the strength and the safety of the Confederation. This Swiss peasant has not only the responsibilities of a capitalist on a small scale, but also those qualities of foresight, thrift, and sobriety that such responsibility inspires. He has his home with the dignity, stimulus, and all the civilizing influence of ownership.

“A great proprietor is seldom a great improver.” Private appropriation of land is deemed to be beneficial; because the strongest interest which the community and the human race have in the land is that it should yield the largest amount of necessary or useful things required by the community. The spectre of “excessive subdivision” of the soil, once so potent an

influence, has lost all its terror. It was Cobden who wished to remove all remonstrances to the easy and economical transfer of land, and to develop a process by which, under the natural operation of a free exchange, the laborer might be re-settled on the soil from which, in his energetic and suggestive phrase, the “laborer had been divorced.” It was Mill who, in his powerful chapters on peasant proprietors, clearly showed that “free trade in land” was the condition under which the economic good of man can be best effected; that a small or peasant proprietary is the most thriving, the most industrious, the most thrifty of cultivators, and that under small free holdings the capacities of the soil are developed to the fullest possible extent, and the rate of production raised to the very largest amount. Those who fancied that peasant proprietors must be wretched cultivators have seen that some of the best agriculture in the world is to be found in Switzerland, where such properties abound.⁶⁵ These peasant proprietorships have neither bred over-population nor converted the country into a “pauper warren.” The existence of peasant properties has come to be regarded by philanthropists as eminently desirable, and the removal of all obstacles to it has become an aim of advanced politicians. Daniel Webster, in an address delivered before the Massachusetts Constitutional Convention in 1821, referring to the relation of civil liberty to property, as regards its security and distribution and that the degree of its distribution settles the form of government,—aristocratic, if the property is held by the few, and popular, if held by the many,—said in reference to France: “A most interesting experiment, on the effect of a subdivision of property, is now making in France. It is understood that the law regulating the transmission of property in that country now divides it, real and personal, among all the children equally, both sons and daughters; and that is, also, a very great restraint on the power of making dispositions of property by will. It has been supposed, that the effect of this might probably be, in time, to break up the soil into such small subdivisions, that the proprietors would be too poor to resist the encroachments of executive power. I think far otherwise. In respect to this recent law of succession in France, I would, presumptuously perhaps, hazard a conjecture, that if the government do not change the law, the law in half a century will change the government; and that this change will be, not in favor of the crown, as some European writers have supposed, but against it. These writers only reason upon what they think correct general principles in relation to this subject. They acknowledge a want of experience. Here we

have had the experience; and we know that a multitude of small proprietors, acting with intelligence, and that enthusiasm which a common cause inspires, constitute not only a formidable, but an invincible power.”

Just fifty years from the date of Mr. Webster’s prophecy the present republic was set up,—the government not having changed the law, the law changed the government. It is this race of peasant proprietors that has given France her wonderful recuperative power, enabling her to emerge again and again *per varios casus, per tot discrimina rerum*. From them her national life receives a vigor and unity which no reverses seem to dominate and no blunders to ruin. Upon them she must rely for the maintenance of her liberties, so gloriously conquered in the past and embodied in her present institutions.

If men have but some share of comfort and property in the country, they will abide there, for that is really the place provided for them. “Towns, the haunt of pride, luxury, and inequality, foster the spirit of revolt: the country begets calm and concord, the spirit of order and tradition.” Under the old Roman system the city was the important unit; under the Teutonic element the land was brought into prominence and the possessor of it into power. The dominant member of society was the landowner and not the citizen. In ancient society the “citizen” need own no land; in the modern society of the feudal age the “gentleman” could not be such without owning land.

CHAPTER XII.

MILITARY SERVICE AND ORGANIZATION.

Attached alike to liberty and to arms, the Swiss are no less famous for their undaunted intrepidity than their simple and pure democracy. From early times the hardy mountaineers of the Alps were eminently and splendidly martial. History is full of their steadiness and bravery on the field of battle. When Rome was in its highest military glory, its armies under the Consul Lucius Cassius were routed by the Helvetians on the shores of Lake Lemman, 111 B.C. The two armies are supposed to have met about where the Rhone falls into the lake, and the conquerors of all Italy, the masters of Greece and Macedonia, who had carried their victorious armies over Asia and Africa, were overcome by a people hitherto unknown. Julius Cæsar speaks of their “military virtue and constant warfare with the Germans.” Livy and Tacitus refer to them as a people originally of the Gallic nation, “renowned for their valor and their exploits in war.” About the middle of the fourteenth century attention began to be attracted towards these mountaineers, and great was the wonder that cavalry, which made the only effective part of the federal armies of those ages, should be routed by men on foot; that warriors sheathed in complete steel should be overpowered by naked peasants who wore no defensive armor, and were irregularly provided with pikes, halberds, and clubs, for the purposes of attack; above all, it seemed a species of miracle that knights and nobles of the highest birth should be defeated by mountaineers and shepherds. The repeated victories of the Swiss over troops having on their side numbers and discipline, and the advantage of the most perfect military equipment then known and confided in, plainly intimated that a new principle of civil organization as well as of military movements had arisen amid the stormy regions of Helvetia. The signal victory over Charles the Bold of Burgundy, in which they routed the celebrated Burgundian *ordonnance*, constituting the finest body of chivalry of Europe, demonstrated their capacity as infantry. This, no doubt, contributed to the formation of that invincible Spanish infantry which, under the Great Captain and his successors, may be said to have decided the fate of Europe for more than half a century. The

“Swiss whiskered Infantry” became distinguished in all the continental wars by pre-eminent valor and discipline. Their principal weapon was a pike about eighteen feet long; and, forming in solid battalions, which, bristling with spears all around, received the technical appellation of the *hedgehog*, they presented an invulnerable front on every quarter, and received unshaken the most desperate charges of the steel-clad cavalry on their terrible array of pikes. In the Granadine war (1484), among the volunteers that flocked to the Spanish camp was a corps of Swiss infantry, who are thus simply described by Pulgar: “There joined the royal standard a body of men from Switzerland, a country in upper Germany; these men were bold of heart and fought on foot. As they were resolved never to turn their backs upon the enemy, they wore no defensive armor except in front, by which means they were less encumbered in fight.” The astonishing success of the French in the Italian wars (1494) was largely imputable to the free use and admirable organization of their infantry, whose strength lay in the Swiss soldiers they had. Machiavelli ascribes the misfortunes of his nation chiefly to its exclusive reliance on cavalry; this service, during the whole of the Middle Ages, being considered among the European nations so important that the horse was styled by way of eminence “the battle.” The arms and discipline of the Swiss were necessarily different from those of other European nations. The hill-sides and the mountain-tops and the deep valleys of Switzerland have felt as frequently as any part of Europe the mailed footstep of the warrior, and run as red with his blood. Zschokke, in his history, remarks that, in its wars of the last five hundred years, but particularly those growing out of the great French revolution, “battle-field touched battle-field.” During the long struggle for their liberties, they found that their poverty, with at that time a barren and ill-cultivated country, put it out of their power to bring into the field any body of horse capable of facing the enemy. Necessity compelled them to place all their confidence in infantry. With breastplates and helmets as defensive armor, together with long spears, halberds, and heavy swords as weapons of offence, they formed into large battalions, ranged in deep and close array, presenting on every side a formidable front to the enemy. They repulsed the Austrians, they broke the Burgundian Gendarmerie, and, when called to Italy, bore down with irresistible force every enemy that attempted to oppose them. Bacon, in his “History of King Henry VII.,” says: “To make good infantry, it required men bred not in a servile fashion but in some free manner.

Therefore, if a state run most to noblemen and gentlemen, and that the husbandmen and ploughmen be but as their workfolks or laborers, you may have a good cavalry, but never good, stable bands of foot, in so much as they are enforced to employ bands of Swiss for their battalions of foot.” It was a trusty sword these brave and hardy peasants offered. Some thought that nature certainly only meant the Swiss for two classes, soldiers and shepherds. It is easy to convert husbandmen into good soldiers. According to the institutions of the Lacedæmonians, the employments of husbandmen and soldiers were united, as alike the highest training-schools for the qualities that make the best citizen and the best soldier. The plough was readily exchanged for the sword by those engaged in peaceful occupations that seemed to place them at an immeasurable distance from the profession of a soldier. Happy had it been for Switzerland had she gained nothing beyond simple liberty in her contest with her ancient masters, and had continued to cherish pure and healthful feelings. When peace had crowned their heroic struggles, their warlike spirit sought in foreign states the excitement and military glory which were denied them at home. The cravings of avarice and the thirst of plunder are inseparable from the pride of victory. While the hardy mountaineers exulted in the defeat and humiliation of Austrian chivalry, they purchased their triumph, for a time at least, at the expense of the simplicity of their nature. They accepted the dangers and privations of soldiers fighting battles in which their own country bore no part. They became the ready agents of the highest paymaster. These military capitulations dated from the period of the Burgundian war. Treaties were often concluded between foreign governments and one or more Cantons.⁶⁶ They made a trade of war, letting themselves out as mercenaries. The Holy Father himself entered the list of bargainers, and in 1503 Pope Julius III. engaged the first of those Swiss life-guards whose name became famous in Europe. From Louis XI. to Louis XV. the Swiss are said to have furnished for the French service over half a million men. In the wars between the French king and the Emperor Maximilian, in 1516, the Swiss fought on both sides. In its last extremity, it was neither in its titled nobility nor its native armies that the French throne found fidelity, but in the free-born peasant soldiers of Luzern. Of the undaunted ranks of the Swiss guard, defending the French royal family at the Tuileries on the 10th of August, 1792, seven hundred and eighty-six officers and soldiers fell in the place where they stood, unconquered even in

death; and for two days their bodies lay in the gardens of the palace and the streets near by, exposed to the derision and insults of the frantic populace.

“Go, stranger! and at Lacedæmon tell
That here, obedient to her laws, we fell.”

To their memory a colossal lion, twenty-eight feet long by eighteen feet high, carved by Thorwaldsen out of the face of a solid sandstone rock, in high relief, was dedicated in 1821 at Luzern. The lion is holding the *fleur-de-lis* in his paws, which he is endeavoring to protect, though mortally wounded by a spear which still remains in his side. Above the figure is the inscription: “*Helvetiorum fidei ac virtuti.*” When the afternoon sun falls upon this effigy, it is reflected beautifully in the dark pool close below; the gray rock rises perpendicularly some little height above and ends in a crown of acacias and drooping bushes and creepers.

The fame of the Swiss, in every war which desolated Europe from the fifteenth century down, rose to an extraordinary pitch; but this influence, which, as the hired soldiers of belligerent powers, they exercised in the affairs of Europe, was neither conducive to the weal of the state nor worthy of the Swiss people. Addison wrote in 1709 of them: “The inhabitants of the country are as great curiosities as the country itself; they generally hire themselves out in their youth, and if they are musket-proof till about fifty, they bring home the money they have got, and the limbs they have left, to pass the rest of their time among their native mountains.” He also relates that “one of the gentlemen of the place told me, by way of boast, that there were now seven wooden legs in his family; and that for these four generations there had not been one in his line that carried a whole body with him to the grave.”

From their being so frequently in the personal service of foreign potentates, the name of Switzer with some writers became synonymous with guards or attendants on a king. The king in “Hamlet” says: “Where are my Switzers? Let them guard the door.” In 1594, Nashe, in his “Christ’s Tears over Jerusalem,” states that “Law, Logicke, and the Switzers may be hired to fight for anybody.” Even the French were so ungrateful as to chide the Swiss by saying, “We fight for honor, but you fight for money;” to which the Switzer rejoined, “It is only natural that each of us, like the rest

of the world, should fight for what he has not got.” These Swiss soldiers were in great demand and liberally paid. They were not only hardy and patient of fatigue, but bold in action and obedient in discipline. The very sight of them alarmed the enemy, suggesting a passage in Tacitus of which every soldier will probably feel the truth, “The eye is the first to be vanquished in battle.”⁶⁷ Then these troops were as noted for their fidelity to the service they engaged in as for their courage; and in all their history there is scarce to be found any example of treachery.

From the dawn of the Reformation there was produced a material change, and its effects were chiefly visible in the improvement of moral feeling and the growing aversion to this mercenary service. The Constitution of 1848 altogether swept away this system of military capitulations. At the time of the adoption of the constitution there was only one such convention in force, being that of the King of Naples and several of the Cantons; but public sentiment was so greatly aroused by their participation in the defeat of the revolution, that the Cantons were compelled to recall them, and thus the last of these capitulations came to an end. There were certain bodies of troops who, bearing the Swiss name or composed for the most part of Swiss soldiers, still continued to fight for foreign governments; and to prevent this, as far as possible, a federal law in 1859 prohibited every Swiss citizen from entering, without the consent of the Federal Council, those bodies of foreign troops which were not regarded as national troops of the respective states. This did not hinder individual citizens from enrolling themselves in the national troops of a foreign state. To further avoid any complication of foreign relations through such military connection, the cantonal constitutions first forbade the reception of pensions and titles from foreign states; and a similar provision was embodied in the federal Constitution of 1874, whereby “members of the federal government, civil and military officials of the Confederation, and federal representatives or commissioners, shall not accept from foreign governments any pension, salary, title, present, or decoration. Decorations shall not be worn in the Swiss army, nor shall titles conferred by foreign governments be borne. Every officer, under-officer, and soldier shall be forbidden to accept any such distinction.”

The first approach towards the establishment of a federal army was after Swiss independence had been recognized at the peace of Westphalia, when

the Confederation in 1648 adopted an arrangement called the “*Defensional*,” by which, in case of urgent danger, the Federal Diet could call upon the several Cantons to supply troops for the general defence, in such numbers as were stipulated. In 1848 it was proposed that the Confederation should be charged with the entire military administration. This was rejected. In 1874 the effort was renewed, and this most important power was substantially vested in the Confederation by the constitution adopted that year, which contains the following provisions:

Every Swiss is subject to military service. Each soldier receives without expense his first equipment, clothing, and arms. The arms remain in possession of the soldier, under conditions prescribed by federal legislation. The Confederation enacts uniform laws on fees for exemption from military service:

The federal army consists:

1. Of the cantonal military corps.
2. Of all Swiss who, though not belonging to such military corps, are yet subject to military service.

The Confederation exercises control over the federal army and the material of war provided by law.

In cases of danger, the Confederation has the exclusive and direct control over all troops, whether incorporated in the federal army or not, and over all other military resources of the Cantons.

The Cantons may exercise control over the military forces of their territory, so far as this right is not limited by the federal constitution or laws.

Laws on the organization of the army are an affair of the Confederation. The execution of the military laws within the Cantons is intrusted to the cantonal authorities, within limits fixed by federal legislation, and under the supervision of the Confederation.

The entire military instruction and arming of the troops are under the control of the Confederation. The clothing and equipments and subsistence of the troops are provided by the Cantons; but the Cantons are credited with the expenses therefor, in a manner to be determined by federal law.

So far as military reasons do not prevent, bodies of troops are formed out of the soldiers from the same Canton. The composition of these bodies of troops, the maintenance of their effective strength, and the appointment and promotion of the officers are to be reserved to the Cantons, subject to general rules to be established by the Confederation.

On payment of reasonable indemnity, the Confederation has the right to use or acquire drill-grounds and buildings intended for military purposes within the Cantons, together with the appurtenances thereof. The terms of the indemnity shall be fixed by federal law. The Federal Assembly may forbid public works which endanger the military interests of the Confederation.

No decoration or title conferred by a foreign government shall be borne in the federal army. No officer, nor non-commissioned officer or soldier, shall accept such distinction.

The Confederation has no right to keep up a standing army.⁶⁸ No Canton or half-Canton, without the permission of the federal government, shall keep up a standing force of more than three hundred men; the mounted police (*gendarmérie*) is not included in this number.

By these provisions, while the military system, as a whole, has fallen under the authority of the Confederation, many important details are left to be exercised by the Cantons. Upon them devolves the responsible duty of carrying the federal laws into execution. They appoint all officers below the rank of colonel, keep the military registers, provide the equipments, uniforms, and necessary stores for the troops (to be reimbursed by the Confederation), recruit and maintain the effective strength of the body of troops formed within their respective limits. The infantry, field artillery, and cavalry are all recruited by the Cantons and called cantonal troops; the engineers, guides, sanitary and administrative troops, and the army train are recruited by the Confederation and called federal troops. The enrolling of men belonging to the same Canton, as far as practicable, in the same corps is known as the *système territorial*. Every man fights under the banner of his own Canton, follows the regiment of his own Commune, keeps step with the company of his own hamlet, or dies beside his brother, son, or neighbor. These were the tactics of nature, and probably of heroism, with mutual enthusiasm and reciprocal attachments, with common interests and

similarity of manners; like the children of Israel who went out to battle, each “under the colors of the house of his father.”

For the proper execution and furtherance of the constitutional provisions, several federal laws have been enacted, establishing these general rules:

Every Swiss citizen is subject to military service from the time he enters his twentieth year to the close of his forty-fourth year of age. There are seven classifications of officials who are exempted, during the time they are in office or employed:

1. Members of the Federal Assembly during the session of the Assembly.

2. Members of the Federal Council, the Chancellor of the Confederation, and the clerks of the Federal Tribunal.

3. Those employed in the administration of the post and telegraph (the latter now includes the telephone); employés in government arsenals, workshops, and powder magazines; directors and wardens of prisons; attendants in public hospitals; members of cantonal and communal police, and frontier guards, or *Landjäger*.

4. Ecclesiastics who do not act as army chaplains.

5. Those employed in the public schools, only so far as it would interrupt their school duties.

6. Railroad officials and employés of the steamboat companies that have received concessions from the government.

7. All those who have been deprived of their civil rights by sentence of court are excluded from the service.

The omission of the members of the Federal Tribunal from the list of exempts, while the executive and legislative officials, together with the clerks of the Tribunal, are embraced, can be accounted for only upon the principle of *inter arma silent leges*.

When a Swiss citizen reaches his twentieth year he must present himself at the levy of troops of the Canton of his domicile and be enrolled. This must be done before an application for exemption can be made. The raw

recruits are sent direct to one of the *Écoles des Recrues*, for which the Confederation is divided into eight territorial departments, for infantry, for cavalry and artillery, three each, and two for engineers. The federal military forces, or *Bundesauszug*, are divided into three distinct classes:

1. The *Élite* or active army, in which all citizens are liable to serve from the age of twenty to thirty-two.

2. The *Landwehr* or first reserve, composed of men from the age of thirty-two to forty-four.

3. The *Landsturm*, consisting of men from seventeen to fifty, not incorporated in the *Élite* or *Landwehr*. This last reserve cannot, as a rule, be called upon for service beyond the frontier. Men are not discharged from the *Élite* until their successors have been enrolled, and in case of war the Federal Council is authorized to suspend discharges both from the *Élite* and the *Landwehr*. The recruits at the *Écoles des Recrues* undergo a course of instruction for periods ranging from forty-five to eighty days, after which they are drafted into the different arms of the service, and (with the exception of the cavalry, who turn out annually) are called out on alternate years for a course of training (*cours de répétition*), continuing from sixteen to twenty days. Periodically, once or twice a year, the troops of a number of Cantons assemble for a general muster. The infantry soldier has five periods of training during the ten years he remains in the *Élite* or active service:

First year, forty-five days as a recruit.

Third year, sixteen days as a trained soldier.

Fifth year, sixteen days as a trained soldier.

Seventh year, sixteen days as a trained soldier.

Ninth year, sixteen days as a trained soldier.

Total, one hundred and nine days.

The cavalry is called out annually instead of biennially, and as a compensation for this additional drill service, the men are discharged from the *Élite* two years sooner than the infantry, or at the age of thirty.

The standard of height required of the recruit is five feet one and a half inches, and the chest measurement in no case less than thirty-one and a half

inches.⁶⁹ Men not of the required height, if specially fitted, by profession or business, for service in the administrative troops or as drummers, trumpeters, armorers, or other military handicraftsmen, may be recruited to serve in these capacities if their height is not less than five feet five-eighths of an inch. The number of recruits examined annually—that is to say, the number of young men who become subject every year to military service—is about thirty thousand. A permanent corps of one hundred and eighty-seven instructors of various grades, and representing all the arms of the service, is maintained. The members of this corps are about the only permanently paid officers of the Swiss army. But they must have undergone a thorough course of education and passed an examination at one of the training establishments erected for the purpose. The centre of these is the military academy at Thun, near Bern, maintained by the Confederation, and which supplies the army both with the highest class of officers and with teachers to instruct the lower grades.

Besides this academy or *Central Militär-Schule* there are special training-schools for the various branches of the service, especially the artillery and the *Scharfschützen* or picked riflemen. During the period of instruction eight hours is laid down as the minimum of daily drilling. The arms, clothing, and personal accoutrements remain in the possession of the soldier, and he is expected to keep each article in good condition and in readiness for inspection at any moment; and he is not permitted to wear his uniform except when on active duty. The inspection of arms, accoutrements, etc., is made annually, and is conducted with much strictness; any repairs needed are ordered to be done at the owner's expense; and negligence in complying with the law subjects the party to a fine, and in some instances to imprisonment. At the termination of the *Élite* service, the uniform is retained by the recruit, but the arms and accoutrements are surrendered to the Canton. Horses are provided for the cavalry in this manner: the horses are first purchased by the government through officers designated for that purpose; these are sent to the government cavalry stable, thoroughly broken, then sold to such cavalry recruits as may require them. The sale is made at public auction to the recruits, and one-half of the price at which the animal is knocked down is paid by the Confederation and the other half by the recruit. One-tenth of the recruit's share, however, is refunded to him at the end of each year's service, so that after ten trainings the horse becomes his personal property.

During the years of service the horse remains at the disposal of the government, but in fact is only required during the annual drill, and in the interval remains in the possession of its part owner, at his own cost. He may work the animal, but it cannot be let out for hire or lent, and he is responsible for its care and good condition. If the horse dies in the service, one-half of the value of the recruit's share is refunded to him; if, on the other hand, the horse dies when not in the service, the recruit pays the government a corresponding amount, unless he can show that the death was in no way occasioned by carelessness or culpable negligence. The same liability is incurred in case of injury to the animal, unless it occurred from ordinary fair usage. In either case, if the recruit be found in fault he is compelled to provide himself with another horse. These horses are inspected at least once a year by military veterinary surgeons. Mounted officers must provide their own horses. In time of war the *Piketstellung* can be declared by the Federal Council, by which the sale of horses throughout the Confederation is forbidden.

The strength of the several lines of the army in 1888, as obtained from an official of the military department, was—*Élite*, 117,179, *Landwehr*, 84,046, which, with the *Landsturm*, reckoned at 200,000, gave in case of extreme emergency an available force of 401,225.

The *Landsturm* has recently been divided into two classes, the *armed Landsturm* and the *auxiliary forces*; the latter is composed of pioneers, administrative troops, guides, and velocipedists: both of these classes, under a federal law of 1887, when called out, are placed on the same footing, with reference to the rights of combatants, as the *Élite* or the *Landwehr*. The first line, or *Élite*, must be regarded as the only active force homogeneous in its parts and complete in its equipment. Preference for infantry is still preserved among the Swiss, the cavalry representing only one twenty-seventh of the force. This disproportion may be somewhat ascribed to two facts: first, on account of the expense involved in the advance payment to be made on the purchase of a horse, and then that in Switzerland cavalry would hardly ever be required except for reconnoitring or vedette duties. The election on the part of recruits to join the cavalry is voluntary; but having selected that branch they must remain in it.

The Vetterli rifle, with a magazine containing eleven cartridges, has been used by the army; but after long and thorough experiments under

government expert commissions with the Rubin rifle, a later and improved patent, in June, 1889, it was accepted, and is being rapidly substituted. The budget for 1890 contains an appropriation of 5,734,600 francs for the purchase of these rifles and 3,000,000 francs for ammunition.

The highest rank in the Swiss army is that of colonel. In the event of war the Federal Assembly nominates a general, who takes command till the troops are disbanded. The only officer at present in the service who has held that temporary rank is General Herzog, the commander of the troops in 1871, and who is now doing regular duty as a colonel. Then come lieutenant-colonel, major, captain, and first lieutenant; these constitute the commissioned officers. The non-commissioned officers are sergeant-major, quartermaster-sergeant, sergeant, and corporal. Colonels command divisions and brigades; lieutenant-colonels, regiments; majors, battalions; and captains, companies. The Cantons nominate officers up to the rank of *commandant de bataillon*, subject to the approval of the federal military authorities. Officers of higher rank than *commandant de bataillon* hold their commissions from the Federal Council. Then there is a general staff or *État major*, appointed by the Federal Council, consisting of three colonels, sixteen lieutenant-colonels or majors, and thirty-five captains. The chief of this staff is appointed by the Council for a term of three years, and is practically in charge of the forces during peace.

The pay of the army, like all branches of public service in Switzerland, is on a very economical scale. With the exception of the members of the general staff and corps of instructors (the former substantially constitutes the latter), who are permanently in the service, officers and privates only receive pay during active service,—that is, during the short drill periods or in time of war. The commander-in-chief (who only serves in time of war) receives fifty francs per day.

	Francs.
Colonel commanding division receives	30
Colonel commanding brigade	” 25
Colonel	” 20
Lieutenant-Colonel	” 15
Major	” 12

Captain	”	10
First Lieutenant	”	8
Second Lieutenant	”	7

Personal allowance for uniform and equipments:

	Francs.
For officers not mounted	200
For officers mounted	250
For equipment of horses	250

The private soldiers are paid eighty centimes per day, and from this a sum, to be fixed by the chief of the corps, is deducted to meet certain contingent personal expenses of the private. Rations in the field daily embrace 750 grammes of bread; 375 of fresh meat; 150 to 200 of vegetables; 20 of salt; 15 of roasted coffee; 20 of sugar. Commutation to officers is one franc per day. If a private furnishes his own coffee, vegetables, and wood, a proportionate allowance is fixed by the Federal Council. The rations are the same during the drilling terms, but the pay is reduced to fifty centimes per day. The constitution declares that “soldiers who lose their lives or suffer permanent injury to their health in consequence of federal military service shall be entitled to aid from the Confederation for themselves or their families in case of need.”

A federal law grants pensions:

1. Up to 1200 francs in case of complete blindness, the loss of both hands, or both feet, or other injury causing absolute incapacity to earn a living.
2. Up to 700 francs in case of partial incapacity for work.
3. Up to 400 francs in case where business or calling must be changed to one less profitable, in consequence of injury.
4. Up to 200 francs when this change is necessitated in a modified degree.

Pensions to widow, children, or parent:

1. Widow without children up to 350 francs; with children up to 650 francs.

2. Children one or two, each 250 francs; more than two, total of 650 francs.

3. Father or mother (where no widow or children), 200 francs; if both living, total of 350 francs.

4. Each brother or sister (when neither widow, children, nor parent survive), 100 francs each.

5. Grandfather or grandmother (where neither widow, children, parents, nor brother or sister survive), 150 francs; if both living, 250 francs total.

These amounts may be increased in special and meritorious cases. Women divorced or living apart from their husbands, and children eighteen years of age, are not entitled to receive pensions.

Every Swiss citizen subject to military service, whether he resides in the Confederation or not, who does not personally perform it, is subject in lieu thereof to the payment of an annual tax in money. Foreigners established in Switzerland are likewise subject to this tax, unless they are exempt therefrom by virtue of international treaties or belong to states in which the Swiss domiciled there are neither liable to military service nor to the payment of any equivalent tax in money. This is the only direct tax levied in the Confederation; and the gross sum realized is shared proportionately between the Confederation and the Canton.

Exempt from this tax are:

1. Paupers assisted by the public charity fund, and those who by reason of mental or physical infirmity are incapable of earning their subsistence, or who have not a sufficient fortune for the support of themselves and family.

2. Those rendered unfit through previous service.

3. Swiss citizens in foreign countries, if they are subject to a personal service or to an exemption tax for the same in place of domicile.

4. The railway and steamboat employ  s during the time when they are liable to the military service organized for the working of the railways and

steamboats in time of war.

5. Policemen and the federal frontier guards.

This military tax consists in a personal tax of six francs, and of an additional tax on property and income; the amount exacted from any one tax-payer not to exceed 3000 francs per annum. The additional tax is one franc and a half for each one thousand francs of net fortune, and one franc and a half for each one hundred francs of net income. Net fortunes less than 1000 francs are exempt, and from the net income are to be deducted 600 francs. Net fortune is the personal and real property after deducting debts of record, chattels necessary for household, tools of trade, and agricultural implements. Real estate and improvements are assessed for this tax at three-fourths of their market value. In computing the property of a person for this tax, half of the fortune of the parents, or if not living, then of the grandparents, is included, proportionately to the number of children or grandchildren, unless the father of the tax-payer shall himself perform military service or pay the exemption tax.

Net income embraces:

1. The earnings of an art, profession, trade, business, occupation, or employment. The expenses incurred to obtain these earnings are deducted, also necessary household expenses, and five per cent. of the capital invested in the business.

2. The product of annuities, pensions, and other similar revenues.

From the age of thirty-three to the completion of the military age, only one-half of the tax is exacted. The Federal Assembly has the right to increase the tax to double the amount for those years in which the greater part of the *Élite* troops are called into service. The military tax for Swiss citizens residing abroad is calculated every year by special rolls, and the persons advised by the officials of the Canton of their birth, if their address be known, otherwise by public advertisement. The tax for exemption is paid in the Canton where the tax-payer is domiciled when the rolls are prepared. Parents are responsible for the payment of the tax for their minor sons, and for those sons who, though of age, remain a part of the household. The period for prescription is five years for tax-payers present in the country, and ten years for those absent from the country. The Cantons are charged

with making out the annual rolls and collecting the tax. By the end of January following the year of the tax the Cantons must remit to the proper federal official the half of the gross product collected. A portion of this is assigned by the Federal Assembly to the fund for military pensions. In each Canton there is a tribunal to pass upon appeals on the correctness of the rolls of tax-payers. All disputes arising as to the tax are referred to and decided by the Federal Council. With a view of insuring a uniform application of the law of military service, the Confederation reserves supreme supervision; and the ultimate decision upon all questions arising out of the operation of it, and likewise upon decrees relating to the imposition and collection of the tax, rests with it. The estimated receipts from this tax for the share of the Confederation are placed in the budget for 1889 at 1,330,000 francs. An eminent Swiss publicist, Dr. Dubs, in criticising this tax-law, asserts "that in many points it is equally irrational, and, in the construction of its details, leads moreover to further absurdities of all kinds, of which undoubtedly the claiming to tax those in foreign countries and the taxation of the heir's possible expectations form the highest point." He might have added that this tax, so far as levied upon incomes of persons liable to military service but exempted therefrom by reason of disability or other cause, partakes rather of the character of a law to raise revenue than as providing a penalty for the non-performance of military service. The failure to render such service on the part of one enjoying a specified income is not more heavily punished than the failure of one with less or no income. The operation of this tax has caused much complaint on the part of citizens of the United States "established" in Switzerland. Nearly all of the European states have concluded treaties with Switzerland, since the enactment of this "military tax-law," bringing themselves within the conditions it prescribes for the exemption of their citizens "established" in Switzerland, from any personal service or any tax in lieu thereof.

The citizens of the United States residing in Switzerland, of whom there are quite a number engaged in prosperous and large industries, still come under the treaty concluded between Switzerland and the United States in 1850, long previous to the passage of the tax-law (1878), Article II. of which reads: "The citizens of one of the two countries, residing or established in the other, shall be free from personal military service, but they shall be liable to the pecuniary or material contributions which may be

required by way of compensation, from citizens of the country where they reside, who are exempt from that service.” This article seems to contemplate the imposition of a penalty for the non-performance of a duty from which the party is specially exempted. It is susceptible of a plausible argument, that a proper construction of this article does not warrant the collection of the tax imposed by the Swiss law of 1878, from the United States citizens residing there. For this tax is not in fact a “pecuniary contribution” required from citizens of Switzerland who are exempt from personal military service, but is a tax required only from citizens who by reason of their age are subject to military service, but who in consequence of physical or other disability cannot perform it. That the words, “by way of compensation,” were not intended to qualify the phrase, “pecuniary or material contribution,” but refer to, “shall be free from personal military service.” Should a citizen of the United States residing in Switzerland prefer to render personal military service rather than pay the tax, his service would not be accepted; he would be informed that by virtue of the treaty with his country he is “free from personal military service, but liable to the pecuniary or material contribution,” and he must pay his tax,—“your money and not your service is what we wish.” If his service was accepted, it would carry an implication of the right to enforce either personal service or in lieu thereof the payment of a commutation tax for exemption. The language of the treaty obviously contemplated only such general contribution as might be required of all classes of citizens, and excludes the idea of a special tax levied upon an exceptional class. During the last war in the United States the tax exemption or commutation, to which a certain class of citizens were subjected by the draft law, did not interfere with domiciliary rights. There is to-day no exaction on the part of the United States government from foreign citizens domiciled or established within them, of any pecuniary or material contributions of a military nature; nor is it believed that there is any such exaction on the part of any of the States.⁷⁰ The Swiss construction of the treaty, as to the liability of the United States citizens residing therein to this tax, was substantially conceded by our Department of State in 1876, and left the remedy to be sought by an international treaty. The Swiss government has indicated its willingness to enter upon the negotiation of such a conventional agreement to effect the relief of United States citizens from this tax, after the manner prescribed by the law of 1878, and which was promptly acted upon by all the European

powers. The government of the United States has not found it expedient to do this. Many difficulties are suggested.

In parts of Switzerland there has appeared some dissatisfaction with the military service and tax. It is alleged to be an unnecessary waste of money expended on the country's armed forces, draining its limited resources to no practical purpose, and that an unprofitable and irksome task is imposed upon them by this assessment. The statesmen of Switzerland stand united in the expression that it is the only way to be sure of their neutrality being respected; as was abundantly proven by the prompt presence of the federal troops compelling Bourbaki's corps of 80,000 men, when in 1871 they were driven into the Swiss territory, the moment they crossed the line, to lay down their arms; and thereby saved the German army from crossing the frontier of the Confederation and engaging the French on Swiss soil. The President of the Confederation, in his address to the *Tir fédéral* of 1887, voiced the prevailing sentiment when he said: "The government of Switzerland would remain foremost in maintaining peace and pride in its arms as the supreme glory of the republic; and would constantly endeavor to preserve her neutrality, but to do this she must not rely altogether on treaties, but also look to her own strength and energy; to keep her soldiery in condition to show that the adequacy of the Confederation to all the needs of national life is, in no single department, taken on trust. He therefore would urge them to be assiduous in improving military training, to add such training to the education of the youth, to hold rifle contests and to perfect drills, all of which should be animated by a free fraternal spirit." Notwithstanding the constitution forbids the Confederation to keep a standing army, or any Canton to have more than three hundred men as a permanent military body, every able-bodied Swiss is a soldier of the republic; not on paper merely or by legal and constitutional fiction, but *actually*. The necessity of self-defence forced Switzerland to be the very first power in which universal liability to military service was introduced in Europe, many years and even centuries before other countries had recognized the principle, which is now almost universal. The Swiss army is based upon a "voluntary-compulsory" system. It is essentially a force of militia intended for defensive purposes only. Admirable as it is in a military and economic sense, it is scarcely more than a summer holiday, compared with the rigid and grinding martial duties under the other European systems. Two things make it a light burden, if not a diversion, for the Swiss. They

have a strong natural military instinct coming down through generations.⁷¹ Then this instinct is in every possible manner encouraged and developed by the government, the Canton, and the Commune. The elements of drill begin with the very first week of a boy's schooling, as soon as he can stand erect or poise a stick. All kinds of games are practised that tend to open and expand the chest, to nerve the limbs, give carriage to the form, and serve to strengthen, temper, and adjust it. All these exercises fit him and, in fact, contemplate his becoming in time a soldier. He not only learns in his youth the elements of drill and the use of arms, but habits of obedience, order, and cleanliness; and even those yet higher duties of a camp, the will to mingle class with class, to put down personal hopes and seek no object but the public good.

The *Schützenfest*, liberally encouraged by the government, is held biennially. This is in many respects the parallel of the ancient Greek festival game, which served the purpose of keeping alive the national spirit. It is the most important and popular public gathering in Switzerland; the entries for the various prizes running as high as 100,000. It is uniformly opened by a formal address from the President of the Confederation and attended by all the leading men of the country. It is a national fête day. Then there are the *Sociétés de tir*, cantonal and communal shooting societies, which number about 1600, with over 100,000 members. These societies compete one with the other, and in event of their conforming to certain regulations receive subsidies from the Confederation. These regulations require:

1. Every member of the *Élite* or *Landwehr* must, on application, be admitted to the club, if he is able and willing to pay his share of the expense for targets, markers, etc.

2. The club must number at least twenty members.

3. The firing exercises must be done with the regulation arms and ammunition; each soldier must use his own gun; regulation targets must be had, and at least ten shots fired at every meeting, at each of the distances named.

4. To receive the subsidy, every member of the club must annually take part in at least three firing exercises, and must fire a total of fifty shots, of which at least ten must be at one of the regulation distances and regulation targets.

Every Swiss man therefore is drilled, armed, and ready to turn out and fight; in his house, within arm's reach, must hang his gun, his uniform, and sword. The *concierger* who accepts your *pourboire* may be a captain in the line, and the driver of your *voiture* a corporal. Some one, writing of the universal fusion between the military and civic elements, tells this incident: A gentleman called to see a lawyer on business; asking the servant if the lawyer was in, he answered, "The colonel is not here, sir, but you can see the major." So the visitor was shown in, and saw the major, who was the lawyer's partner, and when he made a statement of his business, he was told, "That is not in my department, the captain will look after it." The captain was the firm's clerk, and while talking to him, a second clerk came into the office, whom the captain saluted, saying, "Good day, lieutenant."

In the public schools even the girls receive some training which fits them to be useful auxiliaries in the army. They learn to stanch the flow of blood, to dress a gunshot wound, and to nurse the sick; they know some chemistry and are quick at sewing, binding, dressing, and such medical arts. And if need, they would march in line with knapsacks on their backs, as their mothers did in times past. The Helvetic women fought against the army of Octavianus Augustus in 16 B.C., and when all was lost, hurled their young children at the Roman soldiers and rushed forward to meet their own death. In the old days of trial by judicial combat, *assumere duellum*, the chronicles of 1288 contained this curious entry: *Duellum fuit in Bern inter virum et mulierem, sed mulier prevaluit*. Not only men but women fought at the battle of Stantz, and among the killed were counted one hundred and thirty women. During the French invasion of 1798, upward of eight hundred women took up arms in the *Landsturm*, and bore all the fire of the enemy in the last actions. At Fraubrunnen two hundred and sixty women received the enemy with scythes, pitchforks, and pickaxes; one hundred and eighty were killed, and one of them, whose name was Glar, had two daughters and three granddaughters who fought by her side,—these six heroines all were found among the dead. In the Swiss Reformed Church, in administering the sacraments of the Lord's Supper, the men go up first and the women afterwards, with the single exception of Geiss, in Appenzell, where, on account of their service at the battle of Amstoss, the women go up first.

The Swiss owe their reputation to their freedom, and their freedom to their valor. Their military spirit is entirely free from greed of territory, lust

of power, “the pride, pomp, and circumstance of glorious war,” and other forces far from admirable in their motive, which give prominence and predominance to modern armaments; it is inspired by motives of civic manhood and manly self-assertion. A small and by no means rich nation that relaxes not from its attitude of defence is less likely to be attacked, though surrounded by powerful and ambitious neighbors, than another nation which possesses wealth, commerce, population, and all the sinews of war in far greater abundance, but is unprepared. The more sleek the prey, the greater is the temptation, and “no wolf will leave a sheep to dine upon a porcupine.”

The spirit which animated the brave old Swiss was not that of revenge, or plunder, or bloodshed. They fought simply when and because it was necessary to insure the liberty of their native land. It was a sense of duty rather than love of glory that strengthened and filled them with an invincible heroism and inspired them with the sentiment so often heard on the battle-field, *Wir müssen unsere Pflicht thun* (“we must do our duty”). The set of military regulations drawn up after the battle of Sempach, more than five hundred years ago, might furnish a model for to-day; a few taken at random will show their tenor:

1. Not to attack or injure any church or chapel unless the enemy have retired into it.

2. Not to insult any females.

3. It is forbidden to any man to straggle for the sake of plunder, or to appropriate to himself any part of the booty, which must all be reported and be divided equally in good faith.

4. Every Swiss engages to sacrifice his life or property, if required, for the defence of his countrymen.

5. No Swiss shall abandon his post even when wounded.

6. No Swiss shall take away anything from any of his countrymen either in peace or war.

War has been the great training school of hardihood, endurance, courage, self-sacrifice, and devotion to public duty. There is no profession more favorable to the growth of noble sentiment and manly action than that of the soldier; and to its beneficial action in the formation of States, every

page of history bears flaming testimony. A great German professor declares: "Our army is not simply the organized power of the state; it is also a great school, nay, our greatest school for the masses, of intellectual culture, morals, politeness and patriotism." Let the Swiss ever cherish and imitate the simple lives, the undaunted courage, the obstinate and enduring spirit, and the lofty patriotism of their ancestors who, in the great contests which rolled round the fort of their mountains, died on the fields of Morat and Morgarten.

CHAPTER XIII.

EDUCATION.

No inquiry can be more important than that which proposes to discover the legitimate purpose and the best course of general education. All men, how much soever they may be distinguished from each other by a variety of circumstances, connections, and pursuits, have yet one common set of duties to perform; and it is in forming this character, and imparting the ability to discharge these duties, that the business of what may be called, in the most general sense, a good education, properly consists. Such an education may, therefore, fitly be described to be that course of discipline which is accommodated to man, as he is man; which is to lay the firm foundation of excellence in future life; and by which it is designed to effect the highest preparatory culture of his whole nature. It happens, however, that the foundation of those virtues which are to render us useful and happy must be laid at a time when we are least willing to receive instruction,—when we are in search rather of amusement for our imagination than of employment for our reason. Aware of these difficulties, the instructors of mankind have been in all ages solicitous to discover popular and efficacious methods for their admonitions. Theories once embraced as judicious and complete are succeeded by others which, in turn, are declared as erroneous and defective. Plans at present deemed ill-concerted or impracticable are the same which it was once thought reasonable to adopt. Where government, national or state, insists upon having every child given over to it for the first and formative educational period, it assumes an infinite responsibility for the judicious and reasonable training of the young committed to its care. And they have, in turn, the right to conclude that the instruction given is that, of all others, which the wisdom and wit of the age have pronounced to be the most beneficial and important for them to receive. The system of education is proportionately more enlightened and liberal as the liberty of the subject is the basis and aim of the constitution. The interested caution of a despotic government cares not to open too wide every avenue to science. The state of public instruction is one of the greatest glories of Switzerland. There is no country where primary instruction is more developed and more

wide-spread. A Switzer will tell you that every child in the Confederation, unless under the school age or mentally incapacitated, can read and write. This is true to the extent that the exceptions to the rule are not sufficient to constitute an illiterate class. Keeping school is the permanent business of the state, and the attention to it is not merely a fixed and formal business, but an unceasing and engrossing duty. A school is one of the first things present to the eyes of a Swiss child, and one of the last things present to the mind of a Swiss man. On reaching a certain age, the right to stay at home and play ceases; the school seizes the child, holds him fast for years, and rears him into what he is to be. The two great items of expense which figure in the budget of a Swiss Canton are the roads and public instruction. The sum bestowed on the latter is immense, relatively to the total means of the Canton, standing far ahead of the disbursements for military service, which, in Europe, is a startling fact. On the continent, with the exception of Switzerland, the cost of the public forces, even in times of absolute peace, is estimated to be nearly fourteen times that of the public schools.⁷² The passion for public education, and the large expenditure so cheerfully made for its support, are but natural in the land that gave birth to Rousseau, Pestalozzi, and Fellenberg. John Henry Pestalozzi, born at Zurich in 1746, was the most celebrated of Swiss educational reformers and philanthropists. His system furnished the basis and gave the first impetus to the public school organization; it furnished also a model for the rest of Europe, and especially for Germany. The main features of this system, with the improvements made upon it, are to-day regarded in Switzerland as the chief corner-stone of their superb educational condition. His whole school apparatus consisted of himself and his pupils; so he studied the children themselves, their wants and capacities. "I stood in the midst of them," he explains, "pronouncing various sounds and asking the children to imitate them. Whoever saw it was struck with the effect. It is true, it was like a meteor which vanishes in the air as soon as it appears. No one understood its nature. I did not understand it myself. It was the result of a simple idea, or rather of a fact of human nature, which was revealed to my feelings, but of which I was far from having a clear consciousness. Being obliged to instruct the children by myself, without any assistance, I learnt the art of teaching a great number together; and as I had no other means of bringing the instruction before them than that of pronouncing everything to them loudly and distinctly, I was naturally led to the idea of making them draw,

write, or work, all at the same time.” Combining the experience with the ideas he had received many years before from Rousseau, he invented his system of object-lessons. The Yverdon Institute had soon a world-wide reputation. Many came to wonder, many to be educated, many to learn the art of education. Pestalozzian teachers went from it to Madrid, to Naples, to St. Petersburg. Kings and philosophers joined in doing it honor. While Pestalozzi did not invent the principle that education is a developing of the faculties rather than an imparting of knowledge, he did much to bring this truth to bear on early education, and to make it not only received, but acted on. We must, at least, concede to him the merit, which he himself claims, of having “lighted upon truths little noticed before, and principles which, though almost generally acknowledged, are seldom carried out in practice.” The motive power of his career was the “enthusiasm of humanity.” He never lost faith in the true dignity of man, and in the possibility of raising the Swiss peasantry to a condition worthy of it. “From my youth up,” he says, “I felt what a high and indispensable human duty it was to labor for the poor and miserable, that he may attain to a consciousness of his own dignity through his feeling of the universal powers and endowments which he possesses awakened within him, so that he may be raised not only above the ploughing oxen, but also above the man in purple and silk who lives unworthily of his high destiny.” It is claimed of him that he was the first teacher to announce convincingly the doctrine that all people should be educated; that, in fact, education is the one good gift to give to all, rich or poor, and, unlike any other giving, it helps and does not hinder self-help. Pestalozzi was no friend to the notion of giving instruction always in the guise of amusement, contending that a child should very early in life be taught the lesson that exertion is indispensable for the attainment of knowledge. At the same time he held that a child should not be taught to look upon exertion as an evil; he should be encouraged, not frightened, into it. “An interest,” he claims, “in study is the first thing which a teacher should endeavor to excite and keep alive. There are scarcely any circumstances in which a want of application in children does not proceed from a want of interest; and there are, perhaps, none in which the want of interest does not originate in the mode of teaching adopted by the teacher. I would go so far as to lay it down as a rule that, whenever children are inattentive and apparently take no interest in a lesson, the teacher should always first look to himself for the reason. Could we conceive the

indescribable tedium which must oppress the young mind while the weary hours are slowly passing away, one after another, in occupations which it can neither relish nor understand, could we remember the like scenes which our own childhood has passed through, we should no longer be surprised at the remissness of the school-boy, creeping like a snail unwillingly to school. We must adopt a better mode of instruction, by which children are less left to themselves, less thrown upon the unwelcome employment of passive listening, but more roused by questions, animated by illustrations, interested and won by kindness.”

The efforts of Pestalozzi went down in clouds, and when he died, at the age of eighty-one, in 1827, he had seen the apparent failure of all his toils. He had not, however, failed in reality. And when twenty years later the centenary of his birth was celebrated by school-masters, not only in his native country but throughout Germany, it was found that Pestalozzian ideas had been sown, and were bearing fruit, over the greater part of central Europe. Even to-day school-masters might learn much from Pestalozzi, in aiming more at a plan of education founded on a knowledge of human nature, and its modes of instruction which shall better develop their pupils’ faculties. The true functions of Pestalozzi, it is alleged, were to educate ideas, not children. Even those who are most averse to theoretical views, which they call unpractical, will admit, as practical men, that their methods are probably susceptible of improvement, and that even a theorist might lead them to make many observations which would otherwise have escaped them; might teach them to examine what their aim really was, and then whether they are using the most suitable methods to accomplish it. Such a theorist is Pestalozzi. He points to a high ideal, and bids us measure our modes of education by it. When Switzerland would honor Pestalozzi’s name, the monument she built was more than brass or bronze. It was a school,—a school where the memoirs of the man were carved, not on wood or stone, but in the minds of happy, growing youths, the fortunate beneficiaries of a system whose foundation he laid.⁷³ Down to 1848 all the public schools in Switzerland had been in the hands of the Cantons; in the federal constitution, adopted at that time, it was provided that the Confederation might establish a university and a polytechnic school. A proposition for a university was soon thereafter submitted and rejected. Subsequently a law was passed, in 1854, establishing a federal polytechnical school. In view of the antagonism existing between the

German, French, and Italian Cantons, and the social friction that followed between the adherents of the different creeds, it was found important that the Confederation should be in a position to strengthen and direct the forces which make for unity, and attention was directed to the vital forces which proceed from a wisely-arranged system of public instruction. This resulted in more extensive power being conferred upon the Confederation, in the revised Constitution of 1874, with respect to education. The 27th Article of the Constitution declares: "The Confederation has the right to establish, besides the existing polytechnical school, a federal university and other institutions for higher instruction, or may assist in the support of said institutions. The Cantons shall provide for primary education, which must be adequate, and shall be placed exclusively under the direction of the civil authorities. It is compulsory, and in the public schools free. The public schools shall be open to the adherents of all religious sects without any offence to their freedom of conscience or of belief. The Confederation shall take the necessary measures against such Cantons as shall not conform to these provisions." Primary instruction was first made compulsory under this Constitution of 1874. The promotion and organization of the elementary education are left in the hands of the Cantons, subject to the control of the Confederation; but it must be exclusively under the civil authority. This does not exclude the clergy—if not Jesuits—from the position of teachers and other school officers, but simply requires, if occupying these positions, they must stand on the same footing as laymen. No person who belongs to a religious order, claiming allegiance paramount to the state, can be a teacher in the public schools. The provision guaranteeing freedom of conscience and belief is complied with by the Cantons in a way suitable to their wants. Religious instruction is usually given on fixed days, at stated hours, so that every facility for absenting themselves is afforded to children whose parents wish them only to receive secular instruction. In many instances the religious instruction is confined to truths common to all Christians, and to readings from the Bible. In reference to the relation of the schools to religion in Switzerland, Matthew Arnold reported: "Whoever has seen the divisions caused in a so-called logical nation like the French by this principle of the neutrality of the popular school in matters of religion might expect differently here. None whatever has arisen. The Swiss communities, applying the principle for themselves and not leaving theorists and politicians to apply it for them, have done in the matter what they consider

proper, and have in every popular school religious instruction in the religion of the majority, a Catholic instruction in Catholic Cantons, like Luzern, a Protestant in Protestant Cantons, like Zurich; and there is no unfair dealing, no proselytizing, no complaint.” The first school-year varies from five to seven years of age, and runs up to twelve, except in a few Cantons, where it extends to the fourteenth, fifteenth, and sixteenth years. Primary instruction is left to the determination of the several Cantons, only it must be, under the constitution, “adequate.” With the exception of the Canton of Solothurn, where all children must receive their primary instruction in the public schools, a person is not obliged to send his children to the public school. He is perfectly free to have them instructed wherever he wishes, provided they receive an education, at least as good as that which is given in the public schools. Parents who neglect or refuse to do one or the other are cited before the authorities and subject to a fine, and in case of a repetition of the offence to imprisonment. In most of the Cantons the gratuity covers books and other school-materials to children of indigent parents. There is no class of vagrant or destitute children which the system fails to reach; even to those too poor to obtain proper food and clothing, both public and private assistance are freely rendered. The obligation resting upon the Confederation to see that the Cantons meet the constitutional requirements has so far not been supplemented by any federal legislation, prescribing the method of such enforcement, or imposing any penalties for disregard of the law. Certain Cantons having failed to do their duties in this respect, the Federal Assembly in 1882 instructed the Federal Council to take steps to insure a general compliance with the provisions of the constitution. The Council proposed the creation of a Federal Department of Public Instruction, with a number of inspectors, whose duty it would be to enforce the law. So soon as the Assembly submitted this suggestion in the form of a federal law, nearly two hundred thousand citizens demanded its subjection to the *Referendum* (30,000 was sufficient to do so), and upon the taking of the popular vote, it was rejected by the extraordinary majority of 146,129. It was an indignant protest against what was regarded as an attempted interference with their local home-government of the schools. Therefore the details of school administration, organization, and inspection still remain in the hands of the educational department of each Canton. In some Cantons inspectors are appointed by the educational department; in others, it is voluntarily conducted by a board composed chiefly of professional men,—

pastors or persons of influence. These inspectors decide as to the course of studies, the books to be used, and act as a sort of tribunal to hear and decide all controversies that may arise between the teachers and the local authorities. As a rule, women are not eligible as school inspectors. Every Commune, in addition to the inspectors, has a school commission, elected by the communal assembly. They are charged with providing sufficient school accommodation, and keeping the buildings in repair; also to visit the schools and see that any suggestions made by the inspector have been properly carried out. The Commune provides the sites for the school buildings, and these are erected at the joint expense of the Commune and Canton. Great attention is given to the construction of these school-houses, as to their comfort and convenience; the windows must face the east or southeast, and the benches so arranged that the light falls upon the pupil's left hand. Then there is sure to be a large and grassy plot for the children's play-ground, with a fountain of pure water on it, shady trees, and all the accessories for athletic exercise. The school-house is the most commodious, modern, and handsome edifice to be seen in a Swiss town. One may look in vain for the court-house and town-hall, but on the most central and costly site is the school-house, the pride of every city square and village slope. The schools are not mixed, and when the Commune is not able to sustain separate schools, the boys attend in the morning, and the girls in the afternoon. Saturday is not a holiday. Each class has so many hours of schooling for the week, apportioned among the six days. Every form of corporal punishment is forbidden. No bodily pain, no bodily shame, is suffered in the schools. Chastisement, it is claimed, first brutalizes a child; second, makes him cowardly; and, third, blunts his sense of shame, which must soon form the bulwark round virtue. "A lad has rights," says the Swiss teacher. "We cannot stint his food, we cannot lock him up, we cannot crown him with a dunce's cap, or we cannot make a guy of him. Our discipline is wholly moral; our means are prizes, good words, all leading up to public acts of honor. Should we have any incorrigible ones, they are expelled, but expulsion is a very serious matter, and must be exercised under prescribed rules, with due notice to parents and the school officials; and at first only temporary and conditional, and never final and absolute, without the formal sanction of the school commission. This emergency rarely occurs. A threat or admonition suffices, for expulsion is considered only one degree from ruin." Obedience which is rendered merely because there is a sense of

authority about the commander destroys the sympathetic relation which should exist between the teacher and pupil. The best and only true discipline is that which is secured, not through habits created from the will of the teacher, says Professor Shaler, of Harvard, but won through the exercise of the will of the pupil; only when accomplished by sympathetic stimulus, is the effect truly educational. Manliness, sincerity, and conscientiousness are its legitimate fruits; it fosters honesty and truthfulness more than any regimen discipline.

The pupil's manners and appearance are also cared for. He is taught how to appear and act no less than how to read and write; how to walk, stand, and speak; that his hands and face should be kept clean, as well as his papers and books. A blot upon his page and a smudge upon his face are regarded as equally bad. "A book befouled," the teacher tells us, "with grime is wasted, and our simple economical habits will not suffer such waste; turn over any of these books, which are in daily use, no leaf is torn or dog-eared, nor the covers defaced with scribbling." The same observation would apply to the school furniture and building. The desks, though extremely plain, look as if they are daily washed and polished; not a spot nor splash of ink to be seen on their surface, not any evidence of the bad boy's knife; the large corridors and spacious stairways show no scratch or scrawl; the wall free from fingermarks and inscriptions, and no bits of paper on the floor. The children, representing all classes of society, from the patrician to the poorest peasant, are neatly and comfortably clad; none dirty, ragged, or shoeless. To an expression of surprise at this, we are informed "that if a child comes to school with face begrimed or clothes torn, he is washed, cleaned, and mended up, and then sent home; the mother gets ashamed on finding that some other woman, or it may be a man, has had to wash her child; the child also becomes mortified, and it is never necessary to repeat the treatment." The moment that a pupil is on the street he has passed from the circle of his home, and that moment has commenced the school's authority. The regulations, printed on slips and dropped in every house, contain, among a score of others, the following rule relating to conduct on the street: "Delay of any kind between the scholar's home and school is not allowed. No whooping, yelling, throwing stones and snowballs, teasing children, ridiculing age or deformity can be endured. Grown persons shall be met with kind civility, politely greeted as they pass, and thus shall honor be reflected on the school." There is very little

contumacious absence from school. The children have the habit of going to school as a matter of course, and the parents equally the habit of acquiescing in their going. The Federal Factory Act of 1877, with a purpose of preventing any interference with attendance at school, forbids the employment, in a mill or public workshop, of any child until he has attained the age of fifteen. And every Swiss *recruit* for military service is required to pass an *examen pédagogique*, with a view of enabling the authorities to ascertain the degree of instruction attained by the youth of the country. This examination consists of arithmetic, geography, and Swiss history; and those who do not come up to the minimum educational standard are required to undergo instruction at the *recruit* school, and the odium attendant upon this is found to exercise a marked beneficial effect on the education of the peasantry. The teachers of the primary schools are nominated by the school inspectors and elected by the Communal Assembly. Teachers of the higher schools are appointed by the Cantonal Director of Education and confirmed by the Board of Educational Department. They are elected for a term of six years, and after service on a differential scale are retired on a pension of not less than one-half of their salary at the time of their retirement. Each Commune decides for itself whether male or female teachers shall be employed. The teachers are trained for a period of four years in one of the cantonal normal schools. In the Grisons and Neuchâtel, normal schools are attached to the secondary schools, but in the Cantons of Zurich, Bern, Luzern, Schwyz, Freiburg, Solothurn, St. Gallen, Aargau, Thurgau, Ticino, Vaud, and Valais separate establishments exist. The students are usually lodged and boarded at the actual cost; and free and half-free places are open for those unable to pay in full. Each Commune must pay to the primary school-teacher a minimum salary of 550 francs, but these salaries will run from 600 to 1000 francs, with free lodging and fuel, the latter being an important item of expense. Those in the larger towns receive from 1200 to 1700 francs, secondary school-teachers are paid from 2200 to 2500 francs, and teachers in the gymnasiums an average of 3300 francs. The Cantons assist the Communes in augmenting the lower salaries and in the payment of the pensions. After thirty years of service, or in case of disability or illness contracted in the line of professional duty, teachers may retire on the pension above indicated. In some Cantons, after five years of service, 100 francs are added to the salary, and an additional 100 for each *quinquennium*. In Basel a female teacher, after ten years of service, is entitled to a

supplemental salary of 250 francs per annum; after fifteen years, 357 francs per annum, and then on voluntary retirement, after fifteen years of service, a pension for life equal to two per cent. on the amount she was being paid at time of retirement. Thus the Swiss teacher has pragmatic rights,—that is, he has a legal claim to a fixed salary, and to a retiring pension in case of age or illness. The Swiss teacher is to his pupil a father and companion. He leads and assists on the play-ground the same as he does in the school-room; a free and unrestrained companionship, beautiful as it is beneficial, unmixed with foolish fondness or paternal pride. Together they will run and leap and laugh and dance and sing as well as learn. The hours of study past, the pupil and teacher wander to the forests and the field; together pluck wild flowers and plants; together climb the hills, cross lakes and streams, searching for curious rocks and plants, learning again from them the lessons of the day. This is the very essence of education: for a man who professes to instruct to get among his pupils, study their character, gain their affections, and form their inclinations and aversions, together with that affectionate vigilance which is experienced in the best home-circle. These men regard the school as a psychological observatory, where they are to practise the very difficult art of discovering the capacities of the pupils, receiving them with a tender consideration for the good and evil they bring with them, and with an apt adjustment of the resources of education to their individual needs. The primary or communal schools come first in number. In every hamlet, where there may be twenty girls and boys, the communal officials must provide a school-house and hire a master. These are supposed to embrace the pupilage for the first five or six school-years. The lessons average from twenty to thirty weekly, and they have annual vacations from ten to twelve weeks. The children who are old enough to assist in work at home are only required to attend one-half of the day during the harvest season, or other busy times. In some instances there is provided for this class what is known as the supplementary school, which is held only on two mornings of the week; the aim being to help the pupil retain what he has already learned in the primary school until he can again resume his regular attendance. A curious custom prevails in some of these communal schools with respect to the supply of the necessary firewood in winter. Every boy or girl must contribute a piece; and in winter the children may be constantly seen tearing down-hill, each with a log of wood tied to a *luge* (little sledge) as his contribution to the school-fire.

The course of study in the primary school embraces:

1. Religion.
2. Native language.
3. Arithmetic.
4. Writing.
5. Physical and political geography.
6. History of Switzerland.
7. Elements of civic instruction.
8. Drawing.
9. Elements of natural science.
10. Singing.
11. Gymnastics; and
12. (For the girls) Manual work in knitting and sewing.

Connected with the primary schools in some Cantons is the *secundar-schule*, or secondary school; this school is open on Sundays and in the evenings, during the winter months; and the course includes book-keeping, business composition, such as letters, bills, contracts, and obligations of various kinds appertaining to trade and industry. In many Cantons the secondary or advanced division of the primary school is free, and attendance compulsory; in others, attendance optional, with a nominal charge of five francs. The course is three years for boys and four for girls. In the Cantons of Zurich and Luzern, the children from the primary schools are given four years of gratuitous instruction in these supplementary schools. By the last accessible report, it appears there were in attendance at the primary schools 455,490 pupils, under the care of 8763 teachers. Sixteen Cantons provided 437 secondary schools, with 20,500 pupils. The *intermediate* schools present much variety, and have only one feature in common, in that they represent a higher grade than the primary, with an enlarged and more deepened course of study. They extend to elements of literature in the mother tongue, composition of an advanced kind, reading of classical authors, higher mathematics, and foreign languages (which

practically are confined to French for the German and Italian Cantons, and to German for the French Cantons); geography and history also become much extended.

These schools, however, do not have any pretensions beyond what their title of *intermediate* indicates. There are several grades of these intermediate schools, such as the *district school* and *under-gymnasium*. In these, still more advanced literary, technical, and artistic instructions are given. The ancient languages, Greek, Latin, natural history, physics, and chemistry are taught. Many of them are free, and in no case does the fee exceed 25 to 40 francs for the scholastic year. The greater portion of the expense of these schools is defrayed by the Communes, some of the cantonal governments assisting. The Canton of Bern pays one-half the salaries of the teachers, and pensions meritorious and indigent pupils from 50 to 100 francs per annum. The highest grade of an intermediate school is the high-school or *gymnasium*. The course is from three to six years, and is preparatory for the university. Pupils who obtain a “certificate” at the close of the gymnasium curriculum are, as a rule, enabled to enter the university or the polytechnic without examination. These schools are all subject to cantonal control and supported by them, except in a few of the largest towns, where they are under municipal authority, and then the towns bear much of the expense. With the exception of the federal palace, the most costly structure in Bern is the *gymnasium*, and the same relative superiority prevails as to these school buildings throughout Switzerland. The age for admission is from fifteen to seventeen years, with a fee from 10 to 100 francs covering the annual session. There are 58 of these *gymnasiums*, with 12,500 students. As a fair sample, the weekly curriculum of a first-class girls’ *gymnasium* in Bern may be given:

Monday, history; Tuesday, religion; Wednesday, arithmetic; Thursday, religion; Friday, French; Saturday, religion, eight to nine o’clock.

Monday, German; Tuesday, French; Wednesday, geography; Thursday, singing; Friday, German; Saturday, French, nine to ten o’clock.

Monday, arithmetic; Tuesday, natural history; Wednesday, German; Thursday, history; Friday, natural history; Saturday, geography, ten to eleven o’clock.

Monday, gymnastics; Tuesday, singing; Wednesday, French; Thursday, German; Friday, arithmetic; Saturday, arithmetic, two to three o'clock P.M.

Monday, drawing; Tuesday, readings; Wednesday, holiday; Thursday, book-keeping; Friday, readings; Saturday, holiday, three to four o'clock P.M.

There are four *universities* in Switzerland, located respectively at Basel, Bern, Zurich, and Geneva. The one at Basel was founded in 1460, and in the early Reformation times was one of the most famous institutions in Europe; attracting Erasmus, of Rotterdam, from his professorship at Cambridge, and the German Œcolampadius, one of the most learned men of his country, and to whose patient teaching and moderate temper was due no little of the taking root of the Reformed doctrines in Switzerland.⁷⁴ Each university contains the four faculties of law, theology, medicine, arts and philosophy, and will compare favorably in teaching-power, apart from the mere accessories of endowments and splendid buildings, with any universities to be found in Europe. The tuition depends on the number and character of the faculties attended, varying from 2½ to 10 francs per week, and 100 to 200 francs per annum. The degree conferred is equivalent to that of “Doctor” in the German, and “Bachelor” in the French universities. The matriculation of these universities by the last report was 2371, including 107 female students, and employing 200 teachers. In addition to these universities, of the same rank with them is the Polytechnic at Zurich, founded in 1854. This is, in fact, the only educational institution which is directly and exclusively under the control of the Confederation. The federal authorities do not interfere with the methods of instruction and matters of detail in the different schools that may be assisted by the Confederation. The total annual expenditure of the Polytechnic is about 500,000 francs, and is defrayed by the government. Extensive improvements and additions are in course of construction, under a federal appropriation of 1,000,000 francs for that purpose.

The Polytechnic comprises seven distinct schools, with courses varying from two and a half to three and a half years, viz.:

1. Architectural.
2. Civil engineering.
3. Mechanical engineering.

4. Chemical technology (including pharmacy).
5. Agriculture and farming.
6. Normal school.
7. Philosophical and political science.

There are two hundred distinct courses of lectures given during the year, by forty-five professors and thirteen assistants, in the German, French, and Italian languages. The average number of students is from seven to eight hundred, and they represent almost every nation. The female students number from fifty to sixty. The charge for a complete course in any one of the polytechnical schools varies from 400 to 500 francs. Between all Swiss schools, from the primary to the university, there is an “organic connection;” the university, in the natural continuation and correspondence, crowning the work begun in the primary school. The Swiss method of teaching is never mechanical; it is gradual, natural, and rational. It is patient, avoids over-hurry; content to advance slowly, with a firm securing of the ground passed over. The fundamental maxim is from the intuition to the notion, from the concrete to the abstract, founding habits alike of accurate apprehension and clear expression. The system is not wooden, but appreciates that variety in mental food is as important as in bodily nourishment for healthy growth; that children at school are often tired and listless, because they are wearied and bored. From this the Swiss school finds relief in drill, gymnastics, singing, and drawing. Especially do music and drawing play a leading part in the programme. It is natural for children to imitate; thus they acquire language, and thus, with proper direction and encouragement, they find pleasure in attempting to sing the melodies they hear, and to draw the simple objects around them. By drawing, the eye is trained as well as the hand; the attention to the exact shape of the whole and the proportion of the parts which is requisite for the taking of an adequate sketch is converted into a habit, and becomes productive both of instruction and amusement. The Swiss system seeks to adapt the methods to the mental process; every effort is made to interest the pupil and to make learning palatable, and, like Lucretius, “to smear the rim of the educational cup with honey.” It is a common practice in schools of the United States to give children the rule for doing a sum, and then test them by seeing if, by that rule, they can do so many given sums right. The notion of a Swiss teacher

is, that the school-hour for arithmetic is to be employed in ascertaining that the children understand the rule and the processes to which it is applied. The former practice places the abstract before the concrete, the latter works in the opposite way. The Swiss instruction aims to render the pupil capable of solving independently and with certainty the calculations which are likely to come up before him in ordinary life. In a word, the Swiss possess and follow a carefully-matured science of pedagogy. If a school is fate to a Swiss child, the vision comes to him in the likeness of a fairy; it is made, by public and private acts, a centre of happy thoughts and pleasant times; it shares the joy of home and the reward of church. The children have tasks to do at home nearly equal to the tasks at school. The hours of study, school-work, drill, and home-work are frequently from ten to twelve a day. Indeed, you may say, these Swiss children must tug at learning in a way that would create a rebellion with the young American. In spite of these long hours and manifold duties, the attention is never unduly strained, and, at intervals, never exceeding two hours, the class disperses for a few moments to the corridors or play-grounds for recreation and a romp. No people can boast of so many schools in proportion to population, or of a system of education at once so enlarged and simplified, so instructive and attractive, so scientific and practical. Healthy, for it takes care of the body as well as the mind; practical, for it teaches drawing, which is the key of all industrial and mechanical professions; moral and patriotic, because it is founded on love of country. In many countries it is a political or governing class which establishes popular schools for the benefit of the masses. In Switzerland it is the people, the Communes, which establish and sustain the schools for their own benefit. The same general equality of conditions prevails as in the United States, and these schools are freely used by all classes. This is as it should be in a free commonwealth, where character and ability are the only rank, and men are thrown together in later life according to the groups they form at school. Every child of superior merit, however humble and poor, has an equal chance to mount the highest round of the educational ladder. This building of human minds means business in Switzerland. Everywhere you find a school,—a primary school, a supplementary school, a secondary school, a day school, evening school, school for the blind, school for the deaf, industrial school, commercial school, linguistic school, intermediate school, gymnasium or high-school, university, polytechnical school, schools of every sort and size, class and grade, with the happy motto carved over

many a door: "Dedicated to the Children." It is a business, standing far ahead of petty politics and hunting after place, or the worship of Mammon; a business that, when nobly done, brings bountiful return in love of order, law, right, and truth.

The Swiss cantonal constitutions declare that the happiness of the people is to be found in good morals and good instruction; and that, in a free country, every citizen should have placed within his reach an education fitting him for his rights and duties. Every Canton has in its constitution some expression embodying the idea that the business of a public teacher is to make his boys good citizens and good Christians. In some Cantons the distinct announcement is made that the true end of public instruction is to combine democracy with religion. In that of Zurich it is announced: "The people's school shall train the children of all classes, on a plan agreed upon, to be intelligent men, useful citizens, and moral, religious beings." In Luzern it is laid down that "the schools shall afford to every boy and girl capable of receiving an education the means of developing their mental and physical faculties, of training them for life in the family, in the Commune, in the church, and in the state, and of putting them in the way of getting their future bread." In Vaud it is declared that "teaching in the public schools shall be in accordance with the principles of Christianity and democracy." In fact, the organic law of each and every Canton demands a system of public education, sound, solid, moral, and democratic. They all bespeak the early and imperishable impress of that great Swiss educational reformer who, more than a century ago, uttered the memorable invocation: "Patron saint of this country, announce it in thunder tones through hill and valley that true popular freedom can only be made possible through the education of man!" Since the two zealous Irish monks, Columban and Gall, went to the continent, A.D. 585, and the latter founded the famous monastery of St. Gallen, the descendants of the Helvetii have powerfully contributed to European civilization and progress; learning and science finding a home not only at St. Gallen, but at Basel, Zurich, Geneva, and Bern. In the age of the Carolingians, more than a thousand years ago, the Abbey of St. Gallen was the most erudite spot in Europe. It had the original manuscript of Quintilian, from which the first edition was published. The art of printing, when in its infancy everywhere else, had already been carried to a high degree of perfection at Basel; and the crusaders, who conquered Constantinople, met there A.D. 1202. Geneva was early distinguished in the annals of literature

and science as well as for progress in the arts. Learned men, some of the exiles of Queen Mary's reign, among whom was Whittingham, who married Calvin's sister, devoted "the space of two years and more, day and night," to a careful revision of the text of the English Bible, and the preparation of a marginal commentary upon it. The result of these labors was the publication, in 1560, of the celebrated Geneva Bible. The cost of this was defrayed by the English congregation at Geneva. Queen Elizabeth, to whom it was dedicated, granted a patent to John Bodley, the father of the founder of the Bodleian Library, for the exclusive right of printing it in English for the space of seven years. Its advantages were so many and great that it at once secured and—even after the appearance of King James's Bible—continued to retain a firm hold upon the bulk of the English nation. While Switzerland can hardly be said to possess a truly national literature, it has always maintained a very good literature in German and in French; but these literatures are not the expression of a common national life. The Swiss have displayed remarkable powers in science, in political philosophy, in history, and in letters. Among the distinguished workers in these intellectual fields may be mentioned Lavater, whose eloquence, daring, and imagination as a physiognomist procured European celebrity; Pestalozzi, the originator of a system of education to which he devoted a life of splendid sacrifice; De Saussure, the indefatigable philosopher, the inventor of a thermometer for ascertaining the temperature of water at all depths, and the electrometer for showing the electrical condition of the atmosphere; Bonnet, the psychologist; Gesner, the poet, whose "Death of Abel" has been translated into many languages; Müller, a historian remarkable for his patience in research, picturesque writing, and disgust for traditionary tales, and who is reported to have read more books than any man in Europe, in proof of which they point to his fifty folio volumes of excerpts in the town library of Schaffhausen; Zwingli, the Canon of Zurich and the co-laborer of Calvin, a man of extensive learning, uncommon sagacity, and heroic courage; Mallet, the illustrious student of antiquities of Northern Europe; Constant, philosopher of the source, forms, and history of religion; Sismondi, a writer of history, literature, and political economy; Necker, brilliant in politics and finance, and his celebrated daughter, Madame de Staël; Rousseau, who fired all Europe with his zeal for the rights of the poor and the free development of individual character, and who wielded the most fertile and fascinating pen that ever was pointed in the cause of infidelity; D'Aubigné, the well-

known historian of the Reformation; Agassiz, the greatest naturalist of his age, and Guyot, his compatriot and fellow-worker, to whom we owe the inception of that system of meteorological observations called the Signal Service; Haller, Horner, Dumont, and many others who won an honorable place in learning and literature. The remarkable resources of its modern schools and universities, and the zeal of the rising generation for learning, promise well for the intellectual future of Switzerland. To be quick in thought and quick in action; to have practical, scientific, and technical knowledge; to be capable of appreciating new facts, and of taking large views; to be patient and painstaking; to have the power of working mentally for distant objects; to have an instinct of submission to law, both to the laws of society, which aim at justice to all and at order, and to the laws of nature, submission to which enables a man to use effectually his own powers and to turn to account the powers of nature; to raise life into a higher stage; to give to every one free opportunities for participation in the knowledge and moral training, combined with freedom and political equality, which will elevate the idea of humanity,—these are the moral and intellectual qualities with which the Swiss school system would fain endow the whole people. Just as their old agrarian system made land, so their new educational system is making intellectual training common to all. The powers it confers are now, in a sense, common pastures, upon which all may keep flocks and herds; common forests, from which all may get fuel and building-materials; and common garden ground, by the cultivation of which all may supply their wants. The quaint words of John Knox contain a sentiment still potent in Switzerland, “That no father, of what estate or condition that ever he may be, can use his children at his own fantasie, especially in their youthhood; but all must be compelled to bring up their youth in learning and virtue.”

CHAPTER XIV.

TECHNICAL AND INDUSTRIAL SCHOOLS.

“The noble craftsman we promote,
Disown the knave and fool;
Each honest man shall have his vote,
Each child shall have his school.”

A French writer has compared a well-arranged plan of public instruction “to a railway system, with its main line, stations, junctions, and branch lines. Just as passengers on a railway get out at the different stations, so the children who, from pecuniary necessity or social position, are compelled to earn their livelihood leave school at any point of this course; all, according to the amount of knowledge they have acquired, are able to take their place in the social stratification.”

As it is the duty and interest of railway managers to give facilities for all classes of passengers, so it is the duty and interest of the state to provide for all who travel the road of learning, leaving to the operation of natural laws, in both cases, the fixing of proportions of way and through fares.

Education as the acquiring of information is one thing: it is quite another thing to develop the human forces by a thoughtfully-planned course of training, mentally, physically, and morally fitting one for “complete living.” Educational methods in every age have been the outgrowth of the social conditions of the time, and are, as a rule, found to be in accordance with the beliefs and principles by which nations are controlled. A new definition of culture is being constructed, one which shall embrace the industries and the mechanical arts. Industrial processes and occupations are claiming recognition in school and college courses, both for the sake of the encouragement and assistance they may render to the industrial classes, and because the familiarity with them is felt to be required by the wants and demands of the age. It is not a rebellion against the old methods as bad in themselves. It does not necessarily interfere with or involve any loss to the

traditional studies of the school-room. It is not an attempt to substitute the labors of the workshop for the legitimate intellectual training of the school, inasmuch as the shop-practice, if properly arranged, would be in the nature of change and rest, and even of recreation to the pupil, bringing him back fresher and brighter to his studies. The alternation is stimulating. Change of occupation is proverbially almost as refreshing as rest. The pupils pass from the shop to the class-room, and conversely, with a new zeal and zest for their tasks in either department. It means the addition of practice to theory, experiment to knowledge, the correct eye and skilful hand to the developed brain; that the youth sent forth from school shall be fitted not only for professions and clerkships, but for the heat and task of active life, and for the skilled labor which is so sorely needed. There exist much general misapprehension and no little grave misrepresentation as to industrial schools and manual training, and an attempt in some quarters to confound them with the stupefying effect of long-continued toil. It is not contemplated to swing too far the pendulum of school reform, or to present a panacea. It is proposed to supplement the older scholastic culture with that which will make it take a firmer hold upon men's minds, and will bring the school into closer harmony with the time-spirit. Let there be no interference, much less any extinction of the classical system. We have come to regard that as a sacred thing and unassailable. Let it remain impregnable to all the attacks of iconoclasts and reformers. The Latin and Greek languages and the science of mathematics come recommended to us by all experience, signed and countersigned, as it were, by the testimony of ages as the basis of every system of liberal culture. They furnish a grateful vicissitude of genial and severe studies; while the one awakens the sensibilities, refines the taste, enlarges the conception, enriches the memory, and invigorates the power of moral judgment; the other, by a course of mental gymnastics as rigid as it is perfect, develops to the utmost the great faculties of attention, analysis, and generalization. No scholar can doubt that they must always form an indispensable element in any scheme of liberal instruction, by which all the powers and emotions of our moral and intellectual nature may be so touched, quickened, directed, exercised, and informed, as to attain their largest measure of capacity. But, side by side with the higher institutions of learning, there should be established schools where the sciences in their relations to the arts and industries shall be specific branches of instruction and training; the addition of a sufficient

amount of work in the handling of tools and the manipulation of materials to a good sound education in languages, mathematics, history, and science. Young people should be prepared to take a broad and intelligent part in the life of an age which is eminently scientific and practical; an age which has to do with a world of fierce competition, in which trade is not despised, while science of every kind is a means of making a livelihood; an age which demands an education that seeks to arm a man as well as to adorn him, *armer* and *orner*. There is no warrant for applying the term educational to any sort of knowledge which does not increase the power of its possessor, and so make him the more able to satisfy his needs and desires without disorder and waste. The measure of this ability is the measure of a country's economic progress. Industrial training has an economical and moral as well as an educational value. As Professor Huxley puts it, we cannot continue in this age "of full modern artillery to turn out our boys to do battle in it, equipped only with the sword and shield of an ancient gladiator."

With many education is looked upon merely as a mental training whose sole object is to place the mind in a state fit to receive future impressions. This may be all very well for those who are never to feel the keen struggle for existence; but for a vast and constantly-increasing majority who are doomed to a bread-winning life, the main purpose of education should be to make the youthful mind "a supple, effective, strong, and available instrument for whatever purpose it may be applied to." Less than three per cent. of the boys of this country can hope to make a living by the practice of the professions. Less than twenty per cent. of the boys enter high schools, and less than half of those who enter complete the course. The first duty of man is to work, and the first object of education should be to fit him for that work; to make him not the slave but the master of what it has imparted, the manipulator and not the mere receptacle of its power. Every year adds to the necessity of supplementing the muscular power of the laborer and artisan with that mental energy which only comes of education. Men in the busy corners of the globe are multiplying day by day, and multiplying more rapidly than the means of supporting life. Unskilled labor, or, as technically defined, the "labor of quantity," is being ousted by the iron sinews and fiery pulse of the steam-engine and the machine. Man, as the mere owner of muscle, is being edged out by these most powerful competitors. Merely as an agent of physical force, as the possessor of the power of labor, the steam-

engine is a competitor which drives him easily out of the market, and more and more unskilled labor is passing away by the development of the forces which mechanical science has discovered. As the world goes on, we must expect mechanical force to be more varied, more powerful, and cheaper, and the competition of the human limbs to become more helpless. But there is one region where the machine can never follow the human being, and that is in the exercise of thought. In skill, in the cultivation of the mind, in the power of applying the powers of thought to the laws of nature, in all that we call skilled labor of the highest kind, in that man must always have a monopoly and need fear no encroachment. Science teaching, as applied to that instruction which familiarizes the student with the universe in which he lives, and makes him in the presence of the great laws and forces of nature not a stranger, but a child at home, must be recognized as one of the great moulding influences of the time; it is at the foundation of material progress; it is the basis on which much of the manufacturing industry and commerce rests; many of the deep social ameliorations of the day are due to its influence; and popular education must be brought into closer relations with it. The industrial world has been made by scientific discovery, and its prosperity must largely depend on the spirit of scientific knowledge among the masses of its workers. It is only by the practical application of such knowledge to industrial processes that a country can hope to hold its own in the struggle of national competition. The genius of invention has succeeded in producing by machinery cheap and serviceable imitations of almost every necessary of life, hitherto the exclusive product of skilled labor. The artisan is daily becoming more and more the servant of automatic tools. Every industry is tending to centralization in a few hands, and from human to mechanical hands. If the workshop is to compete successfully with the factory, it must do so by superior taste and finish in that higher sphere of methodical, technical, rational labor whither the finest inventions cannot follow in the domain of thought. It is here, and only here, the laborer can hope to hold his own against the great power he has himself brought forth. It is here the means of increased subsistence must be found. One of the most anxious subjects of public care is to discover methods by which the masses of the people shall be able to maintain themselves in a prosperous, decent, and comfortable condition. In bare, unskilled labor the satisfaction for this want is not to be found. The Swiss have foreseen that the industrial victory must be won on the intellectual field, the association of manual

work with technical training and scientific research; and the necessity for that delicacy of touch and accuracy of eye, that have made their mechanics in many departments the best in the world, to be further educated and prepared for supremacy in a field of wider range and more varied scope. In this way art may regain an influence over manufacture, which, though not lost, is certainly jeopardized by the introduction of machinery. The whole tendency of modern trade has been in the direction of wholesale transactions, which, while favoring the hundred and the gross, have neglected the piece or the example. We miss in the manufactures which we turn out the individual touch of the workman, and we have gained a dead level of uninteresting achievement at the expense of intelligence, originality, and variety. The demand for old designs in furniture, or silver or iron work, pushed to undue excess, perhaps, by the caprice of fashion, is after all a healthy protest against the monotonous and mindless excellence of the machine-made article. There is a difference between learning a trade and learning the principles of a trade. The object is not always to teach the “technic” of an industry, because that can be done only in the workshop, but it may be to teach the science and art upon which all technics are really based. Manual training is of course training to manual labor, which has been called the “study of the external world.” While in all technical education the sciences and arts must be illustrated by practical examples, the main object is to so instruct masters and workmen that they can pursue their craft with dignity and intelligence, without professing to teach the craft itself. The need for technical instruction arises from the fact that ordinary educational systems are not fitted to promote the rapid development of trade, manufactures, and commerce. The education of the industrial classes should bear on their occupations in life. The life of a laborer is spent in dealing with things which he has to convert into utilities. In this conversion he must take the properties inherent to each kind of matter and convert them into utilities by an intelligent application of forces, which he may guide but cannot alter. No man can create new properties in matter or subject it to the action of new forces. When working-men get a higher life, a life of intelligence and knowledge, they then can develop improvements in their industries by an economical application of force, and a wise use of properties in material. Not mere handicraft skill, with ten fingers disassociated from the head and the heart, can sustain mechanical industry. Machinery, when rightly understood and applied, will prove the

greatest means of intellectual elevation, for its very purpose is to substitute the thought of the brain for the toil of the hand and the sweat of the brow. How excellent the old Greek poet is when natural forces are made substitutes for human labor: "Woman!" he exclaims, "you have hitherto had to grind corn, let your arms rest for the future! It is no longer for you that the birds announce by their songs the dawn of the morning. Ceres has ordered the water nymphs to move the mill-stones and perform your labor." Technical education is to train the pupils to handiness; to supplement mental activity with physical dexterity. The object of teaching girls to sew is not necessarily to train professional dress-makers, but to make them careful and tidy in their homes. Workshop instruction is not to make boys carpenters and cabinet-makers, but to enable them to learn any trade more easily and make them generally handy. It is no small part of the value of such training that the workman may be fitted to render his home more commodious, to arrange a shelf or cupboard, to repair a broken piece of furniture, or possibly to decorate his humble home. But whether or not, in after years, the student sees proper to become or by necessity is driven to a professional use of his technical knowledge, this is not involved in the idea and system of its pursuit. Its purpose is that, when he leaves school, he shall carry with him an education serviceable for any occupation of life; to develop a dexterity of hand which will prove valuable under any circumstances, and at the same time furnish him with a means of healthy enjoyment. It is a simple recognition of the fact that a large number of the children must be destined to make their living by industrial labor. There is certainly something in the operation of learning a trade that is akin to capitalizing. The youth works in the training-school, and he defers to the future the final results of the process. He lays up wealth, as it were, by doing that which avails only to give him a larger income hereafter. It is much as if he put money into the banks. It has always appeared as though a purely scholastic education makes children averse to manual labor; that it results too much in every boy and girl leaving school desirous of engaging in work which is neither manual nor, what is mistermed, menial. It brings too often to expectant parents the disappointment experienced by Sir Francis Pedant, in Fielding's comedy; that gentleman, it will be remembered, was very angry when he found that, instead of instilling into his boy at Oxford, as per contract, "a tolerable knowledge of stock jobbery," his tutor had fraudulently crammed him with the works of all the logicians

and metaphysicians from “the great Aristotle down to the learned modern Burgersdicius.” “Have I been at all this expense,” exclaimed Sir Avarice, piteously, “to breed a philosopher?”

As a fundamental rule, it may be accepted that the knowledge which is best for use is also best for discipline, since any other supposition, as Herbert Spencer has shown, would “be utterly contrary to the beautiful economy of nature, if one kind of culture were needed for the gaining of information, and another kind were needed as a mental gymnastic.” The best end of any education is to equip boys and girls to earn their own living when they grow up, and to perform efficiently the duties to which they may be called when they reach the estate of manhood and womanhood; giving them that most valuable of all gifts on earth—personal independence—the capacity to stand on their own feet and look the world in the face, to take care of themselves, and those who belong to them. The question of technical and industrial education has received much intelligent consideration and very extensive application in Switzerland. Since 1884 the Confederation, to encourage the existing technical schools as well as the establishment of new ones, has been granting annual subsidies, which are becoming more and more liberal. The Polytechnic at Zurich, to which reference has been made in the previous chapter, is now well known as a model school of practical life, with mechanics, physics, and arts under a thoroughly scientific curriculum. Trade and industrial schools, as distinguished from polytechnical,—genuine establishments for teaching homely trades,—have been made a prominent as well as a compulsory feature in many of the Swiss educational systems. In some form these are to be found in every Canton, furnishing instruction in one or more branches of handiwork,—the boys preparing to become skilled workmen and competent foremen; and many a girl, though an indifferent scholar, by being taught cutting, needle-work, cooking, nursing, and methodical habits—accomplishments that bear so closely upon the happiness and the very existence of home—will enable her to be a useful wife and good mother. Trade-schools in Switzerland are of ancient origin, having an intimate connection with the great impulse which the watch industry of French Switzerland received in the latter half of the last century. In the year 1770 a journeyman watchmaker, named Louis Faigare, applied to Professor Saussure for some information connected with his trade, which the then means of ordinary public instruction did not afford to his class. The

professor accommodated him, and from this resulted a series of lectures, or rather *conversazioni*, held in the great scientist's drawing-room. The audience increasing to such proportions, it was found advisable to secure suitable quarters, and a club was formally organized under the title of *Société des Arts de Genève*. This club, so modest in its inception, has survived all the mighty political tempests of a troubled age,—the violent annexation of the Genevese republic to France and its restoration to the Helvetic union,—and to-day enjoys a high rank among learned societies, and numbers in its list of members some of the most eminent names of modern science. This is the parent of the celebrated Horological School in Geneva, with its branches at Chaux-de-Fonds, Neuchâtel, Biel, Fleurier, and St. Imier. Pupils are received in these schools when they have passed their fourteenth year, and the course is from three to four and one-half years. For the artistic education, there is a special school devoted entirely to the art of decorating watches, which has become a very important branch of the industry.

There is also in Geneva a school of industrial art, the organization and work of which are substantially the same as the one at Munich, and the two are considered the best in Europe. This school is under the direction and administration of the Council of State of the Canton, which delegates one of its members to act as president of the commission which administers its affairs. Two classes of students are admitted, viz., regular scholars, who attend regularly and continuously either a general course of art study or some particular branch, such as carving, bronze founding, goldsmith's work, etc.; and special students, apprentices, workmen, and others who arrange to receive instruction at stated hours. The pupils produce work which has a commercial value, and objects made in the school are kept for sale, a part of the money thus received being paid to the student executing the work. The courses of study embrace modelling and carving in plaster, stone, and wood; *repoussé* work in metals; painting in water-color, in enamel, and on china; casting and chasing of bronze and the precious metals; work in wrought iron and engraving, besides the regular work of drawing-schools in general, such as drawing from the cast, from plants and flowers, and from the living model. The school occupies a very fine and spacious building, erected a few years ago at a cost of about \$160,000, and is furnished with very admirable and adequate appliances, not only for study but for the execution of art-work on a considerable scale. The pupils

are of both sexes, and there is no distinction of or separation between them in the organization of the classes. The discipline of the school is very strict, the time of each pupil coming in and going out being carefully noted, and the utmost regularity of attendance, during the hours covered by his course, being required of each pupil. All the regular pupils are also required to attend the evening schools of the city. Encouragement and recognition of ability and application are made in the form of prizes, which are awarded by means of competition or *concours* held at different times, and on such subjects as are announced from time to time. The methods of study and discipline are all sensible and practical.

More humble in their first stages, but scarcely inferior as to practical results, are the Swiss straw-plaiting schools. These have succeeded, in a few years, in developing a veritable new industry, commanding markets in the utmost corners of the earth. Some of the poorest portions of the sub-Alpine districts have become well-to-do and flourishing, and at least one little hamlet, not to be found in the guide-books a few years ago, is now from this trade a thrifty town of some ten thousand inhabitants. The higher instruction in this particular industry extends to the cultivation and acclimatization of various kinds of foreign grasses, furnishing from the coarsest to the finest qualities of straw. In the mountain districts there are schools for teaching the manufacture of children's toys, for which the Swiss pine is admirably adapted. Then, in those sections where osiers (a species of willow) can be cultivated, establishments for learning basket-making have been started. In Zurich there is a "Dressmakers' Institute," from which annually "graduate" thirty to forty *Couturières Parisiennes*. At Winterthur there is a shoemakers' school, with a peripatetic staff of professors who give lessons wherever a class may be formed. This school also issues publications relating to its aims, one of the latest being quite an exhaustive and scientific treatise on the structure of the human foot, and giving the technical side of the new government regulations concerning the manufacture of army boots and shoes.

Other handicrafts have followed the example set by the shoemakers. The joiners, cabinet-makers, silk-weavers, jewellers, and even to umbrellas and parasols, each have their cheap and, in many cases, free-training schools. The knit goods of Switzerland, so largely imported to the United States, do not owe their introduction to cheap Swiss labor, but simply to

their superior quality, the result of the excellent training all girls obtain at school; knitting being regarded as an indispensable acquirement. Drawing, industrial as distinguished from artistic, is taught in all Swiss schools; not as an accomplishment, but as of paramount utility. It is considered that “drawing” lies at the bottom of all industrial training, enabling one to delineate with precision that which he wishes to express better than he can do it with the language of the pen. In his “Proposed Hints for an Academy,” Benjamin Franklin classed “drawing” with the three “R’s” as subjects necessary for all. It ranks with them because it is the language of form in every branch of industry from the most simple to the complex. It makes the workman more exact, more efficient, and more careful; it is always convenient and often very useful. A trade which, either by law or immemorial usage, is assumed to require a more exacting apprenticeship is wood-carving; a Swiss product that enjoys world-wide reputation, and has long been a source of considerable revenue to the country. The schools for wood-carving have a fully organized faculty, and the word faculty is used advisedly, for the classes have an almost amusing resemblance to an academic course. There are lectures with manipulatory demonstrations in the use of the plane, saw, lathe, and all needed tools, and also on the distinctive characteristics of various woods. A school for ornamental work and design in wood-carving at Brienz is supported by the Canton; and at Interlaken the wood-workers enjoy, free of charge, the services of a “Master Modeller,” furnished by the Canton. There are separate schools for the study of wood-engraving, sculpture, and art cabinet-making. The agricultural and forestry departments of the Polytechnic, in its “technology,” as signifying science applied to industrial arts, has advanced these interests to positions that otherwise could never have been attained. Switzerland in physical respects is not a bountiful motherland, neither the climate nor soil is good for agriculture, yet it is surprising what good results are obtained through the general diffusion among the agricultural class of much technical information, susceptible of easy apprehension and ready application. Swiss agriculture, to make any return, cannot be a mechanical routine, but must be intelligent if not scientific.

What is known as practical farming would not return the seed and labor involved. As an intelligently and scientifically-directed industry, it has assumed a prosperous and profitable condition. The agricultural course in the Polytechnic is thorough and comprehensive. It covers the mechanical

and chemical composition of the soil; the scientific basis as to the rotation of crops; the periods of growth at which plants take their nitrogen; how draining improves land; and many other similar matters varied in their application, but ruled by fixed laws, and which must be learned outside the daily experience and observation of farm-life. In the single crop of grass, which is of such great value in its relation to the extensive Swiss dairy interest, in its cultivation, grazing, and harvesting, the suggestions and counsel emanating from the agricultural department of the Polytechnic have been of incalculable value. The amount of this crop, from a cold and barren soil, and the uses to which it is turned would seem incredible to the American farmer. The Swiss farmer, to accomplish so much, must know something of the chemical analysis of the grass, both in the natural and dried state; the feeding value of like weight in the different varieties, in an equally moist or dry condition; the final stage of growth which they ought to be allowed to attain; suitability for permanent or other pastures; the adaptability of grasses for certain soil; their duration, ability to resist drouth, and strength to over-power weeds. Then come questions of hay-making, ensilage, the management of old and new grass-lands; on these and many others the peasant is enlightened and constantly advised, not only by the Polytechnic but from cantonal agricultural schools at Rütte (Bern), Strickhof (Zurich), Sursee (Luzern), and at Brugg (Aargau). There is an institution for experimental vine growing at Lausanne; a school of gardening at Geneva; and dairy schools at Sornthal (St. Gallen), and Trayveaux (Freiburg). From time to time lectures and short courses of instruction are given in different parts of the country on horticulture and vineculture, fodder-growing, cattle-breeding, by which some knowledge of the theory and technical details of agricultural science is given, with the view of awakening a spirit of enterprise in the more remote districts of the country. Forest culture and forest preservation may be considered a necessity in Switzerland, for its influence in checking the sudden and disastrous floods so common in the mountain streams, and in the protection and maintenance of the steep hill-sides which constitute so large a portion of the agricultural area of the country. While riparian trees are gross water-users, and usually deciduous, such as the sycamores, alders, willows, cottonwoods, etc., upon the mountains the trees are of a different class, and their effect is without known exception beneficial to irrigators and water-users in the valleys below. The denudation of mountain districts is followed

by increased torrent or flood action and diminished regular flow in springs and streams, often by the entire desiccation of these. There is a department in the Polytechnic devoted to forestry, from which is supplied a large body of thoroughly educated foresters, who find ready employment under the federal and cantonal forest departments.⁷⁵ The course of study is of the most advanced character, and requires three years for its completion. There are, besides, many local and primary forest schools, having spring and autumn terms of three to four weeks each, and they are assisted by federal subsidy. By a federal law of 1885, there was added to the forest department of the Polytechnic, a school for forest experiment connected with meteorological stations, thereby supplementing this already excellent school with the means of accurate, scientific, and regular meteorological observations, in their close and important alliance with matters of forest culture.

It is under the supervision of these educated foresters and trained wood-rangers that, on the mountain-side, apparently but a forbidding rock, by constant, careful, and scientific attention, are found oak-, beech-, birch-, and pine-trees in large quantities and of good dimensions. Each tree is carefully looked after and preserved, and trained so that they shall not interfere with each other; each has its fair share of space and light. In this work nature and man's labor and thought give to the forest an abundance of moisture, and between the frequent storms and showers, abundant floods of sunlight and warmth. It is this intelligent care and attention that enables a tree to take root and grow to its normal size on what is apparently little more than towering and weird piles of sheer rocks. The vast treeless West and the reckless wasteful deforesting of American woodlands will soon render forest culture and protection a necessity in the United States. Never was a country so lavishly supplied with forest flora of all the qualities in all gradations. No country ever used its wood materials so lavishly; squandering a wealth of timbers before its true value was known. It is time to husband the remnant with more intelligence and to stop its wasteful destruction. Why should silviculture not present an inviting field for business enterprise, or be quite as fascinating to watch the development of a collection of trees as that of a herd or flock? Our landholders, who are accustomed to garner crops in a hundred days from planting, have a natural shrinking from a seed which may not mature a crop in a hundred years. But it can be shown that growing wood on waste-lands enhances the value of

the remainder of the farm by more than the planting and care have cost; and that the first instalment of a forest-crop is not so remote as is generally believed. The best varieties of wood can be grown as easily as the poorest, and the demand for certain forest products is rapidly becoming more urgent. The tree-growth enriches rather than impoverishes the ground. Forestry not only beautifies the farm, but between woodland and plough-land is established that balance which must be preserved to insure the most equitable distribution of moisture and climatic conditions most favorable to the productiveness of the soil and the better health of the people. Almost every Commune in Switzerland has its *realschule*, where children from the primary school have the opportunity of a higher education, specially adapted to fit them for commercial and industrial life. These schools take the place of the old and now practically extinct system of apprenticeship. The handiwork and technical schools embrace instruction in drawing, modelling, practical reckoning, elements of geometry (especially surface and body measurements), book-keeping in French and German, physics, chemistry, and technological branches, ceramics, and *aquarelle*. The schools for girls include singing, drawing, fancy or handiwork, letter-writing, book-keeping, casting accounts, sewing by hand and machine, dress-making (pressing, cutting, and trimming), besides a knowledge of different kinds of wares, how to tend plants and flowers, and even the art of treating the sick and wounded. From these schools all have access to the Polytechnic, where each professor is an acknowledged authority in the branch of service with which he deals. In all the higher schools and universities every encouragement is given to students to qualify themselves for technical pursuits. The secret of Switzerland's material success lies in the liberality of its conception of public education. Its primary schools are graded with good secondary schools for scientific education, and these lead to remarkable technical institutions with great completeness of organization. If any country appears by nature unfit for manufactures it is surely Switzerland. Cut off from the rest of Europe by frowning mountains, having no sea-coast and removed therefore from all the fruits of maritime enterprise, having no coal or other sources of mineral wealth, Switzerland might have degenerated into a brave semi-civilized nation like Montenegro. Instead of this it proudly competes with all Europe and America in industries for which it has to purchase from them the raw materials and even the coal, the source of power necessary to convert them into utilities.

Other countries have become sensible of the superiority which skilled education can confer, and they have not been slow to take advantage of it. The United States are justly proud of their common-school systems as they exist in the several States. They have done a great deal for public education, and are progressing by their own force and by the general sympathy of the community. Mr. Edward Atkinson, in summing up the elements that have contributed to the vast gain in the conditions of material welfare in the United States, names seven, and assigns the third position in importance to the "systems of common schools which are now extending throughout the land." The tendency to be guarded against is that in education as applied to the whole mass of the people, what is desirable and charming and decorative be not put before what is absolutely useful; not to take the garnish first and leave the solid meat to take care of itself. When it comes to deal with the large masses of the community who must work, and to whom it is, so to speak, a matter of life and death, the question to be considered is whether they shall work well prepared with the utmost assistance which the accumulated knowledge and skill of the community can give them, or whether each man shall be left to fight his own way and learn his own industry for himself. The country wants more handicraftsmen, the school produces too many scribes. The country is crying out for skilled laborers, and the school sends it clerks or would-be gentlemen of leisure. The farmers and working men want wives who can make a home neat and happy, and who understand the wise economy of limited resources, and the school sends them women fit only to be governesses. The system of education in the United States sends too many boys into trading, teaching, the professions, or "living by their wits." They imbibe a spirit that shuns what are termed the "humble callings," and crowd, at starvation wages, the occupations of the counter and desk. They grow up to feel and believe that the bread which has been gained by the sweat of the brow is less honorably earned than that which is the product of mechanical quill-driving. Therefore the United States have a plethora of men who, as described by President Garfield, are "learned so-called, who know the whole gamut of classical learning, who have sounded the depths of mathematical and speculative philosophy, and yet who could not harness a horse or make out a bill of sale, if their lives depended upon it." There is need of a public education that, while it gives to the mind fleet and safe modes of reasoning, shall at the same time, in a corresponding degree, develop a clear sight, a firm arm,

and a training suitable for the various trades and occupations which are essential elements of a prosperous national life. The utility of such acquirements is not their chief virtue; it is their permanence in the mental armory, for eyes and hands not only respond to cultivation as readily as brains, but the trained eye and skilled hand do not slough off their acquirements like the weary brain. All through the United States scientifically and technically trained foreigners, fresh from their "*realschulen*," are pushing out classically-educated young men from their desks and stools and taking the places of profit which belong to them by national inheritance. American spirit, capacity, and energy are unrivalled, and require only an equal training and opportunity to insure an earnest of unbounded success in establishing and maintaining the future eminence of the country in the world's great field of human art and human industry.

The question of manual and industrial instruction is not confined in its interest only to those connected with the organization of schools and systems of education, as bearing entirely on the development and activity of the whole circle of intellectual faculties, but it relates to a deep and far-reaching political problem that thoughtful statesmen contemplate with serious concern. Might not the spirit of cheerful domestic industry, which the extension of educated handiwork is calculated to promote, do much to correct the evils of intemperance, violence, and social discontent which are assuming such alarming symptoms? The moral influence it exerts might produce a revolution for the better and a well-ordered commonwealth of labor. The habits of order, exactness, and perseverance fostered by manual training have an incalculable moral value. The ranks of the unemployed and misery and crime are largely recruited from the ranks of youth who are without any adequate training to earn an honest livelihood. With a more general dissemination of the rudiments of useful trades and employments there would be secured a larger share to productive labor,—for it would put brains into it and make it alike more honorable and profitable. It would tend to remove whatever disadvantage has heretofore attached to industrial occupations on grounds of dignity and the niceties of the social scale. When young America is trained for mechanical pursuits under the same roof and amid the same surroundings as he is trained for preaching and pleading, when he is made to feel at school that the same distinction is to be earned by skilful doing as by skilful dosing, the necessity for all the more or less sincere, but very wordy, extolling of the dignity of labor, which employs so

much of our energy at present, will be removed. And when the mechanic has acquired industrial skill, not at the expense of his mental training, but along with it and as a necessary part of it, the crafts themselves will assume the old dignity and importance which once they had, but which they have lost in these days of false and foolish artificial standards by which men measure each other. The units or grains of society are continually moving to and fro between the scum and the dregs, from capital to labor and labor to capital, from wealth to poverty and poverty to wealth. But rich and poor, professional and artisan alike, have a common interest in strengthening the bulwarks against the dangers that menace honest society,—against nihilism, socialism, communism, and all kinds of vagabondage. Educated industry is the talisman. The strength of the republican pyramid is in its base, and it is in the lower social layer that the true character of a country's need in common-school education must be looked for. A Nihilist lecturer recently stated that there are four hundred schools in Europe whose sole work is to teach the use of explosives. If the Old World is thus diligently sowing the seeds of discontent and rebellion, scattering some of them on our own too prolific soil, teaching that to brute-force alone can humanity look for the redress of its wrongs, how much more necessary it becomes to show the world that not in killing each other, but in helping each other to live, is the only possible solution of social difficulties. Unless the school can teach respect for labor, it will never be learned, and unless it is learned, and learned practically, the upheavals which of late years have disturbed society will grow in frequency and violence. Pericles, the great Athenian, describing the glory of the community of which he was so illustrious a member, said, "We, of Athens, are lovers of the beautiful, yet simple in our tastes; we cultivate the mind without loss of manliness." But Athenian society rested on slavery, and the drudgery was performed by those who had no share in the good things which the citizens could enjoy. Our object should be to bring Periclean ideas of beauty, simplicity, and cultivation of mind within reach of those who do the hard work of the world. It can be done, and should be done, in a way to advance the skill and develop to the highest form of practical energy the skill of our handicraftsman and the manliness of his life; giving him an education that will enlarge his mind, improve his morals, instruct his industry, and thereby advance the power, the prosperity, and the peace of the State. The future will, practically speaking, belong to the technically educated, for no amount of natural

“smartness” can compete with education in particularities. Raw material, forming a capital advantage, has been gradually equalized in price and made available to all by improvements in locomotion; and henceforth industry must be sustained, not by a competition of local and popularly designated “natural advantages,” but by the inexorable competition of intellect in all of its manifold and overpowering evolution. If a country would not be left behind in the race, if it desires to find any satisfactory solution for the deepest and most inscrutable problem of the time, if it wishes a complex and high civilization, to be maintained secure from all the dangers which the presence of unprosperous and unfed millions must bring upon a country, it should do its utmost to give a healthy and wide development to the industrial education of the masses; such systematic instruction as shall enable them to carry to the factory, to the laboratory, to the quarry, to the mine, to the farm, that scientific knowledge which is required to deduce practice from theory, to give dignity as well as efficiency to labor, and to connect abstract principles with the industrial pursuits of life; in a word, to provide an education which will develop for each man and woman the faculties that nature has given in such a manner that they may be as active and profitable and prosperous members of the community as possible; an education beautiful by its adaptment, subservient by its use, and salutary by its application; an education that teaches in what way to utilize those sources of happiness which nature supplies, and how to use all the faculties to the greatest advantage of ourselves and others; an education that heeds the advice of Professor James Blake: “Let us head-train the hand-worker and hand-train the head-worker. For manual and head-training together form the only education. Apart from the practical advantages, it has an ethical value in enabling men and women to use all their faculties, for no man can distort himself by exclusive attention to one order of faculties, and especially by neglecting to keep good balance between the two fundamental co-ordinates of his being, body and mind, without finding the distortion repeating itself in moral obtuseness and disorder.”

CHAPTER XV.

INDUSTRY AND COMMERCE.

It is a popular mistake that Switzerland, industrially, occupies a stagnant condition in the scale of nations, and exists for picturesqueness alone. It is equally a mistake to think that its main staples are wood-carving and hotel-keeping. The circumstances which so long prohibited any advance in commerce and agriculture are to be found in the peculiarities of the physical character of the country and the absence of capital. Switzerland had no sources of mineral nor, under the conditions of former times, of agricultural wealth. It could not maintain a large population on its own resources; nor could it have cities, the inhabitants of which, either like those of Flanders, by the easy terms upon which they might get the raw materials, could have manufactured for others; or like those of Venice, Genoa, and of the cities of Holland, might have become common carriers. They could have had no commerce, except with their surplus cheese. The amount of this that could be spared was so small, and the transportation so difficult, that but little could be made of it, and the whole of this little was wanted for the necessities of life,—such as the useful metals, etc.,—which the Swiss were obliged to procure from abroad. There was no margin for saving, and so there could be no accumulations of capital. For long ages the most assiduous industry could supply the Swiss with only the necessities of life, and barely with them, even when aided by the surplus cheese. Agriculturists in a rude way, they lived on the land which supported them and their families, and feeling no further pressing need, their untrained intelligence could form no conception of the advantages of the social union and commercial interdependence of a more civilized state of society. This condition no longer exists. By the aid of new means of transportation and communication, and by the substitution of machinery for manual labor, the motive power for which nature furnishes in abundance, the people are becoming prosperous and capital is accumulating. For many ages the poorest country in Europe, it is rapidly progressing towards becoming, in proportion to the amount of its population, one of the richest. The position taken to-day by Switzerland in the trade and commerce of the world is

remarkable, when the various natural obstacles are considered,—such as absence of raw material for its industries, great distance from the sea-coast, with costly and difficult means of transportation, and restrictive customs established by neighboring countries. It does not possess a single coal-mine, canal, or navigable stream. It is practically dependent for all its metals on foreign supply. Asphalt is the only raw mineral product the export of which exceeds the import, and this is found only in the Canton of Neuchâtel, where the output is very large and of a superior quality. Inland, without ships or seaport, and therefore deprived of the advantages of direct exportation and importation, its commerce must be effected through the four conterminous countries of France, Germany, Austria, and Italy. Therefore, while every mart in the world is familiar with its manufactures, it is almost ignored in the commercial statistics of nations. The high protective policy so universally adopted by the neighboring countries, where for a long time the best markets for Swiss goods were found, has forced the Swiss manufacturers to extend their trade to transmarine markets, involving not only a vast amount of competition, but far more risk and uncertainty attending sales than in doing business in markets nearer home. Then four-fifths of the Swiss exports to countries other than the contiguous ones consist of silk goods, embroideries, and watches, which may be classed, in a general sense, as luxuries; and, in seeking a foreign market, encounter the highest duty. On the other hand, its importations are cotton, machinery, cereals, food-supply, and raw materials for its manufacturers,—that will not admit of a corresponding heavy import duty. The remedy heretofore partially found in special commercial treaties has become almost futile by the rapid blocking of the provisions of the “most favored nation” clauses. These have practically lost their purpose and force by each party to the treaty persisting in the enlargement and accentuation of its own customs provisions. In an address recently delivered by the President of the Confederation, at a national agricultural exposition, referring to the depression of that industry, he said: “The political existence of Switzerland is at present not threatened or endangered from any quarter, but it is different with its economical existence, which causes us from day to day increased solicitude on account of the increase of unjust burdens imposed at all our neighboring frontiers. The first to feel this condition were our manufacturers, who demanded a tariff of retaliation, and now the farmers complain that they are suffering from a denial of the same protection.

Indeed, we are to-day the witnesses of an eager race in the parliaments of many countries to raise the duties on importations from their neighboring states until the wall is so high that nothing can pass. Is this to be the grand coronation of the labor and civilization of the nineteenth century,—the century of steam, electricity, the piercing of the St. Gothard, the Suez and Panama canals? No! Such a condition cannot endure. Let me express the hope that the time will come when, from the excess of the evil, good will result; that the people will realize that such a condition leads to general poverty, while liberty of exchange is the surest foundation of general prosperity.”

With these great natural and artificial obstacles to contend with, Switzerland is nevertheless a commercial and manufacturing state. Its industries are prosperous and show a constantly-increasing vitality and importance, and its citizens are growing rich and famous in the commerce of Europe. Its silks, ribbons, embroideries, braided straws, watches, and cheese go to every quarter of the globe. There is no state in Europe in which there is so great a general trade per head of population. The commerce of Italy, with a population nearly ten times greater, is only about double that of Switzerland; and the difference between Austrian and Swiss commerce is even still more remarkable. The silk industry is the oldest in Switzerland, being already established at Zurich and Basel in the latter half of the thirteenth century. Ticino is the only Canton where there are filatures for reeling the cocoon into silk. Italy, China, and Japan are the great sources of supply of raw materials to the silk manufacturers,—the former supplying nearly four-fifths of all the organzines; of the raw silk, the supply comes largely from Yokohama. Cotton began to be manufactured in Switzerland in the fifteenth century, and power-loom weaving was introduced in 1830. Twisting, spinning and white-goods weaving, and cotton printing are of very considerable importance. Embroidered goods have attained a great development, and furnish a heavy export trade from eastern Switzerland, especially in the Cantons of St. Gallen and Appenzell. Little of this beautiful work is now done by hand, machinery having reached marvellous perfection. Aniline colors, the wonderful dyes which the skill of modern chemists has evolved from bituminous tar, and the manufacture of flavoring extracts, from the products of coal-tar and petroleum, constitute a thriving export business at Basel. Watchmaking is essentially a Swiss industry, and has been the most important industry in Geneva since 1587, and by a

combination with jewellers, making a union between mechanical industry and art, has given Geneva a world-wide reputation.⁷⁶ Watchmaking is done entirely by piece-work, and sixty master workmen are required to make a single watch. The work is divided among so many different persons, each one of whom makes a specialty of one particular piece, and spends his life making duplicates of this. The work is performed in the people's houses, the fronts of which present an uninterrupted row of windows arranged without intermediate spaces, as the object is to admit all the light possible. Every member of the family assists in some way. When the house is put to rights, the wife drags a table to the window, gets out her magnifying-glass, and goes to work on a watch-spring.⁷⁷ If there be a son or daughter, each produces his quota. These different parts, when gathered up by the watch merchant, are found to fit each its special place with mathematical niceness.

The Swiss federal custom-house returns classify all imports and exports under three chief heads, viz., "live-stock," "*ad valorem* goods," and "goods taxed per quintal." No returns are published of the value of either the imports or exports, but only the quantities are given. The principal imports are grain and flour, cattle for slaughter, sugar, coffee, fruit, poultry, eggs, and wine; all being articles of food. Of textile stuffs, silk, cotton, and woollen. Other articles include chemicals for industrial purposes, leather and leather goods, hosiery and ready-made clothes, iron and iron ware, live animals, coal and coke, other metals and hardware, including machinery, wood, furniture, petroleum, gold and silver bullion for coinage. Cattle, horses, wheat, and flour are imported from Austria-Hungary; raw cotton from the United States and Egypt; manufactured cotton goods from England; wool chiefly from Germany; coal from the Rhine districts of Germany. The principal exports are: textile products, watches and jewelry, cheese and condensed milk, wine and beer, machinery, cattle, hides and skins, dye-stuffs, furniture and wood carvings. The Swiss tradesmen are shrewd in their bargains, honest in their reckonings, contented with small gains and small savings. They are the Scotch of continental Europe.

In Switzerland we find the primitive husbandry of the mountain flourishing side by side with modern industrial commercial enterprise. Of much Swiss agriculture it is still true, "*pater ipse colendi haud facilem esse viam voluit.*" The minute division of the land and the cheapness of labor do not justify the general use of modern labor-saving agricultural implements.

For cutting, threshing, and winnowing purposes the scythe, flail, and winnowing-basket are used. The scythe is apparently an exact counterpart of that which is seen in the hands of “Time” in the school primer. The plough would adorn an archæological collection; requiring four horses and three men to work it, and cutting only one furrow. Instead of the harrow or cultivator, a number of women and children, armed with clubs, go over the ground after it is ploughed, and pulverize the surface. Swiss soil is but little desecrated by the “devil-driven machinery of modern times;” and the Swiss farmer has been equally faithful in regarding the first and disregarding the second advice given in the distich of Pope,—

“Be not the first by whom the new are tried,
Nor yet the last to lay the old aside.”⁷⁸

The peasant farmer must needs apply a high order of management and economy. This economy must be discerning, and he cannot take readily to new ideas that do not assure him a better result for his hard-earned money. This close farming yields very fair results to the small owners, who, with their sons and daughters, have an interest in the soil and a taste for the business. However, each change in the way of modern improvement in its turn is fighting for establishment. The old methods have prescription, tradition, custom to support them; the new, utility and necessity. In the early stage, what was needed for each Swiss peasant farmer was a little bit of land, a cow or two, a spade, a manure basket, and a wife to carry it. This was the caterpillar stage. They are very gradually passing into the butterfly stage. They are beginning to evolve the capacity for collecting and turning to account capital, the distilled essence of all property without which the land cannot be made much of now. Life to-day does not require the tough hide, the strong sinews, the gross stomach, the adstriction to a single spot of the old life; on the contrary, a vastly enlarged mobility, both of body and mind, a readiness for turning anything to account, and for entering on any opening have become necessary. If what is wanted and needed cannot be found at home, be willing and disposed to go seek it elsewhere.

Owing to great difference in elevation of the surface, there is much diversity in the production of Switzerland. In the valleys the summer heat is tropical, while the surrounding heights are robed in perpetual snow. “From

the lowest level on the southern slope of the Alps, say about six hundred and fifty feet, where the lemon, the almond, and the fig ripen in the open air, and thence ascend to an elevation of nine thousand five hundred feet, where every vestige even of the most primitive artificial cultivation ceases, we might trace nearly every species of vegetable growth known in Europe.”⁷⁹

Cereals are grown up to three thousand six hundred feet; rye succeeds up to five thousand nine hundred feet in the Grisons, and to six thousand five hundred feet on the sunny slopes of Monte Rosa and Pontresina. Irrespective of exceptional cases we may say that cultivation ceases at three thousand nine hundred and fifty feet, and above this height all forms of vegetation are small and poor, consisting of low scrubs, stunted firs, and mournful larches. As a general rule, vegetation reaches a higher point in eastern and southern Switzerland than in the northwest. It is therefore not the absolute height which determines the boundary of the growth of plants so much as the disposition and form of the mountains and valleys. Another point affecting materially the whole phytological covering of a country is the nature of the geological formation on which the plants grow. One-half of the country lies above the region of agriculture. The total area of land under cultivation in Switzerland is, in figures, 5,378,122 acres; of which, 1,715,781 acres, or 31.9 per cent., are meadow land, and 1,962,656 acres, or 36.5 per cent., are pasturage. The arable land covers an area of 1,533,093 acres, or 28.5 per cent., of the whole; vineyards 87,714 acres, or 1.6 per cent.; while the ground devoted entirely to gardening purposes may be estimated at about 78,870 acres, or 1.5 per cent. The area of cultivated land is steadily diminishing, as the meadows prove more remunerative. Good arable land, being so limited, commands a very high price, from \$300 per acre to \$1500 and \$2000 per acre for choice vineyard lands. About one-half of the arable land is sown in grain; the remainder being used for potatoes, turnips, green maize, clover, vetch, etc. Both the federal and cantonal governments have shown an active interest in fostering and promoting the agricultural prosperity of the country; and an agricultural bureau is attached to one of the federal departments at Bern. The cultivation of the grape is closely identified with Swiss agricultural interests, and with few exceptions the hill-sides on the Lake of Geneva have been since the earliest periods of history planted with the generous vine. There exist records to prove that some of these vineyards have been bearing uninterruptedly for five hundred

years. The reader will readily suppose that the materials have been often renewed. One above another these vineyards extend along the lake to the height of two thousand feet. They are formed with persevering industry upon these precipitous slopes by means of parallel walls, whose narrow intervals are filled with earth that has been carried up by the peasants in baskets upon their backs from below; and in the same way they must every season be abundantly covered with manure. These successive terraces are reached by steps frequently cut with infinite labor in the hard rock, and with every economy of the land. Every inch of the ground is valuable, because only on the side of certain hills will these vines come to perfection. These lands, after being purchased at so high a rate, need constant attention; for the soil is washed away from these steeps beneath the stone walls, and must be replaced every spring; every clod of earth is a great treasure, and they carefully collect the earth which has been thrown out of a ditch to fill up their vineyard patches. A square foot of land is reckoned to produce two bottles of wine annually. Every portion of a vine is used; the stems and leaves serving as food for the cattle; the husks, after being pressed and wedged into round moulds, then dried, are used for fuel, burning something as peat does. In many houses of this section the cellars are enormously large, with a capacity as high as a million bottles each; and they are often used as the common sitting- and reception-room.⁸⁰ Vineyards also flourish on the slopes surrounding the lakes of Neuchâtel, Biel, and Zurich; in the valleys of the larger rivers and certain plains of northern Switzerland they are found to a small extent. Still, the wine produced is not sufficient for the demand, and over 15,000,000 gallons are annually imported; in this consumption the great number of tourists who come every season must be taken into account.

Growing grass and fodder, cattle-breeding, and cheese-making are the most important branches of Swiss agriculture. For ages the forest Cantons had little tillable land reclaimed, and from difficulty of communication with the outside world the people were thrown almost entirely upon their own scanty local resources. With hardly any means of getting supplies from without, with very little land for cultivating cereals, and in the days before maize and potatoes, their chief reliance was upon their cows. It is very much so even at this day, but in those days the reliance was all but unqualified. Their cows supplied them not only with a great part of their food, but also, through the surplus cheese, with tools, and everything else

they were incapable of producing themselves, from the singularly limited resources of their secluded valleys. The Switzer was then the parasite of the cow. There were no ways in which money could be made; there were no manufactures and no travellers; and so there were no inn-keepers to supply travellers, nor shop-keepers to supply the wants of operatives, manufacturers, and travellers; and there were none who had been educated up to the point that would enable them to go abroad to make money with which they might return to their old home. If the general population had not had the means of keeping cows, they would not have had the means for livelihood. The problem therefore for them to solve was,—how was every family to be enabled to keep cows? The solution was found in the *Allmends*,—lands held and used in common. The natural summer pastures were common, and every burgher had the right to keep as many cows upon them in the summer as he had himself kept during the previous winter with the hay he had made from his labor-created and labor-maintained patch of cultivated ground, or, as it was called, prairies; or, if as yet he had no prairies, with the dried leaves and coarse stuff he had been able to collect from the common forest. This system was both necessary and fair. It originated in the nature of the country, and its then economical condition, and in turn it created the Swiss life and character. Every one knows La Fontaine's story of Perrette going to the market to buy eggs; the eggs are hatched into chickens, the chickens produce a pig and then a calf, and the calf becomes a cow. This dream of Perrette's is daily realized by the Swiss peasant farmer. He picks up grass and manure along the road; he raises rabbits, and with the money they bring he buys first a goat, then a pig, next a calf, by which he gets a cow producing calves in her turn. Milk is the great thing desired by the pastoral people, and not to possess a milk-giving animal is esteemed such a misfortune that, as a little solace to the poor, cream is in certain places regularly distributed to them on the third Sunday in August. Switzerland varies, through a decennial period, from thirty to thirty-five head of horned cattle to every hundred inhabitants, yet it actually imports butter and cattle. It consumes more animal food than the contiguous countries, viz., twenty-two kilos. of meat, twelve kilos. of cheese, five of butter, and one hundred and eighty-two of milk per head per annum. To the Swiss may be applied the words of Cæsar as to the ancient Britons: "*Lacte et carne vivunt.*" The country is well adapted for the keeping and breeding of cattle, being favored with good grass, water, and air. Large sums are

expended by the various cantonal governments upon schemes for the improvement of the breed of cattle and for the facilitation of their transport from the place of production to the market. The cattle for milking, draught, and fattening are not kept and treated separately with a single object only being kept in view; the Swiss cow is expected to unite all these qualities at one time within herself. It is believed that a cow is positively benefited by being put to the plough, especially if the work be done in the morning; and few bullocks, but many cows, are frequently seen serving various draught purposes, not with the yoke, but with harness similar to that used for the horse. A cow which, at the time of calving, fails to give eighteen litres (litre = .88 quart) of milk is not considered of any value. A fair average for the Swiss cow is ten quarts of milk per day the milking year through, and five thousand three hundred and fifteen pounds of milk per cow is an annual average yield for the milking season of nine months. In England the famous short-horned cows furnish only an average of four thousand six hundred and eighty-eight pounds, and the highest average of milk received at the best dairies of the State of New York reaches a little over four thousand pounds, making a difference in favor of Swiss cows of over thirteen hundred pounds. The federal government makes an annual appropriation for the improvement of cattle, and in the distribution of the subsidy confines itself to those Cantons where cattle-breeding receives local assistance and encouragement. All subsidies are made subject to various conditions to secure the fullest benefit therefrom. These require an annual examination of all breeding-bulls to be held at a district show; prize bulls must be used in the Canton for at least one year after the awarding of the prize; breeding-bulls must be registered, and none unregistered may be so used; prize cows must also remain a certain time in the Commune, and must not leave the Canton before calving. The Swiss have superior breeds of cattle for yield of milk, aptitude for fattening, and capability of working, as well as handsome in appearance. From reports made by United States consuls, the two best-known and highly-prized breeds of cattle appear to be the parti-colored and the brown; the difference prevailing in each being, mainly, in point of size and greater or less degree of fineness. The parti-colored breed is seen at its best in the valleys of the Simme, Saane, and Kander, in the Gruyère and Bulle districts, and generally over the western and northern parts of Switzerland. They are large, and among the heaviest cattle in Europe; their ground color is white, and it is marked with dun, reddish-yellow, or black;

the milk from these cows is admirably adapted for making cheese and butter. Some of the most famous cheeses known to the market are from the milk of these “fleck” or spotted cows. They fatten kindly, and, owing to strength and size, are well suited for draught purposes. The brown race consists of a heavy Schwyz breed, the medium-size breed from Unterwalden and part of the eastern Cantons, and the smaller mountain breed. It has been called the “turf-breed,” and is considered to be more ancient than the parti-colored. It is mostly found in Schwyz, Zug, Luzern, and Zurich. The brown Schwyz is a beautifully-formed cow of mouse color, running into brown; large, straight back, usually with white streak; short, light horns, two-thirds white with tips black; nose tipped dark gray, with light borders; udder large, white, and smooth; usual weight about twelve hundred to thirteen hundred pounds, those kept in the higher Alps weigh about nine hundred pounds. There is a breed in the Valais known as the Hérens, which is considered by many to be a separate and primitive race. These animals, having short, stout bodies, are admirably suited to the steepest and most inaccessible pasturage; they are readily fattened, the quality of their meat is greatly prized by butchers, and they are renowned for their enormous powers of draught. In 1880 a great impulse was given to the careful breeding of cattle by the establishment of four herd-books. It is alleged that the great number of good cows of pure blood help to make the Swiss herd-book a failure. It began life with as many “pure bloods” as most herd-books contain after twenty years’ existence. At the international show of Paris, in 1878, every Swiss cow exhibited bore away a prize. They have competed also with exhibits from Holland, England, and Denmark, and other famous cattle and milk-producing districts of Europe. Good Swiss cows sell from 500 to 1200 francs each. These fine milk-, butter-, and cheese-producing animals are fed only on grass and hay the year through; occasionally a little dry bran may be added. From May to September the cows in the neighborhood of the mountains are herded on the upper Alps, and this rich, nutritious, short Alpine grass sustains for nearly four months multitudes of as beautiful cattle as are to be found in the world. All the mountain pasturages go by the name of Alp,⁸¹ and comprise “voralpen,” used in the spring; “mittelalpen,” middle or intermediate pasture, remaining free of snow from the first of June to the end of September, and “hochalpen,” sometimes nine thousand feet high, for sheep and goats. Except when on these Alpine pastures, the cows have only house-feeding,

and, there being no grazing-fields aside from the Alps, the cows of the plains are stall-fed through the entire year. In the summer the fresh-cut grass is fed to them. It is economy to cut the grass and carry it in as against permitting the meadows to be trampled, grass wasted, and the animals worried with flies. The cattle-stables are long, low, rectangular attachments to the barns. They are always built of stone, with walls about two feet thick. The stalls are usually ceiled over head, and often plastered throughout; the floors stone or cement, and bedded with poor hay, straw, or saw-dust, and a tight-fitting; oak door is at the end of the rectangle. These barns are very warm, but thoroughly ventilated, and the stalls are clean and nice beyond comparison. The cows are marched out to exercise, air, and water daily; they are curried and cared for the same as fine horses; their coats are brushed until they shine, and the animals are evidently vain of their beauty. In this, as in other cases, man's regard for the lower animals appears to be rewarded by an increase in their intelligence. The universal reasons given for thus penning up these cows are: "It saves feed," "the cows give more milk for the warmth," "there are no flies to worry them," and "more manure is obtained." The peasant, pointing to the manure heap, will say, "Out there is where the per cents. are made." As grass and hay are almost exclusively fed, it is requisite that these be of the best quality and of sufficient quantity. There is a great variety and succession of green crops for feeding in the house, almost the year round, carefully cultivated. A moist climate, frequent appliance of liquid manure,⁸² and the practice of growing fruit-trees in the meadows prevent drought in Switzerland. Then much moisture comes from the incessant filtration of the melting glaciers which are constantly dissolving under the heat of the sun. The conditions of moisture and sunshine give to the country its abundance of grass, causing it to grow anywhere. You see it rapidly establishing itself on the tops of roadside walls. On a heap of stones lichens and moss soon appear, and, by their decay, in time fill the interstices, then a mantle of turf creeps over it. In excavations on hill-sides, where the mountain torrent brings down successive avalanches of rocky detritus, each successive layer in turn and in time becomes consolidated with mould and then covered with turf. Indeed, a greater part of the valleys consists of nothing but a film of soil superimposed on fragments of rock. There are two or three grass crops in Switzerland yearly,—the first in the beginning of May, the second at the end of July, and often another early in October. The mountains intercept winds

and clouds, making the amount of precipitation large. The clouds are generally intercepted by the mountains at an elevation of five thousand feet, and then descend in rain; higher up the precipitation is in the form of snow. There is great difference in annual waterfalls, the greatest being as we approach the Alps, whether from the north or south. The annual rainfall is thirty-five inches at Basel, sixty-four and a half inches at Interlaken, sixty-nine at Schwyz, rising to eighty-eight on the Grimsel and one hundred and two on the St. Bernard, and falling at Lugano to sixty-three. The percentage of snow in the total annual rainfall varies from sixty-three on the St. Bernard to six at Geneva. The importance of this precipitation may be understood when it is recalled that a precipitation of twenty-eight inches is considered essential to agricultural security. The meadows are aided in no less degree than the climate by constant fertilizing and extraordinary care in the way of watering, draining, etc. A Swiss acre of good grass-land is worth, in the richer and more populous Cantons, from 1500 to 2000 francs. Milk, and what is made from it, constitute the most important resource of the peasant's income. The manufacture of cheese is one of the most ancient industries of the country, instruments for this purpose having been found in different parts among the ruins of the "Lake-dwellers," whose date is anterior to all historical records. On wedding occasions it was formerly the custom to present the bride and bridegroom with a large cheese, the joint contribution of their relatives; and this cheese was handed down, generation after generation, as a family register, on which were inscribed births, deaths, and marriages. Cheeses bearing date of 1660 are still to be seen. In some parts of the country cheese forms the staple food of the people, and the laborers are often paid with it. There are no fewer than five thousand five hundred cheese-making factories, and nearly 13,000 tons are exported annually, the value of which is over \$7,000,000.

In 1887 there were exported to the United States 4,262,000 pounds, at an invoice valuation of \$658,000. During the Alpine pasture season the cheese is made in the little stone huts or *sennes* of the herdsmen, and brought down in the autumn; the herdsman will descend from the pastures with a cheese weighing from one hundred and fifty to one hundred and seventy-five pounds on his shoulders. The larger the cheese the better its quality. Each cow is supposed to yield a hundred-weight of cheese during the summer months. The average of fat contained in the milk of the best Swiss cows is three and three-tenths per cent., though in a few cases it may

show four to four and a half per cent. of fat or oil. The several varieties of cheese are classified: either according to consistency of material, as *dur*, *ferme*, and *mou* (hard, firm, and soft); or according to the proportion of fatty matter, as *gras*, *migras*, or *maigre* (rich, medium, or thin); or according to the coagulation, whether by rennet (*à pressure*) or by sour milk (*à lait aigre*). The better kinds of Swiss cheese are as much the products of skill and high art as the Swiss watch and Swiss embroidery. The best and most abundant, retaining nearly all the elements of the milk, with its nutritive value, is the *Emmenthal*, known as the *Schweizerkäse*, and is made in the valley of the Emme, Canton of Bern. This is a round cheese eighty to one hundred centimetres in diameter, ten to fifteen centimetres thick, and weighing from fifty to one hundred kilos. or more. Next in importance is the *Gruyère*, called after the village of that name in Freiburg, around which it is asserted grow succulent herbs of aromatic juices, that perfume the milk of which this cheese is made, that is so well known and highly appreciated throughout the world. Another celebrated cheese is the *Schabzieger*, or green cheese, known as the Sago or Sapsago. Its manufacture dates back to the tenth century, and it is still largely produced in the Canton of Glarus. The peculiarity of this cheese is due partly to the method of coagulation, and partly to treatment with the *Schabziegerklee*, a plant grown for the purpose in Schwyz. The analysis of the *Emmenthal* and *Gruyère* cheeses is given: the former, water, 34.92; fatty matter, 31.26; caseine, 29.88; salts, 3.94; the latter, water, 34.57; fatty matter, 29.12; caseine, 32.51; and salts, 3.80. There is at Cham the largest and most successful milk-condensing factory in the world, with branch establishments in England, Germany, and Orange County, New York. It uses the milk of not less than six to seven thousand cows, and its product is known far and wide. At Romanshorn, also, the Swiss Alpine Milk Exporting Company does an immense export business of pure milk produced from healthy, grass-fed cows. These companies claim to have satisfactorily solved the problem of condensing and preserving milk without altering its original composition, either by the addition of sugar or other preservative substances. Switzerland is veritably the land “flowing with milk and honey, and cattle upon a thousand hills.” Great attention is paid to apiaries; the honey is famed for its aroma and delicacy; though some tourists are disposed to doubt if that which is on every breakfast-table is all the product of the little busy hymenopteran.

The first railway on Swiss soil was a short piece from St. Louis to Basel, opened in 1844; but the first purely Swiss line was that from Zurich to Baden, opened in 1847; yet Switzerland has to-day more railways in proportion to area than any other country of Europe. Its railroad mileage per ten thousand population, stands third in Europe, being exceeded only by Sweden and Denmark; and in outlay for the same per capita, it comes second, England being first. By a federal law of 1872, the right to grant concessions to railroads was vested solely in the Confederation, but the co-operation of the Cantons was to be sought in the preliminary negotiations. The revised Constitution of 1874 expressly sanctioned the condition into which railroad affairs had been brought by previous legislation; for the 23d article repeats the constitutional provisions of 1848 regarding public works, and another article is added; the 26th declaring that "legislation on the construction and management of railroads belongs to the Confederation." All railroad companies, whether confined to a single Canton or running within the limits of more than one, and of whatever length, from trunk lines down to the shortest funicular, desiring a concession, must first apply to the Federal Council, submitting the necessary documents and information. These are at once transmitted by the Federal Council to the cantonal government or governments through which the projected railway proposes to run, and negotiations take place between cantonal authorities and representatives of the railway as to the concessions asked for, under the presidency of a delegation of the Federal Council, including the chief of that particular department. After the Federal Council has settled the terms of the concession, it sends a message, with the text of the proposed conditions, to the Federal Assembly for their consideration. The ultimate decision rests with the Federal Assembly, and they may grant a concession even if the Canton opposes it. The purchase of the Swiss railways by the Confederation has been much discussed of late years, but so far without any result. The Confederation has left the development of railroads to private enterprises, and never exercised its right of subsidies to railways except in the case of the St. Gothard Company, which pierced the Alps with a tunnel of incalculable value to the whole of Switzerland. By this tunnel Switzerland overcame the isolation resulting from an altitude above the sea; linking north and south, central Europe and Italy, in new bonds of amity, and opening through the very heart of the Alps a new highway for the nations. It is one of the greatest triumphs of modern engineering, one of the grandest

monuments of human skill. It is the longest tunnel in the world, being fifteen kilometres long, or nearly nine and a half miles; one and a half miles longer than the Mont Cenis tunnel. In addition to the great tunnel there are fifty-two smaller tunnels approaching it, making a total length of tunnels in getting through the Alps fifteen miles. The St. Gothard railway proper extends from Immensee, in Switzerland, to Chiasso, in Italy, a distance of one hundred and thirteen miles, and there are in all not less than fifty-six tunnels, comprising more than one-fifth of the whole line, or twenty-three miles of tunnelling. The width of the great tunnel is twenty-six feet and the height nineteen feet. It requires, at express-train speed, sixteen minutes to pass through it. It is about one thousand feet below Andermatt, and five thousand to six thousand five hundred feet below the peaks of the St. Gothard. The preliminary works were begun at Göschenen, on the north side, June the 4th, and at Airolo, on the south side, July the 2d, 1872. Louis Favre, of Geneva, was the contractor.⁸³ On February 28, 1880, a perforation from the south side penetrated the last partition between north and south sections, and the workmen on either side exchanged greetings. On the 22d of May, 1882, the first train passed over the line, and every town from Luzern to Milan celebrated the completion with banquets and excursions; and its business, passenger and traffic, at once assumed immense proportions. The construction cost 56,000,000 francs; which was partly paid by subventions from Switzerland, Germany, and Italy, the conditions and respective amounts of which were the subject of a treaty between these governments. It penetrates the mountain like a corkscrew, making four complete loops within a distance of twenty miles, in order to attain the requisite elevation, when it emerges into daylight only to enter again the main tunnel. The waters of the Reuss and the Ticino supplied the necessary motive power for working the screws attached to the machinery for compressing the air. The borers applied to the rock the piston of a cylinder made to rotate with great rapidity by the pressure of air, reduced to one-twentieth of its ordinary volume; then, when they had made the holes sufficiently deep, they withdrew the machines and charged the mines with dynamite. After the explosion, the *débris* was cleared away and the borers returned to their place. This work was carried on day and night for nearly ten consecutive years. The official report shows that three hundred and ten of the workmen were killed by accidents during the building of the tunnel, and eight hundred and seventy-seven were wounded or received minor

injuries. The work was done by Italians; no others would accept so much toil and danger for so little pay. There were used in its construction 2,000,000 pounds of dynamite and 700,000 kilos. of illuminating oil. The problem of keeping the temperature and atmosphere of the tunnel within a limit involving perfect safety to persons passing through it, proved one of the most difficult encountered. It was satisfactorily solved by the establishment of immense steam-pumping machines, which constantly throw in an ample supply of fresh air, and maintain a temperature never rising above 20° Celsius or 68° Fahrenheit. There is at present being projected, by the Italian and Swiss governments, the Simplon tunnel, to pierce the Alps about midway between Mont Cenis and St. Gothard, which will be one kilometre longer than the St. Gothard,—that is, sixteen kilometres, or about ten miles in length.

In practical engineering the Swiss may challenge rivalry with any other nation. The suspension bridge at Freiburg, constructed in 1834, at that time had the largest single curve of any bridge in the world, being nine hundred feet in length, and one hundred and eighty high. One of the most daring feats of modern engineering is the cog-wheel railway up to Pilatus-culm, on the Lake of Luzern, six thousand seven hundred and twenty-four feet high. The road-bed is of solid masonry faced with granite blocks. Streams and gorges are traversed by means of stone bridges. There are seven tunnels from thirty to three hundred feet in length. The rack-rail, midway between and somewhat higher than the tracks, is of wrought steel, and has a double row of vertical cogs milled out of solid steel bars. The locomotive and car containing thirty-two seats form one train, with two movable axles and four cog-wheels gripping the cogs, and which, on downward trips, can be controlled by vigorous automatic brakes. The speed of the locomotive is two hundred feet per minute. The road has an average gradient of about one foot in every two. Another piece of skilful engineering and of much scientific interest is the new electric mountain railway up the Burgenstock, also on the Lake of Luzern, it being the first application of this powerful agent to a mountain railway. The primary source of the motive power is three miles away, where an immense water-wheel of one hundred and fifty horse-power has been erected. This works two dynamoses, each of thirty horse-power. The electricity thus generated is transmitted for three miles across the valley, by means of insulated copper wires, to another pair of dynamoses, the negatives of the first, placed in a station at the head of the

railway. Here the electric force is converted into mechanical power by the ordinary connection of leather belts, gearing the dynamos, to two large driving-wheels of nine feet diameter. Then by shafting and cogs the power is carried on to an immense wheel of sixteen feet diameter, and around this passes a wire rope with each end connected to the cars. One man only is required to control the motion of the cars. The whole apparatus for this purpose is arranged compactly before him, and no scientific knowledge is required to manage it. Switzerland has developed the use of electricity to a greater extent, probably, than any other country; the mountain streams furnishing a power ready to hand, and the Swiss in every possible way are utilizing it for electrical purposes. There is a railway to the summit of the Jungfrau being projected that will surpass all existing works of the kind. It will be built entirely in the rim of the mountain, in order that it may be completely safe from storms, avalanches, and landslips. The tunnel will be on the western slope, which is very steep but the shortest route. It will start from Stegmalten, two miles from Lauterbrunnen, a point two thousand eight hundred feet above the sea, running a southeasterly direction, under the Mönch and the Silver Horn, to the summit. The road is estimated to be twenty-one thousand four hundred and fifty feet in length, and will run as close beneath the surface of the mountain as possible. The engineers supervising the construction are Herr Köchlin, who was one of M. Eiffel's principal assistants in building the lofty tower in Paris, and Colonel Locher, of Luzern, the constructor of the Mount Pilatus Railway. The cost is put at 56,000,000 francs, and it is to be completed within five years. The magnitude of this work is shown in the statement that the quantity of rock necessary to be removed is thirteen times that taken from the St. Gothard tunnel. At Winterthur and Schaffhausen, locomotives, other engines and heavy machinery of superior character, are being made, with occasional shipments even to the United States. The recent movement of Switzerland, following the example of other civilized nations, in adopting a patent law, will give a new impulse to the natural mechanical genius of its citizens, and the resultant establishment of other prosperous manufacturing plants. This patent law, which went into effect November, 1888, protects only material objects and not *processes*. This feature is said to be due to the efforts of the manufacturers of aniline colors and chemicals, whose interest would be injuriously affected by a law as comprehensive as that of the United States,

which protects “useful arts” and “compositions of matter” as well as tools and machines.

If a country's roads be the “measure of its civilization,” Switzerland would be easily first. Many of the roads, specially in the Alpine districts, represent an immense cost and the boldest engineering. There is not in the country a road for the use of which toll is charged; for, to their apprehension, a toll would be a contradiction of the very purpose for which the road was made. There is a road-master (*wegmeister*) for every Commune, but he is appointed and paid by the Canton. Though there is so much rainfall, the soil being permeable and favorable to the percolation of the water, the roads, even after a heavy rain, rapidly become dry and clean; everywhere you find them as skilfully constructed and vigilantly repaired as the drives through a park; the cost of their construction and maintenance is defrayed by cantonal and communal taxation. The importance of the mountain roads is recognized by a provision in the constitution, by which the Cantons of Uri, Grisons, Ticino, and Valais receive an annual indemnity on account of their international Alpine roads; to Uri 80,000 francs; to Grisons 200,000 francs; to Ticino 200,000 francs; to Valais 50,000 francs, with an additional indemnity of 40,000 francs to the Cantons of Uri and Ticino for clearing the snow from St. Gothard road, so long as that road shall not be replaced by a railroad.⁸⁴ These sums are to be withheld by the federal government if the roads are not kept in suitable condition.

The “*fremden-industrie*,” or exploitation of foreigners, is not the least profitable industry of the country. There are over 400 mountain resorts, and, in fact, for months the entire country is one great consolidated hotel company.⁸⁵ Palatial hostleries with metropolitan *menus* and *salles à manger*, bengal lights and brass bands, reached by cable roads, are perched on crags where only the eagle used to build his eyrie or the chamois seek refuge. In July and August a quarter of a million tourists fill this little mountain country through its length and breadth with their joyfulness and jargon. This annual irruption constitutes a perennial well-spring of good fortune to many branches of industry and to a large number of Swiss people.

CHAPTER XVI.

PEASANT HOME AND LIFE.

“Mid the murmurings of his fountains,
And the echoes of his mountains,
Where the lordly eagle soars,
Where the headlong torrent roars,
He is, as he was meant to be,
Poor and virtuous, calm and free.”

The industry, thrift, helpfulness, and simple contentment of the Swiss peasants, next to the natural scenery, attract our attention. One must respect their laborious industry, frugality, and perseverance, and regret that so much toil, with such close and unfailing economy, should have such meagre results. Dwelling among the crags and clouds, their flats mostly water and their slopes mostly ice, they get out of their little holdings every farthing that they will yield, and squander nothing. There is a kind of manliness in their never-ending struggle against the niggardliness and severity of nature; out-braving and beating its hard opposition. Sharp-pressing need spurs them to wring a difficult and scant subsistence from the mountain-steeps. Secluded and poor, yet brave and cheerful, they recall the lines from the description of the old Corycian peasant:

“And wisely deem’d the wealth of monarchs less
Than little of his own, because his own did please.”

Every little scrap of ground is turned to the best account. If a few square yards can anywhere be made or reclaimed the requisite labor is not grudged. Many of these sturdy people compel an incredibly little spot of ground to yield them enough, and some to spare. This surprising product from a soil, much of it very poor, is due to the perfection of spade-work; each field, or rather patch, has the perfection of shape given to it to facilitate cultivation

and drainage. This small cultivator, only with spade in hand, can fertilize the waste and perform prodigies which nothing but his love of the land could enable him to accomplish. These peasants have a proverb that “if the plough has a ploughshare of iron, the spade has a point of gold.” In the mountainous districts the land is reclaimed by this *petite culture*. In fact, the man makes the very soil. He builds terraces along steep inclines, lining them with blocks of stone, and then packs the earth to them, transforming the mountain and the rock into a little patch where he plants a vine or raises a little oats or maize. Up the heights of rocks which even goats cannot climb, on the very brow of the abyss, the peasant goes, clinging to the precipice with iron crampers on his feet in search of grass. He hangs on the sides of the rocks which imprison the valley and mows down a few tufts of grass from craggy shelves. The hay thus gathered is called *wildheu*, and the reaper *wildheuer*. This peasant mountain-mower is essentially *sui generis*. He is accustomed to all the perils of the mountain, and the day before the mowing season begins—a day fixed by communal decree—he bids farewell, perhaps for the last time, to his wife and children. His scythe on his shoulder, armed with his iron-shod stick, provided with his clamp-irons, a cloth or a net rolled up in his bag, he sets out at midnight, in order that the dawn may find him at his work. During the two months of hay-harvest he only goes down to the village three or four times to renew his supply of food or linen. By this hard and perilous occupation an Alpine mower makes from three to five francs a day, his food not included; and many times under some projecting rock he must seek a bed and pass the night. Once dried, this wild hay is carefully gathered into a cloth or net and carried down to the first little plain, where it can be made into a stack, which is loaded with large stones to prevent it being blown away. In winter, when everything is covered with snow, the mower climbs again the perpendicular sides of the mountain, carrying his little wooden sledge on his shoulders. He loads it with hay, seats himself on the front, and shoots down with the swiftness of an arrow. At times, the snow softened by the warm wind which blows upon the heights, is detached in an avalanche behind him, and swallows him up before he reaches the valley. This aromatic hay, composed of the nourishing flora of the high Alps, of delicate and succulent plants, of the wild chrysanthemum, the dwarf carline thistle, the red-flowered veronica, the Alpine milfoil with its black calyx, the clover with its great tufts, and the meum, an umbelliferous plant, gives a delicious milk, and is greatly sought

after for the fattening of cattle. In these steep solitudes where the grass is found, the life of man is so exposed and accidents are so frequent that the law forbids there should be more than one mower in a family. With him it is a fight for life, not infrequently conducted to the death. At all times great charges of wrath hang over him,—a beetling crag, a stream of stones, a cataract of ice, a moving field of snow, the flash that rends his roof, the wind that strips his trees, the flood that drowns his land, against each of these messengers of ill he must hold a separate watch, and must learn to brave each danger when it comes, alike by flush of noon and in the dead of night. The little valley below lies at the mercy of these ice- and storm-engendering heights. Year by year the peasants fight against its being extorted from their dominion. Yet this feeble community in the valley, by their stout hearts and virtuous lives, continue to make it smile on the frowning mountains:

“Durum! sed levius fit patientia
Quicquid corrigere est nefas.”

It is a strange and savage reverence which the peasants feel for the mountains. They seem to grow like each other in spirits, even as a man and wife who live in peace grow like each other year by year. With no people is the love of home and the native soil so strongly developed. To return to his village in the midst of his beloved mountains is the constant dream of his life, and to realize it he will endure every privation and bind himself to the hardest and most painful toil. One hope possesses him,—to see again the snows, the glaciers, the lakes, the great oaks, and the familiar pines of his country. It is a sentiment so human—of home, of kindred, of the accustomed locality, of country—that has fostered itself on him and binds him to the spot with a chain he has no power to break. The Almighty himself has implanted in the human breast that passionate love of country which rivets with irresistible attraction the Esquimau to his eternal snows, the Arab to his sandy desert, and the Swiss to his rugged mountains:

“Cling to thy home: if there the meanest shed
Yield thee a hearth and shelter for thy head,
And some poor plot, with vegetables stored,

Be all that Heaven allots thee for thy board,
Unsavory bread and herbs that scatter'd grow
Wild on the river-bank or mountain brow,
Yet e'en this cheerless mansion shall provide
More heart's repose than all the world beside."

There is a quietness and a sombre severity in the lives of these peasants. In spite of occasional merry-making, pleasure-seeking is rare. They have no great sensibility or expression of joy, but a composed satisfaction, a kind of phlegmatic good humor, marks the boundary of their happiness. Many visitors to the country are disposed to complain of the plainness of their demeanor; that their speech is rough and their style hard. The simple abruptness of the peasant's greeting is not without its charms. How far one feels from the obsequious manners of the city, from profuse and insincere compliments! Is there not to some extent in all this a philosophical basis? In general, is it not true that the members of a republic, conscious of their independence and self-importance, adhere less scrupulously to the conventional regularity of forms? Again, the extreme politeness which sometimes characterizes the subject of an arbitrary government may be the result of that policy which introduces and encourages an exterior air of civility as the mark of subordination and respect. The Swiss peasants have neither the time, disposition, nor necessity to affect these elegant improvements,—fopperies of a trifling and superficial elegance which frequently serve merely to soften the deformities of vice. They are delightfully natural human beings, human nature simple and unabashed, and manifest a courteous consideration for each other's comforts and sensibilities. They have no occasion to assert offensively that equality of right which nobody denies, and they respect each other's rights as they do their own. There are no castes to clash, no lower class to assert itself in rudeness, and no higher class to provoke rudeness by insolent assumption. They maintain old-fashioned habits of courteous hospitality, and the workmen in the field will shout out to the passer-by a kindly *guten tag* or *guten abend*, with the *a* prolonged beyond the amen of a chant, and the children invariably take off their caps or drop a courtesy. Even the pastoral beggars present a species of attractive mendicity, as the little children come out to meet you with offerings of Alpine roses, cherries on their branches,

and strawberries in the leaves, extending their hands, with the common entreaty—*bitte, bitte* (pray do).

We hear a great deal of the peasant's chalet. Though very picturesque in appearance, as they glisten in the sunbeams on the slopes or dot the pastoral valleys, these chalets are by no means such charming dwellings as often pictured. Owing to the original abundance of timber, it was almost the only material employed in the building of these houses. There are practically three styles: the so-called block-house, in which the logs are laid one upon the other, notched at the ends so as to fit into each other at the angles where they cross; the post-built house, in which upright posts and a strong framework are filled in with planks; and the *riegelhaus*, with brick or stone. All soon become dark-brown of hue, and are quaint and distinctive in form. They are covered with low flat roofs of shingles, weighted with stones to prevent them from being carried away by the wind; the roofs overhang the walls like the brim of a hat, widened to protect the face from the rain, and are frequently shaped and sculptured by the knife with curious and patient skill. There is a peculiarly sheltered look in the broad projection of the thatched roofs, which, with the thick covering of moss, and their visible beams, making all kinds of triangles upon the ancient plaster of the walls, are very odd and attractive things. The low panelled rooms are innocent of gilding and of painting, but are cleanliness itself. Hollow niches over the doors contain statues of the Virgin, heroes, or saints. The plain benches, tables, cupboards, and chairs are made of the whitest wood, and are so scoured, washed, and polished that to paint or varnish them would be to defile them. Most articles of furniture are quaintly shaped and ornamented, old looking, but rubbed bright and in good preservation, from the nut-cracker, curiously carved, to the double-necked cruet, pouring oil and vinegar out of the same bottle. They are heated with porcelain stoves, cylindrical in shape, two and a half to three feet in diameter, reaching from the floor almost to the ceiling, and bound with bright brass rings to give them strength. These stoves are built of white enamelled tile, which is two or three inches in thickness, and the blocks of tile are put in layers, the inside of the stove being lined with heavy fire-brick, leaving the flue not more than ten inches in diameter. From this wall of fire-brick run a series of small valves up and down and around, carrying the hot air to a number of caps at the top and bottom of the stove, and thence into the room. Wood or turf is used, and it is astonishing how little fuel is necessary. A fire is started

in the morning, the damper remains open until the gases have all passed up the chimney, and only the smouldering ashes remain, then the damper is closed, and no more fuel is needed for twelve hours; if, before retiring, the process of the morning be repeated, it will remain warm through the entire night. The stoves are not unsightly, but in many instances ornamental, having a clean and well-polished surface, with doors and caps of brass highly burnished. In the centre of the stove is a receptacle for warming dishes or keeping a supply of hot water. The stoves are placed close up in the corner, or form part of the partition between rooms so as to be out of the way and heat two rooms.

To some cottages there is an outside stair leading to the second story, or even to the third, if there be one, for these houses are frequently the property of several owners. The peasant who, in the Valais, possesses the third part of a mule and the fourth part of a cow, has often only the half or third of a house. “The Jura cottage has no daintiness of garden nor wealth of farm about it,—it is indeed little more than a delicately-built chalet, yet trim and domestic, mildly intelligent of things other than pastoral, watch-making and the like; though set in the midst of its meadows, the gentian at its door, the lily of the valley wild in the copses hard by. My delight in these cottages, and in the sense of human industry and enjoyment through the whole scene, was at the root of all pleasure in its beauty.”⁸⁶

Within and without these chalets are mural inscriptions and symbols:

“Quarter’d o’er with scutcheons of all hues,
And proverbs sage, which passing travellers
Linger to read, and ponder o’er their meaning.”

They are put upon the beam, upon panels, carved in the cornices everywhere to catch the eye. They are most various in character, friendly welcomes, praises of their native land, exhortations to unity, to freedom, and to courage. On the great projecting beam supporting the roof, called *sablière*, are often painted, amid ornaments and flowers, the initials J.M.J. (Jesus, Mary, and Joseph), as well as the name of the man for whom the house was made, and that of the master carpenter who built it. Those of the

Bernese Oberland have inscriptions reminding man of his duty and the solemnity of life; of which the following are samples:

“The friends from whom we needs must part
’Twill pleasure give to meet again.
’Gainst malice, lies, hypocrisy,
Closed may this house forever be.”

“My God, my strength, whom I will trust,
A buckler unto me;
The horn of my salvation
And my high tower is He.”

“On account of one day, be afraid of all days.”

Many of the inscriptions are from the Bible, and thus not only the churches, but public buildings and private houses teach morality. In the Grisons you see on many the arms of the three leagues engraved; one will bear a cross, another a wild goat, a third a man on horseback, and above them the lines carved,—

“These are the arms of the Grisons,
On the mountains their strongholds lie;
God will have the graciousness
To preserve their liberty.”

This inscription is on a church-bell, dating back four centuries: “Vivos voco, mortuos plango, fulgura frango” (“I call the living, I mourn the dead, I break the lightning”).

The stone chalets in Ticino have their fronts painted pink, and decorated in Italian fashion, with garlands of flowers and symbolical vases, pouring out wine and milk. The finest of these houses are not ducal palaces, the poorest are never hovels. A real Swiss cottage is as much adapted to Swiss scenery as the Gothic is suited to the holy and sublime feelings of devotion; there is a fitness in the subdued color of the resin from the larch to an association which requires extreme simplicity; the same cottage painted

white would be found offensive and obtruding. Near by is the barn, a wooden bridge thrown over the entrance, with a long and gradual ascent, that conducts the wagons loaded with hay to the loft. Some of these are as generous in size and as well built and equipped as the best Pennsylvania barns. It may be that the dwelling, barn, and dairy are all under one roof; but if so, they are separated with a scrupulous regard to neatness. All wastes are corded and covered up outside like so many piles of treasure, to renew the soil when summer comes round. This *fumier* is the special pride of the peasant, and is frequently an imposing object, arranged in layers, with the straw rolled and platted at the sides; it stands proudly by the roadside and often the ornament of the front yard. Everything is in its place; order reigns by virtue of some natural law. There is a kind of Robinson Crusoe industry about their houses and their little properties; they are perpetually building, repairing, altering, or improving something. Thought and care are day by day bestowed on every bit of ground to secure a sufficiency of the things that will be needed in the long winter. Every plant is treated by itself as though it was a child; every branch pruned, every bed watered, every gourd trained. From hour to hour the changes in the heavens are observed and what they import considered; for they may import a great deal; the time allowed for bringing the little crops to maturity is so short that the loss of sunshine for a few days may cause anxious thought. It is a sight which awakens reflection and touches the heart. There is much of healthy purity prevailing around these cottage homes. Every one, according to his means, endeavors to make the homestead an ornament to the grassy and elm-shadowed wayside. The green rock-strewn turf comes up to the door, and the bench is along the wall outside. Flowers surround and adorn the windows, the luscious clusters of the vine ripen above the porch, and the little violet creeps over the stone steps or hangs in a sunny niche, its flowers gleaming remotely. Nothing can be more charming than the large carnations which often brighten the dark larch or pine-wood chalets, with their glossy red blossoms hanging from the windows and balconies. The pleasant vine-sheltered door seems to hospitably invite the imagination of the passer-by into the sweet domestic interior of this cottage life. And there is about the inner life of these humble homes a something one may almost say of sanctity, which is not so apparent, at all events on the surface of things, in splendid mansions. Their splendor is transmuted money, there is no poetry in it; if hearts are moved by it, it is not in that fashion or to that issue that it

touches them. Quite different with these quiet and secluded homes. There every object has a pleasing history. Their industry has accumulated its fruits, frugality its comforts, and virtue diffused its contentment. The care that is taken of it tells you how hard it had been to come by. You read in it a little tale of the labor, the self-denial expended on its acquisition; it is a revelation of an inner life which you are the better for contemplating and for sympathizing with. Shut off from the world, untainted by luxury, unstained by avarice mid lonely toil, practising the simple forms of life and faith, maintaining bravely and contentedly a hard struggle in their Alpine glens, these peasants are on better terms with life than many people who are regarded to have made a better bargain. "To watch the corn grow or the blossoms set, to draw hard breath on the ploughshare or spade," have attractions for them, not accounted for in the meagre train of advantages and comforts they bring, and must be sought in the inspiration of the poet,

"Happy the man whose wish and care
A few paternal acres bound;
Content to breathe his native air
On his own ground.

Whose herds with milk, whose fields with bread,
Whose flocks supply him with attire;
Whose trees in summer yield him shade,
In winter fire."

Often the cottage is perched on a mountain crag, and the peasant must be sleepless and prompt, for he lies down with danger at his door and must rise to meet it when the moment comes. There is a continual menace of desolation and ruin:

"No zephyr fondly soothes the mountain's breast,
But meteors glare and stormy glooms invest."

At dusk you see a cottage on a shelf of rock, a hut in which the shepherd churns his milk, a bit of soil in which he grows his herbs, a patch of grass

on which his heifers browse, a simple cross at which his children pray. At dead of night a tremor passes through the mountain-side, a slip of earth takes place, or a “thunderbolt of snow” which no one hears, rings up the heaven. At dawn there is a lonely shelf of rock above, a desolate wreck of human hopes below, and

“The gentle herd returns at evening close,
Untended from the hills, and white with snows.”⁸⁷

Some of the Alpine districts are entirely pastoral, where naught save cow-herd’s horn and cattle-bell is heard. In the spring it is a pretty sight to see the groups of cows with tinkling bells start for the mountains. The bells are nearly globular, thin, and light, of different sizes, from one foot to two inches in diameter; they are various in pitch, all melting into one general musical effect, forming in right harmonious proportion to produce the concord of sounds without any clashing tones, just as the song of many birds does.

“The tintinnabulation that so musically swells
From the bells, bells, bells, bells.”

The cows are assembled in herds on the village green, and to the call of the herdsmen they begin their march to the mountain pastures. Each herd has its queen, who leads the procession. The choice of the queen depends on her strength and beauty. Great care and expense are incurred in the ambition to procure one peerless animal for this purpose, and in order to develop a combative and fearless spirit they are said to be fed on oats soaked in spirits. The queen wears a finer collar and larger bell than the others. Proud of her superior strength, she seems, with the calmness of a settled conviction, to be defying her companions, and to be seeking—impatient for combat—some antagonist worthy to measure strength with her. See

“How gracefully yon heifer bears her honors!
Ay! well she knows she’s leader of the herd,

And take it from her, she'd refuse to feed."

At the end of the herd marches the bull, with his compact body, little pointed horns, curly hair, and, if he is of a wicked temper, a plate of iron over his eyes. Then comes the train of dairy-girls and cow-herds, who tend the cows in the summer pasturages, with wagons loaded with the implements of their calling, the milking-stool, peculiarly constructed pails, and the wooden vessels in which milk is carried up and down the precipices to the chalet.⁸⁸ When different droves meet, it is almost sure to happen that the two queens defy each other to single combat. The herdsmen themselves promote these struggles, and are very proud of the victory of their own queen cow. The herds begin by browsing on the grass at the foot of the mountain, and then gradually, as the snow disappears and is replaced by a fresh carpet of verdure, they go higher, mounting insensibly till in the month of August they reach the summit of the Alp. Then in September they descend slowly and by degrees, as they went up. On their way up the mountain, if the start be made too early in the spring, the water may be found high, and the herd stops at the edge of the torrent, afraid to cross. The chief herdsman seeks the parsonage, knocks at the door, and explains to the curé the critical situation of the herd, and begs his prayers and blessings.

"Il faut que vous nous disiez une messe
Pour que nous puissions passer."

The shepherd leads a more solitary and perilous life in the mountains than the herdsman, living on polenta and cheese, and for drink, water or skimmed milk; and a little hay spread on a plank serves for a bed. The highest and steepest parts of the Alps are apportioned to the grazing of sheep and goats. Indeed, sometimes the sheep are carried up one by one on men's backs, and left there till the end of the summer, when they are carried down, considerably fattened, in the same fashion. Here the shepherd passes months, his only companions besides his flock are the chamois,⁸⁹ who, in the moonlight, cross the snow-fields, the glacier, or bound over the crevices and come to pasture on the grassy slopes; and the snow-partridge, or white hen, and the *laemmergeier*, or bearded vulture, a bird whose size surpasses that of the eagle,⁹⁰ and who circles around these peaks as he watches for his

prey, and, by a sharp blow of his wing, to precipitate into the chasm any animal he can take unawares and defenceless. Alas! for the poor shepherd belated in a snow-storm, seeking vainly to recover the lost track; when the wind seems like some cruel demon, buffeting, blinding, maddening, as along ways rendered unfamiliar by the drifts he plunges, helpless, hopeless; fainter and more faint, until at last there comes the awful moment when he can fight no longer, and he sinks powerless down, down into the soft and fatal depths; the drift sweeps over him,—he is lost as surely as “some strong swimmer in his agony” who sinks in mid-Atlantic among the boiling surge.

When the flock is taken to the Alps, the sheep, instead of being driven before the shepherd, regularly follow him as he marches majestically in front,—tall, thin, sunburnt, and dirty,—armed with his long iron-pointed stick. Behind him the whole mountain is covered with a moving mass of gray fleeces; other shepherds and Bergamese dogs, with long woolly hair, the most vigilant of guardians, are scattered at different points in this “living flood of white wool surging like foaming waves.” The sheep do not disperse to feed until the chief shepherd, turning his face round to them, either by a whistle or notes from his pipe, seems to remind them that it is proper to do so. This leader or captain literally marches abroad in the morning piping his flocks forth to the pasture with some love sonnet, and his “fleecy care” seem actually to be under the influence of his music. It is by whistling that thousands of sheep are guided, the straying lambs called back, and the dogs sent out and checked. In September, when the shepherds bring down their flocks from the mountains, their wives and children, who have remained in the plain making hay, the harvest, the vintage, and gathering in of other fruits, go to meet them with songs and waving flags. In the evening the whole village rejoices, dancing goes on, and it is everybody’s festival:

“At night returning, every labor sped,
He sits him down, the monarch of a shed;
Smiles by his cheerful fire, and round surveys
His children’s looks, that brighten at the blaze;
While his loved partner, boastful of her hoard,
Displays her cleanly platter on the board.”

The shepherds are happy men, content with their lot, loving their free and nomad mountain life with its long lazy times of rest and its moments of perilous activity. No simpler, honester, braver hearts are to be found anywhere.

There is also the female swine-herd, who daily takes to pasture the pigs and goats. She tends them all day on some stony, irreclaimed waste land. In the evening when she returns with her four or five score, each porker knows his own home in the village; some run on in advance of the herd to get as soon as possible to the supper they know will be ready for them; others do not separate themselves from the herd till they arrive at the familiar door. Behind the swine follow the goats with distended udders,—the poor man's cow. They, too, disperse themselves in the same fashion, from the desire to be promptly relieved of their burden. Last of all come the deliberately-stepping, sober-minded cows. The tinkling of their bells is heard over the whole of the little village. In a few minutes the streets are cleared; every man, woman, and child appear to have followed the animals into the houses to give them their supper or to draw the milk from them, or, at all events, to bed them for the night. Thus do these peasants from their earliest years learn to treat their dumb associates kindly, almost as if they were members of the family, to the support of which they so largely contribute. They begin and end each day in company with them, and are perfectly familiar with the ways and wants of the egotistic pig, of the self-asserting, restless goat, and of the gentle, patient cow.

Sound travels far in these mountain solitudes, and the bells of the flocks may be heard through them night and day. This concert of cow-bells and of sheep-bells, suddenly heard in solitude and repeated by the echoes, like a distant and mysterious choir, is one of the features of Alpine life that most powerfully impress the feelings and take hold of the imagination.

The mountains' response to the "alphorn" is most singular and beautiful. When the tune on the horn is ended, the Alps make, not an echo, but a reproduction of it, in an improved and heightened character; they take up, as it were, and chant the air again with infinite sweetness and a dancing grace that is delightful. They seem to constitute a natural instrument of music, of which the horn is but the awakening breath. The writer, on behalf of the New England Conservatory of Music, Boston, requested of the Swiss

government samples of musical instruments of Swiss origin. In answer an “alphorn,” of ancient form, well constructed and of superior tone, was furnished, accompanied with the statement that, after careful investigation, it was believed to be the only musical instrument of “Swiss origin.” Distance softens the tone of the “alphorn,” and assimilates it more nearly to the flute-like sweetness of the echo which seems a sort of fairy answer coming out of some magical hall in the rock. The tone is powerful, and the middle notes extremely mellow.

The peasants call and answer their companions from peak to peak in musical notes. The *Ranz des Vaches*, German *Kuhreihen*, are a class of melodies prevailing and peculiar to the herdsmen. There is no particular air of this name, but nearly every Canton has its own herdsman’s song, each varying from the others in the notes as well as in the words, and even in the dialect. There are as many songs and airs which go by this name as there are valleys in Switzerland. A verse of one, as rendered in the Canton of Appenzell, runs:

“The cow-herds of the Alps
Arise at an early hour.

CHORUS.

Ha, ah! ha, ah!
Come all of you,
Black and white,
Red and mottled,
Young and old;
Beneath this oak
I am about to milk you,
Beneath this poplar
I am about to press,
Liauba! Liauba! in order to milk.”

It is a song of melancholy, of the homesickness in which the absent Swiss sees again, as in a musical vision, the chalet in which he was born, the mountain where the herds shake their mellow bells as they graze. It is,

however, only in the refrain that is heard the melancholy note, in this *Liauba! Liauba!* thrown lingeringly to the winds, and going from echo to echo, till it expires like a lament, and is lost like a sigh in the infinite depths of the valley. The herds are said to love and obey its strains. Without anything striking in the composition, it has a powerful influence over the Swiss. Its effect on Swiss soldiers absent in foreign service was so great, giving rise to an irrepressible longing to return to their own country, that it was forbidden to be played in the Swiss regiments in the French service, on pain of death. All the music of the mountains is strange and wild, having most probably received its inspiration from the grandeur of the natural objects. Most of the sounds partake of the character of echoes, being high-keyed but false notes, such as the rocks send back to the valleys when the voice is raised above its natural key in order that it may reach the caverns and savage recesses of inaccessible precipices. The Swiss *yodel*, with its falsetto notes, is heard everywhere. Nor must the sounds of the landscape be forgotten. With the bleating of the flocks and the chimes of the cow-bells are mingled the murmuring of the bees, the running streams, whispering pines, the melancholy voice of the goat-herder, and the plaintive whistle of the mountain thrush.

Every member of a Swiss family produces his share. The whole family take up their daily work before sunrise, suspend it only for their meals, and end it only when the candles are put out at early bedtime. The feeble efforts of old age and the petty industry of childhood contribute to the sum of human toil. Children all work with their hands for the common support, they help the elders in the common family interests as soon as they can rock a cradle, drive a cow, or sweep a floor; they thus acquire at home habits of application and industry which stand them in good stead in after life. The little ones who are taken by their parents to the field and are too young to work have bells fastened to their belts, not for amusement, but, as the mothers explain, “when we are in the fields and the children wander away, thanks to the bells, we can always hear and find them, and, besides, the sound of the bell drives away the serpents.”⁹¹ Even the infant in its baby-carriage passes the day amid the scenes of labor in which it will soon be called to join. The women are not exempt from work, even in the families of very substantial peasant proprietors. A stranger, seeing the smart country girls at work about the cows’ food or in the harvest field, perhaps barefooted, is apt to consider it as a proof of extreme destitution. This is a

mistake; it is merely the custom of the country. A well-to-do peasant's daughters, who are stylishly dressed on Sundays, may be seen in the fields during the week. You see the sturdy sunburnt creatures in petticoats, but otherwise manlike, toiling side by side with their fathers and brothers in the rudest work of the farm. They wear a broad-brimmed straw hat, and as the breeze blows back its breadth of brim, the sunshine constantly adds depth to the brown glow of their cheeks. In the absence of the men the women do all the work,—mow the grass, cut the wood, look after the cattle, make the cheese, bake the bread, and spin the wool. Whether they are employed in spreading the litter on the floor of the stable, in carrying the pails foaming with the freshly-drawn milk, or in turning up with long wooden rakes the newly-mown hay, all their different labors resemble festivals. From one hill to another, above the bed of the mountain torrent, they reply to the songs of the young reapers by chanting national airs, it may be *Rufst du, mein Vaterland* (“callest thou, my country”)! Their voices resemble modulated cries emitted by a superabundance of life and joy; musicians note them down without being able to imitate them; they are indigenous only on the waters or on the green slopes of the Alps. The distinction between the sexes as to labor in Switzerland has passed the temporary stage of evolution. Is it not true everywhere that women are entering a new era of self-care; that they are undertaking not only office-work, but professions, and trades, and farm-work? and the change is going on with great speed. The woman of fifty years ago would not only have refused to undertake what the woman to-day achieves; she would have failed in it if she had. The field of housework was in the last century vastly wider than it is to-day; yet woman filled it. She spun and wove and knit as well as sewed; and each household was a factory as well as a home. This sort of work was differentiated by machinery and taken away from our houses and wives. For a time woman was made more helpless and dependent than ever before. But a readjustment appears to be going on. Woman has gone out of the house and followed work. The sex is developing a robustness and alertness and enterprise that we had attributed to man alone; it is a revolutionary change in the mental adaptability, physical endurance, and business capacity of woman.

The Swiss peasants may not shine by brilliant qualities or seductive manners, but they are strongly framed, broad-chested, powerful, calm in countenance, frank and open in expression, with bright eyes, and largely

sculptured features, but of rather heavy gait. The women are active in figure, with expanded shoulders, supple arms, elastic limbs, blue eyes, and healthy complexions. Light hair largely predominates, ninety out of one hundred have hair of the different shades that make auburn, from the very light-brown to the very fair, but few have red hair, and scarcely any black. A mixture of manly beauty and feminine modesty is harmoniously blended in their physiognomy; they appear robust without coarseness; and their voices are soft and musical, common to dwellers in cold countries. With these peasants where the homespun is not unknown every one eats the bread of carefulness. They are frugal and sparing in food; in the larder there is left little for the mice at night. The diet of rye bread, milk, cheese, and potatoes is at least wholesome, for they are all produced at home. They use but little fresh meat, and mostly vegetables and bread. Of the latter they are the champion consumers, it being estimated that the yearly bread consumption is as high as three hundred and six pounds *per capita*. Meeting children on the country road or village street, you are sure to find almost every one of them munching bread, and it will be entirely guiltless of sugar or jam. With the poorer classes meagre cheese is the staple food. This is made of skimmed milk, and if not positively bad, this negation of badness is its only virtue. Also dried or mummy beef is much used. In the high mountain valleys the air is so dry that for nine months out of the twelve meat has no tendency to decomposition; availing themselves of this favorable condition, they kill in the autumn the beef, pork, and game they will require for the ensuing year. It is slightly salted and hung up to dry; in three or four months' time it is not only dried, but also cooked, at least the air has given it all the cooking it will ever receive. It has become as dry and hard as a board, and internally of the color of an old mahogany table; externally there is nothing to suggest the idea of meat, and it is undistinguishable from fragments of the mummies of the sacred bulls taken from the catacombs at Memphis. Strange as it may appear, when cut across the grain in shavings no thicker than writing-paper, it is found not badly flavored, nor unusually repugnant to the process of digestion. What is lacking in quality of the peasant's food is made up in quantity or rather the frequency with which it is partaken of. There is early breakfast, lunch at nine A.M., called from its hour *s'nüni*, dinner at twelve, lunch again at four P.M., called *s'vierli*, and supper. It is astonishing to see how much solid

flesh, good blood, and healthy color can be produced by such inferior and limited diet.

The language of the peasants is characterized by rough gutturals and the force with which dentals and hissing sounds are pronounced, a sing-song accent, with numerous diminutions, contractions, and omissions of the final syllable. There is much of what is designated under the general name of *patois*,—a mixture of Celtic, Latin, and Italian words; a Babylonish dialect,—a parti-colored dress of patched and piebald languages. This corrupt dialect is very sonorous and very harmonious, but is the relic of an almost extinguished antiquity. In the Engadine, and the remote valleys of the Swiss Alps adjoining Italy and the Tyrol, the peasants use the Romansch and Ladin; the latter is more musical, and to give an idea of it the following verse from a popular song is transcribed:

“Montagnas, ste bain!
Tu gad e valleda,
Tu fraischa contreda,
Squir eir in mi adsinga,
Montagnas, ste bain!”

“Ye mountains, adieu!
Thou vale with green bowers,
Fresh meadows and flowers,
When from you I must sever,
Ye mountains, adieu!”

The peasants still observe many manners and customs of the olden times: some the imprints of the early influences of the Burgundians, others of the Alemanni and the Ostrogoths. The separation by the mountain ranges of populations near and akin to each other, which led to the formation of so many dialects, also favored the growth and long continuance of local customs and traditions, giving to many localities a strongly marked individuality.

In one part of the Canton of Ticino a very quaint marriage ceremony prevails. The bridegroom dresses in his “Sunday best,” and, accompanied by as many relatives and friends as he can muster for the fête, goes to claim

his bride. Finding the door locked, he demands admittance; the inmates ask him his business, and in reply he solicits the hand of the maiden of his choice. If his answer be deemed satisfactory, he is successively introduced to a number of matrons and old maids, some, perhaps, deformed and badly goitered. Then he is presented to some big dolls, all of whom he scornfully rejects amid general merriment. The bewildered bridegroom, with his impetuosity and temper sorely tried, is then informed that his lady love is absent, and he is invited in to see for himself. He rushes in, searches from room to room until he finds her ready to go forth in the bridal-dress to the church. These obstacles thrown across the path of accepted suitors, in order to test their fidelity or to restrain their ardor, are of very ancient origin. Who has not read of the self-imposed task of Penelope or of Atlanta, in classic fable; or the story of Brunhilde, in the Norse mythology, when Gunther's courage and skill were tested not in vain? In other remote places the peasants still observe the old German idea of regulating matrimonial affairs by the Sundays of the month, each Sunday having a distinct part and significance assigned to it and designated in turn,—Review Sunday, Decision Sunday, Contract Sunday, Possession Sunday. On the first the girls appear in dress-parade for the benefit of the young men with hymeneal hearts. Then they separate, each one to ponder for a week over the image which caught his or her fancy. On the following Sunday the enamored swains are permitted to bow to the objects of their choice; if the bow is returned with a pleasant smile, he feels encouraged; if his salute is returned coldly, he is correspondingly discouraged. The third Sunday he is interviewed by the parents of the young lady, and, if character and conditions are satisfactorily established, the marriage is arranged to be celebrated on Possession Sunday. In Uri a citizen was not allowed to marry a stranger without paying to the village a fine of 300 francs. In many places the local spirit is strong as to social relations, and the youth in one Commune who would court a girl of another district meets a rude reception from her fellow-villagers. During the fourteenth century the attendants at a wedding were limited to a very few guests. In Zurich the most distinguished personage dared not invite more than twenty mothers of families to the wedding feast, nor have more than two hautboys, two violins, and two singers. The bridegroom paid for the wedding dinner, the cost of which was fixed so much *per capita* for every invited male, married female, and maiden; the allowance for the first was double that of the second, and four

times that of the third. In other Cantons the wedding was a grand occasion, an imposing and public affair in which the whole village was expected to take part. In the house of the newly-married pair there were open tables, and drinking, dancing, and feasting went on all night. But these Pantagruel repasts are now no longer in fashion anywhere. The day fixed for the wedding, among the peasants, is always Sunday. In the morning, before going to church, the invited guests meet at the bride's house to partake of wine, soup, and fritters. After the marriage ceremony, the party go in procession to the bridegroom's house, where dinner is served; the priest delivers a long discourse, and other orators hold forth. In the evening there is dancing, and at the stroke of midnight the guests form a ring round the wedded pair and take off their crowns, and, after a few words of encouragement, they are left alone. In some places a man was not permitted to marry unless he had certain possessions, and could show himself able to defend his homestead from fire and robbers; he must have arms and uniform, hatchet, bucket, and ladder. Custom, at least, was law to a woman. She must have acquired a sufficient stock of linen and have learned many domestic arts; thus Swiss women became famous for their linen, and a girl would begin laying up her stock of household and domestic articles *pour mon cher petit ménage* long before she met her partner for life. The custom of Saturday-night visits among the young peasant people, whose daily labors keep them away during the week, still prevails. On Saturday night the young Swiss comes under the window of the fair lady to whom he intends paying his addresses, or with whom he only wishes to become acquainted. Being visiting-night, and expecting company, she is at the window, neatly dressed, and admits or rejects the petition, for which her suitor is not at any trouble of improvisation, for it is according to a received form, learned by heart, and generally in verse; and the answer is in verse also. The young man, permission obtained, climbs up to the window, and there he sits on the sill and is offered some refreshments. According as his views are more or less serious, and he proves more or less acceptable, he is allowed to come into the room or suffered to remain outside.

The last solemnities, those of death and burial, have among the peasants of the Latin Cantons something violent and passionate in their character. For several Sundays after the funeral the women, dressed in mourning with a head-band across the forehead, meet in the cemetery around the grave, and, in a mournful and harrowing concert, renew their tears and

lamentations. The nearest relations carry the coffin; little children follow, dressed as angels, all in white, with crowns on their heads; then come the *white penitents*, dressed in their death-shirt, or the robe of the brotherhood. White is the mourning color, and persons with whom you meet with a broad white band on their dress have lost a member of their family.

The picturesque costumes of the Swiss peasantry, which formerly were the pride and distinguishing marks of the several Cantons, have almost disappeared; their use being confined to holidays, festivals, or as advertisements at public resorts. The Bernese have their snow-white shift-sleeves rolled up to the shoulder exposing to view a sinewy sunburnt arm, the dark-red stays laced with black in front, silk aprons, silver chains, and buckles, colored skirts just short enough to show a home-made white stocking, a heavy gaiter shoe, a beehive-shaped hat, and long yellow hair in a single plait hanging down nearly to the heels, along a back made very straight by the habit of carrying pails of milk and water on the head. In French Switzerland long tresses, trimmed with black ribbon, descend on each side of the neck, a narrow dark bodice restrains the waist, the bosom is covered by a chemise plaited in a thousand folds and whiter than snow, a short and ample under-petticoat leaves the leg exposed above the ankle, and red garters full in sight. These costumes really have nothing to recommend them except their peculiarity; there is something very irresponsible in them, adding nothing to the beauty of person or grace of bearing, but simply tending to make the wearers, like Lord Dundreary's girls, "look more or less alike, generally more alike;" none of them are pretty except on paper, yet even the ugliest of them all, worn by the homeliest women, help to make up the sum of national peculiarities and add to the picturesqueness. The men affect immensely broad pants, a large round coat high in the collar, short in the waist, with two little ludicrous tails in the very small of the back, and a soft beaver hat pushed sideways on the head; the complete appearance is sometimes suggested of a walking porpoise. The present ordinary male and female dress is somewhat sombre, little use of bright color is made, and regard is had for that which will wear best and require least washing; the material is either undyed homespun woollen cloth or coarse blue frieze, and the garments are clumsily made, stiff and heavy.

Human character appears to consist of two opposite varieties: one that makes a fetich of the past, and shrinks from changes as from a rude

immorality; the other, that dashes forward impatiently after progression and development. In most states these temperaments are brought together in the diversity of persons, and the reforming and conserving influences work out in harmony the course of society. But in Switzerland can be found peasant communities where nothing but conservatives are generated. Time seems to have slumbered among them for centuries; their character has continued ancient in modern times.⁹² They have always been and will ever be peasants. They are religious, unaffected, industrious people; shepherds, agriculturists, artisans, soldiers, patriots, and, above all, freemen, full of song, labor, and fight. They wish to be ruled by habits rather than laws, with traditional customs as a legislative code. What matters if the storm rages, and if it snows, if the wind blusters in the pine forest, if a man shut up in his cottage has but black bread and cheese, under his smoky light and beside his fire of turf? Another kingdom opens to reward him, the kingdom of inward contentment; his wife loves him and is faithful; his children round his hearth spell out the old family Bible; he is the master in his home, the owner and protector; and if so be that he needs assistance, he knows that at the first appeal he will see his neighbors stand faithfully and bravely by his side,—

“And each shall care for other,
And each to each shall bend,
To the poor a noble brother,
To the good an equal friend.”

Quite a different world from the every-day world of railways and electricity; this carefully got-up world, gloved and starched, that scorns the unbought charm and the sublime simplicity, the severe and contented virtue, of the children of nature. The peasant in rags, coming out of his larch forest, brings with him a breath of wild nature; and the young girl, mounted on her donkey, fresh and rosy as the rhododendrons, is as simple and natural as they. This blue-bloused son of the soil, trained to the habits of order by centuries of freedom, understands his rights and has been taught at school his civic duties, and knows something of the laws and the constitution of his country. Inquire of him, and you will probably learn that he is a Deputy and a Communal Councillor, and may one day be President of the

Confederation. There is much of all that constitutes both the good man and the good citizen distributed throughout the peasants. In their great cathedral of nature, the harsh clamor and ceaseless unrest of the outer world find but little place and less concern. Rejecting those factitious wants which luxury creates, the expense and way of living are proportioned to their small means, and every one, sooner or later, is sure of something which he enjoys in quiet and security. The very spirit of picturesqueness hovers over their mountain homes, and lingers in their peaceful vales whispering of a past fraught with quaint traditions and glorious memories; and of a present, full of self-supporting energy, reciprocal dispositions to neighborly help, a spontaneous tendency to order, forethought, plodding industry, sobriety, and contentment.

“And e’en those hills that round his mansion rise
Enhance the bliss his scanty fund supplies.
Dear is that shed to which his soul conforms,
And dear that hill which lifts him to the storms;
And as a child, when scaring sounds molest,
Clings close and closer to the mother’s breast,
So the loud torrent, and the whirlwind’s roar,
But bind him to his native mountains more.”

CHAPTER XVII.

NATURAL BEAUTIES AND ATTRACTIONS.

“A wilderness of sweets: for nature here
Wanton’d as in her prime, and play’d at will,
Her virgin fancies pouring forth more sweet,
While above rule of art, enormous bliss.”

No spot in Europe can compare with Switzerland in loveliness and rural charms; in variety, boldness, and sublimity of scenery; in tonic, steel-strong air, a fine intoxicant of mental and physical joy and power. It is a land of valleys, exquisite in their loveliness, enriched by numberless streams, lakes, mountains, peak, and pass:

“Hills peep o’er hills, and Alps on Alps arise.”

Nowhere else, in one quarter of the globe, has nature laid her hand on the face of the earth with the same majesty; no other division of it presents the same contrasts in a panorama so astonishing; no other exhibits so surprising a diversity of landscapes, caverns and waterfalls, fields of ice and cascades, green and broad mountain-sides, pastoral abodes and smiling vales, winding and rocky paths, aerial bridges and infernal glens, eternal snows and luxuriant pastures, forests of dark larches and congress of hoary mountains, austere loveliness and lofty nobleness:

“Ever charming, ever new,
When will the landscape tire the view?
The mountain’s fall, the river’s flow,
The wooded valleys, warm and low;
The windy summits wild and high,
Roughly rushing on the sky;
Town and village, tower and farm,

Each give to each a double charm.”

If the Neapolitan be moved to call the environments of his capital “*un pezzo del cielo caduto in terra*” (“a bit of heaven fallen upon the earth”), the Swiss may more modestly claim that they have that piece of the Garden of Eden only which the angels of the legend lost on their way. It is impossible to convey a vivid, and at the same time an accurate, impression of grand scenery by the use of words. Written accounts, when they come near their climax, fall as much below the intention as words are less substantial than things.

The *mountains* come first in the glory and charm of Switzerland’s natural beauties and attractions. They encompass us on every hand; fill our eyes when we are walking and haunt our dreams during sleep,—so beautiful, so majestic, and yet so lovely. Grandeur of bulk and mass is conjoined with splendor and fulness of detail; form and shape are crowned with soaring peak and matchless line; and the summits mingle with that sky which seems to be the only fitting background for the eternal hills. On the face of a topographical map Switzerland appears to consist chiefly of mountains lying near together, or piled one upon another, as if the story of the Titans was realized, and with narrow valleys between them. Of the western, central, and eastern Alps, constituting the whole Alpine system, a part of the first, the whole of the second, and none of the third division belong to Switzerland. The entire giant fabric, rising concentrically and almost abruptly from the surrounding plains, offers its grandest development in Switzerland and Savoy. There are points of view in Switzerland whence the array of Alpine peaks, semicircular in form, presented at once to the eye, extends for more than one hundred and twenty miles, and comprises from two hundred to three hundred distinct summits, capped with snow or bristling with bare rocks. The Swiss Alps are divided into several sections,—the Pennine Alps, the Helvetian Alps, the Rhetian Alps, and the Bernese Alps; all radiate from a central group, the St. Gothard being the key of the entire system, and all converge upon it. The Pennine are the loftiest, including Mont Blanc,—

“the monarch of mountains:
They crown’d him long ago,

On a throne of rocks, in a robe of clouds,
With a diadem of snow.”

It is true that Mont Blanc is in Upper Savoy, just across the Swiss frontier, but it is a part of the same wonderful formation, and few people think of it without passing it incontinently to the credit of Switzerland.

Then come the Finsteraarhorn and Monte Rosa, being, next after Mont Blanc, the two highest mountains in Europe. The most important ranges are the Alps, which run along the Italian frontier, the Bernese Oberland, and the Juras, which separate Switzerland on the west from France. Of the Bernese Alps the Finsteraarhorn, Jungfrau, Eiger, and Schreckhorn are the most conspicuous. As to height, the Alps are divided into the High Alps, rising from eight thousand to fifteen thousand feet above the level of the sea, and covered with perpetual snow and ice; the Middle Alps, beginning at about five thousand five hundred feet above the sea and rising to the point of perpetual congelation; and the Low Alps, commencing with an elevation of about two thousand feet. The actual height of the Swiss mountain fluctuates as much as twenty-five feet, owing to the varying thickness of the stratum of snow that covers the summit. Some present pure white peaks; some are black and riven under the frown of imperious cumuli; some have cornices, bosses, and amphitheatres; others have blue rifts, snow precipices, and glaciers issuing from their hollows,—“a chaos of metamorphic confusion, paradoxical conglomerates, strata twisted, pitched vertically or upside-down, levels changed by upheavals or depression.”

“As Atlas fix’d, each hoary pile appears
The gather’d winter of a thousand years.”

A mountain guide will enumerate for you the names of the celebrated summits, as a cicerone points out the most illustrious figures in a museum of sculpture. Each of these mountains has its biography,—its history,—which the guide will be sure to relate. One takes life, it is a sanguinary homicidal Alp; another, on the contrary, is humane, hospitable, it offers safe sheltering-places to strayed travellers. The Matterhorn is a great storm-breeder.⁹³ The Schreckhorn is a peak of terror, the grimmest fiend of the Oberland; the Finsteraarhorn is a black peak of the Aar; Diablerets (Devil’s

Strokes) is a name given to another in consequence of its terrible landslips, which have caused a popular superstition that, like Avernus, it is the portal of hell, and haunted by evil spirits. Differing in form, altitude, and color, each of them has its physiognomy and its character, and even “its soul,” as Michelet says.

“Veil’d from eternity, the Jungfrau soars,”

not a single massive pyramid, but a series of crests rising terrace-fashion above each other, with a zone of névés and glaciers. The pure, unsullied snow which always covers this mountain, it is supposed, gave occasion to its name, which signifies “the virgin.” It is a prime favorite with the Swiss,—the great Diana of the Oberland range. There is some spell, some mysterious potency in it. A sight never to be forgotten, is to behold the marble dome of this stately temple of nature, kindling in the fire of the setting sun, or silvering in the light of a full moon, with the gold-fringed clouds playing wantonly about,—

“To bathe the virgin’s marble brow,
Or crown her head with evening gold.”

On the Wengern Mountain, in full view of the Jungfrau, in 1816, Byron composed three of his noblest poems,—“The Prisoner of Chillon,” the third canto of “Childe Harold,” and “Manfred,” in the latter of which he describes the Jungfrau as

“This most steep, fantastic pinnacle,
The fretwork of some earthquake,—where the clouds
Pause to repose themselves in passing by.”

All the Alps have, more or less, naked excrescences, which rise above the crest of the range, and which, in the language of the country, are not inaptly termed “dents,” from some fancied and plausible resemblance to human teeth.

Professor Tyndall, writing of the wondrous scene presented by the Swiss mountains, says: "I asked myself, how was this colossal work performed? Who chiselled these mighty and picturesque masses out of a mere protuberance of the earth? And the answer was at hand. Ever young, ever mighty, with the vigor of a thousand years still within him, the real sculptor was even then climbing up the eastern sky. It was he who raised aloft the waters which cut out the ravines; it was he who planted the glaciers on the mountain slopes, thus giving gravity a plough to open up the valleys; and it is he who, acting through the ages, will finally lay low these mighty mountains, rolling them gradually seaward, sowing the seeds of continents to be, so that the people of another earth may see mould spread and corn wave over the hidden rocks which at this moment bear the weight of the Jungfrau."

Mountains at once excite and satisfy an ideal in the soul, which holds kin with the divine in nature. They ennoble life by their majesty and fortify it by their stately beauty. The human mind thirsts after immensity and immutability, and duration without bounds; but it needs some tangible object from which to take its flight, something present to lead to futurity, something bounded from whence to rise to the infinite. "Earth has built the great watch-towers of the mountains, and they lift their heads far up into the sky and gaze ever upward and around to see if the judge of the world comes not."⁹⁴ Their cloud-capped summits are awful in their mysterious shrouds of darkness, and their sudden thunder crashing amid overhanging precipices is often terrible in its shock. With many their gloomy sublimity, hard, jagged, and torn, produces an uncomfortable feeling: Goethe wrote, "Switzerland with its mountains at first made so great an impression upon me that it disturbed and confused me, only after repeated visits did I feel at my ease among them." There is something inexpressibly interesting in their society, their age, their duration without change, and their majestic repose; their fixed, frozen, changeless glory. The sun rolls his purple tides of light through the air that surrounds their summits, but his beams wake no seed-time and ripen no harvest. The moon and the stars rise and move, and decline along the horizon, century after century, but the sweet vicissitudes of the season and of time move not the sympathies of these pale, stern peaks, over which broods one eternal winter. Upon them the vivifying and ordering syllables of creation seem never to have passed; a realm of chaos reserved to the primeval empire of the *formless* and the *void*; where there is

brilliance without warmth, summer without foliage, and days but no duties. Beneath the overwhelming radiance of a world of light, whose reflection makes every valley beneath them rejoice, these giants flaunt their crowns of snow everlastingly in the very face of the sun. They are so sharply defined and distinct that they seem to be within arm's reach; apparent nearness, yet a sense of untraversable remoteness, like heaven itself, at once the most distant from us and the nearest. Their angle of elevation, seen from a distance, is very small indeed. Faithfully represented in a drawing, the effect would be insignificant; but their aerial perspective amply restores the proportions lost in the mathematical perspective. "Mountains are the beginning and end of all natural scenery," and there is no Landseer for Alpine pictures. They are too vast and too simple; and the scene, though its objects are so few, is too expanded for the canvas.

The *Glaciers* of the Alps, frozen streams of ice, are remarkable phenomena of nature, and possess the greatest interest for geologists. The name *Glacier* is French; the German word is *Gletscher*, and the Italian *Ghiacciaio*. Ruskin calls them "silent and solemn causeways, broad enough for the march of an army in a line of battle, and quiet as a street of tombs in a buried city;" Longfellow describes them as "resembling a vast gauntlet, of which the gorge represents the wrist, while the lower glacier, cleft by its fissures into fingers, like ridges, is typified by the hand." With the exception of the Engadine, where the limits do not begin below ten thousand and seventy feet, in the other parts of Switzerland the limit of the glaciers and of the eternal snow is met with at eight thousand seven hundred and forty to nine thousand one hundred and eighty feet. The average height of the snow-line fluctuates according to north or south aspect, and greater or less exposure to the south wind, but in exceptionally warm summers, the snow completely melts away on summits having an altitude of over eleven thousand feet. The common expression, the "line of perpetual snow," is misleading; it is only correctly used to indicate the altitude above which the mountains always appear white, because at that height it is merely the surface which at times thus gets partially melted. These masses of ice or glaciers are called streams, because, though imperceptibly, they really move along; they are continually descending towards the valley from the mountain-tops:

“The glacier’s cold and restless mass
Moves onward day by day.”

Their immobility is only apparent, they move and advance without ceasing. Careful investigation has ascertained the rate of motion of a glacier to be as much as two feet in twenty-four hours; but it is a curious fact that the whole stream does not move at the same rate; the centre moves quicker than the sides and drags them after it. Agassiz, the Swiss naturalist, began in 1842 a series of careful observations on the Aar glacier, taking up his abode in a little hut constructed on purpose, and called the “*Hôtel des Neuchâtelois*.” Men mocked at him when he set up his stakes on the glacier to discover the rate of the invisible motion, but he persisted in his minute, painstaking labors, futile and inconsequential as they seemed to the unscientific mind, till he plucked out from every glacier in Switzerland the heart of its mysterious movement. He held that the differences in speed between different and sundry parts of the same glacier were the results of unequal density and of unequal declivity. Savants differ as to the causes which set the glacier in motion. Schaelzer holds that its expansion arises from thaw; Professor Hugli is of the same opinion, that the glacier, like an enormous sponge filled with aqueous particles, expands and grows larger when it freezes. Of all the theories that of De Saussure is the most generally accepted. He attributes the forward movement of a glacier to gravitation,—that is to say, to the pressure of the superior masses on the inferior. Certain naturalists affirm that the glaciers add to their power by their own cold, and that in time, without the intervention of some new natural phenomenon, they will eventually extend themselves downward into the valleys that lie on the next level beneath, overcoming vegetation and destroying life. There must be a limit somewhere to the increase of the ice, and it is almost certain that these limits have been attained during the centuries that the present physical formation of Switzerland is known to have existed. As a whole, the contest between heat and cold ought to be set down as producing equal effects.

The constant heavy pressure on the glacial ice, and the tension resulting from obstacles in the channel followed by it, cause splits of large masses to occur, and force them so far to separate that there is no chance of regelation.

These splits are the *crevasses* met with in many glaciers, and one of the most dangerous features to climbers, especially when they are concealed by a treacherous coating of snow. The transverse crevasses are so close together and form such a bewildering labyrinth that it requires a good pilot and experienced guide to steer clear of their difficulties. In proportion as the glacier develops, these crevasses or fissures enlarge. Some of them form into deep valleys, abysses, and unfathomable gulfs. If one falls into a crevasse, it is alleged he hears everything that is said above him, but cannot make himself heard. The ice of these fissures has tints of extraordinary fineness and delicacy; it is of a pale and tender blue, but if you detach a piece to examine it in full light, its beautiful ideal blue color disappears, and you have nothing in your hand but a pale, colorless block. The crevasses, at times all lined with the purest, smoothest snow, open up like great alcoves, hung in clouds of ice with delicate ornaments thrown on them by the wind. They modify and change every spring, when the winter's accumulation of snow melts under the action of the heat, and the frost of the nights incorporates it with the glacier. The guides, therefore, before conducting parties at the beginning of the season, sound the old crevasses, and study the new features of the glacier, its curves, its bridges of snow suspended in the air, its abysses covered with a frail surface, its fantastic architecture of staircases and terraces of ice. The glacier ice, made of annual beds disposed in vertical bands of white and blue, does not resemble ordinary ice, which is homogeneous throughout; it is granular, traversed by a multitude of small canals, by a net-work of veins in which a bluish water circulates, and which penetrates the whole thickness of the ice. The water that escapes from a glacier is either black, like ink, or green, like absinthe, or white, like milk; it is always troubled, and charged with mud or earth full of fertilizing matter. So, while the glaciers make the higher valleys into a land of desolation and misery, lower down on the slopes that drink life from its flood, it is a garden, an orchard, a rich vine country, smiling hill-sides, shaded with trees and crowned with flowers. While a glacier is a stream of ice, it is not formed of frozen water, but of frozen snow. The snow of the mountain-top is a fine dry powder, which is formed into a granular mass by the action of the sun shining on it in the middle of the day; what is thus partially melted quickly freezes again each evening into globular forms, consequently a glacier is not slipping like ordinary ice. This process has gone on for unknown ages. Geologists think that the glaciers of the present day are

“mere pigmies as compared to the giants of the glacial epoch;” and that their action has had much to do with the architecture of the Alps; that the ice exerts a crushing force on every point of its bed which bears its weight, and the glaciers would naturally scoop out and carve the mountains and valleys into the slopes which we now see; and that the plains of Italy and Switzerland are covered with *débris* of the Alps. These geologists are pretty well agreed that the Lake of Geneva was excavated by a glacier. Whatever may be thought of the erosive theory, there is no doubt that these dreary wastes of ice are of great use in the economy of nature. They are the locked-up reservoirs, the sealed fountains which immediately fertilize the plains of Lombardy, the valley of the Rhone, and of Southern Germany, and from which the vast rivers traversing the great continents of our globe are sustained. The summer heat, which dries up sources of water, first opens out their bountiful supplies. When the rivers of the plain begin to shrink and dwindle within their parched beds, the torrents of the Alps, fed by the melting snow and glaciers, rush down from the mountains and supply the deficiency. Professor Hugi’s hypothesis, that the glacier is alive, is often suggested by the singular noises produced by the forcing of air and water through passages in the body of the glacier. In the eyes of the credulous mountaineers who live in the silence which broods over the sombre cliffs, the glacier is a place of grief and exile, of penance and punishment, of expiation and tears, such a place as described by Dante in his “Inferno,” where

“... various tongues,
Horrible languages, outcries of woe,
Accents of anger, voices deep and hoarse,
With hands together smote, that swelled the sounds,
Made a tumult that forever whirls
Round through that air, with solid darkness stained,
Like to the sand that in the whirlwind flies.”

The peasants tell old stories of ice-gods ruling and thundering with strange sounds, and the “lamentations and loud moans” of prisoners in these frozen caves. The legends people the glaciers only with gloomy, unhappy beings, trembling with fear, weighed down by some malediction. Professor

Helm has made a careful survey of the Alpine glaciers, and reckons them at eleven hundred and fifty-five, of which Swiss territory includes four hundred and seventy-one. He estimates the total superficial area of these glaciers between three thousand and four thousand square kilometres; the area of the Swiss glaciers is put down as eighteen hundred and thirty-nine square kilometres. They begin in the Canton of Glarus, extend to the Grisons, thence to the Canton of Uri, and finally down to Bern. Of these Swiss glaciers, one hundred and thirty-eight are of the first rank,—that is, over four and three-quarters of a mile long. Eight glaciers unite at the foot of Monte Rosa, seven at the foot of the Matterhorn, and five at the foot of the Finsteraarhorn. The *Mer de Glace*, which surrounds the Bernina, is more than sixteen leagues in circumference. Its tempestuous waves, with azure reflections like lava, pile themselves in the defiles, precipitate themselves into the gorges, or run by a rapid descent into the depths of the valleys; sometimes they leap up between two points of rocks, dart into space, and remain suspended above the abyss till the day when their frozen sheet is broken up and hurled into its depths. There are few grander sights than the Bernina, with its boldly contoured granitic rocks and its glaciers creeping low down into the valleys. The Canton of Grisons, of which the Engadine forms a part, counts more than one hundred and fifty glaciers. The great ice-fields of the Bernese Oberland consist of one hundred and eight to one hundred and twenty square miles in extent, and are the most extensive in Europe. The boundaries are the Valais, the Grimsel, the valley of the Aar, and the Gemmi, and spread over more than two hundred and thirty thousand acres. The longest glacier is the *Gross Aletsch* of the Bernese Oberland; it is fifteen miles long, and has a basin forty-nine and eight-tenths square miles, and a maximum breadth of nineteen hundred and sixty-eight yards. The Rhone glacier is admired for its natural beauties, more especially on account of its terminal face, furrowed by huge crevasses. The lowest point to which a Swiss glacier is known to have descended is three thousand two hundred and twenty-five feet, attained by the Lower Grindelwald glacier in 1818. As to the thickness of the glaciers there exist no reliable data. In the series of investigations and measurements made by Professor Agassiz on the Aar glacier, fifty years ago, he excavated to a depth of two hundred and sixty metres (over eight hundred and thirty feet), and did not get to the bottom. He estimated the depth of the Aar glacier, at a point below the junction of the Finsteraarhorn and Lauter-Aar glaciers, at four hundred and

sixty metres, or about fifteen hundred and ten feet. In viewing these glaciers no one, however sceptical, however unimaginative, can doubt the honesty of the great fiery Swiss naturalist's belief in the historical reality of a glacial epoch, that this part of Switzerland is the natural result of the terrific orgy and dynamic force of profound glaciation, and that

“Yon towers of ice
Since the creation's dawn have known no thaw.”

The upper part of the glacier is known as the *Névé* or *Firn*, and it is the lower part alone which is designated among the Swiss as the glacier. The *névés* are those fields of dazzling snow which extend above the zone of the glaciers, and their incessant transformation produces the glaciers. This snow of the *névés* does not resemble that lower down; it is harder, colder, and has the appearance of needles of pounded ice or little crystallized stars, and the alternations from frost to thaw give to this snow the brilliance of metal and a consistency approaching that of ice. The name *Moraine* is given to those piles of stones, pebbles, blocks of rock, *débris* of all sorts that the glacier brings down with it in its course, and which it gets rid of as soon as possible. “The glacier is always cleansing itself,” and if it expands, it breaks up and disperses its moraine; it pushes it, throwing out and piling on the sides even the largest blocks of stone. If, on the contrary, it contracts, part of this chaos of *débris*, left in its place, becomes covered by degrees with a carpet of turf. When two glaciers descend by opposite valleys, abutting on the same bed, and meet, their moraines mingle with one another, and are sometimes piled up till they attain a width of almost a thousand feet and a height of about seventy. The *Moulins* form conduits for the surface-water, to carry it to the under-ground streams flowing beneath the glacier.

Enormous masses of snow accumulate in some angle or on some ledge of the mountains until they either fall by their own weight or are broken off by oscillations of the air, or the warm ground thaws the lower stratum, and then the mass begins to slide, gaining in bulk and speed in its course. This is the terrible *avalanche*, and dwellings and even entire villages are buried from thirty to fifty feet deep. It sometimes descends with a force which causes it to rebound up the side of the opposite mountain. The avalanche produces a prodigious roar, not a reverberation of sound, but a prolongation

of sound more metallic and musical than thunder, and may be heard at a great distance. An avalanche may be set in motion by a very trifling disturbance of the air: the flight of a bird, the cracking of a whip, the conversation of persons going along, sometimes suffices to shake and loosen it from the vertical face of the cliffs to which it is clinging:

“Ye toppling crags of ice,
Ye avalanches, whom a breath draws down
In mountainous o’erwhelming.”

The cutting away of trees, at one time a common cause of avalanches, is forbidden by a federal law:

“Altdorf long ago had been
Submerged beneath the avalanches’ weight,
Did not the forest there above the town
Stand like a bulwark to arrest their fall.”

There is a distinction between summer and winter avalanches. The former are solid avalanches formed of old snow that has acquired almost the solidity of ice. The warmth of spring softens it, loosens it from the rocks, and it slides down into the valleys; these are called “melting avalanches,” and they regularly follow certain tracks which are embanked like the course of a river with wood or bundles of branches. The most dreaded and terrible avalanches—those of dry powdery snow—occur only in winter, when sudden squalls and hurricanes of snow throw the whole atmosphere into chaos. They come down in sudden whirlwinds, with the violence of a waterspout, and in a few minutes work great destruction.

The most memorable avalanche in Switzerland occurred in 1806, when one of the strata of Mount Rossberg, composed of limestone and flint pebbles, nearly three miles long, one thousand feet broad, and one hundred feet thick, precipitated from a height of three thousand feet and annihilated the three prosperous villages of Goldau, Busingen, and Lowerz, and killed four hundred persons. Enormous blocks, some of them still covered with trees, shot through the air as if sent from a projectile or tossed about like

grains of dust. In 1501 a company of soldiers were swallowed up by an avalanche near the St. Bernard. At Fontana, in the Canton of Ticino, in 1879, the church and town-hall were destroyed and many lives lost. On this occasion, within a space of five minutes, no less than three hundred and fifty thousand cubic metres of earth and rock came down from a height of four thousand three hundred feet. In the same year an avalanche came rushing down the westerly slope of the Jungfrau into Lauterbrunnen valley, a distance of about seven thousand feet. Its peculiar feature was that, not only along its course, but even on the opposite side of the valley, twelve hundred feet away, the atmospheric pressure, which its rapid movement generated, was so great as to level entire forests. In the Rhone valley, in 1720, a single avalanche destroyed one hundred and twenty houses at Ober-Gestalen, killing eighty-eight persons and four hundred head of cattle. The victims were buried in a trench in the churchyard, where an inscription, still existing, records the event in these words: "God! what a grief, eight and eighty in one grave!" In the Grisons, the whole village of Selva was buried, nothing remained visible but the top of the church-steeple, and Val Vergasca was covered for several months by an avalanche one thousand feet in length and fifty in depth. The extraordinary power of the wind, which at times accompanies an avalanche, is well known and dreaded. A case is recorded in which a woman, walking to church, was lifted up into the air and carried to the top of a lofty pine, in which position she remained lodged until discovered and rescued by the returning congregation. The avalanche exhibits a striking picture of ruin which nature inflicts upon her own creations; she buildeth up and taketh down; she lifts the mountains by her subterranean energies, and then blasts them by her lightnings, frosts, thaws, and avalanches:

"As where, by age, or rains, or tempests torn,
A rock from some high precipice is borne;
Trees, herds, and swains involving in the sweep,
The mass flies furious from the aerial steep,
Leaps down the mountain's side, with many a bound,
In fiery whirls, and smokes along the ground."⁹⁵

Every movement that is grand or beautiful in the course of rushing waters seems to be the mission of mountain streams to illustrate. The fierce rivers rush over rocks with such aimless force that the violence of the torrent creates a back sweep of the overdriven, mad waves; here and there in the bed of these rivers are seen blocks of stone, many of them as large as a good-sized house, heaped up most strangely, jammed in by their angles, in equilibrium on a point, or forming perilous bridges over which you may with proper precaution pick your way to the other side. The quarry from which the materials of this bridge came is just above your head, and the miners are still at work,—air, water, frost, weight, and time. Other blocks are only waiting for the last moment of the great lever of nature to take the horrid leap, and bury under some hundred feet of new chaotic ruins the trees and the verdant lawn below. All round is the sound of water, the beat of the waves on the shore, the onward flowing of the river, the rush of the torrent, the splash of the waterfall, or the bubbling of some little stream; everywhere the music of a hurrying stream accompanies you. Every valley has its roar and rush of water and cataracts leaping to join the chorus of torrents below, making one appreciate Wordsworth's line,—

“The cataracts blow their trumpets from the steep.”

There is something which fascinates more in the free life, the young energy, the sparkling transparency, and merry music of the smaller streams. The upper Swiss valleys are sweet with perpetual streamlets, that seem always to have “chosen the steepest places to come down for the sake of the leaps, scattering their handfuls of crystals this way and that, as the wind takes them, with all the grace, but with none of the formalism of fountains, until at last they find their way down to the turf, and lose themselves in that, silently; with quiet depth of clear water furrowing among the grass-blades and looking only like their shadows, but presently emerging again in little startled gushes and laughing hurries, as if they had remembered suddenly that the day was too short for them to get down the hill.” On summer days even the glaciers are furrowed with thousands of threads of water; innumerable little rills, which run and sparkle over its sides like streams of quicksilver, and which disappear suddenly in the moulins, at the bottom of which invisible canals join the extremity of the glacier. At night all these

brooklets are silent, and stopped; the cold congeals and imprisons them in a thin coating of ice, which evaporates again the next day. Of these mountain streams our own poet Bryant writes,—

“Thy springs are in the cloud; thy stream
Begins to move and murmur first
Where ice-peaks feed the noonday beam,
Or rain-storms on the glacier burst.”

It is easy to have cascades in Switzerland, with its vast bodies of snow at an elevation which does not preclude melting in summer, and from which the water has to find its way down rocky precipices, sometimes thousands of feet. The most noted of these cascades are the *Giessbach* and the *Staubbach*. The first consists of a succession of seven cascades, embowered in foliage, leaping from a height of eleven hundred feet, and finally losing themselves in the waters of the Lake of Brienz; the soft winds swing the spray as light as a mist of the sunrise or the gentle sway of a bridal veil, while the rainbow hues rest like kisses on its silver threads. The Falls of Staubbach, or *Fall of Dust*, is well named; it is so ethereal, or dust-like, that it appears at times about to sail away like a cloud on the wings of the wind; it apparently creeps down from its lofty rock, a thousand feet on high, and seems to throw itself timidly into the abyss, and to win slowly against the mass of air. This retarded appearance in the fall is caused by its being broken into mist soon after it leaves the shelf over which it is precipitated. In its centre the fall is purely vapor; but the rock advancing somewhat towards the base, it collects again into water as it strikes it and forms a stream at the bottom. It has been compared by poets to “the tail of the white horse on which death was mounted,” and called a “sky-born waterfall,” and Goethe describes it,—

“Streams from the high,
Steep, rocky wall,
The purest fount;
In clouds of spray,
Like silver dust,
It veils the rock

In rainbow hues
And, dancing down,
With music soft,
Is lost in air.”

Wherever the sun can get at the naked rock of the mountain, from July to September, and find an open fissure, there vegetation climbs, and clinging, establishes itself, and flourishes, and blooms. Charming colonies of little flowers seem to have emigrated from the valleys, and come to hide themselves in the cold deserts, where the brevity of their life appears to enhance the beauty of their color. To better resist the hoar-frost, they grow in thick tufts closely pressed against each other. The rocks are velvet with lichens and mosses, that anchor their roots into a mass of granite, grappling with a substance which, when struck with steel, tears up its tempered grain and dashes out the spark. There are familiar pinks, blue-bells, a species of forget-me-not, a small star-shaped flower of a deep metallic blue shading upon green, that flashes through the grass with a moist, lustrous softness,—it is the smaller gentian, so dear to the poet’s heart and verse. Then great rose-colored beds of rhododendrons; azaleas of vivid carmine; golden arnicas, with their stately bearing, like rays of sunshine turned into flowers; in every direction, orchids, diffusing a strong odor of vanilla; and the narcissi, which are visible a great distance, and their odor wafted by the wind, is no less penetrating than that of an orange grove; the Alpine rose, of which Ruskin says, “when the traveller finds himself physically exhausted by the pomp of landscape, let him sink down on his knees and concentrate his attention on the petals of a rock-rose.” Against the cliffs are rich clumps of the peerless, delicately-cut *Edelweiss*; called by the botanists “*Gnaphalium alpinum*.” It is a peculiar plant of delicate construction that grows under the snow; containing very little sap, so that it can be preserved a long time; the blossom is surrounded by white velvety leaves, and even the stem has a down upon it. The possession of one is proof of unusual daring, and to gather it, the hunter, tempted by its beauty and by his love (for it is immensely valued by the Swiss maidens) climbs the most inaccessible cliffs on which it grows, and is sometimes found dead at the foot with the flower in his hand. No art can simulate its beautiful, ermine-like bloom, and experiments have been made to cultivate it in other places, but it changes its character and becomes transformed into a new species; in

its Alpine home alone will it flourish, and there must it be sought, and adorn the hat as the badge of triumph for the Alpine climber. The mountain is really a botanical garden; the Swiss flora is the largest on the European continent, in proportion to the area it covers. The varied local influences and conditions resulting from such a broken surface, and differences of altitude concur in producing the graduation and unbounded variety of botanical specimens.

Trees are also present in great abundance and variety, increasing the enchantment of the view with their leafy clothing, which, by partly concealing, adds charm of mystery to the prospect. There are specimens of noble chestnuts and walnuts, grand old oaks, larches, and gigantic pines. The walnut-trees disappear at a height of twenty-five hundred feet; chestnuts and beeches cover the slopes a little higher; to these succeed the firs, which seem to have sown themselves in a luxuriant way, some standing alone in green gracefulness, others growing in pretty little miniature groves; then the knotted oaks, holding by their strong roots to the precipitous sides; and the burly pines that flourish at far greater altitudes than either, seeming to require scarcely any earth, but grasping with their strong, rough roots the frozen rock, out of which, somehow, they contrive to draw moisture. Some of the ancient pines on the Jungfrau are supposed to have stood the blasts of winter for a thousand years; they are affirmed to be as high as one hundred and sixty feet, and to measure twenty-four feet in circumference. It is their peculiar conical form which enables them to bow to, and thus resist the force of, the storm. The pine is the king of the mountains; he strikes his club-foot deep into the cleft of the rocks, or grasps its span with conscious power; there he lifts his haughty front, like the warrior monarch that he is,—no flinching about the pine, let the time be ever so stormy. His throne is the crag and his crown is a good way up in the heavens, and as for the clouds, he tears them asunder sometimes and uses them for robes. Then the stern, deep, awfully deep roar that he makes in a storm. When he has aroused his energies to meet the storm, the battle-cry he sends down the wind is heard above all the roar and artillery of thunder, and when the tempest leaves him, how quietly he settles to his repose,—the scented breeze of a soft evening breathes upon him and the grim warrior king wakes his murmuring lute, and through his dusky boughs float sweet and soothing sounds. Higher still than the pine are the larches, a wood highly valued; and at last comes the creeping pine, struggling against the wind and cold: it is

the highest climber among Alpine trees, and is the immediate neighbor of the glacier.

The perils of wandering in the high Alps remain terribly real, and are only to be met by knowledge, courage, caution, skill, and strength; for rashness, ignorance, carelessness, the mountains still leave no margin, and to these three-fourths of the catastrophes which shock us are to be traced. Mountaineering without guides is not a thing to be encouraged. The mountaineer's instinct on rock and ice is an art quite as subtle and complex as the art of the seaman or the horseman. The senses all awake, the eye clear, the heart strong, the limbs steady yet flexible, with power of recovery in store and ready for instant action should the footing give way, such is the discipline which these terrible ascents impose. The mountain guides are not ignorant, they are licensed only after severe examination. They are obliged to take courses of study; they are taught topography, and how to read a map and find their way by it; to use the compass and the other instruments that are indispensable in journeys of exploration; they are also taught how to bind up wounds, so as to be able to do what is necessary at once in case of accident; in a word, they are brave, modest, affable, sunburnt, and scarred men, who have planted a flag on every summit, and who have lent to the stern and awful mountains the romance of mountaineering. It is understood that a true Swiss guide is literally "faithful unto death;" that he does not hesitate to risk his own life for the sake of his charge, and that instances are known in which it has not only been risked but actually sacrificed. Many accidents in mountain-climbing have resulted from an insane effort to dispense with the services of accredited guides, or disregarding their directions. In the short space of not quite a month, in 1887, eighteen tourists lost their lives; one accident on the Jungfrau involving the loss of six. The fate of blind guides and those they lead is set forth in unmistakable terms by the Scriptures. Choose for your guides the hardy men who have learned their business thoroughly, who have been chamois hunters from their youth, who have lived on the mountains from their birth, and to whom the snows and rocks and the clouds speak a language which they can understand, and then accident is almost impossible. Roping is the common and safest precaution, especially for ice traversing. A slip-knot is passed over each climber's head and shoulders and drawn tight under the arms. It cannot be particularly pleasant, for at times the one in front makes a spring, forgetting others are tied behind him, and takes them unawares, nearly pulling them

off their feet; then, on the other hand, oblivious of the person behind you, suddenly you are checked in the middle of your jump, perhaps, over a crevasse, or when standing in a little niche on a steep wall of ice a thousand feet high. The graceful alpenstock, so often seen in the hands of Swiss tourists inscribed with its roll of triumph, must be taken *cum grano salis*. Many of them have never done service beyond mountain hotel parlors, broad piazzas, and great dining-rooms. They can be bought with “records” complete and shining, and therefore are not as closely related to mountain-climbing as one might suspect them to be. It is refreshing to see young lads stalking about with these alpenstocks and ice-axes, like conquerors amid a subject race. What lofty scorn they have for every man who has not ascended the highest peak, and yet they never dared to try it! They call themselves mountaineers, and at evening and in bad weather stalk and lounge about the hotel, moody, terrible, and statuesque; they speak to none but to other young braves, with whom they perpetually mutter dark things about horrid places and cutting the record. No; good mountaineering is the education of a lifetime begun in childhood, and these pretentious youths are no more mountaineers than their boots are. Under proper precautions, and with an experienced guide, it is glorious and healthful exercise, and for purposes of science has been of incalculable value.

In the later Middle Ages invalids came to *Baden*, in the Canton of Aargau, for the sake of the mineral waters; and the springs of *Pfäfers* were known in 1242, and the waters considered very efficacious, particularly in the case of persons “who had been tortured.” These places are still visited, but the air-cure of the mountain has almost superseded them. Jean Jacques Rousseau expressed surprise that “bathing in the salubrious and beneficial mountain air had not yet become one of the great resources of medical science or of moral education.” There would be no occasion to-day for at least one part of his surprise. The Swiss mountains have developed well-defined and well-known health phases. They have become mediciners, and the snow-clad peaks and the upper snow-clad valleys are being looked to by physicians for the relief of certain ailments not easily remedied by other means. Davos Platz and St. Moritz, in the Engadine, are among the most familiar regions famed for the climatic treatment of disease,—possessing remarkable health-giving properties in lung trouble. It is the exquisite purity of the air, exercise, and especial modes of life which the mountains impose that serve as the chief medicine, and give these heights their beneficial

virtues. The rarefaction has its own and special effect. The breathing becomes quicker, deeper, and fuller. One breathes fifteen to twenty-five per cent. less air to produce a given weight of carbonic acid. The action of the air on the blood in the lungs seems to be facilitated with decreasing density; one, however, must ascend over two thousand feet before the lighter air-pressure begins to make itself appreciable, but for every one thousand feet additional the difference in the rarefaction becomes of a very marked character. Here the law of “use and disuse of organs” is illustrated in typical fashion,—parts of the lungs but little used in ordinary life are brought freely into use,—one is forced to breathe deeply, thus the vital capacity is enlarged, and, by favoring exercise of little-used parts banishes the tendency to disease from one of the seats of life. This so-called diaphanous rarefied air is not air, it is a celestial ether; and so with the sun, though it is hot, what you feel is not heat, it is a permeating, invigorating, life-creating warmth. This warmth, then, which the sun imparts to this ether pervades your lungs, your heart, and reaches to your very bones. This virginally pure air makes you conscious of a lighter and of a quicker life, an unknown facility in breathing, and a lightness of body. Its electric freshness is a brilliant vitality,—it is rest, inspiration, resolve. Then you are surrounded with pine forests, and the bright sun is constantly raising into the air from their trunks, branches, and leaves myriad molecules of their resinous exudations. On ascending a mountain the mean annual temperature decreases on an average of one degree Fahrenheit for every three hundred and forty-nine feet. The value of fresh air and exercise is a sentiment possibly as old as humanity itself. It is the same spirit which animated Hippocrates and Galen when those classic worthies discoursed upon the art of nature-cure. We really travel in circles in the case of disease-cure, as in most other things. None the less may we be thankful that, in our circular search after knowledge, we have come upon the beaten track of ancient days, and have enlarged the wisdom which of old showed forth the benefits of a cloudless sky and a pure ether.

There are walks and excursions in the mountains for all, for the invalid as for the cragsman; roads that are marvels of audacity, crossing tremendous gorges, clinging in dizzy places along the precipices at the foot of which is heard the boiling torrent, then sweeping around sudden corners and angles; roads will wind among the hills which rise steep and lofty from the scanty level place that lies between them, whilst the hills seem

continually to thrust their great bulk before the wayfarer, as if grimly resolute to forbid his passage, or close abruptly behind him when he still dares to proceed. There are broad avenues overarched with spreading elms and maples, with vistas reminding one of the nave and aisles of a large cathedral. The mountain-paths are so pretty and charming; they wander about so capriciously and fancifully; they run so merrily over the moss in the woods, and beside the murmuring brooks; they climb so cheerfully up the slopes and hill-sides; they lead you through so much of freshness, and perfume, and varied scenery, that the pleasures of sight soon make you oblivious of bodily fatigue. The cemeteries placed among these wooded rocks and pastoral hills recall the wish of Ossian, "Oh, lay me, ye that see the light, near some rock of my hills; let the thick hazels be around, let the rustling oak be near; green be the place of my rest, and let the distant torrent be heard."

Switzerland is rich in aquatic landscapes; no country except Norway and Sweden has such a number of inland lakes. The Lakes of Geneva, Luzern, Zurich, Thun, Neuchâtel, Bienne, and Zug are all historic, and have been the subject of numerous pen-pictures. The Lake of Geneva is the largest of Western Europe, being fifty-seven miles long, and its greatest width nine miles; it has its storms, its waves, and its surge; now placid as a mirror, now furious as the Atlantic; at times a deep-blue sea curling before the gentle waves, then a turbid ocean dark with the mud and sand from its lowest depths; the peasants on its banks still laugh at the idea of there being sufficient cordage in the world to reach to the bottom of the *Genfer-See*. It is eleven hundred and fifty-four feet above the sea, and having the same depth, its bottom coincides with the sea-level; the water is of such exceeding purity that when analyzed only 0.157 in 1000 contain foreign elements. The lake lies nearly in the form of a crescent stretching from the southwest towards the northeast. Mountains rise on every side, groups of the Alps of Savoy, Valais, and Jura. The northern or the Swiss shore is chiefly what is known as a *côte*, or a declivity that admits of cultivation, with spots of verdant pasture scattered at its feet and sometimes on its breast, with a cheery range of garden, chalet, wood, and spire; villas, hamlets, and villages seem to touch each other down by the banks, and to form but one town, whilst higher up, they peep out from among the vineyards or nestle under the shade of walnut-trees. At the foot of the lake is the white city of Geneva, of which Bancroft wrote, "Had their cause been

lost, Alexander Hamilton would have retired with his bride to Geneva, where nature and society were in their greatest perfection.” The city is divided into two parts by the Rhone as it glides out of the basin of the lake on its course towards the Mediterranean. The Arve pours its turbid stream into the Rhone soon after that river issues from the lake. The contrast between the two rivers is very striking, the one being as pure and limpid as the other is foul and muddy. The Rhone seems to scorn the alliance and keeps as long as possible unmingled with his dirty spouse; two miles below the place of their junction a difference and opposition between this ill-assorted couple is still observable; these, however, gradually abate by long habit, till at last, yielding to necessity, and to the unrelenting law which joined them together, they mix in perfect union and flow in a common stream to the end of their course.⁹⁶ At the head of the lake begins the valley of the Rhone, where George Eliot said, “that the very sunshine seemed dreary mid the desolation of ruin and of waste in this long, marshy, squalid valley; and yet, on either side of the weary valley are noble ranges of granite mountains, and hill resorts of charm and health.” At the upper part of the lake are Montreux, Territet, and Vevay, sheltered from the north wind by the western spurs of the Alps, and celebrated for their beauty, and beloved of travellers; places of cure and convalescence for invalids, where the temperature even in winter is of extreme mildness, having a mean during the year of 48° Fahrenheit at seven o’clock in the morning, 57° at one o’clock in the afternoon, and 50° at nine o’clock in the evening; with a barometer register of 28¾ inches at the level of the lake. Standing at almost any point on the Lake of Geneva, to the one side towers Dent-du-Midi, calm, proud, and dazzling, like a queen of brightness; on the other side is seen the Jura through her misty shroud extending in mellow lines, and a cloudless sky vying in depths of color with the azure waters. So graceful the outlines, so varied the details, so imposing the framework in which this lake is set, well might Voltaire exclaim, “*Mon lac est le premier*,” (my lake is the first). For richness combined with grandeur, for softness around and impressiveness above, for a correspondence of contours on which the eye reposes with unwearied admiration, from the smiling aspect of fertility and cultivation at its lower extremity to the sublimity of a savage nature at its upper, no lake is superior to that of Geneva. Numberless almost are the distinguished men and women who have lived, labored, and died upon the shores of this fair lake; every spot has a tale to tell of genius, or records

some history. In the calm retirement of Lausanne, Gibbon contemplated the decay of empires; Rousseau and Byron found inspiration on these shores; there is

“Clarens, sweet Clarens, birthplace of deep love!
Thine air is the young breath of passionate thought;
Thy trees take root in love.”

Here is Chillon, with its great white wall sinking into the deep calm of the water, while its very stones echo memorable events, from the era of barbarism in 830, when Count Wala, who had held command of Charlemagne’s forces, was incarcerated within the tower of this desolate rock during the reign of Louis le Débonnaire, to the imprisonment of the Salvation Army captain.⁹⁷

“Lake Lemman lies by Chillon’s walls;
A thousand feet in depth below,
Its massy waters meet and flow;
Below the surface of the lake
The dark vault lies”

where Bonnivard, the prior of St. Victor and the great asserter of the independence of Geneva, was found when the castle was wrested from the Duke of Savoy by the Bernese.

Along the shores of Lake Geneva the Romans had many stations and posts, vestiges of which are still visible.⁹⁸ The confusion and the mixture of interests that succeeded the fall of the Empire gave rise in the Middle Ages to various baronial castles, ecclesiastical towns, and towers of defence, the ruins of which still stand on the margin of the lake or on the eminences a little inland,—

“Chiefless castles breathing stern farewells
From gray but leafy walls, where ruin greenly dwells.”

The Lake of Luzern, *Vierwaldstätter-See*, is hardly a single sheet of water, but is composed of a group of seven basins, some joined to each other by narrow straits, others intersecting each other at right angles, giving extreme variety to its breadth; its extreme length in a diverging line is twenty-four miles; its widest part, taking in the two arms of Küsnacht and Alpnach (southwest to northeast), is twelve miles, but the average breadth is much less. There are repeated eclipses of the landscapes caused by abrupt turnings, bold promontories, and the amphitheatrical closing in of the mountain strips, and again opening up to view. It is scarcely possible to imagine any combination of beautiful water and bold mountains more striking, more effective, and more lovely than the scenes that meet the view in traversing this lake. A dozen different mountains advance into the lake and check themselves suddenly in the depths of the gloomy waters. Bare, steep, turret-like rocks hanging amid the clouds; rich, lawn-like grass in the intervening glades, sparkling with cottages and gardens, succeed and blend with each other in infinite alternation. *Pilatus* and the *Rigi* guard the approach to the lake. The former is full of mysterious legendary pools associated with the haunting spirit of Pontius Pilate. No less than thirty-five writers have treated of its supernatural apparitions, but a very natural supposition traces the name to a corruption of *pilea* or *pileatus*,—from the cap of clouds always on its summit. The *Rigi*, the most frequented belvedere in the world, stands between the lakes of Luzern and Zug. It is its situation, rather than its elevation, which renders it famous. Its summit is little less than six thousand feet above the level of the sea, but it stands in the midst of most lovely scenery, and from its top is presented an extensive panoramic view scarcely equalled anywhere in the Alps. The sunrise from the *Rigi* is a spectacle that every tourist contemplates with eager pleasure. Brilliant in dazzling whiteness stand the mountains under the first light of the morning; it begins to kindle on their tops its glowing beacon; suddenly the sunbeams strike their crowns and convert them into a boss of gold; first the tallest presents a gilded summit while the others wait in silence, then they, in the order of their height, come afterwards, relaxing, as the sunbeams strike each in succession, into a blush and smile. The splendor of the whole spectacle, when the sun streams all the magic of his beams to cast upon the land an enchantment greater than its own, is such as to overwhelm the soul with admiration and astonishment. All who sleep at the *Culm*, or topmost point, may expect to be awakened by the sound of a wooden horn,

about sunrise, when every one gets up with the hope of a splendid prospect—a hope often disappointed:

“Nine weary, up-hill miles we sped,
The setting sun to see;
Sulky and grim he went to bed,
Sulky and grim went we.

“Seven sleepless hours we tossed, and then,
The rising sun to see,
Sulky and grim we rose again,
Sulky and grim rose he.”

The Lake of Zug, or Zuger-See, is set like a fine pearl in a necklace of woods and gardens, fertile fields and hills, over which white houses are scattered like tents. Its banks are graceful, and in its waters are reflected rich and varied vegetation; near by are wide marshes dotted with pools, in the midst of which great water-lilies shine, and a few islets covered with vegetation, looking like baskets of flowers floating in the water.

The Lake of Thun is the golden gate-way to the Bernese Oberland, and its wealth and variety of scenery is the pride of that Canton.

The Lake of Zurich, while not pretending to vie with the others in stern and rugged magnificence, is unsurpassed in pastoral beauty; on either side rise gently-sloping hills of fruitful vineyards, at the foot of which, lining the shores, are prosperous villages. Here have been discovered the earliest traces of human activity, back in the age of Stone and Lake-Dwellers. Excavations from the old basin of the lake have hinted that it has tales to tell and secrets to reveal which for ages on ages may have been safely hidden beneath its deep waters.

The Swiss lakes differ in color; some appear to be green as malachite, and others blue. The water appears commonly of a bluish-green, shading into blue, with a slightly milky hue in the summer, especially when fed by the glacier streams, which bring down a quantity of finely triturated rock. Whenever a lake has high mountains rising from its edge, the hue is a purple-blue. The transparency of the lake waters is quite surprising; in many

of them minute objects can be seen at a depth of fifty feet, and even lower down, as clearly as if viewed through a glass. There is a quiet luxury of excitement, without exercise, in voyaging in the well-appointed steamers on calm Swiss lakes, which present a shifting panorama of hill and river scenery.⁹⁹

There is much difference of opinion as to when the natural beauties and attractions of Switzerland appear to the best advantage. The larger number of strangers see the country only in its summer charms; it is a season when the mountains assume a greater brilliance of color and grandeur of form, the lower atmosphere being cleared of its dark mists as the clouds lift and give an ever-increasing flood of light. This greater altitude of the clouds brings the mountains into fuller sunshine, with their coloring more intense, their forms more massive, and the blue of the sky behind them deeper and clearer.

Those who see the sun rise each morning in glory over the Alps, and glowing all day, set in a flood of crimson over the pines, only to return in the splendor of the after-glow on the glacier and snow, claim that autumn is a better time for realizing this sum of marvellous beauty; that it is the season of crimson and gold, when the landscapes take on incomparable magnificence, when the transformation of the woods is fairy-like, when the oaks are surrounded with a golden aureola, the beeches are dyed in vivid red and yellow, and all the wooded hills, orchards, hedges, and bushes form, as it were, a marvellous symphony of color, of warmer shades, and tints of an infinite tenderness. Then comes the advocate of winter, who says, "You should see the loads of snow, falling almost perpendicularly in thick, heavy flakes, or whirled about by the wild wind; on the calming of the snow-storm, you should see the heavy brown clouds in the south assume a tinge more and more golden and bright, till the first patch of blue sky bursts forth amidst the gigantic masses, and at last permits the winter sun, far down in the south, to gladden the earth with a brief sight of the source of light and life;" and that the trees are more beautiful in the hoar-frost than in summer or autumn glory; the pines, with their branches bent, "stand like harpers hoar, with beards that rest on their bosoms," and the taller trees seem to beckon with their long, white arms, like ghosts.

The snow, which long after it has fallen lies as pure and stainless as the raiment of angels, is the crowning glory of a Swiss winter. It has an

intensity of whiteness which gives a new force to “whiter than snow.” St. Matthew describes the Lord’s transfiguration raiment as “white as the light,” but St. Mark as “exceeding white as snow.” This Alpine snow is light materialized, and snow etherealized—solidified light. With the snow nature transfigures all the landscape; at one sweep of her broad brush all the clumsy touches with which man has marred the beauty of the world are effaced, the hills are rounded to a riper beauty, the fields lie smooth and white and fair, an unwritten page waiting as for the bold outlines of some new design.¹⁰⁰ The mountain air appears to give additional brilliancy even to the rainbow, as it rests on the turbid blackness of the clouds; it looks so near, and every band of color so broad and distinct, filling the very air with the haze of its colors; seeing a rainbow following an Alpine thunder-storm, one can well conceive how, before it was known what produced the storm and the rainbow, the one was taken for the wrath and the other for the smile of God.

“All things are good, as their Creator made them, but everything degenerates in the hands of man; improving, man makes a general confusion of elements, climates, and seasons; he defaces, he confounds everything, as if he delighted in nothing but monsters and deformity;” these are the first words of the “Æmilius,” and the key-note of the author’s philosophy. Conceding that man’s work does not deserve this unqualified condemnation, and is in many respects most admirable, one must regret to see the work of nature in Switzerland so ruthlessly spoiled and disfigured; to see the telegraph-pole and the factory chimney rear themselves against the horizon of every landscape; mountain fastnesses and remote valleys consecrated to the charms of nature alone, resounding with the whistle of the locomotive and the stroke of the hammer; the iconoclastic hand of material enterprise, divested of all sentiment, reaching out into every nook and corner where the Divine Artist has surpassed himself in his handiwork, to discover and develop new commercial opportunities. One now goes by steam in place of *diligence*, and the lovers of the characteristic may well regret that the *couleur locale*, so dear to strangers, is fast disappearing. No more the post-carriage takes you in its moving house, with the sound of jingling bells, the cracking of the driver’s whip, and the notes of the horn waking up the echoes of the woods. No longer the white oxen tug up the steep mountain; no longer the chat with the village gossips at each post-station; the mid-day halt, where one dives into castle, church, or old

courtyard; the chaffering for some local trifle; the antique furniture of the salon; the early walk before the coach was ready,—it is all, all, almost gone. In things spiritual and things temporal alike, our modern mania is to carry with us our own life, instead of accepting that which we find on the spot. Alpine touring has become a highly-organized institution, brought to perfection by everything that administrative genius, capital, and science can give. All the inscriptions on the votive offerings discovered around the ruins of the Temple of Jupiter Penninus on the Great St. Bernard, and which come down to the latest periods of the Roman Empire, are filled with warm expression of gratitude for having escaped the extraordinary perils of the passage. Even in the days of Pliny, several hundred years after the first passage of the Alps by the Roman troops, and even after the establishment of a station at Sion, in the Valais, it was spoken of as a “most hidden part of the earth, in the region of perpetual night, amid forests forever inaccessible to human approach.” The courage, skill, and ingenuity of man have overcome all these formidable dangers. Though the mountains are still lofty and precipitous, safe and convenient passes have been found practicable, and paths have been contrived, upon these giddy heights, over which the maiden threads without a thought of danger. The rushing torrents are loud and furious in the descent to the valley; but they have been bridged over by stone and timber, or perhaps by the fallen pine, and the peasant boy sings cheerily, as he strides across the foaming stream. Steam and electricity make the railway train emulate the agility of the chamois, and carry the public across precipices to a height of seven thousand feet. There is scarcely a point of view that attracts tourists, a summit that climbers make fashionable, but at once the mountain is rent and insulted; it is stripped of its beautiful forests, iron rails are screwed to its wounded and bleeding side, and you are carried up like a bundle of luggage, with no roadside halts under the trees, no flowers gathered by the wayside, no rustic inns hidden under the firs, but all along station-masters, ticket-collectors, and stations; or *chaises-à-porteur*, and long lines of mules file up the Alps, carrying Saratoga trunks and cases of Clicquot to the level of the eternal snows. Mountain summits are no longer reserved for those who arrogantly pride themselves on superior soundness of wind and limb, but are equally accessible to the blind, halt, and lame. The circular-tour ticket has brought these summits within reach of everybody’s purse and everybody’s legs. Greed of gain and competition are rapidly producing the effect of false

mountains, sham mountains, built by contractors and shareholders; a mountain at a fair that the people ascend a franc for the round trip; where the tourist is nothing but a number, and is always dining between two trains, at the buffet of an international railway station. There is a tendency all the world over to the loss of the true sense of natural beauty; and forest solitudes and quiet valleys must retreat before the spirit of Mammon, and succumb to factories and foundries. Yet are not the natural beauties of a country an inestimable treasure to it, and, from a business view, is it wise, lightly to give away what money cannot buy, nor modern art create? With commercial and economic disadvantages difficult to overcome, it would appear the wiser policy for Switzerland to check the rapid transformation of the beautiful and the venerable into cheap and tasteless novelties, with their cast-iron uninterestingness. Nature has done all for Switzerland, from its pure and radiant air to its mountains, lakes, and wild flowers, which spring up as though Aphrodite were still there, "to sow them with her odorous feet." This marvellous and rare beauty of nature is too often taken as a matter of course, and "holy men, in recommending of the love of God to us, refer but seldom to those things in which it is most abundantly and immediately shown; though they insist much on His giving of bread and raiment and health, they require us not to thank Him for that glory of His works which He has permitted us alone to perceive; they tell us often to meditate in the closet, but they send us not, like Isaac, into the fields at even."

Fortunately, the grandeur of Alpine scenery cannot be altogether destroyed, though seriously injured, by the spade, the pickaxe, and the blasting-powder. There is a poetry of science, even of practical science, and the invaluable and ubiquitous engineer cannot after all do much to the everlasting hills, except here and there a simple climb may be made simpler still, and an opening effected through what looks like one of the permanent barriers of the world. The physical geography of Switzerland is still a stupendous unit. Man may enormously modify its surface, but its original conditions remain dominant, forcing a stern recognition of their supremacy; mountain-ranges may be passed or surmounted; they have never yet been lowered or removed; Switzerland will ever be mastered by its sublime physical features. While much of the simplicity which was formerly the attraction of the country has passed away, never to be restored, still it presents an unrivalled scene, in picturesque combination, with advantages

of atmospheric relief, and aided by the contributing glories of a luminous and sensitive sky. There is beauty of every sort; beauties to enrapture every sense; beauties to satisfy every taste; forms the grandest and loveliest; colors the most gorgeous and the most delicate; harmonies the most soothing and the most stirring; the sunny glories of the day; the pale grace of moonlight; the silent pinnacles of aged snows; tropical luxuriance; the serenity of peerless sunsets; the sublimity of unchallenged storms; pomp of summits and world of clouds; witchery of water, sky, and mountain; a very cluster of delights and grandeurs, to enchant the vision and animate the spirit,—warming commonplace persons into something approaching to poetic fervor, and persons of genius to pour forth their inspirations in verse or lofty prose. You may have read the most vivid and accurate description, yet the reality will burst upon you like a revelation; a few cherished hallucinations may be uncovered to the raw air of truth, but you will look again and again, day after day, and a perennial glory will surround the kaleidoscopic panorama, “ever charming, ever new,” photographing it in the mind forever. Scarcely a day, or an hour of the day, when there is not being produced, scene after scene, picture after picture, glory after glory, and working still upon an inexhaustible source of constant and perfect beauty. It is indeed a beautiful land, meriting the words of the Psalmist, “a fair place, the joy of the whole earth.” It is a place where all save the spirit of man seems divine; so fascinating, that, like Virgil, who on his death-bed longed to view once more the nymphs of Bacchus as they danced on the banks of the river of Peloponnesus, one who has visited Switzerland sighs again for its glorious sun, its delicious air with the shivering freshness of the glacier, its magnificent scenery, its gorgeous mountains, its valleys of idyllic beauty, its beautiful roads shaded by hedges, its streams bordered with hazel copses, its forests carpeted with moss, its corners of shade and solitude with freshness and luxurious ease, its happy and tranquil retreats, and its asylums for modest pleasure or for calm repose:

“Who first beholds those everlasting clouds,
Those mighty hills, so shadowy, so sublime,
As rather to belong to heaven than earth,
But instantly receives into his soul
A sense, a feeling, that he loses not;
A something that informs him ’tis an hour

Whence he may date henceforward and forever?”

CHAPTER XVIII.

WILLIAM TELL.

“Almighty powers! That was a shot indeed;
It will be talked of to the end of time.”

Trite and worn out as the subject may appear, it is impossible by any amount of familiarity to divest the historical legend of William Tell of its undying charm; and he who has visited the scene, so far from his interest in it being exhausted, has only been made more enthusiastic in its favor. It is a perfectly simple and natural story, when read in the light of the times, the circumstances that led up to it, and the impulses which sustained it throughout.

Nearly in the centre of Switzerland, around the Lake of Luzern, were the Forest Cantons of Schwyz, Uri, and Unterwalden; defended on the north by the stormy waves of the lake, on the south by inaccessible peaks and glaciers, on the side of Germany by precipices and unbroken forests, and the Rigi in the midst. This district was inhabited by a shepherd race; the elevated and barren site of their habitations had secured them from the cruel caprices of the petty tyrants who ruled over the lower valleys, and they governed themselves under the forms of a republic. Rudolph of Hapsburg, the father of the founder of the House of Austria, a distinguished soldier and leader of the Zurich troops, the son of an Alsatian landgrave, had his castle near the confluence of the Reuss and Aar, and in 1257 was voluntarily chosen by the people as their governor. Sixteen years later he ascended the imperial throne of the Roman Empire of Germany; for eighteen years he kept the throne, and, remembering that he was by birth a native of Switzerland, he protected his countrymen from oppression, and was esteemed for his humanity, prudence, and valor. He gave firm assurance that he would treat them as worthy sons of the Empire, with inalienable independence; and to that assurance he remained true till his death, which happened in 1291. His son, Albert, who had been made Duke of Austria,

ascended the throne. He was grasping and eager to make territorial acquisitions. He desired to be first Duke of Helvetia, and proposed to these Forest Cantons that they should sever their relationship, as a province of the German Empire, and become a member of his Dukedom. Though Emperor of Germany, he was Duke of Austria, and his ambition was to aggrandize the Austrian House. The peasants rejected his proposition. Jealous of this remnant of independence, which the snows and rocks had left to the peasants of upper Helvetia, he undertook to subjugate them. Failing to seduce them by diplomacy or pretended kindness, he sent *landvogts*, or governors, to reside in their midst; these governors bore the title of Imperial Bailiffs. Instead of sending, as was usual, some noblemen for imperial governors, whose functions were only those of high judges in capital crimes, he sent two dependants of his family, men whose dispositions were as hostile and cruel as their orders. Their mission was to goad and persecute the people into some act of rebellion, that might be used as a pretext for reducing them to the level of common slavery. There were two of these bailiffs, Berenger and Gessler, the former stationed at Sarnen, the latter at Altdorf; they were unbounded in their tyrannies, using their powers wantonly, with all the stings of insolent authority. Gessler was the most cruel; he pillaged private property, imprisoned husbands, carried off the wives, and dishonored the daughters. It was now the beginning of the fourteenth century, and the country was in a degraded and miserable condition. The land groaned under violence; the despotism was distant and delegated; the sovereign too far removed to hear the universal lamentation. It became intolerable. A few brave hearts reasoned, that God had never granted power to any emperor, king, or bailiff to commit such injustice; and that death was preferable to a continued submission under so ignominious a yoke. The wife of Werner Stauffacher, of Schwyz, being brutally treated by one of the bailiffs' officers, in the absence of her husband, on his return reporting the affair to him, exclaimed, "Shall we mothers nurse beggars at our bosoms, and bring up maid-servants for foreigners? What are the men of the mountains good for? Let there be an end of this!"¹⁰¹ Stauffacher sought the counsel of Walter Fürst, of Uri, and Arnold Melchthal, of Unterwalden; and these three, from the result of that counsel, became famous as

“The Patriot Three that met of yore,

Beneath the midnight sky,
And leagued their hearts on the Rütli shore
In the name of liberty.”

Being well acquainted with the most injured, the most intrepid, and the most implacable of their countrymen, they determined to see them, and ascertain whether they would be willing to risk their lives in defence of their liberties. If the blood of the martyrs is the seed of the church, no less true is it in all history, that the insolence of tyranny is the cradle of liberty. Rütli, so called from the uprooting and clearing of the trees (German, *ausgereutet*), a secluded field below Seelisberg, in the Canton of Uri, on a steep, small promontory standing out from the mountain and surrounded on three sides by the waters of the lake, was the spot chosen for their council chamber.¹⁰² On the night of the 7th of November, 1307, descending from their mountains, or crossing the lake in small fishing-boats, came the patriot three, each, as he had agreed to do, bringing ten true and brave herdsmen, stout of heart and strong of limb. They silently gathered at the lonely spot, as they had concerted. The love of native soil, the feeling of freedom and security under the protection of the laws of the country, the feeling of being ill treated and subjugated by a foreign debauchee, a determination to throw off so obnoxious a yoke—all these great and good qualities were shared by these untutored, but heroic, noble-minded peasants. A handful of patriots, meeting at midnight, and attesting the justice of their cause to the Almighty Disposer of events, the God of equity and mercy, the protector of the helpless; calm and united, proceeding to the delivery of their country; retaining all the serene forbearance of the most elevated reason, amid the energies and the fury of vindictive right. They could bear to die, but not to be subdued:

“They linked their hands,—they pledged their stainless faith
In the dread presence of attesting Heaven,
They knelt, and rose in strength.”

They met to interchange oaths, and not to utter exciting speeches; “words could not weigh in the balance with that decisive night, brooding under cover of its darkness the resurrection of a nation, with those

mountains, stars, rocks, and waves, and with the sword ready to be drawn in the most sacred of causes.” They were summoned, and were bidden in a few brief sentences, uttered in a low tone, to choose; and they chose wisely and greatly; they chose liberty, born of the heavens, breathing of all their odors, and radiant with all their hues. With hands uplifted to the starry firmament, Fürst, Stauffacher, and Melchthal, with subdued and slow accent, their comrades repeating after them, proclaimed, “We swear in the presence of God, before whom kings and people are equal, to live or die for our fellow-countrymen; to undertake and sustain all in common; neither to suffer injustice, nor to commit injury; to respect the rights and property of the Count of Hapsburg; to do no violence to the imperial bailiffs, but to put an end to their tyranny.” One of the men who at that momentous assembly engaged each other by the pledge of “All for each and each for all,” was William Tell, a fisher of the lake and a hunter of chamois, of Bürglen, a half-hour from Altdorf in Uri, and a son-in-law of Walter Fürst. In the mean time, Gessler thought he perceived that the people walked abroad with more confidence, and carried in their looks a haughtier expression; when satisfied that the spirit of resistance was ripe, with a view to confirm his suspicions, he determined to put down by force the first symptoms of disaffection, and invented a crime to trap the most daring and dangerous. His hat, surmounted by the Austrian crown, was placed on the top of a pole, erected in the market-place of Altdorf, and all who passed by were ordered to uncover their heads, and bow submissively before this symbol of the imperial sovereignty:

“It is the lord governor’s good will and pleasure
The cap shall have like honor as himself;
And all shall reverence it with bended knee
And heads uncovered....
His life and goods are forfeit to the crown
That shall refuse obedience to the order.”

Guards were posted round the pole, and ordered to arrest all who refused thus to pay homage. It happened that William Tell was passing, and failed to pay the required homage. He was instantly seized and taken before the bailiff. The bailiff first tried to extract from Tell whether his conduct had

been premeditated, and if so, who were his friends and abettors; but he remained stubbornly silent. Gessler, incensed at his contumacy, determined to punish him, and, the offence being one unknown to the land and of his own invention, he was likewise compelled to invent a punishment. Tell had only one child, a boy, who was with him at the time, and, as all peasants were accustomed to the cross-bow, Gessler condemned him to shoot from off his son's head an apple, saying, "Know, audacious bowman, that thy own art shall serve to punish thee." The lad was blindfolded, the apple placed on his head, and Tell led away to his position:

"And let him take his distance,
Just eighty paces, as the custom is,
Not an inch more or less."

To one side stood the cruel Gessler to watch the dreadful archery. Tell looked well to his aim, and let the arrow fly:

"See Roman fire in Hampden's bosom swell,
And fate and freedom in the shaft of Tell."

The twang of the bow was heard, and the eager crowd for the moment held their breath; then a joyful shout proclaimed that the child was safe, and the apple was pinned by the unerring arrow. Gessler observing that Tell had a second arrow, inquired why it was. "It was the custom of the archers," he answered. Being further pressed, with the promise that he might speak freely without fear of losing his life, and excited by those generous emotions of resentment which a brave and simple race have seldom the discretion to repress, he replied, "That was reserved for you, had the first arrow hit my son."

"If that my hand had struck my darling child,
This second arrow I had aimed at you,
And be assured, I should not then have missed."

The tyrant, exasperated by the candid reply of Tell, said to him, "I have promised thee life, but thou shalt spend it in a dungeon." He was pinioned by the guards, and thrown into Gessler's boat, and they started for the castle of Küssnacht at the other end of the lake. Soon a dangerous surge came on, such as at certain seasons occurs suddenly, produced by contrary winds. The boat was in imminent peril from this tempest. Tell being a skilful boatman, and familiar with the sunken rocks and dangerous reefs of the long narrow lake, was unbound, placed at the helm, and ordered to land the boat. He at once steered straight to a flat piece of rock beneath the sharp sides of the Achsenberg. No sooner had the boat touched than Tell seized his bow, sprang on to the narrow ledge, and, at the same time, with his foot pushed back the frail craft into the angry waters. Quickly finding his way up the rock, and knowing where his enemy must land, he hastened there, and as Gessler approached, shot him through the heart. "A wife, Lucretia, liberated Rome; a father, William Tell, disenthralled Helvetia."

No one can go to that rock-framed, mountain-embosomed, "that sacred lake withdrawn among the hills," and so well known as the Vierwaldstättersee, or Lake of the Four Forest Cantons, and specially that part famed as the theatre of Tell's exploits, and called the Urnersee (or Uri Lake), and examine the historic spot and see the numerous evidences, many of them contemporaneous, without being convinced that William Tell was as much an historical personage as Julius Cæsar, Napoleon Bonaparte, or George Washington; and that he lived, acted, and died, as the legend relates. One visiting these various places, must feel the force of what Latrobe wrote: "There is something in the grandeur and magnificence of the scene which surrounds you, which gently but irresistibly opens the heart to a belief in the truth of the page upon which the events which have hallowed them are recorded. Whatever a man may think, however he may be inclined to question the strength of the evidence upon which the relations of these facts rest while in his closet, I should think there are but few sufficiently insensible and dogmatical to stand firm and bar their hearts against the credibility which steals over them while contemplating the spots themselves."

At a bend of the lake, a short distance from Brunnen, there rises from the water a slender rock pillar, some eighty feet in height. This is the *Mythenstein*, a noble monument, fashioned in the morning of the world by

Nature herself, for the bard who was to hymn the rise of Helvetian freedom and the praise of its hero. The rock bears in golden letters the simple inscription:

“Dem Snger Tell’s
Friedrich Schiller
Die Urkantone
1859.”

(“To the bard of Tell, Friedrich Schiller, the original Cantons, 1859.”)^{[103](#)}

A little farther on, opposite Brunnen, at the foot of the rocky ramparts of Seelisberg, lies a long meadow, Rtli-platte, where, the peasant tradition says, the spirits of the Patriot Three sleep in the rocky caverns, ready to awaken in their country’s hour of danger:

“When the battle-horn is blown
Till Schreckhorn’s peaks reply,
When the Jungfrau’s cliffs send back the tone,
Through their eagles’ lonely sky;
When Uri’s beechen woods wave red
In the burning hamlet’s light,
Then from the cavern of the dead
Shall the sleepers wake in might!
They shall wake beside their forest sea,
In the ancient garb they wore,
When they link’d the hands that made us free
On the Rtli’s moonlight shore.”

We now reach on the eastern bank, projecting into the lake, the platform of rock, Tellsplatte, with its little chapel marking the spot where Tell leaped ashore and escaped from Gessler’s boat. After the expulsion of the bailiffs and the demolition of their castles, it became customary among the Swiss to make pilgrimages to this place; and in 1388, only a little more than thirty years after the death of Tell, the Canton of Uri erected this chapel in the

presence of a hundred and fourteen persons who had been acquainted with Tell. Müller the historian suggests as a reason why there were only a hundred and fourteen persons who had known Tell to gather together, not much more than thirty years after his death at the erection of the chapel, was, that Tell did not often leave Bürglen, and the deed, according to the ethics of that period, was not likely to attract inquisitive wonderers to him. It was Tell's deed alone; the people had no part in Gessler's death, the hour which they had agreed upon for their deliverance had not come. All the old chronicles agree as to the erection of the chapel and the persons present. The chapel was restored in 1883, the old frescoes being carefully removed, and now preserved in the Council House of Altdorf. The restored chapel has four large frescoes of artistic merit. On the back wall above the altar, to the left is the "Leap from the boat;" to the right the "Death of the tyrant;" on the north wall the "Apple scene;" on the southern wall the "Oath of Rütli;" this last fresco is very frequent in Switzerland, representing the Patriot Three (*Les Trois Suisses*, or *Die Drei Schweizer*); one holding a short-handled flag with a cross upon it; the central one leaning on a spear; and a third sustaining a tall standard which rests on the ground; all wearing their swords. On Sunday following Easter, annually, a procession of boats, appropriately decorated, proceeds slowly to this chapel, consecrated by art, religion, and patriotism to the great deeds or yet greater thoughts of its olden time hero, and a solemn memorial service is held. Near by at Küssnacht there is another chapel marking the place where Gessler was shot, and over the door is an illustrated painting with the date 18th of November, 1307, and under it the inscription,—

"Here the proud tyrant Gessler fell,
And liberty was won by Tell;
How long 'twill last, you ask, and tremble:
Long as the Swiss their sires resemble."

At the upper end of the lake, retired a short distance, is Altdorf, the capital of Uri. Here in the public square are two fountains. The pillar in the centre of one of them is surmounted by a figure of Tell holding his boy under one arm and pressing his bow to his bosom with the other; it marks the spot where Tell stood when he launched the fearful arrow. The other

fountain is placed on the supposed site of the lime-tree by which the boy stood awaiting his father's unerring aim. A figure of Gessler indicates where the pole bearing the hat and crown was erected; close to the second fountain is an ancient square tower, on the outside of which are painted the scenes of Tell's history. Near by Altdorf runs the small stream of Schächen, where Tell met his death in 1354: seeing a child fall into the swollen stream as he passed that way, he plunged in to rescue it, and, being old and feeble, lost his life. The museum at Zurich contains the cross-bow of Tell; the little hamlet of Bürglen, his birthplace, has many reminiscences to show; old houses in Altdorf, Arth, and Schaffhausen are frescoed with representations of facts in his history. In Schaffhausen is a fountain having an old stone figure of Tell with the bow and arrow, on the base of which is the date 1682.

But we are told that history records six other apple-shooting feats, performed by different individuals before and after the time of Tell. It is difficult to see how this decides whether Tell was a real character or not. Such skill in marksmanship was not rare in the days of archery. A similar, indeed identical, feat is mentioned of the Scandinavian hero Egill, who was commanded by King Nidhung to shoot an apple from the head of his son. Egill, like Tell, took two arrows, and, on being asked why, replied, as Tell did to Gessler, "To shoot thee, tyrant, if I failed in my task." Similar stories are recorded of Eindridi, of Norway; of Hemingr, challenged to the display of skill by King Harald, son of Sigurd, in 1066; of Toki, or Palnatoke, the Danish hero, in 1514; and of William of Cloudesley, who, to show the king his skill in shooting, bound his eldest son to a stake, put an apple on his head, and at a distance of three hundred feet cleft the apple in two. This is described by Percy in his "Reliques:"

"I have a son is seven years old,
He is to me full dear;
I will hym tye to a stake
And lay an apple upon his head,
And go sixscore paces hym fro,
And I myself with a broad arrow
Will cleve the apple in two."

In modern times the same skill is seen with the gun instead of with the cross-bow. Snuffing a candle, cutting a string, barking a squirrel, breaking glass balls thrown in the air, are all, perhaps, more difficult than for a firm hand and a steady eye to pick off an apple from the head of a boy. The same thing was done in the seventh century that is recorded of Tell in the fourteenth century, *ergo* William Tell is a myth,—this is the question reduced to a logical form. Any one may see that such an inference is absurd. Yet this is the greatest fact that has been adduced to prove that Tell's heroism is a mere figment of the past. To believe in one tradition and repudiate the other is not less arbitrary than unphilosophic. Voltaire, whose function it was to deny, even sneered at the existence of the men of Rütli simply on account of "the difficulty in pronouncing their names." The story of Tell is told in the chronicle of Klingenberg, that covers the close of the fourteenth century; then again in 1470, in the "Ballad of Tell," one of the chief treasures in the archives of Sarnen; in the "Chronicles of Russ," 1482; and by Schilling, of Luzern, in 1510, who had before him a "Tell-song;" and the chronicle of Eglof, town clerk of Luzern, in the first half of the fifteenth century. The first to clothe these traditions in the dress of historical narration of great substantial clearness was the celebrated Swiss chronicler, Ægidius Tschudi, of Glarus, in 1570. All the early Swiss and German historians, Stettler, Huldrich, and Müller, sanction it. Then it furnished Florian with the subject of a novel in French, 1788; Lemierre with his tragedy of *Guillaume Tell*, 1766; Schiller with a tragedy in German, *Wilhelm Tell*, 1804; Knowles with a tragedy in English, *William Tell*, 1840. In 1829, Rossini, the most famous composer of the land beyond the mountains, wove the magic of his music round Schiller's greatest drama with the Italian opera of *Guglielmo Tell*, the delight of the musical world.¹⁰⁴ Smollett, in his sublime "Ode to Independence," thus alludes to Tell:

"Who with the generous rustics sate
On Uri's rock, in close divan,
And wing'd that arrow, sure as fate,
Which ascertain'd the sacred rights of man."

Goethe writes: "I picture Tell as an heroic man, possessed of native strength, but contented with himself, and in a state of childish

unconsciousness. He traverses the Canton as a carrier, and is everywhere known and beloved, everywhere ready with his assistance. He peacefully follows his calling, providing for his wife and child.” Sir James Mackintosh, one of the most impartial of historians, visited the region associated with the name and deeds of Tell; he examined history, and became perfectly convinced of the existence of the mountain hero, and of the truth of the part he played in Switzerland when

“Few were the numbers she could boast,
But every freeman was a host,
And felt as though himself were he
On whose sole arm hung victory.”

Thus a seemingly unimportant event in the remote Alps became the keynote of European thought, literature, art, and language; for it inspired not only statesmen, historians, orators, and poets, but painters, sculptors, and composers. It influenced and exercised pen, pencil, and chisel, and expanded the vocabulary; for who has not seen, heard, read *Wilhelm Tell* in his own or some other language?

The legend of Tell has a companion piece doubtless as mythical to the sceptical, being of the same historic period, and occurring at the battle of Sempach. This was one of the great battles which terminated the long and obstinate struggle begun at Rütli, and, like all other famous achievements, is remembered in connection with a special example of personal self-sacrifice; still it passes historical scrutiny unchallenged, though no better authenticated, and in many respects more contentious than the heroism of Tell. On the 9th of August, 1386, Duke Leopold was marching against Zurich to fight the last battle which Austria presumed to try against the Forest Cantons. He had the flower of the Austrian nobility, 4000 knights and barons, each with his own vassals, forming an army of veterans in columns 20,000 strong. A handful of brave Swiss, numbering 1400 stout and fearless mountaineers, went out on foot to meet them; they came up with the enemy at Sempach. The mail-clad warriors, dismounting from their steeds, presented a solid and impregnable barrier of lances; the Swiss were rudely armed with halberds and *morgensterne*.¹⁰⁵ According to their ancient custom, they knelt in silent prayer; arising, they placed themselves in

column, presenting an angle, and charged. Again and again they dashed against these protruding lances that stood as firm as a wall of stone. Out of their little number sixty had died in vain; hearts seemed ready to fail; the Austrians were beginning to open in order to surround them. At this crisis Arnold Winkelried, "a trusty man amongst the confederates," dropped his weapon, and, rushing forward, cried out, "I will open a way to freedom; protect my wife and children!"¹⁰⁶ Being of great size and strength, he clutched as many of the enemy's lances as his arms could embrace, gathered their points and buried them in his bosom, and as he fell drew his enemies with him. Before the Austrians could extract them his companions took advantage of the gap, rushed over his expiring body into the ranks of the enemy; a breach being made in the wall of mailed warriors, what seemed an inevitable defeat was turned into glorious victory. "Heed not the corpse," says Byron's Saul to his warriors and chiefs, admonishing them as to what they are to do should the lance and the sword strike them down in the front. Sempach is a story of thrilling heroism, and in little over half a century was followed by the battle of St. Jacob in 1444, when 1600 Swiss met a predatory invasion of the French, a corps of 8000 horse and a large detachment of infantry, in all numbering over 20,000, called Armagnacs, the disbanded mercenaries of the English war, led by the Dauphin, afterwards Louis XI. Though they might have retreated without loss, the Swiss determined rather to perish on the spot, and fought with heroic fury, tearing the enemy's arrows from their wounds to send them back dripping with blood. Their valor and terrible sacrifice never were surpassed. The Dauphin lost 6000 men; and of the 1600 Swiss, only ten lived to tell the tale, and they were immediately proscribed throughout Switzerland for having deserted their comrades. A monument is erected near the Birs, on the battle-field, consisting of a figure of Helvetia at the top with four dying soldiers on the pedestal, with the inscription: "Our souls to God, our bodies to the enemy." At Morgarten, in 1315, 1300 Swiss routed Leopold's army of over 20,000, killing 9000, when

"There were songs and festal fires
On the soaring Alps that night,
When children sprung to greet their sires
From the wild Morgarten fight."

Then there is the battle fought near Wessen, in the Canton of Glarus, where 350 Swiss attacked 8000 Austrians and gained the field. Eleven pillars are erected on the field of battle to mark the places where the Swiss rallied, for history says they were repulsed ten times, but, rallying the eleventh, broke the enemies' line and put them to flight with great slaughter. This victory is celebrated every year; the people, in procession, fall upon their knees at each pillar, sing a *Kyrie* and thank God for so signal a victory. When they come to the last pillar, one of their orators makes a eulogy of the three hundred and fifty, and, when he has finished, reads over a list of their names,—just as the Spartans caused the names of their three hundred to be cut in brass, to transmit their memories to posterity. There are, in addition, such duels of individual valor recorded as men fighting when mortally wounded, like Fontana, of Grisons, who cried out, “Do not stop for my fall, it is but one man the less;” or like John Walla, of Glarus, who met alone and put to flight thirty horsemen. These events, and many others well authenticated and unhesitatingly accepted in Swiss history, sound infinitely more of knight-errantry than the story of Tell.

Macaulay holds that intense patriotism and high courage are peculiar to people congregated in small spaces. Acts of unflinching bravery and of a noble self-immolation in the cause of conscience, duty, and freedom have been conspicuous in Swiss history. As habits of courage are formed by continual exposure to danger, the hazardous state, the perils and hardships which they hourly encountered, braced their nerves to enterprises of hardihood and daring. Turbulent times created a necessity for great sacrifices and daring exploits, and on the same principle, that the supply of a commodity in transactions of commercial life is generally found to be commensurate with the demand, the frequent call for heroic achievements raised up the patriots who were to perform them. There may be something in the deeply religious character of the Swiss favorable to this virtue. Cicero maintained that a belief in the immortality of the soul and a future state of rewards and punishments was indispensable to the steady sacrifice of private interests and passions to the public good. Some, perhaps, in their brighter visions of fancy, would aspire to those blessed abodes amidst the laurel groves of Paradise, which the poet of Mantua has assigned to the self-devoted victims of patriotic enthusiasm:

“Hic manus ob patriam pugnando vulnera passi.”¹⁰⁷

The renown, likewise, of the heroes of ancient stories is indebted for no inconsiderable portion of its brightness to their mode of warfare, which, by rendering personal courage more effective, rendered it at the same time the object of higher estimation. Prodigies of valor, by which the fate of a kingdom is decided, are now rarely performed, and victory inclines much more to the side of skill than either of physical strength or individual prowess.

With the Swiss no fable hangs about the deeds of William Tell and Arnold Winkelried or the battles of Morgarten, Sempach, and St. Jacob. They are the common glory of the people, their most cherished heritage; but it is in William Tell their pride centres. His very name to this day stirs the Swiss heart with the deepest emotions of pride and patriotism.

All the mementoes connected with his history are cherished with the fondest affection and veneration. Tell's chapel is the Mecca of all Switzerland. The admiration for his character is an unbounded national passion. Every emotion of patriotism, national gratitude, and ardent love of liberty seems to find its readiest mode of utterance in passionate expressions regarding this heroic man. Ballads are sung to his memory, and in every popular gathering one may hear the familiar words from the old Swiss song,—

“William Tell, he scorned the hat,
To death condemned was he for that,
Unless an apple, on the spot,
From his own child's head he shot.”

In canvas and marble his effigy adorns the national and cantonal capitals and the public buildings generally. On mountain, rock, and lake his history is carved indelibly.¹⁰⁸ “It cannot be otherwise,” says the honest peasant; “it did so happen, and I believe it; not to believe it would be treason to my country.” In 1760, a pamphlet, under the title of “Fable Danoise,” was issued by a clergyman of Bern named Freudenberger

attacking the historical character of this legend. It so aroused the patriotic indignation of the people that no one dared to give it circulation, and the government of the Canton of Uri caused the book to be publicly burned.

In the presence of so many memorials of the deeds of this hero, sustained by evidences of an antecedent and general popular conviction, and feeling that these things are entitled to have some weight, it is difficult to feel any sympathy with the doubts which bookish students have suggested as to the reality of Tell's existence. No one can visit the lake, the rock, the fountains, the chapel, read the story painted on wall and tower, hear the local traditions in every man's mouth, witness the annual festivals, study the history of Switzerland, and consider the character of its people, then think of Tell as a myth, more than he would say that Switzerland and all its heroic people have been a fable since Uri's handful of patriots rid it of Gessler's despotism. No! The simple story bears a striking analogy to the primitive and pastoral people who commemorate the name and actions of this hero. They know that no character of the thirteenth and fourteenth centuries is better attested in their history, and will religiously regard him as one of the noblest men that ever lived, so long as the Finsteraarhorn and Jungfrau present themselves in the vast firmament as the ever-enduring symbols of liberty. "The artlessness of Tell's history resembles a poem; it is a pastoral song in which a single drop of blood is mingled with the dew upon a leaf or a tuft of grass. Providence seems thus to delight in providing for every free community, as the founder of their independence, a fabulous or actual hero, conformable to the local situation, manners, and character of each particular race. To a rustic, pastoral people like the Swiss is given for their liberator a noble peasant; to a proud, aspiring race, such as the Americans, an honest soldier. Two distinct symbols, standing erect by the cradles of the two modern liberties of the world, to personify their opposite natures; on the one hand, Tell with his arrow and the apple; on the other, Washington with his sword and the law."¹⁰⁹

The doubt thrown upon the existence of Tell came from an influence that bears upon things of a graver import. They originated at the time when religion was dead, and when rationalism, with an appearance of erudition, was rife. Many critics formed theories of their own in regard to Homer and the ancient writers and heroes in general. Book after book was issued from the press filled with the most absurd theories. Every student who came from

a university had the ambition to write a book. Each one thought himself a veritable Daniel come to judgment; nearly every historical character was a being of imagination. They did not stop with human characters, they laid hold upon the Word of God. Moses became a myth in their hands; and Job was a mere story in poetry, like the Arabian Nights; Ecclesiastes was the blating of an Epicurean philosopher no longer young. Good, however, came out of this evil. The best men were led to examine the basis on which the truth stands, and to study more profoundly than ever the “faith once delivered to the saints,” and the result was the overthrow of this school of specious reasoning and crude theories. The details of Tell’s story, at last, do not signify much; they form only the drapery of the figure, which stands to this day one of the few heroes who have been able so to forget themselves, and so to inspire other men with self-forgetfulness, as to obtain with them a nation’s freedom. And thus Tell lives, safely, in the people’s songs and in the faithful hearts of his countrymen.

Ideals, the symbols of the truth which we conceive, of the beauty which we imagine, and of the good which we long for, have as great an influence in the world as *ideas*, if not even greater. High ideals and loyalty to them are virtues which are requisite to the existence and safety of a progressive society. We cannot afford to surrender the least of our high and pure ideals to the iconoclasm that would declare every grand historical character to be apocryphal; a spirit that revels in the breaking of images simply for the pleasure of breaking, even if chiselled by the hand of Praxiteles; a folly not content with robbing us of Tell and his apple, but would deprive us of Newton’s apple, too, and vainly talks of a cryptogram lurking in Shakespeare’s dramas, which points to his mythical existence. We have too few immortal names identified with their country’s glory. Let us not seek to inquire too minutely into their title to fame, to see if it is embarrassed by vague and contradictory traditions; but let us rather associate their names with the greatness, the virtue, the durability of their race, and invoke blessings on them down “to the last syllable of recorded time.”

In this day, so given to materialism, pitiful rivalries, and ignoble ambitions, we want more hero-worship, a greater reverence of heroism, a more just and delicate appreciation of individual worth, the traditions of noble deeds, and the “passion of philanthropy;” and not to believe that all men are much of a sameness, and the old days in which the gods lived on

earth are forever gone. There are certain great events embalmed in tradition that it will not do to question, and which, if of doubtful historical support, it is unwise to disturb, as they are so many incentives to noble deeds, and should be cherished in our hearts even as an inspiring fiction. It is easy for cynics to deride heroism, and scoff at the superiority of ideal existence over the facts of life. But it is not good to be confined to what the physical eye can see, and refuse to use the eye of faith and imagination. Enthusiasm lives and flourishes with imagination and idealism; and together they purify, as well as ennoble, every nature they touch. They paint the world and men as they should be; all that human heart can do; all of which human nature, at its highest, is capable. The craving for the real is good and healthy, but it ought by no means to be set in opposition to the craving for the ideal, for

“A deeper import lurks in the legends told our infant years
Than lies upon the truth we live to learn.”

CHAPTER XIX.

BERN.

From the end of the thirteenth century Bern was the great, influential, and growing town of Switzerland; rich, enterprising, and self-asserting. For the sake of securing their friendship, it made citizens of many of the nobility who lived far from the city walls, and established guilds with many valuable privileges. Some of these guilds still exist, and a membership is quite an expensive privilege, costing from 8000 to 10,000 francs; besides the applicant must possess property to the value of 15,000 francs. In early times Bern held a firm grasp on the lands from Aargau to Lake Lemman. Besides conquering them, it largely bought out the neighboring territorial nobility. It was the feudal idea, taking root and growing in mediæval times, that the right of government was as property, and the possession of landed property was looked on as carrying with it a kind of right of government. The whole early history of Bern is the greatest example in modern times of an inland city ruling over a great collection of subject towns and districts. It was an aristocratic republic, having been founded as a refuge for the inferior nobility from the oppression of powerful counts. The rapid development of industry within its substantial walls attracted also peasants, artificers, and tradesmen, who flocked in from the neighborhood. The burghers secured many privileges, and were eligible to the highest offices; but they generally concurred in the election of members of the patrician family. These young patricians were literally apprenticed to political life by the singular institution of the *Ausserstand*, a copy of the real commonwealth, with councils and magistrates of its own, and the *Schultheiss*, or chief magistrate of the mimic republic, was commonly elected a member of the Great Council of the real one.

The French Revolution submerged the aristocracy in a general Helvetian republic, and, when the flood had passed, the ancient landmark could only be partially restored. The Bernese, however, continued to acknowledge the ascendancy of these noble families, what few were left to them, whose ancestors had been the founders of the city, and whose

courage, virtues, and patriotism had secured the confidence of the people. It was not until 1847, under the influence of the Sonderbund excitement, that the last vestige of class privilege was abolished, and perfect equality of all citizens before the law established; political rights granted to every male citizen over twenty years of age, civil administration and justice organized after modern democratic principles, guaranteeing the rights of man, and promising trial by jury.

Tradition has it that Bern was founded by Berchtold V., Duke of Zähringen, in 1191. Being persistently opposed both by the Alpine and the Burgundian nobles, who took up arms against him, he met and defeated them twice in the field, and then began to look about for a suitable site, at an equal distance from both parties, where he might build a town larger and more important than any that yet existed. Different derivations are given for the name of Bern; some etymologists say it is a corruption of the Celtic name of Verona; but the only one that satisfies the Bernese is that given by the old recorder Justinger, who wrote at the end of the fourteenth century, "How the town was called Bern:" There were many wild animals in the oak woods, and Duke Berchtold determined that the town should be called after the first that was caught there; so the first that was caught was a bear, and the town received its name from *Bären*, the Swabian for bears; and the Duke also gave the burghers a shield and armorial bearings, namely, a black bear on a white field. A bronze statue of the Duke is erected in the cathedral promenade, upon which is the inscription, *E bellua cæsa sit urbi futuræ nomen* ("from a monster slain, let there be a name to the future city"). The Emperor Frederick II. declared Bern a free city of the empire in 1218, and confirmed its privileges by a charter, which is still preserved in the archives. Its first prominence was in 1339, when in June of that year the Bernese, under Ulric von Erlach, were completely victorious over the allied forces, and struck the death-blow to the feudal nobility of western Helvetia. In 1405 the greater part of the city was destroyed by fire, but was soon rebuilt on the same site. In 1798 it was plundered by the French. Immediately after their entrance into the city, the French soldiers made themselves masters of its treasure, which, no doubt, was one of the motives and most immediate cause of the invasion and attack. The exact amount taken was never ascertained, but by the most moderate estimate made it reached 20,000,000 francs; everything of value that could be taken away became the prey of the victors.

From the date of its accession to the Confederation, in 1351, Bern has been one of the most conspicuous and influential of Swiss towns. The history of the city is the history of the Canton, and in some measure it is the history of the Confederation. From 1798 to 1815 the Federal Diet met in turns at Zurich, Bern, Luzern, Freiburg, Solothurn, and Basel. From 1815 to 1848 the three cities of Zurich, Bern, and Luzern were the seats of the government, the Diet sitting biennially in each place in turn. This system of having three capitals did not work satisfactorily, and the necessity for the country possessing one centre was generally seen. Zurich and Luzern surrendered their claims, and Bern became the central and fixed capital of the Confederation in 1848, the Canton assuming the cost of erecting the necessary public buildings. It is also the capital of the largest and most populous Canton, which has a population of 539,305, out of a total for the Confederation of 2,933,612, or nearly one-fifth. It is the most important of the sisterhood by its territory, wealth, and population, and may be called the Empire Canton of the Confederation. The city itself contains a population of about 50,000, with a superficial surface of an American village of 2500 people. No great city in Switzerland overtops the rest and draws them into moving around it by its mass and weight. Population and wealth are not concentrated in "enormous and apoplectic heads upon a bloodless body," as great cities were designated by Mirabeau. The largest Swiss towns would be fifth-rate towns in the United States. The Swiss villages are on the declivities of the Alps; the towns either on advanced promontories or on the borders of the lakes. They are all small, and contain none of the monuments which mark the luxury of great nations. They are municipalities rather than capitals, to whom the nature of the country and the smallness of the population have denied the power of increase. Many of these towns are located with a view to the natural defence, furnished by the topography of the site, and were originally walled places of refuge. They resemble those towns of prehistoric Italy described by Virgil, as "perched on precipices of rocks, with rivers gliding beneath their antique walls." Bern occupies a bold promontory of sandstone rock, seventeen hundred and ten feet above the sea, and its position in early times entailed great strategical advantages. It is nearly surrounded by the Aar, a bold, strong tributary of the Rhine, which rises in the southeast mountains of Bern, and carries to its mouth the waters of fourteen Cantons. A sudden bend of the stream encloses the town on all sides but one. The magnificent slopes to this rapid river are in some places

covered with turf, and supported in others by lofty terraces planted with trees.¹¹⁰ It is not an easy matter to account for the first impression you receive on entering Bern; you certainly feel that you have got to an ancient and remarkable place. Passing under any of its old gate-ways for the first time, one feels as if he had strayed upon a stage conscientiously prepared for the playing of a mediæval comedy or tragedy. No town in Switzerland has been so preserved from the hands of the spoiler and the restorer; the whole town is a sort of informal museum of archæology. A small portion that has grown up around the Federal Palace, which was erected on the outskirts of the old town, when it was made the permanent capital in 1848, is modern in appearance. That which constitutes the town proper is composed of ancient houses of an early age, with curiously frescoed and carved fronts, and many remnants of ancient architecture. The main streets are broad and regular, the houses constructed of sandstone of a grayish-blue color, found in the adjoining hills; in other streets, the tall, thin houses are clustered together as if to use as little as possible of the margin which nature and industry have drawn so closely around them. These houses are six, seven, and eight stories high. Every floor, with the exception of the first, which in all probability is used for business purposes, accommodates a family, and, among the poor classes, several families. It would be difficult to find a town where every part of the house is so fully put to use and little waste or idle room. It is doubtful if a dozen families in Bern each occupy an entire house, and a very small number more than a flat of one floor. All the houses, including the most ancient, are admirably constructed for this multiform occupancy, and Swiss domestic life, as practised in Bern, is a fine art of many centuries' growth. The walls being very thick, the front windows are made to serve the purpose of verandas. They have neat iron railings encircling them, swung on hinges, and when thrown outward are both a protection and a rest for inclining against. In all pleasant weather these are the favorite places to sit. Furnished with bright red or orange cushions, and probably those on no two floors being uniform in figure, they present from the street a novel and variegated spectacle; touching up the projecting balconies, highly worked and of a glossy black, and complementing the green Venetian shutters. These houses preserve a mediæval physiognomy; the pomp and strength of feudal Switzerland are called up before our mind when we look at the solid walls, at the buttresses which support them, and their steep peaked roofs.

The streets are kept scrupulously clean, as much so as the floor of a well-kept house; a gang is constantly at work sweeping and carrying off the dirt as soon as any can be found. Entering the town from the south, two gate-ways are passed, at short distances from each other, beneath towers which mark epochs in the extension of its walled period. In the upper portion of these gate-ways, still standing over the empty arches, where there is no longer a gate to shut, peaceful pigeons have a cote. They are the only wardens and watchful sentinels to challenge the passer-by. The fronts of the houses rest upon arcades, which form covered walks and are lined with shops. The heavy piers of the arcades exclude the sun, making the shops dark, and the arcade as damp as it is gloomy. All these objections are felt to be more than compensated by the protection furnished from the long winter's snow. The streets are provided with numerous public fountains of strange devices. They are sculptured and decorated, as if the people loved the water and wished to heighten the pleasure of seeing, welcoming, and using it. This water is brought a great distance from mountain streams, and ceaselessly pours its limpid stream through the open viaducts, and at convenient places is diverted into gigantic stone basins; it is never muddy, and is always delightfully cool. Through each of the principal streets flow additional subterraneous streams of this water, furnishing the best of sewers. This is one of the most pleasing sights common to the smallest Swiss village,—the abundance of good water with which it is supplied; it is ever in sight; overflowing, sparkling everywhere, for every use of man and beast. These fountains resemble those of an Eastern well; to them daily come all the women of the village for the water they will require for their families; and they have other uses, the milk vessels and the cooking utensils are for the most part washed there, and on certain days they are surrounded by groups of *blanchisseuses*. Here, too, the daily news of the village is discussed. Besides their beauty and convenience, these fountains are a species of living records of the taste and manners of past ages. Many date from the sixteenth century, and are ornamented with colossal representations of Swiss warriors, clad in steel, with wasp-shapes and stuffed breasts, wearing diminutive caps, contrasting with their vast exuberance of beard and stern countenances; then come goddesses, archers, bagpipers, and one—the terror of children—the *kinder-fresser-brunnen*, or “child-gormandizer-fountain.” Upon the top of a stone pillar, ten feet high, is seated an obese-looking old man; he has the head and shoulders of one

poor baby in his gaping mouth, in the very act of swallowing; a bag full of similar choice morceaus hangs around his neck, and they are apparently struggling to escape the fate of their comrade. In one hand of this ogre are the lower extremities of the child whose head he is masticating, and in the other a basket full of urchins to finish his repast; two or three of these have gotten out of the basket, and are scampering off around the pedestal. There is a very beautiful fountain in front of the Federal Palace, adorned with a statue of Berna. But it is the effigy of the bear that perpetually recurs to the eye in various forms and armor; it is the ensign of Bern, its heraldic animal, and cherished with religious care as the palladium of the state. On a fountain in the street of Justice, the Canton is represented in a militant attitude, by the figure of a bear in armor, with sword, belt, and banner; another fountain has a bear attending a cross-bowman as his squire; and the equestrian statue of Rudolph von Erlach is supported at the corners by four life-sized bronze bears as helmet-bearers. From the day of the legend connecting Bruin with the city's foundation the bears have played a prominent part in local heraldry, that sage and grave beast being cunningly reproduced in print, coin, stone, wood, and confectionery of great artistic and amusing caricatures. The effigy appears upon the cantonal coat-of-arms, and is inseparably connected with the conquests of the warlike burghers. As a memorial of the seven hundredth anniversary, in 1891, of the foundation of the city, the municipal council intend opening a competition for designs of the statue of a bear more modern than that which has already existed for seven centuries. Every visitor to Bern is certain to see the *Bärengaben*, the bears' den, containing the live animals. It is told that a whimsical old lady left a handsome estate to the town to maintain a family of bears. In 1798 they became associated with the spoliation of Bern, as they had been with its rise and prosperity. They were transported to Paris by Napoleon's troops, the huge cage containing the father of the family having upon it an inscription not yet forgotten by the Bernese, "*Avoyer de Berne*." For some time these bears, like the eagles of Geneva, held their court in the *Jardin des Plantes*, where the Gallic cock flapped his new-fledged wings and crowed over all the beasts in Europe—whether rampant or couchant—upon the field of honor. Only one lived to return to his home at the general restoration of the spoils; but this one was the aristocrat *Martin*, whose descent was traced directly from the pair given to the town by René of Lorraine, the ally of Bern in the war against Charles the Bold. Others were

subsequently presented by friends of the town in Russia, and the family circle now numbers half a dozen. During the summer they enjoy a great feast from the constant stream of tourists, who persuade them to perform many antics by throwing them bread, fruits, and vegetables, of which they are fond; they literally lay themselves out for your amusement, catching these things lazily as they roll about on their backs. In the centre of the dens a pine stem is erected, and renewed annually; on this the bears take air and exercise, and practise a variety of gymnastics, to the great amusement of the spectators.

Probably next in interest to the bear-pit comes the *Zeitglockenthurm*, or clock-tower. A minute or two before the hour strikes, a wooden chancleer, as large as life, seated on a projection of the tower, flaps his wings and crows a warning twice, and at the corresponding time after the striking of the hour he repeats his salutations. A figure, representing Father Time sitting on a throne, marks the hour by reversing his hour-glass, a mail-clad figure strikes the hour on the bell at the top of the tower, then a circle of bears emerge and move round Father Time, who at every stroke of the bell slowly opens his mouth and inclines his sceptre as if he himself were rather bored with Time. Of other objects of interest there may be mentioned the military depot, erected at a cost of 5,000,000 francs, and used as a drilling-school for that military district; the Federal Palace, a handsome stone structure of the Florentine style, and though only in use since 1852, will soon be relegated to subordinate federal offices and a more modern and capacious building, now under construction, will take its place as the federal capitol; a public library, founded at the time of the Reformation, and containing more than fifty thousand volumes; a museum where is to be seen the stuffed skin of the famous St. Bernard dog Barry, who rescued and saved the lives of more than twenty persons overcome in snow-storms and drifts; botanical garden; mint; University, with its faculties of law, medicine, theology, science, languages, etc.; art gallery, and numerous scientific collections, and societies; arsenal with its mediæval treasures, and a most complete system of charitable institutions, including foundling, orphan, blind, mute, and lunatic asylums. The Münster, or Cathedral, is an immense Gothic structure, dating from 1421, with a most elaborate sculptured group on the principal portal, representing the last judgment and the wise and foolish virgins; it is otherwise adorned with endless carvings in stone and flanked with two lofty square towers, which still remain in an

unfinished condition; few sacred edifices on the continent are better calculated to make a strong impression. In front of the Cathedral stands the fine bronze equestrian statue of Rudolph von Erlach, the brave defender of Bern at Laupin; it is a name celebrated in the Confederation for five hundred years. An ancestor led his countrymen in the fourteenth century, and Rudolph led the forces of the Canton against the French invasion at the close of the eighteenth century; descendants of the name still live in Bern and enjoy the highest respect and esteem of the people. The Cathedral *platz*, a small well-shaded park, raised and walled at a great expense, a hundred and eight feet above the river, overhangs the lower town, built on the narrow margin of the rapid Aar. The outer wall bears an inscription that, in 1654, a young student's horse, frightened by some boys, plunged over this precipice with his rider, the horse being killed, but the rider escaped with only a broken arm and leg, and survived the accident thirty years as a preacher.

On market day, Tuesday in each week, the streets of Bern are crowded with booths and tables exposing for sale every sort of merchandise, garden and farm products, and live animals, from a goat to a cow, a dog to a horse; pigs and lambs are held in the embrace of their owners, happy and contented with the nursing-bottle. The *Abattoir*, just out of the town, on the banks of the river, with its handsome buildings and beautiful grounds, sooner suggests to the passer-by an attractive pleasure resort than a public slaughter-house.¹¹¹ Much of the garden truck and all the dairy product are brought into market in small carts, heavy and stoutly built, pulled by two dogs, one on each side of the shafts, between which is the woman to uphold and guide it, and for this motive power a woman and a dog or a boy and a dog tug together in friendly yoke-fellowship. Dogs are used throughout Switzerland for all light draught purposes; and not always very light, for these dogs have been bred through generations for this purpose, until they have almost the bone and strength of a small horse or ox. They do not seem to be of any distinct canine family, varying much in size, color, and appearance,—

“Both mongrel, puppy, whelp, and hound,
And curs of low degree.”

They serve the twofold purpose of beasts of burden and vigilant guardians; the moment the woman stops and puts down the shafts of the cart the dogs go beneath it and lie down, but their eyes never leave a stranger who comes near, and he would find it dangerous to attempt to touch anything in the absence of their mistress. In the evening, when readiness is made to return home, these dogs express their pleasure with a deep-mouthed barking, forming a chorus of corresponding variety to their breeding; as in procession they pass through the streets this barking becomes a deafening yelp; in their struggle to pass one another, the carts being lightened of their loads, often the women are unable to check them with their own force and that of the brakes, with which the cart is provided, and a general stampede occurs. The dogs are highly valued and kindly treated by their owners; passing along at noon, when the women and the dogs are taking their dinner side by side from their respective tin buckets, you will find that the dogs are not eating of the crumbs which fall from their master's table, but are furnished with rather a more generous repast. The law limits how many pounds these dogs shall pull, but the woman may pull all she can.

Though Bern is the national and cantonal capital, it has an essentially small-town, provincial system of life. There is no capital in Europe more remote from the stir and impulse of the world's activities. Isolated by its insignificance rather than by any geographical position, free from all extraneous influences, it maintains a mummy condition, bound up in the swaddling-clothes of quaint customs and antiquated ideas. It has been within this generation that a butcher of the town made the advertisement that "all persons, without respect of religion, can have fresh meat every day." To the stranger, life in Bern soon stagnates into a fearsome weariness. There is absolutely nothing to break the *tædium vitæ* unless you devote yourself to the task of doing it. From the first of December to the middle of April there is an annual hibernation. Silence reigns in the streets, and the tradesmen will tell you they do not make enough to pay for their light. Amusements are few and too poor to lure one from his melancholy, and, tired with all things else, the weary heart must seek new life and joy in nature. Yet the very silence and absence of bustle, a certain stateliness and reserved demeanor in the inhabitants, showing it not to be a money-making town, imply that its importance at some time must have sprung from more solid and permanent sources than trade can afford, and that another spirit

animated its inhabitants. Aristocratic pride is still excessive, and the antique simplicity of its magistrates, the plain and easy manners they uniformly preserve in their intercourse with the people, are not by any means at variance with the assertion. For that external simplicity and affability to inferiors is one of the characteristics of the aristocratic government; all assumption of superiority being carefully avoided when real authority is not in question. Zurich suggests the idea of a municipal aristocracy; Bern of an ancient one. In the one we think we see citizens of a town transformed into nobility, in the other ancient nobles who have made themselves citizens. By the side of those gigantic terraces, of those fine fountains, those massive arches and noble shades you now see none but simple and solid dwellings, yet scarcely any beggarly ones; not an equipage to be seen, but many a wagon, with a fine team of horses or oxen, well appointed in every way. The aristocracy of Bern, in times past, was distinguished by its elegant accomplishments and the splendid ornaments and furniture of its houses, heirlooms of the wall and of the cupboard, which were the pride of generations. The value of the furniture of a Bernese patrician, called Zeguti, was ascertained by his last will, A.D. 1367, to be equal to the public revenue of the city for one year. The aristocratic Bernese officials of those days had under their door-bells written: "*Ici on sonne et attend.*" Bern is in the centre of one of the most beautiful landscapes in Europe; the country is broken, but cultivated like a garden, and so well wooded as to resemble a vast park. Every town in Switzerland possesses some feature of originality, and none are destitute of lovely and refreshing walks; but there is none richer in umbrageous roads, or where they are kept in better repair, than Bern. Graceful foot-paths wind among the fields, which are little encumbered with fences or hedges, and roads as good as those which are seen in pleasure-grounds. The fine wood of Bremgarten, with its magnificent avenues of trees, extends almost to the very gates of the town, and is reached by a boulevard lined on each side with limes, which in their season perfume the air. A more beautiful or highly-cultivated region is scarcely to be found than the banks of the Aar in its vicinity. The environs abound in views over hill and dale, over wood and river; and the most unobservant cannot fail to remark how superior in brilliancy of color and elegance of form even the wayside flowers appear; the very weediest of weeds seem attractive and ornamental. In the rare pure air of this mountainous section the whole plant population becomes, as it were, refined and aristocratic.

Then Bern looks from her peninsula on the beauties and snows of her Oberland, a continuous chain the most regular in all Switzerland, and the most imposing and pompous panorama that can be found in the whole realm of mountains. In the grand barrier which separates Bern from the Valais there are six celebrated peaks, commencing on the east with the Wetterhorn,¹¹² then the Schreckhorn, the Finsteraarhorn, the Eiger, the Mönch, and the Jungfrau, ranging in height from twelve thousand to fourteen thousand and twenty-six feet. They all pierce the empyrean, but the Finsteraarhorn overtops all the others. They look so sharp and wildly precipitous that the bare thought of standing on any one of them would make you shudder. The horizontal extent of this range is vast, the grouping magnificent, the scene unparagoned. They present bold outlines cut sharply against the sky, summits veiled with clouds, crests alternately gently rounded or rugged and broken, noble slopes, steep precipices, outlines of mingled grace and boldness.¹¹³ In the course of a clear day there is a beautiful variety of aspect, bright, pure, rich, harmonious,—from the dark shadows cast by the rising sun, the brilliancy of mid-day, the violet hues at sunset, and the ashy and almost ghostly paleness of evening. Imagine frozen snow piled in the heavens and stretching miles across the boundary of an otherwise beautiful view, having its sides shaded by innumerable valleys, with here and there a patch of hoary, naked rock, and the upper line all tossed into peaks and swelling ridges, like the waves of a colossal ocean. The grandest scene of all, and seen in greater perfection at Bern than any other point in Switzerland, is that brief period when the majestic architecture of the Alps, with its capitals and bastions, is flushed with the warm light of the lowering sun; when the *Alpenglühen*¹¹⁴ (*Abendglühen*) bathes the stern faces of the ramparts with a flood of light and shade such as only nature can produce from the rarest tints of infinite beauty. As the sun sinks lower the ruddiness of his light seems to augment until the filaments resemble streamers of flame; when the sun sinks deeper the light is gradually withdrawn, all is cold and gray again; the stars come out all at once and leave the mountain like a desolate old man whose

“Hoary hair
Stream’d like a meteor in the troubled air.”

The vapor at times causes a great deal of refraction, and above the clouds rises the whole of the Oberland to an altitude which seems greater than usual; every peak and all the majestic formation are clearly visible, though the whole range appears to be severed from the earth and to float in the air; the line of communication is varied, and while all below is enfeebled by the mist, the snow and ice above throw back the fierce light of the sun with powerful splendor. The people of Bern, of all conditions and ages, may be seen, day after day, waiting and watching for the *Alpenglühen*. As the hour of sunset approaches, the numerous little parks which furnish a view begin to fill up with the old and young; with the first announcing ray of the *Alpenglühen* the children cease to be boisterous, the fingers that ply the knitting-needle are still, the laborer at work pursues his vocation sedately, and all gaze in silent admiration. Bern abounds in these humanizing, tranquillizing, and health-giving parks or promenades, ornamented with beds of bright flowers and provided with comfortable seats. Although the Alps are not necessary to render the views from these parks pleasant, yet there they are, to add a background of sublimity to a foreground of surpassing loveliness. The Aar flows towards Bern in a northwest direction, through a valley of some width and several miles in length: to this fact the Bernese are indebted for their fine view of the Oberland Alps, which stretch themselves exactly across the mouth of the gorge at a distance of forty miles in an air-line. There is a story of a king, who said he dearly wished he had never had any picture or statue in his palace so that he could once again have, even for a moment, the crude, sincere delight of a boy staring at a wax-work group. The Bernese will never have need to frame such a wish. To them their Oberland will always be new, a picture that can never fade, a strain of music which can never sound tuneless or harsh.

But in this sin-cursed world

“The sea of fortune doth not ever flow;
She draws her favors to the lowest ebb;
Her tides have equal times to come and go;
Her loom doth weave the fine and coarsest web.”

This same *Alpenglühen* casts its kaleidoscopic rays directly at the foot of the Oberland on eyes that are incapable of appreciating the wealth of beauty that is around and above them. Here are a most sadly afflicted people; here prevail, to a remarkable degree, *goitre* and *cretinism*. We find in Juvenal, "*Quis tumidum guttur miratur in Alpibus?*" ("Who wonders at goitres in the Alps?") Congenital cases are not infrequent, but, in a majority of instances, it makes its appearance on a child at about the age of twelve or fourteen. The size these goitrous growths may attain is extraordinary, hanging down on the breast, enormous and unsightly things, recalling the description in "The Tempest,"—

"When we were boys,
Who would have believed that there were mountaineers
Dew-lapp'd like bulls, whose throats had hanging at 'em
Hideous wallets of flesh."

In some portions of this district, the goitre or swelling of the thyroid gland in front of the neck is so prevalent that

"Optimus ille est
Qui minimus urgetur."

It is not painful, and not always apparently inconvenient, and the few who are free from it are laughed at and called "goose-necked." A stranger once entering a church in the neighborhood where but few were absolutely free from these unseemly appendages, during service the congregation betrayed improper curiosity, and the pastor, after a sharp reproach for their want of manners, reminded them that it was not the fault of the poor man "if he had no goitre." By some it is actually considered, in a mild form, to be desirable; for it possesses a positive money value in furnishing exemption from military service. Now and then these monstrous excrescences become too large to be borne, and the poor victims crawl on the ground because they cannot walk upright under the weight. There is a popular as well as scientific belief that water is the vehicle of the poison that produces it; that it is impregnated with *tufa* or *tuf* a calcareous matter, whose tendency to concrete among the glands of the neck, aided, perhaps,

by stagnant evaporation of narrow villages, produces these wenny protuberances. This goitrous condition is often accompanied with an imperfect or arrested state of mental development known as *cretinism*, a distinct and most distressful form of idiocy. The *cretin* has an enormous head that drops listlessly on the breast; a vacant countenance; goggling eyes; thick tongue hanging out over moist, livid lips; mouth always open, full of saliva, and exposing decayed teeth; limbs misshapen; and wanting at times even the power of articulation. Many are deaf and dumb,—in fact, physical abortions, with every sign of bodily and mental imbecility. Few of these poor creatures can do any work, and many are even incapable of taking care of themselves, and not safe to leave alone. These distorted, mindless people, of semi-human attributes, excite a pitying disgust by their loathsome appearance, lolling tongue, obscene gestures, degraded appetites, and senseless gibberish as revolting as their aspects. The word *cretin* is thought to be derived from the older *cretins* of the Alps, whose name was a corruption of *Chrétien* or *Christianus*, and who, being baptized, and idiots, were supposed to be “washed from original sin” and incapable of actual sin. Cretinism is regarded by physicians as hereditary, for it appears in the most pronounced type in successive generations of the same family. This unfortunate district borders on the most fertile and beautiful valley in Switzerland, the Emmenthal, the rich plain in the northern part of the Canton of Bern, noted for its cheese and its *schwingfeste* (winnowing-festivals). Here the peasants are sturdy and strong of aspect, and on Sunday the men may be seen walking among their acres like lords of the soil, in their immaculate shirt sleeves of a fulness suggestive of episcopal dignity. It was the neat houses, comfortable dresses, highly-cultivated and generous soil, giving a cheerful and prosperous look to the face alike of the people and the country in this section, that caused so high an authority as Burke to write, “That he had beheld throughout Switzerland, and above all in the Canton of Bern, a people at once the happiest and the best governed on earth.”

CHAPTER XX.

SWITZERLAND THE SEAT OF INTERNATIONAL UNIONS.

It is not a little surprising—when we consider the great and rapid advance that has been made during the last century in diplomacy, jurisprudence, statesmanship, and political economy, and, indeed, in the multifarious branches of knowledge,—that international relations, upon which depend to such an extent the most precious interests of the nations and of all mankind, should remain so long in a condition very crude, indefinite, and incomplete. The “mills of God grind slowly,” but the mills of human government seem even more tedious and rusty. Now that, in the advance of intelligence and civilization, the nations have passed from the self-subsistent stage of national life into the dependent one; now that, through the great discoveries of modern times, the nations have been brought together, compacted into one community, and the interests of all have been blended; now that “the separate threads of national prosperity have been entangled in the international skein,” publicists have found it necessary to enlarge their opinions and judgments, so as to represent, not the narrowness of local prejudice, but the breadth and depth of the whole mind of civilized mankind. This tendency has found practical expression in international treaties, with objects neither sectarian nor political; concerning not individuals alone, not nations alone, but the whole community of man. With aims the most comprehensive, desirableness and practicability manifest, they are founded in a philanthropy seeking to promote the honor and welfare of every nation, and to bring additional blessings to every home and every heart in the wide world. International unions, with their noble and beneficent objects, constitute the fellowship of nations, under the dominion of law, in the bonds of peace. Central bureaus are required for the management of these unions, and it needed but little reflection to discover that the Swiss republic presented peculiar advantages for their location. Its neutrality stood guaranteed by the powers; it could not come under any suspicion of political ambition or territorial aggrandizement; it was thus

mapped out to be a neutral state, with every reasonable prospect of this *status* being sustained. This neutrality, with its strong assurance of immunity from “all entangling alliances” and the untoward complications of war or foreign occupation, and the central position in Europe with convenience of communication with the principal European capitals, were in themselves sufficient to recommend Switzerland. Then the Swiss possess perhaps the most marked genius of any people for the administration of an office; the government itself is surely the most laborious, the most economical, the least pretentious, yet withal systematic, thorough, and efficient; the same sobriety of demeanor, conscientious discharge of duty, with painstaking, patient labor at their desks, pervade the entire Swiss bureaucracy; these were distinct and all-important advantages. And, last, the supposition that affairs which influence the conduct and affect the interests of nations might be discussed amid its mountains with a calmness and candor which the contemplation of nature inspires, contributed no little to the cheerful consensus as to the propriety of its selection for the seat of the bureaus. There are now a sufficient number of these unions, with their central bureaus or seats established in Bern, to confer upon the Confederation a singularly conspicuous position of distinction and usefulness. Uncontaminated by the ambitions of its neighbors, Switzerland offers to contending nations a quiet spot in which to settle their disputes by the peaceful means of arbitration. It is not only a place of occasional conventions, but also the official headquarters of a host of continuous international agreements, commercial treaties and unions, which render peace and freedom necessary, and therefore secure within its borders.

The first step from which resulted the concentration of these bureaus in Switzerland was taken in 1863. In that year a private committee, composed of different nationalities but animated by one noble impulse, assembled at Geneva to consider the practicability of making some better provision for the protection of the wounded in battle, the inadequacy of existing official means to meet the humane requirements of the sick and wounded soldiers in great wars having long been painfully apparent. It will always redound to the honor of Switzerland that upon its soil the first formal international conference was held with a view to the mitigation of some of the horrors of war. On that occasion the institution of national aid societies was organized, and a few Swiss gentlemen were formed into an international committee for the purpose of constituting, on their neutral territory, an intermediary for the

aid of similar societies in all countries. This committee soon discovered that their movement was everywhere attracting the attention and winning the warm approbation of all humane people, and determined to place it upon a broader and firmer basis. They requested the Swiss Federal Council to propose to such other governments, as it deemed expedient, that a diplomatic conference should be held in Switzerland, to discuss and, if possible, give the undertaking international character and support. The Federal Council promptly acceded to the memorial of the committee, and the invitation, as desired, was officially extended in the name of the Swiss government. Many of the leading powers accepted the invitation, and accredited delegates to the conference, which assembled the following year in Geneva. This conference was brought to a successful conclusion by the signing of the memorable "Geneva Convention of August 20, 1864," by the representatives of sixteen governments. Within four months it was ratified and formally acceded to by eight European states, and at the present date has been joined by a grand total of thirty-three states. This convention embraces a wide field of practical philanthropy, being designed to remove soldiers when sick or wounded from the category of combatants, affording them relief and protection without regard to nationality. This protection extends to all persons officially attached to hospitals or ambulances, and to all houses so long as they contain invalid soldiers. Inhabitants of a locality occupied by a belligerent army, and who are engaged in the care of the sick and wounded, are likewise included; provision is also to be made for the return of invalid soldiers to their respective homes. "While the gun-carriage bears its death-dealing burden across the battle-field, in the ruts which rushing artillery wheels have torn up follow quickly the ambulance wagons of this Christian brotherhood, bringing hope and succor to the wounded." The insignia of hospital and ambulance is the Swiss flag, with its colors reversed, a red cross on a white ground; and individuals in their employment wear a white armlet with a red cross, and every red-cross flag must be accompanied, in time of war, by the national flag of those using it. It is no mean distinction for the Swiss Confederation that its national emblem is so intimately and exclusively associated with this great exhibition of international humanity. It is a grand and elevating education, a wise and philanthropic conception embodying the best principles of social science, and that true spirit of charity which counts it a sacred privilege to minister to one's fellow-men in time of suffering. To supply material wants,

great as this may be, is not all of its mission; it seeks to carry to men's hearts the message of universal brotherhood, with "peace on earth, good will to men" as its ensign. The United States gave their adhesion to this convention in 1882, and in the conferences had since that date, among the large number of delegates assembled, composed of royalties, nobilities, military and scientific celebrities, no one commanded more respectful attention or contributed more to the deliberations than a lone feminine delegate who bore the credentials of the United States. The name of Clara Barton is known the world over in connection with the burning cross on a snow-white field. To her labors are largely due the widening of the scope of the red-cross activities, and the assimilation of its workings to the advance plans already put in execution in her own country. These plans were chiefly of her own suggestion, and she had been instrumental in their reduction to successful use, for which she found opportunity in the late civil war, and subsequently during the Franco-German war, when she followed the German army into Paris, working faithfully alike in French and German camp; when all the nations of Europe rang with praises for her splendid work. She then first became acquainted with the Red Cross Society, and at once united with it; returning home with the iron cross of Baden on her breast, she organized the Red Cross Society of the United States, and was made its president. Her influence mainly contributed to the favorable action of the United States in joining this convention in 1882.

In 1865, one year after the conclusion of the Red Cross Convention, occurred the initiative of the International Telegraph Union upon the signature of the Convention of Paris. For a time the Union dispensed with a central administration, and at the conference held in Vienna in 1865 the policy of having a shifting administration, as between the capitals where the conferences took place, was seriously considered, but the necessity for a fixed and central administration was finally conceded, and the Swiss Confederation was asked to take charge of it. The central office was organized without delay at Bern. Correspondence was opened with thirty-seven telegraphic administrations, twenty-six of which belonged to the contracting states and eleven to private corporations. The last report from the bureau-director shows the number of state administrations corresponding with the central office to be forty; in addition to these are ten cable or submarine companies and eleven private land companies. The budget for 1888 reports the total expense of this bureau at 84,000 francs, or

about \$16,500, an incredibly small outlay for so important and responsible a work, involving an extensive line of correspondence and at times the adjustment of very technical questions. The bureau issues an official gazette, *Le Journal Télégraphique*. To this union the United States do not belong, having no government control over the telegraph companies.

Next came the Postal Union in 1874, and immediately upon the exchange of ratifications of the convention a year later the central office was likewise organized at Bern. Correspondence opened with twenty-one postal administrations, which have now increased to forty-seven; the annual budget is \$15,700, making the contributive share of a first-class state only a little over \$600 per annum, and about half that sum for a second-class state; certainly a very inconsiderable tax for so essential a service. The chiefs or directors of the two above-mentioned unions possess administrative ability that would readily command in the United States three times the sums paid them. A journal, *L'Union Postale*, published monthly, in three languages, English, German, and French, is conducted by the bureau, and enjoys a large circulation among those interested in knowing something of this clearing-house process of international mail-matter.

Passing mention may be made of two more limited but very useful conventions concluded in Switzerland,—one for the extermination of phylloxera and the other for the regulation of the transportation of goods by railway. The first had its origin at a conference of persons interested in the culture of the vine, held at Lausanne in 1877, and a convention to establish a union was signed at Bern in 1878 by several states, with the object of promoting joint protection against a disease which had caused such serious losses to vine-growers. Bern was agreed upon as the seat of all future meetings, and this union, which continues to obtain adhesions, is in active and beneficial operation. The Railway Transportation Union is, from the very nature and difficulty of the matters involved, one of slow evolution, but conferences are from time to time held, and its friends do not despair that it will ultimately result in the text of an international union with its bureau at Bern; this union, however, cannot expect to embrace any but the continental states.

A most important event in the history of these unions was the conclusion, at Paris, in 1883, after ten years' negotiation, of the Convention for the Protection of Industrial Property, with a supplemental protocol

signed at Rome in 1886. By the terms of the convention Switzerland assumed the responsibility for the management of the central administration, and the bureau joined the others at Bern. There are sixteen states in this union, the last accession being that of the United States, which was made on the 30th of May, 1887.

Lastly, and one very properly following close on that for the protection of industrial property, came the Union for the Protection of Literary and Artistic Property. This, the result of conferences in 1884, 1885, and 1886 at Bern, was secured by the signature of the convention on the 9th of September, 1886, and the ratification exchanged 5th of December, 1887, with ten adhering states. The central bureau, like those preceding it, was placed under the high authority of the Swiss Confederation, and is consolidated with its sister Bureau of Industrial Property. It issues an ably edited monthly journal, *Le Droit d'Auteur*.

The failure of the United States to adhere to this convention, it was apprehended by many, would deprive the Union of much of its contemplated value and practical results. This sentiment found expression in terms of the most sincere and respectful regret on the part of the delegates representing the signing states. At the Bern Conference of 1886, to which the writer was commissioned as a consultative delegate, he submitted the following statement explanatory of the attitude of the United States towards the conference:

“Through a circular note of the Swiss Federal Council the United States have been invited, in concert with the other powers represented in the Copyright Conference held here in September, 1885, to instruct and empower a delegate to attend this conference, and to sign on behalf of the United States the International Convention for the General Protection of Literary and Artistic Property, drafted *ad referendum* by the conference last year, and a copy of which draft convention, with additional article and *protocole de clôture*, had been submitted to them. The United States again find it impracticable to depute a delegate plenipotentiary, and are constrained to withhold from any formal participation, as a signatory to the International Convention which resulted from the deliberations of 1885, and the transformation of that convention into a complete diplomatic engagement. To exhibit their benevolence, however, towards the principle involved, the United States desire, with, the pleasure of this conference, to

be represented here, and has conferred upon me the honor to attend this conference as such representative, provided that my attendance is fully recognized and admitted to be without plenipotentiary powers; but under the limitation and reservation that the United States, not being a party to the proposed convention, reserve their privilege of future accession, under provisions of Article XVIII. thereof, which declare that 'countries which have not joined in the present convention, and which by their municipal laws assure legal protection to the right whereof this convention treats, shall be admitted to accede thereto on their request to that effect.' While not prepared to join in the proposed convention as a full signatory, the United States do not wish thereby to be understood as opposing the measure in any way, but, on the contrary, desire to reserve without prejudice the privilege of future accession, should it become expedient and practicable to do so. Should any question exist that the representation of the United States here, though under the specific and express limitation of a consultative delegate, is such a participation as would suffice to exclude them from the category of the 'countries that had not joined in the present convention,' and therefore to deprive them of the privilege of future accession, in event they desire to avail themselves of it, I wish to reiterate and emphasize the fact, that the course of the United States in commissioning a delegate is in nowise intended or to be construed as a participation in the result of the conference, either by acceptance or rejection. The position and attitude of the United States is one simply of expectancy and reserve. The Constitution of the United States enumerates among the powers especially reserved to Congress, that 'to promote the progress of science and the useful arts, by securing for limited terms to authors and inventors the exclusive right to their respective writings and discoveries;' which implies that the origination and limitation of measures to those ends rest with the legislative rather than the treaty-making powers. Copyright and patents are on the same footing of regulation by federal legislation, and the executive branch of the government cannot be unmindful of the continued pendency of its consideration by the legislative department, or disregard the constitutional right of that department to conclude international treaties on this important subject. The question of international copyright is one of great interest to the United States. In fact, few other countries can lay claim to greater concern than that naturally felt by people distinguished for enlightened, extensive, and growing intellectual life, and while not infringing upon the

constitutional prerogative of Congress to initiate and conclude copyright legislation, likewise to define the rights of aliens and citizens within its jurisdiction, the Executive, in his first annual message to Congress, inviting its attention to the conference of last September, said, 'action is certainly desirable to effect the object in view;' and the Secretary of State for foreign affairs, in his official despatches relating to this conference, freely expresses his concurrence with the principle sought to be enunciated by the proposed convention, and conveys the hope that the time is not distant when rights of property in the creation of the mind may be universally secured under conditions favorable alike to the author and to the world's right to share in the diffusion of ideas. That the brain that creates is entitled to and should receive its just and full compensation, is a sentiment having its origin in the inherent sense of honesty. Literary property has been to some extent recognized in all ages, and is to-day guaranteed in almost every State by domestic legislation. This recognition and guarantee should be without distinction of nationality and without regard to political frontiers. It is a matter of congratulation, and redounds much to the credit of the Swiss government, through whose active efforts this movement was successfully inaugurated, and supplemented by the patient and intelligent labor of the several conferences assembled here at its invitation, that a just and permanent settlement, once for all, of the grave question of the protection of works of literature and art, so long and unjustly denied, is about to be realized by the instrumentality of a uniform, efficacious, and equitable international convention."

At the close of these remarks the president of the conference thanked the delegate from the United States, and assured him that the "accession of the United States would be received at any time with joy by all the contracting states, and he but reflected the sincere wish of all present in hoping that within a measurable time the United States will request that a place be made for them in the Union."

It is time that the position of the United States on this important subject should be set free from the thralldom of that short-sighted selfishness which has hitherto fettered and degraded it. The Congress of the United States should seek suggestion from those sentiments of elevated justice and public honesty which are the sources of judicial counsel, and should act in that spirit of permanent and comprehensive wisdom, justice, and right which

alone gives assurances of deep and expanding benefits, as well to nations as to individuals. In the absence of international copyright, just and fair compensation for native literary and artistic property is out of the question. American authors ask no protection, they demand no aids, no bounties; they simply ask not to be subjected to this discrimination against domestic talent that puts them at a cruel disadvantage with foreign competitors, the fatal usage of whose cheap reprints, "without authorial expenses," has become an inveterate and crushing system. They ask only the privilege of meeting these competitors on equal terms in a fair contest. Literary property is the only kind of personal property not protected by the law when the owner is not a citizen of the United States. To the foreign owners of patents and trade-marks, which are so analogous to copyright, protection ample and easily enforced is accorded. It is half a century since Prussia first set the example of granting international copyright. In 1837 a law was passed that every country might secure copyright for its authors in Prussia upon granting reciprocity. This was followed by England in the succeeding year. France set the example, during the Empire, of forbidding the piracy of books and works of art of foreigners, before obtaining reciprocity. Property in ideas, dating back in England to the Statutes of Anne, was recognized in the Constitution of the United States, and is now conceded in every civilized country by legislative enactment. The same legal protection in the matter of ideas which is given to the natives of the state, is now accorded to the foreigner and outsider by all nations of high civilization except the United States. The right to profit by the product of the brain should secure for the author "that justice which is not a matter of climates and degrees." The principle of copyright being admitted, it cannot logically be confined to state lines or national boundaries. Grant that it is difficult to give literary rights the well-defined nature and tangible form of what is known, technically, as real or personal property; still, outside of the ethical or abstract right, copyright is a modern development of the principle of property which commends itself to every sentiment of honor and justice, regardless of any obscurity which may have surrounded or inspired its conception. Who steals a man's book may, indeed, steal trash, but, at least, it is his own trash, more closely his own than his purse. In a high state of civilization, a man's book should be everywhere regarded as his property, and should ever be protected as scrupulously as if it were a pair of shoes, upon the construction of which he has also expended his time, his thought,

his patience, and such talent and skill as he possesses. The sophistical plea that the culture and education of our people are to be imperilled, and the cost of books to be placed beyond the reach of the masses, is the mere weak subterfuge of those who are unwilling to be disturbed in their wrongful appropriation of the labor of others. The reverse of this claim has been abundantly shown. France has had an international copyright law for years, and series of books are issued there for five cents, and even two cents a number; it is the same with Germany; and these cheap publications represent all that is best in the literature of their respective countries. The spirit of literary ambition and activity is daily becoming greater and more diffused among the people of the United States, quickening and nourishing into life the seeds of a vigorous and vast native literature. It is impossible to determine the elements which must conspire to form and build up a native literature. It is a mystery, not solved to the satisfaction of scholars, why it should have put forth so early and transitory a bloom in Italy; why it should have ripened so late in Germany and Scotland; why in England alone it should know no vicissitudes of seasons, but smile in eternal spring. But we may be confidently assured that a people to whom Providence has given a stirring history, a land abounding in landscapes of beauty and grandeur, and a high degree of mental activity, extending the range of knowledge and scattering its seeds among all classes without price, cannot and will not remain long without an extensive and superior native literature. The literature of a people is the noblest emanation and truest measure of the intellect and earnestness and progression of that community. But there can be no decided literature, national in its basis, original in its character, independent in its aim, in any country where authorship is not a firm, reliable, and safe possession. Already the peer of the proudest in military achievements and material prosperity, truth, freedom, and civilization never presented a richer field and a brighter future for intellectual laborers than is to be found in the United States. Inexhaustible materials sleep in the womb of the morning, awaiting the forming hand of letters to seize and vitalize these mighty elements. The day must come when the pre-eminence of the United States in the field of material products will be rivalled by the existence of a literature as aspiring, as copious, and as brilliant as the spirit, resources, and destiny of the country; an American literature, breathing American ideas, and teaching respect and admiration for American government, furnishing to the young men and women of an impressionable

age books which are American books, not foreign books; not the cheap books of fiction dedicated, as Matthew Arnold has said, to the “Goddess of Lubricity.”¹¹⁵

The international unions, indicated as having their seats in Bern, it must not be forgotten, are practically the only ones which the world has to show. The *Bureau du Mètre* in France, the only cognate institution in another country partaking of an international character, cannot be reckoned in the same class, being scientific and not commercial. It is noteworthy, as evidence of the high consideration given to these international unions, or rather to the location of their central bureaus in Switzerland, by its statesmen, that the directorship of the Postal Bureau was on its establishment accepted by an eminent member of the Federal Council, who thus voluntarily surrendered virtually a life-tenure position of the highest dignity, coupled with the certainty of succeeding to the Presidency of the Confederation, to assume a more laborious and responsible post, with little, if any, increase of salary. The acquisition by Switzerland of these important bureaus, with the world-wide scope of their operation, is properly regarded as forming a more effectual guarantee for its preservation as an independent state than any other that could be devised. These unions cannot fail to be also productive of a progressively improving understanding among all the states composing them, enabling their several systems to be compared, useful discoveries shared, legislation simplified and assimilated, the science of statistics facilitated, and efforts, not merely for the development of commercial, but also of the intellectual needs of their respective people, wisely stimulated and directed. These beneficent consequences must favorably reflect on the state furnishing the safe and common ground upon which this great work can be peaceably and skilfully prosecuted, and elevate it to an exceptional plane of importance and security, giving it an international function which is interesting to note. It will not do, in connection with these international bodies and episodes in Swiss history, to omit reference to the fact that the first great international court of arbitration of modern times had its sessions in Geneva, in 1872, by virtue of the Treaty of Washington between Great Britain and the United States to arbitrate what was known as the “Alabama Claims.” Over this most memorable court a distinguished citizen of Switzerland was chosen to preside. It was such an imposing spectacle, and the results were so important, as to give an old process a new dignity and reputation; and to awaken a fresh interest in the

project of a permanent international high court of arbitration. To this project the Swiss Federal Council has been frequently addressed to lend its kindly offices. It is a project that every philanthropic publicist would be happy to see made practicable. Insurmountable difficulties seem to interpose, yet the fact of great states submitting their disputes to a body of impartial arbitrators for decision, and not the arbitrament of war, is not a new one, but of very ancient origin, old as history. As a principle, it has received the approval of sovereigns and statesmen, parliaments and congresses. The chief powers of Europe gave their sanction to it by the Treaty of Paris in 1856, and the government of the United States has, upon more than one occasion, given approval to it as the means of settling international controversy.¹¹⁶ Barbarians and early people fought because they liked it, as the chivalrous Maoris did, and the Mussulmans, and the ancient Greeks. The romance and poetry of these people are all about war; it was their sport, their industry, their occupation; there was no other way to wealth and the heart of woman. Even the ancient Teutones regarded war as a great international lawsuit, and victory was the judgment of God in favor of the victor. Civilized people fight because they cannot help it, not because they like it. Civilized nations of to-day are supposed to act from motives of justice and humanity, and not upon calculations of profit, or ambition, or in the wantonness of mere caprice. Nations are now regarded as moral persons, bound so to act as to do each other the least injury and the most good. There is a growing international consciousness that, considered in the abstract, unconnected with all views of the causes for which it may be undertaken, war is an evil, and that it should yield to some plan of adjusting international quarrels more consonant with the present boasted Christian civilization. War, it is true, has its great conquests, its pomps, its proud associations, and heroic memories, yet there is murder in its march, and humanity and civilization, genius and statesmanship, are things to blush for if they fail to realize that

“Peace hath her victories
No less renown’d than war,”

and that these words convey a profound principle, and not merely an abstraction too refined to be reduced to practice.

The trend of events is towards a peaceable settlement of international differences. National temperaments are being levelled by the ease of intercourse. The world is more and more assimilating to a condition like that of a great family, in which the individual nations, as members, are linked together by interests, which disputes ending in wars only impair and cannot benefit. The principle in early Roman law was that every stranger is a public enemy. The opposite prevails to-day with civilized peoples, that the normal relation between nations is one of peace and friendship. Unconquerable time itself works on increasingly, bringing the nations nearer to one another in the natural and orderly development of close international intercourse, strengthening the community of mankind. A deep meaning and philosophic truth is contained in the words of Vattel, "International justice is the daughter of economic calculations." These international unions are most powerful auxiliaries in removing the hinderances that lie between nations; through them the lesson is being objectively taught that great nations are so dependent upon each other, that any disturbance in a particular one is felt by the others, and that when their friendly relations are interrupted, the civilized world suffers. Through this influence nations are beginning to take a wider view of their mutual duties and relations, and appeal to reason and conscience in international dealings finds a response and an application which could not have been expected earlier. These unions generate a spirit that turns its regard to the circuit of the globe, and to an inspiration in which international relations obtain a higher form and a more assured security, with no purpose to interfere with particular states or their complete autonomous organism, or to oppress nations, but the better to secure the peace of the one and the freedom of the other. The best human arrangements cannot completely insure the world against civil war. This ideal can be only approximated. It would be vain to look for a political millennium, for a time when the "only battle-field will be the market open to commerce and the mind open to new ideas," when nations shall enjoy the boundless blessings offered them in the perfect freedom of human industry and in the reign of a perpetual peace,—

"When the war-drum throbs no longer and the battle-flags are
furled

In the parliament of man, the federation of the world."

The latest movement, on the part of Switzerland, in the inauguration of international legislation, relates to “international law” and the “interest of the working-classes.” The former was organized, in 1888, at Lausanne, the seat of the Swiss Federal Tribunal, and formed the “Institute of International Law;” the subjects discussed comprised the common features of the conflict of civil laws; the conflict of the laws relative to marriage and divorce; joint stock companies; encounters at sea; extradition; occupation of unclaimed territory, according to provisions of the Treaty of Berlin; international regulation of railways, telegraphs, and telephones in time of war; and the manner and limit of expulsion of strangers from the territory by governments. The second, relating to the “interest of the working-classes,” was foreshadowed by an article from the pen of M. Numa Droz, the chief of the Foreign Department in the Swiss Cabinet, and published in the *Revue Suisse* of February, 1889. In this article M. Droz announced that Switzerland was about to invite the other nations of Europe to a congress, in which projects for improving the condition of the laboring classes of Europe would be discussed. He expressed his confidence that only good could come from such an official gathering, and stated that Switzerland would consider it “as a great source of pleasure to offer cordial hospitality to the first European conference in the interest of labor legislation.” The distinguished and official authorship of this article caused it to attract much attention, and it received very favorable comment from the continental press. As indicated by M. Droz, within a short time after the appearance of his article, the Swiss Federal Council issued an invitation to the European manufacturing states to send representatives to a conference in September, 1889, at Bern, to consider the “well-being of the working-classes,” and the organization of an “International Labor Congress.” At the same time it suggested the following questions for consideration: Prohibition of Sunday work; fixing of a minimum age for the employment of children in factories, and a limitation of working-hours for young people; prohibition of the employment of minors and women in peculiarly unhealthy or dangerous industries; limitation of night-work; the adoption of a settled plan for the attainment of these objects. The second annual session of this conference was recently held at Berlin, by the invitation of the Emperor, who recognized that he could no longer depend on the army to repress industrial discontent. Should these conferences succeed in ameliorating the condition of the laboring classes throughout Europe, and thus lift from those countries

the darkest and most angry cloud that now hangs over them, it will be the brightest jewel in the crown of Switzerland's hegemony in the great work of international unions.

It can no longer be denied that it is possible to unite the whole globe in such organizations, now that international law, with its hypothesis of the union of many states in one humanity, extends over the greater part of the inhabited earth. There is a steadily-increasing interdependence of the nations of the world, especially of those which give themselves to commerce and manufactures, and alike of those which need a foreign field for a share of their capital. These ties unite them alike for good and evil, and render the prosperity of each dependent on the equal prosperity of all the rest. When this great truth is well understood, it may, perhaps, become the peacemaker of the world. Nations have their defects and passions like individuals, and well-established international laws, conventions, and unions are necessary to protect the weak and helpless from the strong and ambitious.

CHAPTER XXI.

SWITZERLAND AND THE EUROPEAN SITUATION.

Switzerland has no small influence on the affairs of Europe, as well by its situation as by its warlike genius. There is much of history, but still more political anomaly, written in the very conglomerate map of Switzerland. It is a land of unfulfilled destiny. The eye traces its great water-courses into the most important countries of civilized Europe, and recognizes the lines down which potent influences, social and political, are to descend. Its political boundaries do not coincide with those of nature; they are erratic, the result of wars and political vicissitudes. On the one hand, France shoots out spurs of her territory into Switzerland, and Switzerland, on the other hand, by the force of circumstances, has overlapped Italian ground, taking in Ticino south of the main chain of the Alps, which is Italian in climate and flora; a large part of the Grisons is east of the Rhine, and of the ranges separating it from Tyrol; while Schaffhausen and a couple of villages in the Canton of Basel are altogether on the north side of the line, the German town of Constance is to the south of the line. Again, if a Swiss wishes to pass from the Rhine valley to Geneva by the south bank of the lake, he must cross French territory in order to do so. The southwest frontier of Switzerland stops at Geneva, instead of extending to the Jura, which forms its natural frontier. Military writers have pointed out that the easiest route for an investing force from Germany would be through Switzerland; and similarly for a force from France, over the Jura, by Zurich, to the Rhine at Schaffhausen. "That a power which was master of Switzerland could debouch on the theatre of operations of the Rhone, the Saône, Po, or Danube; from Geneva an army could march on Lyons, from Basel it could gain the valley of Saône by Belfort, from Constance the Danube could be reached; Italy could be invaded, and the lines of defence of that country against France and Austria turned."^{[117](#)}

This potential position of Switzerland, a prominent point of moral and political contact between powerful and somewhat antagonistic powers, on the one side confining the limits of the German empire, and on the other

setting bounds to the French republic, naturally gives rise to many speculations. The gamut of these is frequently run by the newspapers; Germany making overtures for a treaty undertaking to protect Switzerland's neutrality; France negotiating for the occupation by Switzerland of the Chablais and Faucigny districts, in Upper Savoy, in accordance with the treaties of 1815 and 1830, thus preventing the intervention of Italy as against France; then the right of Switzerland to occupy certain districts of Savoy, in case of war, is held by the German authorities to have been settled by the Congress of Vienna and needs no further discussion; on the other hand, it is alleged that this right was subsequently denied by Napoleon III., after the annexation of Savoy to France; and as a culmination, Germany makes a serious proposition to Italy for the partition of Switzerland, but Italy declines the offer, preferring to have a little neutral and friendly republic than a great military empire as her neighbor; the proposition is submitted to France in turn, and also declined, as the greater portion of Switzerland being Teutonic in race and tongue, France could get but a small fragment and Italy a still smaller. The theory is also advanced of making Switzerland, Alsace-Lorraine, Luxemburg, and Belgium into a sort of federated block of neutral territory, the inviolability of which all the rest of Europe should solemnly pledge itself to accept. Regardless of these diplomatic tergiversations Switzerland continues to be governed according to the choice of its own people, and not according to the *bon plaisir* of foreign powers. The sort of negative which the Swiss government practises, and which is what the position of the country specially requires, is displayed both in the theory and execution of the Swiss federal system, and by a great prudence in foreign policy. Its policy since the beginning of the sixteenth century has been neutrality. The object of the Congress of Vienna in guaranteeing the neutrality of Switzerland was primarily strategical; it was also felt to be essential that steps should be taken to prevent any one power from gaining possession of the line of the Alps upon the breaking out of a fresh war.¹¹⁸ The appreciation of this danger was strongly expressed by the First Consul of France, in an address issued in 1803, wherein he announced: "I would have gone to war on account of Switzerland; I would have sacrificed a hundred thousand men, rather than allowed it to remain in the hands of the parties who were at the head of the last insurrection; so great is the influence of its geographical position upon France. The interests of defence bind Switzerland to France; those of attack render it of value to

other powers.” Switzerland bears relations to the great powers of contemporary civilization, in some respects, even more remarkable than those which the little strip of soil along the Jordan, at the meeting of the continents, bore to the civilizations of antiquity. Like that of Palestine, its situation, while affording small temptation to aggression upon its neighbors, is supremely advantageous for defence, for isolation from foreign influence; and yet, at the same time, for the exercise of effective influence outward upon the coterminous nations. To these advantages it adds another, in its polyglot facility of communication with the most important nations of Europe. Preserving its ancient character, content within itself, constituting a confederated republic, which, by its good order and industry, morals and laws, rivals in age the oldest monarchy with its stability of self-government,—the greatest of these monarchies cannot afford to despise its friendship. Not only securing and protecting its own liberty, but it has been the arbiter of the fate of other people. It has given examples of those qualities by which men may be so ennobled that they are respected even amid their comparative poverty and weakness; heroes, though too few to be feared by the weak, they are too brave to be insulted by the strong.

In Europe, powers of apparently inconsiderable greatness have usually brought about its most decided changes, or at least have most influenced its historical course. Thus did Venice in the times of the Crusades, and Switzerland during the Burgundian and Italian wars; as Holland at the commencement of the eighteenth century gave a new form to Europe, so did Sweden predominate in the seventeenth century, and in the earlier half of that age surpass France herself in splendor. It seems to be a capital necessity of great states to have something placed between them that may relieve the severity of their mutual friction; an arm of the sea; an impassable mountain; a small neutral state, one not strong enough to play a great part in foreign politics, but, with a modest policy, absorbed in domestic affairs; any of these may be of great importance to limit and moderate the dangerous currents of great politics. This was illustrated by the action of Austria, after the partition of Poland and the consequent juxtaposition of Russia, offering to restore its part of Poland for the purpose of reconstituting that kingdom. The present age in Europe differs entirely from that of the Middle Ages. Then the general tendency was to small states, now it is to large ones. Then there existed a number of petty monarchies and republics; the unity of the Roman empire was ideal rather than actual. The tendency to form larger

states began with England, and is seen on the continent after the latter part of the fifteenth century, and has not yet reached its limits. Everywhere there is a tendency to the formation of large and important states, speaking for the most part one language throughout their whole territory. It is promoted by the quickened impetus of trade and commerce, increased military and financial resources, improved and extended communication, and by the entire development of modern civilization. This progress towards the establishment of extensive and consolidated nationalities is conspicuously found in the present German empire. Though in no sense a restoration of the Holy Roman Empire, it is a real restoration of the ancient German kingdom, and the Kaiser fairly represents the German kingship from which the thirteen ancient Cantons gradually split off. Russia is practically the only Slavonic state; Italy comprises nearly all the Italians, except a few resident upon the head and eastern side of the Adriatic Gulf; France has by her losses in the Franco-Prussian war become more French, since neither Alsace nor Lorraine is inhabited by people of the Gallic race; Spain and Portugal comprise the entire Spanish Peninsula; Austria is a great mongrel state and represents no national aim, but is composed of fragments of various nationalities. The national question in the British Islands is not settled, and may end in separation or more probably in the formation of a federation. The smaller semi-independent principalities of Servia, Roumania, Bulgaria, East Roumelia are simply materials out of which a second Slavonic state may at some time be formed, perhaps under the authority of Russia. The natural fate of Holland is absorption into Germany; of Belgium, absorption into France. Turkey—how this cumberer of the earth can be disposed of without kindling a general European conflagration is a question that puzzles the wisest statesman. This unification might be made to play a beneficial part in checking war and improving the European situation; but so far it has merely essayed a science of combination, of application, and of deception, according to times, places, and circumstances. In the process of absorption there has not been shown much disposition to take questions of ethics into consideration in dealing with weaker peoples; even self-interest seems at times to be a less strong motive than the desire to annoy one's neighbors. Bentham somewhere proves that there is such a thing as "disinterested malevolence;" and if it exists at all, it is certainly to be discovered in the action of these great European powers. Many of them present vicious systems of military and coercive

governments; vast empires resting upon bayonets and semi-bureaucracy, an anachronism and an incubus upon the true development of national life. All these great powers are monstrous outgrowths of warlike ambition and imperial pride in different degrees and under different conditions. On nearly every battle-field great questions of dynastic and national reconstruction have hung in the balance; military operations have been the decisive factors. Huge military systems are abnormal, the morbid results of the spirit of war and domination, of national selfishness and revolutionary violence. The game of kings has become the impact of armed peoples. The Congress of Vienna settled the affairs of Europe upon a basis which endured with but few changes for almost fifty years; the great treaty of Berlin of 1878, in form an act of restitution as well as of peace, has become as dead a letter as the treaty of Paris of 1856. Principles of older date and less questionable validity than treaties patched up with premature jubilation obtain; and the solemn irony of Prince Talleyrand, that “non-intervention is a diplomatic term, which signifies much the same as intervention,” has become axiomatic. It is no exaggeration to speak of Europe as an armed camp, with the dogs of war pulling heavily on their chains. Armies of men stand scowling into one another’s eyes across a fanciful frontier, marked by a few parti-colored posts. In spite of all European assurances of “cloudless political horizons” and “luxuriant international olive-branches,” the perfection of armaments and the augmentation of already enormous armies go faithfully on. Every one who visits Europe must be amazed at the military influence that everywhere dominates, especially on the continent. “Above the roar of the city street sounds the sharp drum-beat of the passing regiment; in the sweet rural districts the village church-bell cannot drown the bugle peal from the fortress on the hill. France sinks millions in frontier strongholds, Russia masses troops in Poland and on the Pruth, Austria strengthens her fortresses in Galicia, and Germany builds railways to the Rhine and bridges to span its yellow flood.” There is no European peace, except that peace described by Hosea Biglow, which was “druv in with bag’nets.” Montesquieu, the upright magistrate, who, living under despotic rule, nevertheless insisted that by the Constitution of France its king was not absolute, sought in the records of history to discern the tendency of each great form of government, and has left his testimony that “*L’esprit de la monarchie est la guerre et l’agrandissement; l’esprit de la république est la*

paix et la modération” (“the spirit of monarchy is war and aggrandizement; the spirit of a republic is peace and moderation”).

An armed truce is preserved out of mutual terror; if tranquillity exists, it is not the repose of reasonable, kindly powers, but the crouching attitude of relentless rivals dreading the enemy whom they hate, and afraid of the destructive weapons which support modern warfare, making the “mowing down” no longer figurative, but horribly literal. Sheer force holds a larger place than it has held in modern times since the fall of Napoleon; and the will to take, without better reason than the power to hold, is naked and undisguised. One of the most melancholy forms which this aggression has taken, and seems destined to occupy so much of the future energies of imperialism, is the partition and exploitation of the vast African continent and the defenceless islands of the Pacific. It is done in the name of “civilization,” and called *l’occupation des territoires sans maître*. In the Pacific Ocean the work has been nearly completed, Samoa and Hawaii remaining as almost the last abodes of aboriginal sovereignty. Colonial extension and annexation is a veritable European Pandora’s box; war is constantly threatened for the sake of localities whose very names were previously unknown, and whose possession would seem of no practical importance. Since Dido tricked the Numidian king in her survey and purchase of a site for Carthage,¹¹⁹ the world has been in constant trouble upon the subject of boundaries, and a very large proportion of the wars between nations, like lawsuits between individuals, have arisen over disputed boundary lines. The cry of “fifty-four forty or fight,” the national watchword of the United States in 1846, has found an echo in every age. Between England and Russia smoulders the Central Asia and Turkish empire question; between England and France the matter of Egyptian occupation; Italy and France have their quarrel over Tunis and Tripoli, and the Mediterranean generally. Then there is the crux of the Balkan peninsula, where Austria and Russia glower at each other across the Carpathians; this Eastern question is opened as often as the temple of Janus, and, like that temple, its opening means war. So it goes; when pushed under at St. Petersburg, alarm makes its appearance in Paris; and when silenced on the Rhine, it causes itself to be heard among the Balkans. Russia lowers across Europe from the east, patiently waiting, and not fearing central European alliance, confident some day, by natural expansion, of overshadowing all eastern Europe, and gathering at will and in its own good time all the

Slavonic people under its suzerain guardianship. France casts a dark shadow from the west, while the “*furor Teutonicus*” and the “*furie Française*” flourish perennially in the blood-feud which has Alsace-Lorraine for its bitter badge.¹²⁰ France looks with natural uneasiness at the iron circle in which the unity of Germany and Italy is circumscribing her influence and expansion. The tremendous struggle with Germany, with its crushing defeat and the provinces torn away, left a wound that will not heal, but with its gloomy memories and poignant regrets, with its latent but unfailing suggestion of revenge, too frequently guides her policy. While a united Germany made short work with the French emperor, it left France exasperated, and probably in a less unsound condition than at any previous moment since 1789.

Germany, with the huge mass of Russia on one side and the lithe strength of France on the other, must sleep in armor; during any respite from the partisans of *la revanche* on the one frontier or a murmur of Panslavism from Moscow, Germany confronts serious problems with her congeries of states. It remains to be seen how Germany will get on without the large, comprehensive, incomparable skill and the mettle of unyielding determination with which the Iron Chancellor laid all international questions under tribute to the *Vaterland*. This continental entanglement points to England as holding the balance of power; jealous of Russia’s encroachments in the east, jealous of Austria, jealous of the power of Germany, worried with a certain uneasiness that “the circles of the morning drum-beat” may be broken, England finds in this situation much food for contemplation and conjecture. All European movements, especially on the part of the Great Powers,¹²¹ profess to have no other object than to preserve their “political equilibrium” or the “balance of power.” Excepting the wars of religion, most European wars of the last three centuries have sought justification in this pretext, which is but another phase of the boundary question. Up to a very recent date the English Parliamentary grants for supplies needed to support the army were expressly recited to be made for the purpose “of preserving the balance of power in Europe.” The “European Concert,” with its brood of auxiliaries, in the *modus vivendi*, *status quo*, and *entente cordiale*, interlarded with numerous *pourparlers*, separating *re infecta*, is not the harmonious institution its musical title would indicate; but disagreements are constantly arising as to who shall be *chef de musique* and

who shall play second fiddle. It is a mere decorous synonyme for "European discord." When not having in view a general scheme of spoliation, it is looking to the carving out the shape, the conditions, and the destinies of the remaining small states, with a cynical indifference as to the weal or wish of the populations. European powers are simply racing in the absurd and ruinous rivalry for the mightiest battalions and the heaviest budgets. Under the plea of *si vis pacem para bellum* each one is striving to steal a march upon its neighbors, absolutely blind to the obvious fact that with each fraction of accelerated speed in one all the rest perforce quicken their pace. The danger of this much misused axiom, which advises the securing of peace by preparing for war, brings a crushing burden of apprehension; it involves conduct that betrays designs of future hostility, and if it does not excite violence, always generates malignity with a sly reciprocation of indirect injuries without the bravery of war or the security of peace. From such a condition some chance tide rather than any chosen course may any day cause a rupture. Nations drift into war, and peace is rarely disturbed by serious matters. The commercial necessities of Europe cannot much longer bear the severe strain of this unnaturally swollen and crushing militarism, a conscription so ruthless which demands one inhabitant out of every hundred and takes one producer out of every twenty, transferring him from the ranks of tax-payers to the ranks of tax-consumers. This strain must be lessened or it will infallibly snap; the people are merely the soldiers of an army, they are drilled rather than governed; the workman is getting tired of going to his labors carrying a soldier upon his back; the masses are coming to regard appeals to their patriotism as full of bitter mockery, being mere appeals to kill their neighbors or distant races that they and their children may be more permanently enslaved at home. A universal revolt is inevitable against exactions so intolerable, idiotic, and inhuman. If those alone who "sowed the wind did reap the whirlwind" it would be well, but the mischief is that the madness of ambition and the schemes of diplomacy find their victims principally among the innocent and the unoffending. The cottage is sure to suffer for every error of the court, the cabinet, or the camp, like the torrent which originates, indeed, in the mountain, but commits its devastation in the vale. If there is no check on this increasing demand upon the lives and property of the masses, "this devouring mischief of militarism which is consuming the vitals of Europe," the mightiest potentate may find that he has to face a combination of the

toiling and suffering classes against which all his weapons will be futile. "Great," says Carlyle, "is the combined voice of men, the utterance of their instincts, which are truer than their thoughts; it is the greatest a man encounters among the sounds and shadows which make up this world of time." There is no constitution and no despotism which could stand against it for a moment. The modern emperor is only an apparition in comparison with the imperial muscle and bone of his ancient prototype; no longer he is regarded as the "deputy elect of the Lord," whom the "breath of worldly men cannot depose." A revolt, political in its aims but economic in its origin, will take place; an economic revolt tending to change the economical conditions of the masses and a political revolt tending to modify the very essence of the political organization, demanding that these vast armies be disbanded, the swords turned into ploughshares, and the victory of the industrial over the military type of civilization be established. A revolution toward the final abolition of feudalism with its arbitrary privileges for the few and its excessive burdens for the many, toward the fuller participation of the people in the work of government and their more efficient protection in the enjoyment of the fruits of their labor. Otherwise the dilemma is a sad one,—to remain a colossal arsenal or become a wild field of devastation; war would mean destruction of human life and of the elements of national prosperity beyond precedent. Whether these immense armaments will be peacefully discontinued or war ensue as the only solution, and if so, what will be its effect on the map of Europe, are all momentous questions beyond the ken of man. The powers leagued together in the Triple Alliance may, if favored by the wealth and maritime power of England, serve as a potent guarantee for the maintenance of peace. This European drama is unfolding its actions slowly, so that no one can tell what it will bring forth; constantly new novelties are being introduced upon the stage with an increasing number of hints of stranger things to come. The prominent persons in the play, though preserving a romantic air of mystery, manage constantly to throw off a multiform mass of suggestions, speculations, and visions. What is developing astonishes the mind while it fascinates the imagination, for it seems to be nothing less vast and portentous than the passing away of the whole existing order of things almost without notice, certainly without comprehension. What proportions this gigantic, this politico-social movement will assume, how much of what is old it will leave standing, what the new order will be like, these are

questions which Europe's brain has not yet fairly grasped, much less tried to answer.

There is a strong continental opinion that in the event of war Switzerland can hardly hope to successfully maintain the position assumed by it in 1870; that it occupies too small a space in the great chart of European political and military calculations to have much weight attached to its views. With less confidence in treaty guarantees than in the maxim of Cromwell, whose Ironsides were taught to "put their trust in God and keep their powder dry," Switzerland will heed the advice given in the reply of the German chancellor, when asked in 1870 to what extent Swiss neutrality would be observed, said, "to the extent to which you yourselves respect the device of the Scottish Order of the Thistle, '*nemo me impune lacessit*.'" Switzerland can no longer rely upon its mountain wall, which for so many ages, combined with other geographical advantages, formed a safe breastwork against the invader. Nature herself seemed to have thrown her arms around Helvetia to protect her from the invader; and by encompassing her with inaccessible mountains, tremendous precipices, and stupendous masses of eternal ice, to make her, as Frederick the Great of Prussia described the lords of Savoy, "kings by virtue of their locality." The craggy escarpments, bastioned with horrid precipices, parapeted and battlemented with eternal snow, were the ramparts of the cradle of her liberty; they played a great part:

"That like giants stand
To sentinel enchanted land."

Then Switzerland was self-contained, and enemies could not get at it. It could say with the Psalmist, "I will lift mine eyes unto the hills, from whence cometh my help." "We did not fear," said the shepherds of Uri, "the armies of France; we are *four hundred* strong, and if that is not sufficient, *four hundred* more in our valley are ready to march to the defence of the country." In the same spirit wrote the Council of Bern, "A handful of Swiss is a match for an army; on our own soil, with our mountains behind us, we can defy the world." The Helvetic Confederacy made the greatest and most powerful nations of Europe tremble in the fifteenth century; but Switzerland is no longer defended by natural frontiers; its two great cities, that of

Geneva on the one side, and Basel upon the other, lie open to the invader, and the occupation of two or three points upon its railway system (which but for its army could be easily reached) would paralyze its defence; the strength with which nature had endowed Switzerland under the old condition of things has been wellnigh cancelled by the grand appliances of modern science, wealth, and organization. Modern Switzerland is now no stronger than any other part of Europe. Defence no longer can be intrusted to natural ramparts, the Alps, and mountaineers, led by the sound of the horn, and armed with the bow of Tell. The strength of Switzerland is exactly proportioned to its armed force; numerical strength preponderates in military fields, and victory attends the largest army. This implies no impeachment of Swiss courage and patriotism; that love of country, wrought into a great and noble sentiment, which summons to its aid every better portion of human excellence; that exalted power which gives vigor and efficacy to our exertions as citizens, which strengthens our constancy and animates our valor, which heightens our contempt of danger and inflames our impatience of oppression. There is no safer criterion of the virtue and happiness of a people than the height to which their attachment for their country is raised, and the difficulties which they are prepared to encounter in rescuing it from danger or exalting it to glory. As patriotism is always more intense in small states, where union for the purposes of self-preservation is more indispensably necessary, so the same institutions which have engaged the affections of the Swiss will likely inspire them with the courage and wisdom requisite for their defence. Switzerland will be prepared in event of a rearrangement of the map of Europe, by which it is likely to be effected, to demand a voice in the general summing up. Even to the diplomatist, who, wanting to reach an understanding, must have something behind it to command attention and respect, and exclaims, "Don't trouble me with your arguments, tell me with what force you will back them," Switzerland is not without an answer. The republic is not unprepared for war, as already shown in the chapter on the army; every man in shop and field would start into a soldier at the bugle's call; a soldier armed, equipped, and ready for the march. Great sacrifices are willingly made in order to keep on foot an admirable democratic army. All the adjuncts for making this army a mobile factor in the field are under the Swiss system complete and in thorough working order. It could put into the field and maintain effectively 200,000 men, to prove that Switzerland was

not a “mere geographical expression,” but a very formidable entity. The Swiss General Dufour, in a letter addressed to the French minister of war, just before the war broke out in 1870, after giving the size of the Swiss army, added: “Beyond all these defences we can count upon the national spirit in the heart of every citizen; a resolution to protect our independence and neutrality, let the storm break on us from whatever side it may.” What 200,000 brave Swiss sharpshooters might do defending their liberty in those mountain fastnesses no European army would care to learn by close experience. Their stout hearts and hardy arms will be ever ready, as in preceding ages, to vindicate against countless hosts their personal liberty and the independence of their country.

The Swiss government is not unaware that its neutrality may at any time be endangered; that a small state is always in danger when it stands in the way of the arms or the ambition or the greed of the great ones, that if its territory offers a convenient route for the rival armies, they would not hesitate to brush away its neutrality, in spite of all guarantees, as the Allies did in 1814. Accordingly for years past the government has been quietly but steadily preparing to defend the country in such an event. The plan, so far, consists in the fortifications of the summit of St. Gothard; the plateau of Andermatt commands not only the base of the St. Gothard, but the valleys, and whoever is able to hold it can prevent any passage across Switzerland from south to north. Since 1885 nearly 10,000,000 francs have been spent on the strengthening of this commanding position; forts have been placed so as to confront each of the four roads by which alone the stronghold can be passed, and it is thought that a large force of troops make it convenient to be cantoned in the vicinity, ready to make the most of the facilities for repelling intrusion when the occasion requires. They certainly could offer stubborn resistance to any junction being effected between portions of the German and Italian armies. The military Alpine roads, Furka, Ober-Alp, and Axenstrasse, are all kept in good condition by liberal appropriations.

Ever since 1830, when the religious refugees from France, England, and Flanders sought shelter there, and who, Sismondi relates, were wont to fall down on their knees and bless God when they came in sight of the Swiss mountains, the *right of asylum* has been a difficult question for Switzerland, occasioning constant diplomatic collision. In 1838 the demand of the French government for the expulsion of Louis Napoleon, which was

declined by Switzerland, almost led to war, and it was probably only avoided by his voluntary departure. Switzerland has never flinched from this sacred and most embarrassing duty of hospitality to the oppressed. The influx of political fugitives from the despotic countries of Europe, seeking shelter from their pursuers, has involved it in many a bitter discussion with powerful neighbors, but it has stood firm in maintaining the sanctity of its principles and soil, in the face of their overwhelming force and domineering spirit. A determined rejection of foreign interference in its domestic affairs has been maintained, and when in 1847 the blockade or cordon was established, all access to the rebel district was forbidden to foreign agents. Under the constitution the federal authorities have the right to expel from Swiss territory any foreigners whose presence endangers the internal or external security of the Confederation. An asylum is offered to the members of all parties suffering political persecution, as long as they show themselves worthy of such consideration by peaceful conduct. The republic, however, grants them no asylum, if, while on its territory, they continue their intrigues and attacks on the existence and security of other states. It preserves a faithful regard for its international obligations, and, as an evidence of its firm determination to fulfil them, keeps a federal official, known as the *Procurator General*, whose duty it is to prosecute any foreigners, socialists, nihilists, and *agents provocateurs*, and other dangerous types, who abuse the hospitality of the country for the shelter and promotion of schemes endangering either its international peace or internal security. In July, 1890, Germany gave notice to Switzerland that the treaty between the two countries, regulating the "settlement of foreigners," would not be renewed at its expiration, which occurs at the end of 1891. This question of asylum involves in its handling the utmost skill and judgment; anything like bravado or anything like servility would be equally out of place. A dignified and wise discretion is necessary to enable Switzerland to continue to offer a safe refuge to the proscribed victims of the endless political revolutions and counter-revolutions of the surrounding nations, but it is believed, complicated as it is with delicate entanglements of diplomatic relations, and suspicions of countenancing schemes of anarchy, it will continue to meet every exigency of the question with an honest and fearless policy.

If the acquisition of power has a certain tendency to weaken the ties of federal union, we should expect that a Confederacy, deprived by natural as

well as adventitious circumstances of all pretension to political power, would for that reason possess in a superior degree the merit of stability. Everything that sets in motion the springs of the human heart, engages the Swiss to the protection of their inestimable privileges. Bold and intrepid; a frame fitted to endure toil; a soul capable of despising danger; an enthusiastic love of freedom; an abhorrence of the very name or emblem of royalty illustrated in ages of heroic and martial exploits, that with steadfast and daring enterprise built up a nation and a state; with these qualities they will, if the necessity comes, bear in mind the warning of their own Rousseau, "Ye free nations, remember this maxim, freedom may be acquired, but it cannot be recovered." In the moment of peril the Swiss will be moved by the spirit of their brave old Landammann, who answered the Duke of Burgundy: "Know that you may, if it be God's will, gain our barren and rugged mountains; but, like our ancestors of old, we will seek refuge in wilder and more distant solitudes, and when we have resisted to the last, we will starve in the icy wastes of the glaciers; men, women, and children, we will be frozen into annihilation together, ere our free Switzer will acknowledge a foreign master."

There may be a deeper danger awaiting Switzerland, to which no spirit, however vigorous and resolute, can be commensurate—a danger from within and not from without. The nation which, by the adverse circumstances of numerical inferiority, poverty of means, or failure of enterprise, cannot sustain its own citizens in the acquisition of a just renown and material welfare, is deficient in one of the first and most indispensable elements of strength. A small state is apt to waste its strength in acts too insignificant for general interest, frittering away its mental riches, no less than its treasure and blood, in supporting interests that fail to enlist the sympathies of any beyond the pale of its own borders; glory and strength, like riches, finding themselves, and being most apt to be found, where their fruits have already accumulated. If from any source evil should come to this little republic, in the patriotic words of its latest historian, "Generations will point to the spot where it arose and flourished, and will say, Here once lived a free, self-governing people, a small but active republic, with remarkable institutions, with a famous and memorable history."

POPULATION AND SOIL, CENSUS, 1888.

Order.	CANTONS.	Population.	Total area. Sq. km.	Productive. Sq. km.	Unproductive. Sq. km.
1	Zurich	339,014	1,724.7	1,616	108.7
2	Bern	539,305	6,889	5,385.7	1,503.3
3	Luzern	135,780	1,500.8	1,369	131.8
4	Uri	17,284	1,076	477.7	598.3
5	Schwyz	50,396	908.5	660.2	248.3
6	Unterwalden				
	Obwald	15,032	474.8	399.4	75.4
	Nidwald	12,524	290.5	217.9	72.6
7	Glarus	33,800	691.2	448.6	242.6
8	Zug	23,120	239.2	194.3	44.9
9	Freiburg	119,562	1,669	1,469.6	199.4
10	Solothurn	85,720	783.6	717.8	65.8
11	Basel				
	Stadt	74,247	35.8	30.4	5.4
	Landschaft	62,133	421.6	405.6	16
12	Schaffhausen	37,876	294.2	281	13.2
13	Appenzell				
	Ausser-Rhoden	54,200	260.6	253.6	7
	Inner-Rhoden	12,906	159	144.4	14.6
14	St. Gallen	229,441	2,019	1,713.5	305.5
15	Grisons	96,291	7,184.8	3,851.6	3,333.2
16	Aargau	193,834	1,404	1,341.7	62.3
17	Thurgau	105,091	988	835.6	152.4
18	Ticino	127,148	2,818.4	1,880	938.4
19	Vaud	251,296	3,222.8	2,728.8	494

20 Valais	101,837	5,247.1	2,409.9	2,837.2
21 Neuchâtel	109,037	807.8	572.3	235.5
22 Genève	106,738	279.4	232.9	46.5
Total	2,933,612	41,389.8	29,637.5	11,752.3

MONEY, WEIGHTS, MEASURES.

Franc	Cents, 19.3.
One hundred centimes	One franc.
Metre, equal to	1.094 yards.
Kilometre, equal to	.621 mile.
Metric quintal, or metre centner, equal to	100 kilogrammes, or 2 cwt. nearly (1 cwt. 3 qrs. 24½ lbs.).
Square kilometre, equal to	.386 square mile.
Hectare, equal to	2½ acres nearly (2 acres, 1 rood, 35½ poles).
Centner, equal to about	110¼ lbs.
Cubic metre, equal to	1.308 cubic yards.
Litre, equal to	.88 quart.
Hectolitre, equal to	22 gallons.

CENSUS OF 1888.

AREA—PRODUCTIVE AND UNPRODUCTIVE LAND.

Productive Land.

Forest	7,714.2	square kilometres.
Vineyards	305.0	” ”
Cultivated	21,618.3	” ”
Total	29,637.5	” ”

Unproductive Land.

Glaciers	1,838.8	square kilometres.
Lakes	1,386.1	” ”
Cities, villages, and outer buildings	161.8	” ”
Area of railroads, turnpikes, etc., rivers and rocky wastes	8,365.6	” ”
Total	11,752.3	” ”

Population as to Confessions.

Protestants	1,724,869
Catholics	1,189,662
Jews	8,384
Others	10,697

As to Languages.

German	2,092,479
French	637,710
Italian	156,482
Others	8,565

ORDER AND DATES OF THE ENTRY OF THE TWENTY-TWO
CANTONS INTO THE CONFEDERATION.

Order of entry.	French name.	German name.	Year.
1	Zurich	Zürich	1351.
2	Berne	Bern	1353.
3	Lucerne	Luzern	1332.
4	Uri	Uri	1291.
5	Schwytz	Schwyz	1291.
6	Unterwalden	Unterwalden	1291.
	Le haut	Obwald	

Le bas	Nidwald	
7 Glaris	Glarus	1352.
8 Zoug	Zug	1352.
9 Fribourg	Freiburg	1481.
10 Soleure	Solothurn	1481.
11 Bâle	Basel	1501.
Ville	Stadt.	
Campagne	Landschaft.	
12 Schaffhouse	Schaffhausen	1501.
13 Appenzell	Appenzell	1573.
Rhodes-Extérieures	Ausser-Rhoden.	
Rhodes-Intérieures	Inner-Rhoden.	
14 St. Gall	St. Gallen	1803.
15 Grisons	Graubünden	1803.
16 Argovie	Aargau	1803.
17 Thurgovie	Thurgau	1803.
18 Tessin (It. Ticino)	Tessin	1803.
19 Vaud	Waadt	1803.
20 Valais	Wallis	1814.
21 Neuchâtel	Neuenburg	1814.
22 Genève	Genf	1814.

APPENDIX.

COPY OF THE LATIN “PACT OF 1291” IN THE ARCHIVES OF SCHWYZ.

In nomine domini Amen. Honestati consulitur, et vtilitati publice prouidetur, dum pacta, quietis et pacis statu debito solidantur. Novereint igitur vniversi, quod homines vallis Vranie, vniversitasque / vallis de Switz, ac communitas hominum intramontanorum vallis inferioris, maliciam temporis attendentes, ut se, et sua magis defendere valeant, et in statu debito melius consevare, fide / bona promiserunt, inuicem sibi assistere, auxilio, consilio, quolibet ac fauore personis et rebus, infra valles et extra, toto posse, toto nisv, contra omnes ac singulos, qui eis vel alicui de ipsis, aliquam / intulerint violenciam, molestiam, aut iniuriam, in personis et rebus malum quodlibet machinando, ac in omnem eventum quelibet vniuersitas, promisit alteri accurrere, cum neccesse fuerit ad succurrendum. / et in expensis propriis, prout opus fuerit, contra inpetus malignorum resistere, iniurias vindicare prestito super hiis corporaliter iuramento, absque dolo servandis, antequam confederationis forman iuramento vallatam, presentibus innovando, / Ita tamen quod quilibet homo iuxta sui nominis conditionem domino suo conuenienter subesse teneatur et seruire. Comuni etiam consilio, et fauore vnamimi promisimus, statuimus, ac ordinauimus, vt in vallibus prenotatis, nullum / iudicem, qui ipsum officium aliquo precio, vel peccunia, aliqualiter conparauerit, vel qui noster incola vel provincialis non fuerit aliquatenus accipiamus, vel acceptemus.

Si uero dissensio suborta fuerit, inter aliquos conspiratos, prudencio— / res de conspiratis accedere debent, ad sopiendam discordiam inter partes, prout ipsis videbitur expedire. et que pars illam respuerit ordinationem, alii contrarii deberent fore conspirati. Super omnia autem, inter ipsos extitit / statutum, ut qui alium fraudulenter, et sine culpa tracidauerit, si deprehensus fuerit uitam ammittat, nisi suam de dicto maleficio valeat ostendere innocenciam, suis nefandis culpis exigentibus. et si / forsan discesserit nunquam remeare debet. Receptatores et defensores prefati malefactoris, a vallibus segregandi sunt, donec a coniuratis prouide reuocentur. Si quis uero

quemquam de conspiratis, die sev / nocte silentio, fraudulenter per incendium uastauerit, is numquam haberi debet pro conprouinciali. Et si quis dictum malefactorem fovet et defendit, infra valles, satisfactionem prestare debet dampnificato. Ad / hec si quis de coniuratis alium rebus spoliauerit, vel dampnificauerit qualitercumque, si res nocentis infra valles possunt reperiri, servari debent, ad procurandum secundum iusticiam levis satisfactionem. Insuper nullus capere / debet pignus alterius nisi sit manifeste debitor, vel fideiussor, et hoc tantum fieri debet de licencia iudicis speciali. Preter hec quilibet obedire debet suo iudici, et ipsum si neccesse fuerit iudicem ostendere infra / sub quo parere potius debeat iuri. Et si quis iudicio rebellis extiterit, ac de ipsius pertinasia quis de conspiratis dampnificatus fuerit, predictum contumacem ad prestandam satisfactionem, iurati compellere tenentur / uniuersi. Si uero guerra vel discordia inter aliquos de conspiratis suborta fuerit, si pars vna litigantium, iusticie vel satisfactionis non curat recipere complementum, reliquam defendere tenentur coniurati. Supra / scriptis statutis, pro communi vtilitate, salubriter ordinatis, concedente domino, in perpetuum duratis. In cuius facti euentiam presens instrumentum, ad petitionem predictorum confectum, Sigillorum prefatarum / trium vniuersitatum et vallium est munimine roboratum. Actum Anno domini. M.CC.LXXX. primo. Incipiente mense Au-gu-sto.

TRANSLATION.

IN THE NAME OF THE LORD—AMEN!

Virtue is promoted and utility provided for by the state so long as covenants are firmly established with a proper basis of quiet and peace, therefore, let all men know that the valley of Uri and the entire district of the valley of Schwyz and the community of the intramontane people of the lower valley, while regarding the evil character of the times, with the view of being able more efficiently to protect themselves and their interests, and better to preserve them in their proper condition, have promised in good faith mutually to stand by one another with their help, advice, and undivided support, in their persons and property, within and without the valleys, with their entire force and united effort against all men and singular who shall inflict upon them or upon any one of them any violence, molestation or injury in plotting any evil against their persons and property,

and every district has promised to another in every event to make haste whenever it shall be necessary to render it help. They also (have promised) at their individual expense to resist, as it shall be necessary, the attacks of the evil-intending, to avenge wrongs, having taken their oath corporal touching the faithful preservation of these presents from change before the ratification by oath of the instrument of Confederation. So, however, that any and every person is to be held to be subject to and to serve his Lord exactly according to the terms of his obligation. We also have promised, decided, *and more*, ordained by common resolve and unanimous assent that we will not, to any extent, accept or acknowledge any judge who shall secure the office itself at some price, or by money, by any other device, or who shall not be one of our inhabitants or a provincial.

But if a disagreement shall arise among any of the Confederates, the more discreet of them ought to come forward to allay the variance among the parties just as it shall appear to them to be expedient, and the party which shall reject the settlement *decided upon*, it were proper for the other Confederates to be their adversaries.

Moreover, above all things, it has been ordained among them that he who shall wrongfully and without provocation murder another, if he shall be arrested, shall lose his life, as his heinous wrong-doing demands, unless he shall be able to show his innocence touching the alleged crime, and if perchance he shall leave the country, he must never return, the harborers and defenders of the aforesaid malefactor are to be cut off from the valleys until they be recalled with due foresight by the Confederates. But if any one shall in the daytime or in the silence of night maliciously injure any one of the Confederates by burning, he ought never to be regarded as a fellow-provincial. And if any one harbors and defends the alleged evil-doer within the valleys, he ought to render satisfaction to the person who has sustained the loss. In addition, if any one of the Confederates shall rob another of his property or otherwise inflict loss upon him, if the property of the offending party can be found within the valleys, it ought to be held for procuring satisfaction for the injured according to justice.

Moreover no one ought to take the pledge of a second unless this one be clearly a debtor or security, and this ought to be done only in accordance with a special license of a judge. Furthermore, any and every one ought to obey his judge, and to indicate the very judge, if it shall be necessary, under

whom he by choice assumes the obligation to obey the law. And if any one shall show himself defiant of the decision of a judge, and in consequence of his perverseness any of the Confederates shall be damaged, all who are under oath are held to force the aforesaid obstinate one to render satisfaction. But in case war or violent division shall arise among any of the Confederates, if one party of the disputants is not disposed to receive the award of justice or satisfaction, the Confederates are held to defend the remaining party.

The statutes above written are wholesomely ordained in behalf of the public advantage with an unlimited duration, the Lord consenting thereto. As an evidence of this act the present instrument, made according to the petition of the aforesaid persons, is confirmed by the authority of the seals of the aforementioned districts and valleys. Done in the year of the Lord 1291, in the beginning of the month of August.

The above translation was kindly made by Professor W. E. Peters, of the University of Virginia, and in transmitting it he says: "I send you a literal rendering of the Pact, the original is exceedingly rough and incorrect according to classical standards. I think, however, the sense is given. I render *vniversitas* as district, and Commune might be embraced in brackets; I would render it *Canton*, but the Swiss Cantons were not then formed, and the term Commune hardly expresses the sense, as it is French. I have had in some cases to force translation where the Latin is absolutely corrupt and wrong. I have aimed to make the translation, as you desired, strictly according to the Latin, and not according to what was permissible with the Latin and its collocation."

The Honorable John D. Washburn, United States Minister at Bern, in an article contributed to the American Antiquarian Society of Worcester, Mass., April, 1890, on the "Foundation of the Swiss Republic," referring to the Pact of 1291, says: "The foundation stone on which it is generally understood that the whole superstructure [of the Swiss Republic] rests is known as the Pact—Letter of Alliance, *Bundesbrief*—of 1291. This is not a myth, but, apart, perhaps, from absolute exactness of date and some extraneous circumstances alleged to attend it, a well-established record of

history. This instrument well repays a careful study, not only as a wonderfully bold declaration of modified independence at a very early day, but as especially interesting to the American student for the remarkable parallels of thought in the minds of these ancient men, and in the minds of those who nearly five hundred years later made the preliminary declarations of American Independence.”

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THE END.

FOOTNOTES

- [1](#) Müller, “Histoire des Suisses.”
- [2](#) “History of the Helvetic Confederation,” Lausanne, 1650.
- [3](#) See Appendix for original Pact and translation.
- [4](#) A federal executive officer resembling the French consul.
- [5](#) The history of Switzerland affords frequent instances of mutual succors for these purposes.
- [6](#) After this battle Francis stamped on his medals, “*Vici ab uno Cæsare victos*” (“I vanquished those whom Cæsar alone had before vanquished”).
- [7](#) It was only in 1857 that the anomalous condition of Neuchâtel ceased. The rights of the kings of Prussia as sovereigns date back to the cession made of it in 1707 by William of Orange to his cousin Frederick, first King of Prussia. In 1806 it was granted as a principality to Marshal Berthier, and so recognized by all the powers of Continental Europe. The Congress of Vienna restored it to the King of Prussia, making it, however, a Canton of the Helvetian Republic. In 1848 a revolution forcibly overturned the authority of the King of Prussia, and it so remained, in apparent conflict to what had been formally recognized by all the Great Powers, until 1857, when a treaty was signed between Austria, France, Prussia, Russia, Great Britain, and Switzerland, by which it was made independent, to continue to form a part of the Swiss Confederation, by the same title as the other Cantons.
- [8](#) Rufus Choate.
- [9](#) Book xxi., ch. 31.
- [10](#) The dog Barry, one day, found a little child in a half-frozen state; he began directly to lick him, and having succeeded first in restoring animation, and next in the complete resuscitation of the boy, he induced the child by his caresses to tie himself on his back. When this was effected, he carried the poor child, as if in triumph, to the hospice. The body of Barry was stuffed and placed in the museum at Bern, and may be seen there, with the little vial still hanging to his neck in which he carried a reviving drink for the perishing traveller.
- [11](#) Zwingli lost his life in 1531 in the battle of Cappel; though he fell under another banner than that of the Prince of Peace, he was acting in obedience to the law of the republic, and accompanied the army by the express command of the magistrates. He is represented as a man of great meekness and moderation and charity, and, amidst all the disputes, was a constant advocate for peace and reconciliation.
- [12](#) A hair-dresser of Geneva was imprisoned for arranging a bride’s hair with too much attention to vanity; and a woman was beaten for singing secular words to a psalm-tune; men were imprisoned for reading what were considered profane books, and children beheaded for striking a parent.
- [13](#) The old curator of the Bern Museum would say to the visitors, pointing to the portrait of Voltaire, “There is the portrait of the famous M. de Voltaire, who dared to write AGAINST THE REPUBLIC and against God.”
- [14](#) Professor Fiske.

- [15](#) These words, it may be remarked, are from the same root, *ligo*, to bind.
- [16](#) Agreements to furnish soldiers to foreign countries.
- [17](#) There are many provisions regulating the rights of citizens and electors, Cantonal and Communal, which are given in Chapters 6 and 9, and “Chapter on Citizenship.”
- [18](#) It reads in the French text, “From his natural judge,” the natural or constitutional judge being the one provided by the terms of the judicial Constitution, and as contradistinguished from an exceptional Court created after the appearance of the case to be adjudged.
- [19](#) See amendment of December, 1887.
- [20](#) See amendment of June, 1879.
- [21](#) Homeless persons, *Heimathlosen*. These comprise not only foreigners who have lost their nationality of origin without having obtained another, but also natives who are not members of any Swiss Commune.
- [22](#) The Constitutional provisions relating to these are fully given in chapters severally devoted to these Departments.
- [23](#) The Constitution is officially published in *Romansch* and *Ladin*, in addition to the three “national languages.”
- [24](#) That the Constitution-making and amending power should be vested in a bare majority of the voting citizens, coupled with a majority of the Cantons, is considered by some as wanting in that solidity and security which are the most vital attributes of a fundamental law. But none of the enactments contained in the Swiss Constitution can be legally abolished or modified without the employment of the *Referendum*. And no law which revises the Constitution, either wholly or in part, can come into force until it has been regularly submitted by means of the *Referendum* to the vote of the people, and has been approved by a majority of the citizens who on the particular occasion gave their votes, and also by a majority of the Cantons. It is also provided, that under certain circumstances a vote of the people shall be taken not only on the question, whether a particular amendment or revision approved by the Federal Assembly shall or shall not come into force, but also on the preliminary question whether any revision or reform of the Constitution shall take place at all. And the *Referendum* in all such cases, in the language of the Constitution, is “obligatory.” The self-imposed checks of the Constitution of the United States, in this respect of amendment, have been described as “obstacles in the way of the people’s whims, not of their wills.” The system of the Initiative for the Swiss constitutional revision (by 50,000 citizens), though modelled upon one of the alternative methods by which amendments to the United States Constitution may be proposed, contains one significant modification of it; the people in the former appear in their national character and independent of state lines; the same holds true of the ratification of amendments.
- [25](#) In 1480 fifteen hundred executions took place in Switzerland.
- [26](#) By a Federal law to carry out this amendment, the distilled liquors are sold for cash by the Confederation in *minimum* quantity of a hundred and fifty *litres* (0.88 quart), and the price to be fixed from time to time by the Federal Council; but it shall never be less than one hundred and twenty francs nor more than one hundred and fifty francs per *hectolitre* (twenty-two gallons) of pure alcohol. Denaturalized spirits to be sold at cost price for technical and household use.

- [27](#) The Swiss Constitution contains 7700 words and 127 articles (including temporary provisions); that of the United States, 5300 words, divided into 37 sections.
- [28](#) “American Historical Association,” vol. i., p. 37. Professor Scott.
- [29](#) It was the original purpose of the writer to include, as an appendix to this volume, a translation of the Swiss Constitution; a faithful search having failed to discover any publication of it in English. But having ascertained that during the current year two such translations had appeared, one by Professor Edmund J. James, University of Pennsylvania, the other by Professor Albert Bushnell Hart, of Harvard, copies were obtained, and found to meet, in a most satisfactory and excellent manner, every possible demand for such a work. However, every important provision, and, in fact, almost the complete text of the Constitution, appears in the copious citations from it in the chapters on the Federal Departments, Cantons, Communes, and the Army.
- [30](#) John Adams, Works, iv., p. 186.
- [31](#) Previous to 1874 the members received only twelve francs a day.
- [32](#) Woodrow Wilson, “The State.”
- [33](#) Federal legislation may confer upon the Assembly the election or confirmation of other federal officials.
- [34](#) This power was exercised in connection with the Neuchâtel revolution of 1856, the Royalist prisoners and deserters being amnestied in 1857.
- [35](#) In 1874 it was fixed by a federal law that the Assembly should convene on the first Monday in June for the first, and on the first Monday in December for the second portion of the regular annual session.
- [36](#) The remuneration of these officials in 1848, when the system was inaugurated, was much smaller; the President receiving only 6000 francs a year and each of the other members 5000 francs.
- [37](#) This election occurs during December of each year on a day agreed upon by the Assembly.
- [38](#) Although the Assembly cannot exactly turn out the members of the federal executive during their term of office, it enjoys such extensive power of supervision and control over their acts, and, in fact, exercises so large a part of what is called executive discretion, that it can practically have very little reason for desiring to remove them.
- [39](#) “All such laws are adopted by the people, either tacitly or through the *referendum*; and the judiciary must submit their judgment on constitutional questions to the will of the people.”—Dubs, “Das Oeffentliche Recht der Schweizerischen Eidgenossenschaft.”
- [40](#) Marbury vs. Madison, 1 Cranch, 137. Mr. Madison disregarded the *obiter* opinion of the court, and Mr. Jefferson treated it with contempt. “The federal judges,” he said, “declared that commissions signed and sealed by the President were valid, though not delivered. I deemed delivery essential to complete a deed, which as long as it remains in the hands of the party is as yet no deed. It is *in posse* only but not *in esse*, and I withheld delivery of the commissions.” (Letter to Judge Roane, September 6, 1819. Works, vol. vii. p. 135.)
- [41](#) “Political Science Quarterly,” June, 1890. C. B. Elliott.
- [42](#) See also Professor Bryce, “American Commonwealth,” i. p. 237.
- [43](#) Kent’s Commentaries, i. p. 453.
- [44](#) Burke.

- [45](#) A common standard of weights and measures was adopted in 1835, but the question of the coinage remained unsettled until 1848.
- [46](#) It was customary, formerly, to deduct from five to ten per cent. from all property going out of the Canton by inheritance or marriage. It was also usual, when a person wished to sell land, to recognize a right in his relatives, or even neighbors, or fellow-citizens of the Canton, to take the property at an arbitrated value.
- [47](#) Communities include school, church, and political territorial divisions, and only the latter are designated as Communes.
- [48](#) Repealed in 1879, relegating it to the discretion of the Cantons except as to “political offences.” Since then eight of the Cantons have re-established capital punishment in their codes. They are the small Cantons, and represent only twenty per cent. of the Swiss population. No execution, however, has taken place in any of these Cantons since 1879; two sentences of death have been passed, but in both cases they were commuted to imprisonment for life.
- [49](#) Professor Dicey, “Law of the Constitution.”
- [50](#) These horns are made to imitate the human voice, and have a most mournful bellow.
- [51](#) This is done to secure religious equality and to provide for the representation of the Catholic population in the Communes in which they are in the minority.
- [52](#) *Et in corruptissima republica plurimæ leges.*—Tacitus.
- [53](#) Professor Dicey.
- [54](#) Numa Droz.
- [55](#) See chapter on citizenship.
- [56](#) Thomas Jefferson.
- [57](#) See chapters on “Constitution” and “Cantons.”
- [58](#) This includes, also, birth abroad of children of American citizens temporarily residing or travelling in other countries (Rev. Stat. U. S., Sec. 1993).
- [59](#) “Citizenship of the United States,” Richman,—“Political Science Quarterly,” March, 1890.
- [60](#) “A citizen of a State is now only a citizen of the United States residing in that State; citizenship of the United States is the primary citizenship; State citizenship is secondary and derivative, depending upon citizenship of the United States.” (Slaughter-House cases, 16 Wallace.)
- [61](#) The difficulty of obtaining citizenship, at one time, in the pastoral Cantons, is shown by the fact that no one had done so in lower Unterwald from 1664 to 1815.
- [62](#) The successful issue of this suit was due to the vigorous and determined efforts of the United States consul at Zurich, George L. Catlin.
- [63](#) These peasant proprietors do not live scattered amid the fields which they till, but are disposed to gather in the centre of the Commune, forming numerous small hamlets.
- [64](#) Called in the Roman law *legitima portio*, legitimate portion; but the German law has a better designation for it,—*Pflichttheil*, duty part.
- [65](#) In the district of Saffelare, a part of East Flanders, which nature has endowed with an unproductive but easily cultivated sandy soil, the territory is composed of 37,000 acres and has to nourish 30,000 inhabitants, all living by agriculture; and yet these peasants not only grow their own food, but they

also export agricultural produce, and pay rents to the amount of from fifteen to twenty-five dollars per acre. (Krapotkin, "The Forum," August, 1890.)

66 In the matter of these capitulations the Cantons claimed that, first, they never granted troops to any prince or state but by virtue of some preceding alliance; second, they granted troops only for the defence of the state they were given to, and not to act offensively; third, that the sovereign never received any subsidy or other advantages from it. The Cantons contented themselves with giving such auxiliary troops as were stipulated by their alliance and procuring a beneficial service for their subjects, without reserving profit to themselves. But in spite of the contention that these mercenaries espoused only a just quarrel, such service was a source of social no less than of political ills, and seriously impaired, for the time, the dignity and standing of the country.

67 *Primi in omnibus praeliis oculi vincuntur.*—Tacitus.

68 Even the Cantons, from the first institution of their governments and up to the time the Confederation assumed control of the military service, never kept in pay any standing troops. During the wars with the House of Austria the service was performed by militia, who were paid by the respective Cantons while kept in the field, and dismissed as soon as the campaign was ended.

69 The minimum height for a recruit in the United States army is five feet four inches, weight one hundred and twenty-five pounds, and chest measure thirty-two inches.

70 United States Revised Statutes, Sec. 1625, makes subject to enrolment in the militia "every able-bodied male citizen of the respective States, resident therein," etc.

71 "When the citizens of Geneva were alarmed in the night [the *Escalade* of December 12, 1602], in the depth of winter, by the enemy, they found their muskets sooner than their shoes."—Rousseau.

72 The report of 1887 for the Canton of Bern gives 1,925,580 francs expended on the cantonal and communal schools, not including the university.

73 In July of this year (1890) a statue of Pestalozzi was dedicated at Yverdon, on the Lake of Neuchâtel, for it was there that, after many struggles with adversity, he founded, at the beginning of this century, the school which was perhaps more deeply and lastingly useful than any school that ever existed, by spreading the educational tenets and methods of its famous master throughout Europe, and later across to America, with contagious force. The unveiling of the monument was accompanied with a *Cantate patriotique* by a choir of a thousand children. The statue represents Pestalozzi with a boy and girl whom he is instructing by his side, and bears the simple inscription, "Henry Pestalozzi, 1746-1827. Monument erected by general subscription 1890."

74 The University of Geneva, at the close of the last century, known as the College of Geneva, and which exerted a wide influence in Europe, being temporarily suppressed during the revolution which had taken place, proposed, through its faculty, the transplanting of the college in a body to the United States. To Washington, who had in view the devoting of a quite large amount of money to the founding, or to the support, of institutions of learning, Jefferson wrote a letter on February 23, 1795, in which he laid before him the plan for the transferring of this institution to the national capital; and in the letter Jefferson characterized the College of Geneva as one

of the eyes of Europe in matters of science, the University of Edinburgh being the other.

- [75](#) Zurich has made its city forest, the *Sihl-Wald*, a great public pleasure-ground that pays large sums annually into the city treasury, besides yielding inestimable dividends in the shape of health and happiness to the citizens. This forest has been owned by Zurich ever since 1309, and has been carefully administered for centuries, and is now managed on the most approved scientific principles by corps of trained foresters. Last year the net profits were something over eight dollars an acre, or a total of about twenty thousand dollars, for the city treasury. Half the annual yield of wood is from thinnings alone. In the economic treatment of the forest, its value as a pleasure-ground is not forgotten; the landscape is preserved unharmed, and the place made thoroughly and pleasantly accessible.
- [76](#) Early in the seventeenth century a king of Spain came to see a clock which had been made by Jacques Droz, who resided at Locle, and whose automaton were much noted. Upon the clock there were seated a shepherd, a negro, and a dog. As the hour was struck the shepherd played upon his flute, and the dog fondled gently at his feet. But when the king reached forth to touch an apple that hung from a tree under which the shepherd rested, the dog flew at him and barked so furiously that a live dog in the street answered him. One of the courtiers of the king ventured to ask the negro, in Spanish, what time it was. There was no reply, but when the question was repeated in French, an answer was given. All of them at once voted that the clock was the work of an evil one.
- [77](#) It is estimated that 200 francs' worth of steel will make 525,000 francs' worth of common watch-springs.
- [78](#) On the new federal palace at Bern, in progress of construction in 1890, men were employed to act as turnspits, in immense wheels, for elevating the large blocks of stone.
- [79](#) Adams and Cunningham, "The Swiss Confederation."
- [80](#) The *Fête des Vignerons*, which occurs once in fifteen years at one of the villages on the Lake of Geneva, is the most brilliant festival held in Switzerland, and is accompanied with all the light, joyous mirth of the ancient Bacchanalian festivals. It is graphically described in Cooper's "Headsman."
- [81](#) The word *Alp* is a provincialism, and means an elevated pasture, and hence the name of the mountains on which the pastures exist.
- [82](#) Liquid manure fills an important part in the economy of Swiss husbandry, under the name of *Jouche* or *Mist-Wasser* in the German Cantons, and of *Lisier* in the French Cantons. They collect in large casks the drainage of their manure-piles, stables, and hog-pens, and bring it in carts to the fields, where it is drawn off into wooden tubs fitted to the shoulders of men, and sometimes of women, who, walking along the furrows, distribute it in due proportion to each plant, by stooping to the right and left, the coffee-colored nectar pouring over their heads. It would be impossible to perform an uncleanly task in a more delicate manner.
- [83](#) The great projector did not live to see the accomplishment of his grand work.
- [84](#) The construction of the St. Gothard railway stopped this indemnity.
- [85](#) A report, made in connection with the Swiss National Exhibition of 1883, calculated that up to 1880, 1002 inns had been built for the special use of

travellers, and that they contained 58,137 beds, an average of 58 apiece. The capital value of the land, buildings, and furniture belonging to these was estimated at 320,000,000 francs; the gross profits on which were 53,000,000 francs, or seventeen per cent.; this was reduced by deduction of working expenses to 16,000,000 francs, or five per cent. Of these 1002 inns no fewer than 283 are situated in positions above three thousand four hundred feet, and 14 are actually above six thousand five hundred and sixty-two feet in elevation.

Switzerland only became a “play-ground” within the last century. The first English guide-book appeared in 1818, by Daniel Wall, of London. The first of any kind was published in 1684, by Wagner, a Zurich naturalist, and called “*Index Memorabilium Helvetiæ*.”

[86](#) Ruskin.

[87](#) When these storms break upon the mountain, be it night or day, the bells of the village churches are vigorously rung to exorcise the evil one, and bring the pious villagers on their knees in prayer.

[88](#) These are made of maple, linden, and pine by the shepherds themselves, who bestow much time on their manufacture. The ladles are made in the shape of shells. The milk-strainer, the measures, and the milk-hods are all elegantly shaped and very clean.

[89](#) The chamois is a small species of antelope, somewhat resembling a goat. Its hoofs are remarkably cloven, with a protruding border, which enables it to climb almost perpendicular declivities. Its muscular power is great: it can leap chasms twenty feet wide, and jump down rocks the same distance to platforms with only just room enough for its four hoofs. In the autumn, when strongest and fattest, it is black, in the early spring gray, and in the summer red.

[90](#) It measures four and one-half feet in length and nine to ten feet from wing to wing extended, weighs as much as twenty pounds, and is of a rusty brown color. It is a fierce enemy of sheep, goats, dogs, hares, etc., and has been known to carry off young children.

[91](#) The Swiss infant is bandaged into a large piece of cloth,—to be kept straight, it is explained,—and resembles a pappoose. In the country churches can be seen old paintings of the Virgin holding the infant Christ swathed in just the same manner.

[92](#) A French writer, Picot, went so far as to say of the peasants of Valais: “The Valaisans, far from desiring to attract attention from the world, are jealous of their obscurity, of their ignorance, and even of their poverty, which they believe essential to their happiness.” Many localities have their written existence in song or story. The words of the Vaudois poet, Juste Olivier, “*Vivons de notre vie*,” have sunk into the hearts of a number of writers who, under their own public alone, are cherishing and seeking to reproduce the life about them, dwelling especially upon those local and traditional phases which they feel daily to be giving way before the march of progress.

[93](#) The winds, refrigerated in their passage over fields of ice and snow, meet there a warm aerial current coming from the plains of Italy.

[94](#) Longfellow’s “Hyperion.”

[95](#) Virgil.

[96](#) The Rhone is made to serve useful as well as æsthetic purposes; the great water-power of this river has been utilized by diverting that part passing on

the left of the island into a canal, which conducts the water into a building containing twenty turbines, with four thousand four hundred net horsepower; this power is utilized in a variety of ways, from running sewing-machines to supplying power for an electric light plant; it is an enterprise very profitable to the municipality of Geneva.

[97](#) See Chapter on "Constitution."

[98](#) In the Canton of Vaud, a short distance back from the lake is *Avanche* or *Avanches*, the ancient capital of Helvetia; near this place the Helvetians were defeated by one of Vitellius's lieutenants, and "many thousand were slain and many sold as slaves, and after committing great ravages the army marched in order of battle to *Aventicum*, the capital of the country." (Tacitus.)

[99](#) The first steamer on a Swiss lake was the "Guillaume Tell," in 1823, on the Lake of Geneva.

[100](#) Whirlwinds of snow, or *tourmentes* (known in the Grisons), are tossed aloft by the gale, like the sandy vortices of Africa formed by the simoom; they are dangerous by blinding the traveller and effacing the track.

[101](#) On this passage of Helvetian history, there is a poem of exquisite beauty, by Mrs. Hemans, the "Record of Woman:"

"Werner sat beneath the linden tree,
That sent its lulling whispers through his door,
Even as man sits, whose heart alone would be
With some deep care, and thus can find no more
The accustomed joy in all which evening brings,
Gathering a household with her quiet wings."

[102](#) This place is evidently a fragment, some seventy-five or one hundred acres, that has fallen from the mountain, and, lying between the lake and the rocks, it offered a good point of rendezvous.

[103](#) It is a curious fact that Schiller made Franz, the hero of his "Robbers," say, "In order to become a finished rascal one must have a certain national bent; he must live in a certain climate and breathe a certain rascally atmosphere; so I advise you to go into the Grisons, for that is, in these days, the Athens of pickpockets." Schiller was obliged to apologize, the Council of the Leagues threatening to withhold the money they had promised to lend the Duke of Wurtemberg if the offending poet was not punished; he also received an order "never to write more of the same."

[104](#) In 1796 there appeared in New York an opera in three acts, adapted by William Dunlap from a dramatic performance published in London in 1794, called "Helvetic Liberty."

[105](#) A rude weapon much used by the early Swiss, consisting of a club ending in a massive knob, with spikes protruding in every direction so as to suggest the name of "morning star."

[106](#) Although it is alleged that five similar feats to Winkelried's are on record in Swiss history, only one is recognized and commemorated by the Swiss. In the village square of Stantz is a marble group representing Arnold Winkelried in the act of pressing the Austrian spears into his heart and holding them down, while a second figure pushes forward to take advantage of the gap.

[107](#) The *Æneid*, vi. 660.

[108](#) At the art exhibition held in Bern this year (1890) there were forty plaster models of statues of William Tell competing for the one it is proposed to

erect at Altdorf, 150,000 francs having been appropriated for that purpose.

[109](#) Lamartine.

[110](#) The Aar is perhaps the most interesting water system in Switzerland, especially if we include its great tributaries, the Reuss and the Limmat. Rising among the metamorphic wilds of the Finsteraarhorn, thundering through the granitic dikes of the Grimsel, breaking its way to the Handeck, and plunging in mad career over the falls, it dashes on to the clear profound of Brienz, to the softer beauties of Interlaken and Thun, and, after watering the fertile table-lands of Bern, receives the sister waters of the Reuss and Limmat, which it carries, in one dark-green flood, into the main artery of the Rhine.

[111](#) The market for fowls has one feature worthy of imitation everywhere. In the centre of it stands a man with a miniature guillotine, who for one centime (a fifth of a cent) will behead the fowl, and it is done deftly and free of all bloody exposures; the fowl is firmly held and muffled to prevent outcry, the decapitation instantaneous, the falling of the head and bleeding concealed, and when life is extinct and flow of blood ceases, the fowl is nicely wrapped in paper by the executioner and replaced in the market-basket; it is certainly a humane substitute for wringing off the neck.

[112](#) Means weather-peak, and it is an established barometer in its neighborhood.

[113](#) The western wing of the Bernese Alps presents broad pyramidal masses of a flattened character. The eastern wing exhibits a complete contrast in its tapering obelisks and rocky minarets, in its serrated crests and numerous horns.

[114](#) *Alpenglühen*, or sunset-glow, is an exception to the general laws governing the disappearance of the sunlight by the gradual rise of the earth's shadow; it is a kind of second or after-coloring in the snowy masses, making them stand out from the dark background, though the general light is constantly diminishing. The peaks are illuminated till the sun is from 20° to 30° below the horizon; then the general clearness diminishes, but on the western horizon is a clear segment of 8° to 10°; but as the air has much less reflecting power than the snowy mountains, the latter begin to be lighted up again. This second lighting may be so great that the mountains appear to be actually illuminated by the sun.

[115](#) Since this was written and placed in the hands of the publishers Congress has passed and the President approved a copyright bill, aimed at securing reciprocal protection to American and foreign authors in the respective countries which may comply with its provisions. While the measure which has become a law is not entirely satisfactory to the friends of international copyright, and must be regarded as experimental as to its ultimate results or workings, all of its advocates feel that it is a huge instalment of justice, and a gratifying victory gained for the indorsement of the principle of international copyright. In answer to an inquiry addressed to Mr. A. R. Spofford, Librarian of Congress, as to the effect of the law on the relation of the United States to the Bern Convention, he has kindly made the following statement: "Under the rather uncertain (not to say ambiguous) meaning of Sec. 13 of the Act of March 3, 1891, two things seem to be necessary before a foreigner can be entitled to copyright in the United States: (1) His government must be one that already grants copyright to Americans (by law or international

agreement) on the same terms as to its own people; (2) the President must certify by proclamation the fact just cited.

“Whether the new law was intended to be at once applicable to the authors of all nations who were parties to the Berne Convention of 1885-86; whether the Executive of the United States has authority now to accede to this convention, and join the International Union under the provisions of Article XVIII.; whether this would require the concurrent action of the President and Senate; or, finally, whether an act of Congress would be required (as Great Britain had to pass an act through Parliament to make that country a party to the Berne International Union), all these appear to me to be open questions, owing to lack of precision in the Act of March 3, which was passed in a crowded state of the public business, and not fully digested by a committee, especially with regard to the Berne Convention.”

[116](#) An international arbitration agreement has been drafted by the nations of North, South, and Central America, and a copy has been sent to each European government, extending an invitation to signify their adherence to its provisions. The President of the Swiss Confederation has submitted to the Federal Assembly this pan-American treaty, with a recommendation that Switzerland accept the invitation given by the late International American Conference.

[117](#) Adams and Cunningham, “Swiss Confederation.”

[118](#) Though without a sea-coast or a ship, Switzerland has recognized rights even on the sea as a neutral nation; the treaty of Paris of 1856 respecting neutral flags, neutral goods on vessels of belligerents, and blockades, was also entered into by the Swiss government in the same year.

[119](#) A hide cut into shoe strings was made to surround a principality under a bargain to buy,—*Taurino quantum possent circumdare tergo*.

[120](#) The annexation of Alsace-Lorraine was really a violation of what is the sound basis of the principle of the sacredness of nationalities; a violation of the sacredness of self-government.

[121](#) This term is employed to denote the seven nations which were parties to the Treaty of Berlin,—viz., England, France, Germany, Austria-Hungary, Russia, Italy, and Turkey.

Transcriber's Notes

Obvious typographical errors have been silently corrected. Variations in hyphenation and accents have been standardised but all other spelling and punctuation remains unchanged.

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